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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

July 14, 2026

WEBVTT

1
00:00:08.480 --> 00:00:19.169
Boardroom: Hello, everyone. Good evening. I'm calling to order a special meeting of the Berkeley City Council. Today is Tuesday, July 14th, 2026, and it is 4.03 p.m. Can we start us off with a roll?

2
00:00:19.710 --> 00:00:27.779
Boardroom: Okay, calling the roll. Councilmember Kastarwani is currently absent. Councilmember Taplin?

3
00:00:27.780 --> 00:00:28.580
Terry Taplin: present?

4
00:00:28.860 --> 00:00:34.470
Boardroom: Present. Councilmember Bartlett is currently absent. Councilmember Trega? Present.

5
00:00:34.820 --> 00:00:39.640
Boardroom: And… Vice Mayor O'Keefe… is present.

6
00:00:40.470 --> 00:00:42.549
Boardroom: And Councilmember Blackaby? Here.

7
00:00:42.910 --> 00:00:44.830
Boardroom: Councilmember Lunapara? Here.

8
00:00:45.100 --> 00:01:03.820
Boardroom: Humbert, present, and Mayor Ishii? Here. Okay. Mark 2 is present. Okay, thank you, sorry. Okay. Okay. Thank you very much. So, today is a work session, and the only item on our agenda is the 2025 Police Accountability Board and Office of the Director of Police Accountability Annual Report.

9
00:01:03.820 --> 00:01:06.589
Boardroom: So I will pass it over to our…

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10
00:01:06.690 --> 00:01:22.190
Boardroom: Interim Director of Police Accountability. Returning, temporary, as you like to say. So, thank you so much for being here with us this evening, both of you. Thank you very much, Madam Mayor, and members of the City Council.

11
00:01:22.440 --> 00:01:31.219
Boardroom: I was just introduced, your returning Interim Director of Police Accountability, Kathy Lee. With me is Policy Analyst Jose Murillo.

12
00:01:32.490 --> 00:01:56.289
Boardroom: Chair Josh Keatano of our board, was flying back from a, a court argument in San Diego, so he may or may not be able to be here by the end to help answer questions. But it is our pleasure and privilege to present to you the Police Accountability Board and Office of the Director

13
00:01:56.290 --> 00:02:01.130
Boardroom: of Police Accountability Annual Report for 2025.

14
00:02:01.130 --> 00:02:09.269
Boardroom: This presentation is mandated by the City Charter, Section 125, Subsection 16C.

15
00:02:12.760 --> 00:02:19.759
Boardroom: So, just as a refresher, the purpose of the Police Accountability Board is to promote public trust.

16
00:02:20.010 --> 00:02:38.309
Boardroom: Through independent, objective civilian oversight of the Berkeley Police Department, provide community participation in setting and reviewing police department police policies, practices, and procedures, and to provide a means for prompt, impartial, and fair investigation of complaints

17
00:02:38.750 --> 00:02:43.600
Boardroom: Brought by the public against sworn employees of the Berkeley Police Department.

18
00:02:44.650 --> 00:03:02.779
Boardroom: And the function of the Director of Police Accountability, or the Office of the Director, is to investigate complaints filed against sworn employees of the BPD, to reach an independent finding as to the facts, and recommend corrective action where warranted.

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19
00:03:03.320 --> 00:03:15.409
Boardroom: The Director of Police Accountability may also serve as, and does, serve as the Secretary to the Police Accountability Board, and assist the Board in carrying out its duties.

20
00:03:16.410 --> 00:03:25.619
Boardroom: So, a very quick overview of our presentation today. I will start with the investigative processes and complaint data.

21
00:03:25.730 --> 00:03:42.999
Boardroom: We'll move into the Police Accountability Board's policy work, and then we'll be examining, vehicle and pedestrian stops by our police department, as well as other activities, and see if we note trends and patterns.

22
00:03:46.550 --> 00:03:49.659
Boardroom: So, on to the complaint process.

23
00:03:50.090 --> 00:03:57.440
Boardroom: A member of the public can file a complaint online or fill out a written complaint form.

24
00:03:58.070 --> 00:04:03.610
Boardroom: Staff reviews the complaint to determine if prima facie misconduct is alleged.

25
00:04:03.820 --> 00:04:10.759
Boardroom: If so, then staff prepares a notice of complaint and allegations and sends it to the officers.

26
00:04:11.840 --> 00:04:18.149
Boardroom: The investigation proceeds, and the steps include interviewing the complainant.

27
00:04:18.490 --> 00:04:26.649
Boardroom: the subject officer or officer's witnesses, which includes civilian witnesses and, witness officers.

28
00:04:27.020 --> 00:04:40.100
Boardroom: gathers documents, requests, reports and other information from the Berkeley Police Department, requests and review body-worn camera footage, and gathers other evidence.

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00:04:40.450 --> 00:04:50.560
Boardroom: At the conclusion of the investigation, the staff will prepare a written findings and recommendations report, and presents it to the PAB in closed session.

30
00:04:51.360 --> 00:04:53.590
Boardroom: As to each allegation.

31
00:04:53.720 --> 00:05:05.299
Boardroom: staff will make a recommended finding of either sustained, not sustained, unfounded, or exonerated, and I'll talk a little bit more about,

32
00:05:05.770 --> 00:05:08.139
Boardroom: What those findings mean in a bit.

33
00:05:08.510 --> 00:05:13.890
Boardroom: The PAB can either agree or disagree with those findings.

34
00:05:14.100 --> 00:05:26.290
Boardroom: And then can decide if it wants to conduct a hearing, or if it simply wishes to, send its recommendations on to the chief without a hearing.

35
00:05:26.910 --> 00:05:28.549
Boardroom: The chief of police?

36
00:05:28.670 --> 00:05:35.879
Boardroom: Receives the report and can either agree or disagree as to each allegation.

37
00:05:37.200 --> 00:05:58.350
Boardroom: whenever there's disagreement, it's up to the director of police accountability to decide whether he or she wishes to appeal that decision to the city manager. And the city manager's decision is final in the case of an appeal, but if there's no appeal, then the police chief's decision.

38
00:05:58.350 --> 00:06:00.580
Boardroom: Will be final in that matter.

39
00:06:02.010 --> 00:06:07.310

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Boardroom: In terms of the numbers, in 2025,

40
00:06:08.620 --> 00:06:18.250
Boardroom: The Office of… the ODPA received 43 complaints, and that was from 27 unique complainants.

41
00:06:19.850 --> 00:06:24.990
Boardroom: This, the third, number on your slide is really,

42
00:06:25.070 --> 00:06:42.879
Boardroom: a little bit distinct from the top two, because the first two numbers talk about the intake for 2025. The, allegations investigated is really the output, the allegations that were investigated and actually presented, and a finding made.

43
00:06:43.110 --> 00:06:50.949
Boardroom: So, the third number is the… represents 69 allegations

44
00:06:51.030 --> 00:07:06.950
Boardroom: of 9 cases that were, investigated and closed. There were an additional 22 cases that were administratively closed in 2025, and I'll be talking a little bit more about that in a moment.

45
00:07:08.040 --> 00:07:14.470
Boardroom: In the next slide, this is an overview of the complaint dispositions of those 69

46
00:07:14.620 --> 00:07:19.420
Boardroom: Cases. Six… not… sorry, allegations.

47
00:07:19.530 --> 00:07:22.710
Boardroom: So, sustained finding means that

48
00:07:23.350 --> 00:07:33.470
Boardroom: the, my office or the board found that misconduct occurred. Not sustained means the evidence does not support the allegation, but neither was it proven false.

49
00:07:33.730 --> 00:07:44.309
Boardroom: Unfounded means the alleged act did not occur, and exonerated means the alleged act did occur, but it was lawful, justified, and proper.

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50
00:07:44.460 --> 00:07:47.969
Boardroom: And as this table shows you.

51
00:07:48.390 --> 00:07:56.670
Boardroom: The unfounded, finding will constitute almost half of the total number of findings

52
00:07:57.090 --> 00:07:59.300
Boardroom: That the Board and this office made.

53
00:08:02.150 --> 00:08:11.550
Boardroom: administrative closures occur for all the reasons that, that you could see here.

54
00:08:12.910 --> 00:08:24.370
Boardroom: Most cases closed in 2025 administratively were done due to, staffing issues in the year. There was…

55
00:08:25.930 --> 00:08:33.650
Boardroom: A… an investigator who left And then there was a… was there a gap in…

56
00:08:33.650 --> 00:08:50.669
Boardroom: in investigators, then another one… and there was a gap in investigators before another one came on. And there was… we were actually… but the office was actually budgeted for two investigators, and lost the second investigator during the hiring freeze. So, decisions…

57
00:08:50.670 --> 00:08:53.430
Boardroom: Had to be made about,

58
00:08:53.860 --> 00:09:00.099
Boardroom: which cases to administratively close simply for a lack of capacity.

59
00:09:00.590 --> 00:09:10.419
Boardroom: Administrative closure also occurs when, there are… there's not a prima facie allegation, or it appears that the,

60
00:09:11.200 --> 00:09:13.769
Boardroom: The complaint was made

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61
00:09:13.910 --> 00:09:30.749
Boardroom: For retaliatory or frivolous reasons. And then there are other reasons, such as the complainant couldn't be reached, complainant changes their minds, the complaint is filed too late, result through other means, or

62
00:09:30.960 --> 00:09:35.719
Boardroom: In one case, there was a policy change that satisfied the complainant.

63
00:09:43.680 --> 00:10:02.050
Boardroom: This slide shows, agreement rate analysis between the PAB and the police chief, and, what stands out here is that the… of the 13 allegations that were sustained by the PAB, the chief agreed with none of them.

64
00:10:02.090 --> 00:10:08.870
Boardroom: And also, not sustained is a second notable, figure here.

65
00:10:09.050 --> 00:10:17.359
Boardroom: Which is only 1 out of 14. So there was more agreement with the unfounded and the exonerated findings.

66
00:10:24.190 --> 00:10:33.049
Boardroom: And this slide shows… it could be a little hard to read, because the numbers are small, but they're directly, from the department, so…

67
00:10:33.100 --> 00:10:50.759
Boardroom: The Internal Affairs Bureau of the Police Department investigates misconduct allegations, but against all Berkeley Department employees, so it's not just the sworn officers, unlike our office. So, the numbers are not completely comparable,

68
00:10:51.200 --> 00:10:52.290
Boardroom: Also.

69
00:10:53.090 --> 00:11:07.770
Boardroom: all complaints that come to us, where we find prima facie, allegations of misconduct, are also referred to Internal Affairs. So, there's a dual system there.

70
00:11:08.340 --> 00:11:09.430

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Boardroom: And…

71
00:11:09.490 --> 00:11:28.030
Boardroom: I think the thing that's noticeable about the police department's figures are that they break down their stats, their statistics, by internal complaints, that is, those that come from within the department, and external complaints from members of the public, and that includes

72
00:11:28.060 --> 00:11:41.759
Boardroom: The ones that are filed, with our office. And what I think is notable here is that most of the sustained allegations by IA, come from their internal complaints.

73
00:11:43.830 --> 00:11:49.330
Boardroom: And I'm going to pass it over to Mr. Murillo to talk about policy work.

74
00:11:50.340 --> 00:12:04.239
Boardroom: Okay. Thank you, Director Lee. In this section, I'll provide a brief overview of the policy work, that the board took on in 2025, not just because this is my role, but it's my favorite part of the presentation every year.

75
00:12:06.200 --> 00:12:13.110
Boardroom: 2025, had a lot of interesting topics that the board tackled, and that this body considered.

76
00:12:13.210 --> 00:12:32.810
Boardroom: Some of the highlights that I think most of us are familiar with, given that there were also, priority items this year was surveillance technology. The board did a lot of the review around, the different proposals that were coming towards the end of the year, as well as some proactive, research. For example, AI-assisted report writing.

77
00:12:32.860 --> 00:12:49.290
Boardroom: Although the department was not considering it at that time, during discussions of surveillance technology, that was a topic that has come up repeatedly, as some of our vendors, currently are starting to offer it. And it was a great opportunity for us, not just for the board to research

78
00:12:49.290 --> 00:13:04.070
Boardroom: and provide insight before something was potentially considered, but it also served as a great opportunity for us to partner,

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with, UC Berkeley's Criminal Law and Justice Center, who helped us with the research on this, as well as drones, strengthening some of our,

79
00:13:04.090 --> 00:13:17.859
Boardroom: Partnerships with both the university and providing opportunities for community, involvement, particularly in light of the staff transitions that were happening last year, and the board's vacancies that are now being filled.

80
00:13:17.890 --> 00:13:20.610
Boardroom: Thanks to your nominations.

81
00:13:21.170 --> 00:13:31.340
Boardroom: So again, various topics, there was also vehicle pursuits policy that the board provided a lot of feedback on, the controlled equipment and the MOUs, which the spottery approved.

82
00:13:31.340 --> 00:13:43.410
Boardroom: This year, last year, there was a lot of work that went on between, the department and the board. This year, they didn't provide any additional comments because of that extensive collaboration.

83
00:13:44.520 --> 00:13:57.080
Boardroom: And… Okay. In terms of the subcommittees, as you may recall, last year, the board ended the year with a lot of subcommittees. One of the priorities of the board last year was to,

84
00:13:57.390 --> 00:14:15.209
Boardroom: Okay, just making sure the slide was catching up to where I was speaking. Sorry. One of the commitments that the board had last year was that it was going to close and combine a lot of committees to really focus its work, and most importantly, optimize their resources, with the available staff members.

85
00:14:15.290 --> 00:14:20.519
Boardroom: or the available board members. The committees on the screen are the ones that were either closed.

86
00:14:20.620 --> 00:14:31.430
Boardroom: Because the topic had been resolved, or the policy had already been discussed, or that were merged with, other subcommittees, for example, the Budget and Metrics and the Operations and Processes Committee.

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00:14:31.490 --> 00:14:42.370
Boardroom: Which, although served two distinct, could be worked… two distinct roles, both aligned very well with each other. So those committees were, brought together by the board.

88
00:14:43.260 --> 00:14:58.690
Boardroom: In terms of what was open, there are still 6 open. We had the regulations committee, it's now being handled by a liaison, so the committee itself was closed this year. We have our policy review subcommittee, our outreach and Engagement, the metrics and operations, which I just mentioned.

89
00:14:58.690 --> 00:15:10.760
Boardroom: There's an arrest quota prohibition that earlier this year also closed, given that their, work was finished. And then there's, of course, there's one on encampment clearances, that the board is actively working on.

90
00:15:12.510 --> 00:15:28.150
Boardroom: One other way that the board receives, policy review topics is through our policy complaint, which is really a… it's a vehicle for members of the public to request the board, to review issues that they believe, deserves a review.

91
00:15:28.220 --> 00:15:43.410
Boardroom: This year we received 7, 3 of those were accepted. The 3 topics for the ones that were accepted were, whether, subject officers of a complaint should be coming into contact, with complainants during future calls of service following a complaint.

92
00:15:43.440 --> 00:16:02.270
Boardroom: Whether public recording, er, the policies around public recording of police activity, and as I mentioned earlier, encampment clearances. There was 4 that weren't accepted, which involved investigations, regarding traffic collisions with pedestrians. The use of LED lights in patrol vehicles was a topic that came up.

93
00:16:02.290 --> 00:16:19.300
Boardroom: Officer cell phone usage while on a vehicle, and there's one that we didn't categorize because it wasn't clear, what exactly the community member, and we couldn't reach out to them. We reached out to them, but we didn't get any additional follow-up as to the subject, of their policy review.

94
00:16:19.350 --> 00:16:35.710

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Boardroom: We did complete one review from a previous, year, and this was on the detention of inebriated individuals, and the policies that, govern what their detention looks like and their access to medical care. And that report's on our reports page on our website.

95
00:16:38.780 --> 00:16:55.549
Boardroom: This following section, we're gonna provide an overview of the vehicle stops, and use of force, as well as other enforcement activities. This year looks a bit different than what we had presented last year. We took into account the… both the feedback we got from this body.

96
00:16:55.550 --> 00:16:59.790
Boardroom: And I also want to thank Arlo for bouncing a few ideas with me in terms of.

97
00:16:59.790 --> 00:17:05.019
Boardroom: The way that we conducted our bias analysis, of our stop data.

98
00:17:05.050 --> 00:17:19.929
Boardroom: And what we're presenting here today is really a mixture, or I'd say it's a fusion, of what the police department currently does, what the board presented, and some of the best practices used by the state, as well as other academic sources.

99
00:17:21.730 --> 00:17:30.580
Boardroom: An overview of the stops, for 2025. We're particularly, sorry, I lost, lost my notes here.

100
00:17:33.460 --> 00:17:39.280
Boardroom: Of course, there's 4,540 stops, as was reported by the BP earlier this year.

101
00:17:39.300 --> 00:17:55.810
Boardroom: One topic that came up last year, more of a question, was, how the stops for folks that lived in Berkeley, Berkeley residents, and non-Berkeley residents compared in the distribution. One of the things that we noted was that the distribution of both is actually relatively,

102
00:17:55.940 --> 00:18:07.349
Boardroom: Evenly distributed. There's about 5% where, within the data set, we can't determine whether they're residents or non-residents, or whether their housing status was housed or unhoused.

103
00:18:07.570 --> 00:18:11.490

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Boardroom: But, overall, the distribution was relatively the same.

104
00:18:11.640 --> 00:18:29.229
Boardroom: One of the observations that the board wanted to highlight in particularly, was the number of stops of unhoused individuals, which was 937 stops, compared to the population of the last, point-in-time count in 2024 of 880. And we discussed that a little bit further.

105
00:18:30.930 --> 00:18:42.260
Boardroom: Just to provide an overview of the methodology we implied this year, last year, during our 2024 report, the board and our office used a population-based assessment.

106
00:18:42.350 --> 00:18:53.949
Boardroom: Following feedback from last year and additional research that we conducted, including just comparison best practices in the review, as well as, again, mentioning, my brief consultations with Arlo.

107
00:18:54.600 --> 00:18:57.790
Boardroom: We implemented a multi…

108
00:18:58.200 --> 00:19:06.179
Boardroom: I guess we looked at it from various lenses. Not only were we looking at the descriptive… not only did we conduct the descriptive analysis.

109
00:19:06.260 --> 00:19:12.600
Boardroom: And our population-based assessment that we conducted last year. We also looked at resident… the residency context.

110
00:19:12.600 --> 00:19:28.030
Boardroom: We conducted the temporal demographic analysis, how do stops compare across different times of day, the types of stops, whether they're vehicle pedestrians. As I noted earlier, we focused on the housing status of the individuals being stopped and what the outcomes of those stops were.

111
00:19:28.030 --> 00:19:37.240
Boardroom: And again, some of these… this framework was largely embodied by, combining both the BPD's framework and our framework, with additional context.

112
00:19:38.450 --> 00:19:59.499

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Boardroom: So a quick summary, of the long section of our report. I think the slide really doesn't do it justice based on how many, insights we were able to provide this year. In terms of the population benchmarking, the pattern that we observed was similar as last year. We did notice that compared to a lot of populations, for example, for Black and African American community members.

113
00:19:59.500 --> 00:20:00.960
Boardroom: There was…

114
00:20:00.960 --> 00:20:09.260
Boardroom: a higher rate of stops for them. In terms of residency, as I noted earlier, there's a fairly equal distribution versus resident and non-resident.

115
00:20:09.530 --> 00:20:14.520
Boardroom: In terms of the stops by race, individuals perceived to be black or African American were stopped.

116
00:20:14.830 --> 00:20:23.149
Boardroom: As drivers are lower rate than white individuals, but then, of course, there's also just, when we bring it back into the context of.

117
00:20:23.330 --> 00:20:38.740
Boardroom: our population benchmarking, some of these other tests, there's more that, we could look into that. The temporal analysis, our distribution, although the percentages varied slightly, the distribution was fairly constant during the different points in time during the day.

118
00:20:38.860 --> 00:20:47.840
Boardroom: And then, of course, the housing status, individuals perceived to be unhoused, were stopped far more often than expected based on their share of the population.

119
00:20:48.170 --> 00:20:53.659
Boardroom: In terms of post-op outcomes, we noticed that the search rates varied across groups.

120
00:20:53.830 --> 00:21:07.859
Boardroom: Black and African American individuals and white individuals were the two groups that were stopped at higher rates. With, of course, our Black and African American population were stopped at, as noted on the slide, were stopped at a higher rate.

121

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00:21:08.730 --> 00:21:15.570
Boardroom: than some of the other groups. And then our search fields is really where we saw that for the larger groups that were stopped.

122
00:21:15.670 --> 00:21:19.980
Boardroom: The search field was relatively close to one another.

123
00:21:23.980 --> 00:21:43.109
Boardroom: In terms of use of forest trends, this is one of the policies that the board is actively working on with the department, and it was a topic of conversation last year as well, where a lot of work, went into it. This year, there was less instances of forests. There was 276 incidents, 315 unique subjects.

124
00:21:43.110 --> 00:21:59.830
Boardroom: And 1,276 individual force applications. The individual force applications just means that in terms of one specific incident, it might involve multiple officers or multiple subjects. So there might be more than one use of force, for each one.

125
00:21:59.950 --> 00:22:10.980
Boardroom: Consistent with last year, Level 1 use of force, had the highest percentage of incidents followed by Level 2, with the most common being Level 1 grabs and, control holds.

126
00:22:14.060 --> 00:22:30.210
Boardroom: The top reasons as to why force was used, the top was to ineffect an arrest, followed by 5150 detentions, or for, mental health-related cause, incidents where there is resisting arrest, where the subject was combatant, or there was an assault on an officer.

127
00:22:30.210 --> 00:22:50.209
Boardroom: Out of the incidents that involved use of forest, 62%, were arrested. And then in terms of the demographics, the group with the highest rate of uses of forest was black or African Americans at 152, or 48.3% of instances, followed by our white community members, i.e. 3%, 83 instances and 26.3%.

128
00:22:50.330 --> 00:22:53.340
Boardroom: And then followed by the Hispanic and Latinx population.

129
00:22:55.030 --> 00:23:02.929
Boardroom: Now pivoting to training, in terms of training, there's an increase that was comparable to, last year's report out.

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130
00:23:02.970 --> 00:23:21.639
Boardroom: There are 6,872.5 hours, of training conducted by the various personnel. The way that we obtain this data is that BPD shares their training orders with us, so we as staff, we collect the database, of the number of hours and the types of training categories that our officers are going to.

131
00:23:21.680 --> 00:23:41.340
Boardroom: This year, tactical and operational training was the bucket that had the broadest, er, the largest amount of hours. Tactical and operation includes everything from our tactical response to our crisis management response, which were two of the highest, training hours, followed by firearm training, leadership and develop… leadership development and supervision training.

132
00:23:41.510 --> 00:23:49.449
Boardroom: Defensive tactics and Employee Wellness and support, which were some of the most frequent, but not the only training topics.

133
00:23:51.420 --> 00:23:55.739
Boardroom: And I'll bring it back to Director Lee.

134
00:24:03.000 --> 00:24:17.329
Boardroom: So, to wrap it up, there were quite a few accomplishments made by the PAB and the ODPA, in expanding their oversight of various, of a multitude of policies, and,

135
00:24:17.370 --> 00:24:26.330
Boardroom: Technologies and equipment, especially in the area of surveillance technology. The…

136
00:24:27.110 --> 00:24:31.509
Boardroom: The negotiations of the permanent regulations continued.

137
00:24:31.670 --> 00:24:41.299
Boardroom: Was not completed, but, progress was made. There was, increased community outreach and engagement.

138
00:24:41.450 --> 00:24:52.089
Boardroom: And there was, there were new academic and community partnerships to help advance the goals of the PAB and the ODPA.

139
00:24:52.190 --> 00:24:59.050

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Boardroom: Challenges, of course, as was mentioned, was staffing shortage and vacancies on our board.

140
00:24:59.050 --> 00:25:14.389
Boardroom: I know we're into 2026, but I do thank all the council members for, making their, nominations when you had… where you had a vacancy. I believe we have two coming this evening, and the last one

141
00:25:14.390 --> 00:25:20.989
Boardroom: At your next meeting, and we will have a full board, so that's very exciting for us.

142
00:25:21.860 --> 00:25:24.010
Boardroom: Other challenges,

143
00:25:24.450 --> 00:25:36.640
Boardroom: experienced, by our organization were delays in investigations and policy reviews, which was really a direct, result of staffing shortage.

144
00:25:36.780 --> 00:25:52.390
Boardroom: And because of that, it was hard to… it was often hard to react, quickly enough under deadline, for, some certain public safety initiatives. And,

145
00:25:52.540 --> 00:26:02.200
Boardroom: The board and this office really feel that there is a need for greater, awareness on the part of the public about our work.

146
00:26:02.540 --> 00:26:14.699
Boardroom: So, priorities for 2026 will be to finalize and implement, our permanent regulations, to, strengthen policy oversight and review, and I do think,

147
00:26:15.100 --> 00:26:20.360
Boardroom: You know, that will happen now that we have a full…

148
00:26:21.020 --> 00:26:40.380
Boardroom: are about to have a full complement of board members, and you're about to have a permanent director, I think that will go a long way into being able to advance, policy work, and that will provide the opportunity to, expand community outreach and engagement.

149

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00:26:40.490 --> 00:26:51.039
Boardroom: And I think a new director, a new permanent director can improve… work on improving organizational capacity and performance.

150
00:26:51.240 --> 00:26:56.899
Boardroom: And so, I think, the key takeaway is that despite,

151
00:26:57.000 --> 00:27:10.729
Boardroom: the constraints of resources, and staffing, the PAB did continue its important work in, in many ways of advancing oversight. It continued partnerships.

152
00:27:10.730 --> 00:27:22.570
Boardroom: With academic and community groups, and, expanded community engagement and… Looking… look forward to 2026.

153
00:27:22.900 --> 00:27:29.450
Boardroom: That's the end of our formal presentation, and of course, we are happy to answer questions you may have.

154
00:27:31.470 --> 00:27:47.049
Boardroom: Thank you so much. Really thank you both so much for your presentation, and also for the report itself. I know it's a lot of work each year. And I want to start with any questions from my Councilmember colleagues. Councilmember Humbert?

155
00:27:47.110 --> 00:28:02.030
Boardroom: I think Councilmember… Oh, yes. He's been having trouble with the parliamentarian. I… I know we've been, so… The 20 is they both say one. They both say one. Oh, and I… it didn't… But I can… I can, I can go after, if you'd like.

156
00:28:02.090 --> 00:28:07.360
Boardroom: Sorry, it's a very dim red light over here, so go ahead. Okay.

157
00:28:07.550 --> 00:28:11.690
Boardroom: Well, thank you, Madam Mayor.

158
00:28:13.550 --> 00:28:24.820
Boardroom: I really appreciate the presentation, and I… I also apologize in advance. My questions will not be in any particular order.

159
00:28:25.250 --> 00:28:31.080

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Boardroom: But I wanted to start with, You…

160
00:28:31.410 --> 00:28:38.169
Boardroom: you provided, first of all, I really appreciate your explanation,

161
00:28:38.450 --> 00:28:43.339
Boardroom: By… of the different complaint dispositions,

162
00:28:43.460 --> 00:28:52.370
Boardroom: that was something that I asked about in the previous report and previous year's report, and I'm glad that was,

163
00:28:52.730 --> 00:29:02.470
Boardroom: added, I was wondering, if you could provide any kind of context around, just…

164
00:29:02.990 --> 00:29:22.170
Boardroom: staffing levels right now, and how that may support, disposition of complaints? Do you find that at any given point in the year, you may be getting more or fewer complaints that you have to work through?

165
00:29:24.130 --> 00:29:36.050
Boardroom: Thinking about the bathtub representation, is there more flowing in than out, or are you closing them, at a higher rate?

166
00:29:37.760 --> 00:29:40.029
Boardroom: I think they come in at a…

167
00:29:40.220 --> 00:29:49.269
Boardroom: fairly regular rate, and there's, you know, occasionally ebbs and flows. From what I can see,

168
00:29:50.340 --> 00:30:00.690
Boardroom: the investigations the investigator, our investigator, is keeping up pretty well with processing the cases.

169
00:30:01.220 --> 00:30:12.340
Boardroom: That said, I will say there are a few cases where we have had to extend our investigatory deadline. Our regulations, provide that

170

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00:30:12.690 --> 00:30:28.640
Boardroom: we have 120 days to complete the investigation of a complaint, and that could be extended to 195 after consulting with the police chief and the city manager, and I've had… I've had to do that probably in…

171
00:30:29.050 --> 00:30:34.380
Boardroom: Maybe 5 cases in the… 3 months, 3-4 months that I've been here.

172
00:30:35.950 --> 00:30:49.170
Boardroom: Thank you. And then, just for my own edification, can you speak to… I know, step 4 in the complaint process as TPA presents findings and recommendations to the board.

173
00:30:49.270 --> 00:31:03.259
Boardroom: Is that every single time you get a complaint, or is there some kind of administrative decision-making, and then only a subset of those,

174
00:31:03.450 --> 00:31:09.690
Boardroom: That might… you feel would need board resolution would come to the board.

175
00:31:10.450 --> 00:31:25.130
Boardroom: I'm sorry, I didn't quite understand that. What percentage of the complaints received have to be adjudicated by the board, or is it all of them? Oh, no, not all of them. You know, there are…

176
00:31:25.470 --> 00:31:31.209
Boardroom: A fair number that do get administratively closed because they haven't alleged

177
00:31:31.680 --> 00:31:40.390
Boardroom: a misconduct against an officer. Maybe they're unhappy with the way something turned out with their case, but,

178
00:31:41.080 --> 00:31:48.950
Boardroom: they haven't alleged, you know, any violation of policy. And so, that would be closed.

179
00:31:49.220 --> 00:31:58.690
Boardroom: Or, there could be… and another way that, allegations are dropped is…

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180
00:31:59.490 --> 00:32:14.969
Boardroom: A member of the public might make, 6 allegations of misconduct, and we may find there's really only 4 that constitute, a violation of policy.

181
00:32:15.140 --> 00:32:20.280
Boardroom: So that's the way… that's another way that we would, weed those out.

182
00:32:20.740 --> 00:32:23.089
Boardroom: Am I… am I answering a question?

183
00:32:24.430 --> 00:32:28.620
Boardroom: Yeah, I, yeah, that makes sense.

184
00:32:28.820 --> 00:32:34.050
Boardroom: I think, yeah, the clock is ticking, so I'm gonna keep going with this.

185
00:32:35.040 --> 00:32:52.779
Boardroom: I was curious about the policy requests, just around what is the timeline for those once you decide to take them up. Do those need to be, reported out within a certain period of time?

186
00:32:53.050 --> 00:33:04.319
Boardroom: You, you also mentioned that they're on the website once, there's a report. Is that something that ever gets shared with the Council, or could?

187
00:33:04.530 --> 00:33:12.730
Boardroom: Just kind of how… how are they communicated once the reports are complete? There… there's no…

188
00:33:13.100 --> 00:33:19.170
Boardroom: No, there's no deadline for handling policy complaints, so it's pretty much… and those…

189
00:33:19.270 --> 00:33:33.600
Boardroom: Are… that's an example of something that might be put on the back burner when there's not enough, there aren't enough board members, for instance, or, say, staff to support board members' work.

190

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00:33:33.800 --> 00:33:40.030
Boardroom: I'll let… Mr. Murillo, talk about what's posted on the website. Yeah.

191
00:33:40.070 --> 00:33:48.100
Boardroom: So yes, for some of our reports, well, every report gets uploaded to our reports page once it's been presented to the board.

192
00:33:48.100 --> 00:34:00.759
Boardroom: For some of them, we do transmit them directly to the board, others are sent to the chief first, in case there's some form of response that wants to be provided, or additional context before it gets sent up.

193
00:34:00.820 --> 00:34:08.150
Boardroom: To the City Council. I think for the previous part of your question, and just adding to the Director's response in terms to the timeline.

194
00:34:08.250 --> 00:34:13.160
Boardroom: Last year, under the standing regulations, there's a new policy manual, or a new process.

195
00:34:13.210 --> 00:34:28.389
Boardroom: That the board implemented, but our reviews, once we receive it, we have 30 days to give a preliminary recommendation to the board, as to whether or not something, should be taken up, and if so, what specific policies, they would be reviewing.

196
00:34:28.389 --> 00:34:38.199
Boardroom: So that's the process, but in terms of an end product, there is an exact timeline, and the board helps us guide those priorities, in regards to the director's comments about.

197
00:34:38.199 --> 00:34:48.129
Boardroom: needing to put something to the side. Like, for example, if we're doing surveillance technology that does have a deadline, board might ask staff to prioritize supporting them with that over the policy reviews.

198
00:34:48.710 --> 00:34:50.949
Boardroom: Thank you.

199
00:34:51.699 --> 00:34:59.630

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Boardroom: So, I appreciate that at the end of your report, you mentioned several 2026 goals,

200
00:34:59.630 --> 00:35:16.550
Boardroom: We're now, a little bit past mid-year, and, is there anything that you could note about your progress towards these goals? And also, how are you prioritizing them, or do they all have equal prioritization?

201
00:35:17.180 --> 00:35:30.349
Boardroom: I'll let the equal prioritization question to the director, but, one thing that we'll actually be sharing with the Council, sooner rather than later, one of our partnerships that we started towards the end of last year and continued into this year.

202
00:35:30.350 --> 00:35:38.529
Boardroom: Was our partnership with Social Sector Solutions at UC Berkeley School of Business. They actually helped us outline an outreach strategy.

203
00:35:38.530 --> 00:35:52.030
Boardroom: for our current resources and our current reality in terms of staffing, and giving us a roadmap for us to, one, increase our accessibility to the public, but also be present proactively in the community. Some of the…

204
00:35:52.030 --> 00:36:02.999
Boardroom: The outreach that we did last year has been primarily, for example, Juneteenth. Our bandwidth really didn't limit, or didn't allow us for additional, outreach, but through that partnership, we were able to

205
00:36:03.120 --> 00:36:17.079
Boardroom: Really create a romance and a game plan for us to better prepare for these events, moving forward. They gave us a great presentation, there's some recommendations that we staff, still have to respond to, but we'll be sharing those as soon as those are ready.

206
00:36:21.890 --> 00:36:23.970
Boardroom: I think in terms of,

207
00:36:24.690 --> 00:36:39.480
Boardroom: prioritization. A lot of the policy work is driven by timing that's outside our control. For instance, things that are coming to the council from the department.

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208
00:36:39.480 --> 00:36:45.140
Boardroom: And so, those necessarily take on,

209
00:36:45.260 --> 00:36:50.789
Boardroom: Some weight because of, those deadlines that we're facing.

210
00:36:50.930 --> 00:36:56.810
Boardroom: I think in terms of progress for… for 2026,

211
00:36:57.270 --> 00:37:16.419
Boardroom: you know, the beginning of the year was sort of fraught with, losing the former director, so I think it's been… I have to give the board a lot of credit for, carrying on in the absence of a director, and… and with,

212
00:37:16.690 --> 00:37:20.279
Boardroom: you know, They only had 4 board members for

213
00:37:20.570 --> 00:37:22.840
Boardroom: Quite a few months in this year.

214
00:37:22.960 --> 00:37:32.790
Boardroom: So, I think if you're looking at… if you're standing at the end of 2025, I think the outlook was a lot more optimistic, and

215
00:37:33.070 --> 00:37:42.480
Boardroom: then there was sort of a trough in early 26, but I, I'm very hopeful, and I think the board is as well, and I'm very excited about

216
00:37:42.500 --> 00:37:51.170
Boardroom: the new board members that have been appointed, there's a lot of experience there. We have a former

217
00:37:51.170 --> 00:38:00.330
Boardroom: PRC officer, and another, board member who served on the PRC, many years ago, so,

218
00:38:00.330 --> 00:38:13.249
Boardroom: I think, and I believe that's your appointee, Councilmember, yes. So, I'm very appreciative of that, and I'm very optimistic for the rest of 2026.

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219
00:38:13.680 --> 00:38:20.039
Boardroom: Okay, thank you. I think I have time for two more questions. So,

220
00:38:20.420 --> 00:38:33.629
Boardroom: Are there any common characteristics or patterns you may have seen that may have led to the 100% disagreement rate between PAB and BPD on sustained cases?

221
00:38:34.100 --> 00:38:42.359
Boardroom: Because I wasn't here, and I don't really have knowledge of those cases, I'm sorry I'm not really able to help to answer that question.

222
00:38:42.990 --> 00:38:43.930
Boardroom: Okay.

223
00:38:44.230 --> 00:38:55.680
Boardroom: That's fair. And lastly, just around moving violations, you, cited a…

224
00:38:55.750 --> 00:39:14.889
Boardroom: higher than what might be expected percentage, when it comes to unhoused individuals. Does moving violation include… or, sorry, I think he said stops, do stops include stationary vehicles or RVs?

225
00:39:16.430 --> 00:39:21.010
Boardroom: That particular element wasn't something that we looked at.

226
00:39:21.190 --> 00:39:31.639
Boardroom: Primarily because of the amount of information that we have regarding to each stop is limited, but it's something that we could look into and follow up. Okay. Thank you.

227
00:39:32.750 --> 00:39:48.479
Boardroom: Thank you very much. Alright, moving on to Councilmember Humbert. Thank you, Madam Mayor, and thank you, Ms. Lee and Mr. Murillo, for preparing… working on preparing this presentation and the actual presentation. It was very clear, and I appreciate it.

228
00:39:49.060 --> 00:39:59.589

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Boardroom: I think this is a typo, but since it comes attached to a recommendation to the City Manager and Council, I want to double check. I'm pretty sure it is. On PDF page 28,

229
00:39:59.930 --> 00:40:03.000
Boardroom: Which is report page 23.

230
00:40:03.540 --> 00:40:07.560
Boardroom: The final paragraph notes that 20.6% of stops

231
00:40:07.590 --> 00:40:24.109
Boardroom: were people believed to be housed. That's unhoused, right? That's… is that a typo? Yes, that's a typo. Yeah. That would make more sense and comport with the table, on page 36. So, just having established that, I want to go to my more substantive question.

232
00:40:24.480 --> 00:40:39.780
Boardroom: The PAB has recommended that the city study this presumed disparity, but the report itself identifies multiple factors from existing literature, which include increased time spent in public spaces for the unhoused.

233
00:40:39.810 --> 00:40:50.440
Boardroom: Welfare checks, complaint-driven policing, behavioral health-related calls, service-related interactions, and quality of life-related enforcement activities.

234
00:40:50.490 --> 00:40:53.089
Boardroom: So my question is, are there any data

235
00:40:53.180 --> 00:40:59.039
Boardroom: that have led the PAB to believe that these previously established factors

236
00:40:59.160 --> 00:41:05.960
Boardroom: themselves don't adequately explain higher interactions between this population and the police in Berkeley.

237
00:41:06.110 --> 00:41:17.450
Boardroom: In other words, it seems to me to be sort of self-evident that there would be more interactions, because these folks are out in public, and these factors are present.

238

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00:41:19.460 --> 00:41:20.949
Boardroom: I think,

239
00:41:21.580 --> 00:41:35.479
Boardroom: from the board's discussion when we were reviewing this exact, point, actually, is that it doesn't necessarily provide a conclusion in terms of, like, yes, the expectation is if you're out in public more.

240
00:41:35.480 --> 00:41:45.289
Boardroom: And you have higher contacts, or if you have higher exposure, you're likely to have higher contacts. I think what this leads us to is not so much of.

241
00:41:45.570 --> 00:42:01.600
Boardroom: Again, making it a conclusion, more of making us ask questions of what we could do, to potentially reduce those contacts, and what resources we could provide as a city to make sure, that those interactions are handled with the best resources that we can.

242
00:42:02.040 --> 00:42:05.729
Boardroom: So, in terms of the board's recommendation, that's the way that they're…

243
00:42:06.880 --> 00:42:20.280
Boardroom: perhaps not conveyed in the way that it was written, but that's what they want us to convey. Okay. Just because some factors aren't necessarily controlled purely by policing action, but may be influenced by other resources that we, as a city, as a team, can.

244
00:42:20.470 --> 00:42:29.270
Boardroom: provide our… Can employ us, yeah. Okay. Councilmember, actually, Chair Cayetano is online, perhaps it might make sense to have him address your question.

245
00:42:29.490 --> 00:42:39.890
Boardroom: Sure, although I think that was… Mr. Murillo, addressed it perfectly well. But if Mr. Cayetano has… has additional comments, I'm happy to hear them.

246
00:42:41.160 --> 00:42:44.110
Boardroom: Chair, are you, I think, raising your hand online?

247
00:42:44.690 --> 00:42:48.099
Boardroom: Yes. I think that iPhone might be…

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248
00:42:48.400 --> 00:42:49.210
iPhone (94): Thank you.

249
00:42:50.230 --> 00:42:51.390
iPhone (94): Can you all hear me?

250
00:42:51.390 --> 00:42:52.020
Boardroom: Yes.

251
00:42:52.400 --> 00:43:02.310
iPhone (94): Thank you, Councilmember. Yes, I think that, Annalist Maria's answer was accurate. I just wanted to add that we didn't do a control study for those variables. I think

252
00:43:02.390 --> 00:43:20.529
iPhone (94): we wanted… we were pointing to them as likely factors, but we were encouraging the Council to, refer out a study that would allow us to, actually control for those variables and identify the root causes, because that is not what we were doing when we were just noting the disparity based on population.

253
00:43:20.870 --> 00:43:23.480
iPhone (94): That would be my only clarification. Thank you.

254
00:43:23.480 --> 00:43:25.520
Boardroom: I appreciate that.

255
00:43:25.940 --> 00:43:34.089
Boardroom: They may explain… they may explain just on their face the disparity, but it'll be interesting to find out whether that's…

256
00:43:34.210 --> 00:43:39.390
Boardroom: Correct. And perhaps I missed this in the main report.

257
00:43:39.500 --> 00:43:52.329
Boardroom: But is there anywhere in that main body of the report that lists what type of allegations were among PAB's sustained findings, and how many cases the complaints are spread across?

258
00:43:52.580 --> 00:44:02.630

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Boardroom: Now, I think that information is in the… is in the appendices, but it's not present in the main body of the report, is that correct?

259
00:44:06.660 --> 00:44:07.639
Boardroom: Let me just confirm.

260
00:44:11.120 --> 00:44:19.130
Boardroom: The question was, the kinds of allegations that were sustained? Yeah, what… identifying the types of allegations that were sustained.

261
00:44:19.250 --> 00:44:27.220
Boardroom: I mean, they're raw numbers about sustained findings, but nothing identifies what sort of

262
00:44:27.550 --> 00:44:34.280
Boardroom: What's the type of allegations, the seriousness of the allegations, or the lack of… Seriousness.

263
00:44:34.910 --> 00:44:39.450
Boardroom: Right, if you look at… Nevermind.

264
00:44:41.470 --> 00:44:48.530
Boardroom: Okay. Probably only in the appendices. In the appendices. Yes. Yeah, that's where, that's where I found him.

265
00:44:48.670 --> 00:44:55.950
Boardroom: And so it appears that of the 13 allegations sustained by the PAB, These all fell across

266
00:44:56.220 --> 00:44:59.369
Boardroom: Four cases or complaints, is that right?

267
00:45:00.060 --> 00:45:02.729
Boardroom: Can you tell me? Let me catch up with you.

268
00:45:36.740 --> 00:45:37.630
Boardroom: this case?

269
00:45:38.650 --> 00:45:39.650
Boardroom: Sorry.

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270
00:45:47.660 --> 00:46:05.200
Boardroom: Yeah, in terms of sustained allegations, that number is accurate. So, 13 of them, but within 4 complaints? That's correct. Okay. Were any of the sustained allegations for improper use of force, false arrest, threats, or dishonesty?

271
00:46:10.840 --> 00:46:12.050
Boardroom: Yes.

272
00:46:18.360 --> 00:46:23.150
Boardroom: In those serious categories, how many of the… How many of the 13?

273
00:46:23.380 --> 00:46:27.050
Boardroom: Involved use of force, false arrest, threats, or dishonesty.

274
00:46:28.750 --> 00:46:35.430
Boardroom: Which are the… probably the most, you know, among the most serious of… Issues.

275
00:46:43.860 --> 00:46:58.680
Boardroom: I don't have that number immediately available, but we could get that for you. Okay. What we seemed to conclude was that none of them involved, those, those categories, but I could be wrong.

276
00:46:58.880 --> 00:47:04.500
Boardroom: But in general, the report itself doesn't highlight that…

277
00:47:04.840 --> 00:47:12.180
Boardroom: most of the sustained allegations were for lesser issues, is that correct? And I'm wondering why that is.

278
00:47:14.470 --> 00:47:19.239
Boardroom: You're wondering why the report does not highlight that sustains are for a lesser?

279
00:47:21.170 --> 00:47:22.860
Boardroom: Yes. Okay.

280
00:47:23.260 --> 00:47:25.799
Boardroom: I mean, it seems to me to be significant,

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281
00:47:33.210 --> 00:47:35.849
Boardroom: Well, I think that's a fair observation.

282
00:47:37.040 --> 00:47:45.790
Boardroom: And I really couldn't speak to the thinking on that. I do note… I am noticing that we do not have a section that breaks out

283
00:47:46.100 --> 00:47:55.299
Boardroom: That sort of, synthesizes the information that's in the appendix, and

284
00:47:55.470 --> 00:48:08.630
Boardroom: perhaps a note for next year. Yeah, I think that would be helpful, because if… I'm not saying that any complaints are, you know, immaterial, but there's… some are more material than others, and it looks to me like…

285
00:48:08.860 --> 00:48:12.469
Boardroom: This, the sustained, issues were…

286
00:48:12.910 --> 00:48:16.429
Boardroom: Less significant, and none of these really serious categories.

287
00:48:16.680 --> 00:48:22.399
iPhone (94): Councilmember, there… I do recall, off the top of my head, a serious complaint.

288
00:48:22.560 --> 00:48:28.789
iPhone (94): Where there was a serious violation that was not sustained with the Chief, and I'm happy to talk…

289
00:48:28.790 --> 00:48:29.200
Boardroom: Okay.

290
00:48:29.450 --> 00:48:41.199
iPhone (94): I can't… I can't speak publicly about it, but, we don't differentiate based on serious versus unserious, and we can… we can take those categories and apply them for the future, but that's not typically how we think about them.

291
00:48:41.390 --> 00:48:46.619

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Boardroom: Well, I think it would be important to do so, because that, you know, that shows us

292
00:48:47.030 --> 00:48:53.860
Boardroom: I think an important, set of information, if, if all of the complaints that are sustained are…

293
00:48:54.520 --> 00:49:00.629
Boardroom: again, not minimal, but not at the highest level. We want to know that. Council wants to know that.

294
00:49:00.970 --> 00:49:03.730
Boardroom: May I have some more time, Madam Mayor?

295
00:49:04.020 --> 00:49:11.700
Boardroom: Yeah, you can have some… How much time do you need? Another couple minutes, maybe. Okay, two.

296
00:49:12.000 --> 00:49:16.160
Boardroom: 2 minutes from Councilmember O'Key. Alright, 3 minutes from Councilmember O'Kee.

297
00:49:16.390 --> 00:49:22.109
Boardroom: Oh, I probably don't even need 3 minutes, but… Don't start the clock yet.

298
00:49:24.340 --> 00:49:28.750
Boardroom: Okay, this is not…

299
00:49:29.950 --> 00:49:40.229
Boardroom: so significant. Let me ask this final one. I'm also confused by the report's statement that the city manager's Office issued decisions on only 5 allegations.

300
00:49:40.260 --> 00:49:56.890
Boardroom: Looking at the appendix, it appears that the city manager's office issued at least 9 decisions, and depending on how you count them, potentially as many as 13. Can you explain this discrepancy? And maybe it's because the case from 2024 that appears to have been reviewed

301
00:49:56.890 --> 00:50:03.529
Boardroom: in 2025 doesn't count in those numbers. It was just really, confusion on my part.

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302
00:50:04.370 --> 00:50:05.330
Boardroom: And it…

303
00:50:05.710 --> 00:50:14.409
Boardroom: If you can't answer it, I'd understand that. No, I'm sorry. And again, because I was not here last year, I just don't have enough

304
00:50:14.880 --> 00:50:20.070
Boardroom: depth of knowledge to be able to answer that off the top of my head. Yeah.

305
00:50:20.500 --> 00:50:25.380
Boardroom: Julie, I guess I didn't need the 2 minutes, so I'm done right now.

306
00:50:26.090 --> 00:50:40.099
Boardroom: No, I'm just kidding. I'm sorry. You can reclaim your time. I'm just kidding, she's like, reclaiming my time! Alright, Councilmember Blackaby. Thank you, Madam Mayor. And I want to thank, Interim Director Lee, Mr. Murillo, and Chair Cayetano.

307
00:50:40.100 --> 00:50:54.340
Boardroom: for being here, for their hard work and dedication to, I know, what's been a challenging year, and for putting together this thorough report, so thank you. I did read, I think, like, Councilmember Humbert did read the whole report, and clearly Councilmember Trega, but I think most of us have spent a lot of time with this.

308
00:50:54.340 --> 00:51:05.209
Boardroom: I did have some follow-up questions. One of the concerns that sort of bubbled up through the report was this question about operational challenges on the ability to advise counsel on the deadlines.

309
00:51:05.210 --> 00:51:19.500
Boardroom: One thing I wanted to dig into was on items that come from Council, like, for example, the items that are coming later tonight, best I understand, kind of from the clerk's office all the way through the process, there's usually, like, about a 19-day window, plus or minus.

310
00:51:19.570 --> 00:51:30.850
Boardroom: when something shows up on the agenda for the agenda committee, goes to agenda committee, and then it gets advised for a

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council meeting. I think there's about a 19-day window. And I was having a conversation with Chair Caitano about this, too.

311
00:51:30.860 --> 00:51:43.419
Boardroom: Is that sufficient time for you to, if you see it on an agenda, for you to be able to respond to it, agendize it for your own meeting, respond to it, and then come back to us? Is that time frame work?

312
00:51:44.450 --> 00:51:49.640
Boardroom: I guess it depends on the issue, if it's very complicated… I mean, that… 19 days…

313
00:51:49.900 --> 00:52:01.759
Boardroom: generally allows, one PAB meeting, possibly two. But… I think complexity matters. Yeah.

314
00:52:02.140 --> 00:52:10.410
Boardroom: And, you know, if it is something that requires quite a bit of thought, or maybe some research, then…

315
00:52:10.510 --> 00:52:30.129
Boardroom: one meeting may not be adequate. Okay. And that's… in some ways, that's the minimum, because I think usually what happened, for example, these items from Councilmember Castarwani, they came up and sort of 19 days in advance, but then actually were referred to a policy committee, then there went to a policy committee track, and then they came back. So there was actually substantial time. I think in that case.

316
00:52:30.150 --> 00:52:33.319
Boardroom: probably enough time to engage. Right.

317
00:52:33.650 --> 00:52:53.780
Boardroom: Well, just timeline-wise, yeah, I was just gonna say, that also, though, things sometimes can change in policy committees, and so something to take into account is, you know, if something changes, having an additional time to review it. Yeah, so I just encourage, like, let's figure this out, because the cleanest way is to sort of pick it up as it's coming through the agenda process.

318
00:52:53.780 --> 00:52:54.740
Boardroom: And then…

319
00:52:54.830 --> 00:53:19.610

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Boardroom: bringing it into your own process. I know stuff that comes from the police department then is a separate track. It's on a different timing, and hopefully there's more collaboration and coordination on especially policy matters that are happening, because it's not on the same kind of fixed timeline as stuff that's coming to Council is once it gets on an agenda. So, anyway, for a separate conversation, but I do want to make sure that this operational piece is ironed out, because it feels like we keep hearing, oh, we haven't had

320
00:53:19.610 --> 00:53:25.139
Boardroom: And I think that's true in some cases, but I just want to make sure if there's something that's always

321
00:53:25.260 --> 00:53:26.810
Boardroom: A hurdle, what is it?

322
00:53:26.880 --> 00:53:47.370
Boardroom: So that we can get at it, because I don't want the timing piece to be the part that always becomes the, well, so therefore, we need more time. Like, let's figure out how to get you the right time at the right time to do what you need to do. Right. I would say in the time that I've been here the past few months, it's, more of the items that are coming from the police department. Okay.

323
00:53:47.370 --> 00:53:49.109
Boardroom: Okay. Yeah, which we don't…

324
00:53:49.210 --> 00:53:55.610
Boardroom: Which we may see, yeah, on the agenda, but… committee, but… Okay. And hopefully, in that case.

325
00:53:55.620 --> 00:54:08.619
Boardroom: before it gets on the agenda committee, there's been a conversation… I mean, the department's at every one of your meetings, there's some alerting that something is coming on the department side, even before it comes to a council agenda.

326
00:54:08.620 --> 00:54:21.430
Boardroom: Anyway, I don't have enough time to go into that here, but I do want us at some point to figure this out, because I… I just… I don't like the answer being, we haven't had enough time. I want to make sure you have enough time, but I want to make sure it's baked in

327
00:54:21.430 --> 00:54:30.130

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Boardroom: to the process, and then doesn't get… kind of slow things down at the… at the back end of the chain. Right. Okay. I appreciate that. Yeah, yeah. So digging in on the,

328
00:54:30.200 --> 00:54:35.610
Boardroom: on some of these numbers, and I appreciate, my colleagues have already answered, or asked a bunch of these questions.

329
00:54:35.630 --> 00:54:54.729
Boardroom: the 43 complaints from 27 complainants, can you remind us how that works? Is that, are those at 27 complaints made 43 complaints, and so does that mean some of them had multiple incidents at different times, or can… can you have multiple complaints about the same event?

330
00:54:55.970 --> 00:55:00.890
Boardroom: It would usually be the former, because sometimes complainants

331
00:55:02.010 --> 00:55:06.119
Boardroom: We'll talk about two different things in one complaint, and we would…

332
00:55:06.400 --> 00:55:16.660
Boardroom: consider that one complaint. Got it. So more likely, it's a completely separate submission over the course of a year from the same person, about

333
00:55:16.950 --> 00:55:27.679
Boardroom: Right. Multiple things, okay, got it. Right. So 378 allegations from 43 complaints from 27 complainants, I think, where's the total N, as I went through the report.

334
00:55:27.890 --> 00:55:37.660
Boardroom: 230 allegations met the prima facie standard to proceed of the 378. Can you explain that process and how that works? How you determine that?

335
00:55:38.100 --> 00:55:51.520
Boardroom: Because you take 148 right out of the gate and say, it didn't meet the standard to proceed, but 230 do. How do you do that? Well, we basically… we take what they say on the face of it. Yep.

336
00:55:51.680 --> 00:56:00.259
Boardroom: If they say, the police officer looked at me sideways. That's… that's not a…

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337
00:56:00.260 --> 00:56:15.849
Boardroom: Okay. Yeah, that's a silly example, but it makes the point that that's not misconduct. Got it. So it's if, as alleged, it doesn't even meet the standard of misconduct. Right, even if it's true, it's not misconduct. So you start with 378, 148…

338
00:56:15.850 --> 00:56:21.519
Boardroom: don't meet the standard, that's how you get the 230. And then of the 230,

339
00:56:21.730 --> 00:56:39.970
Boardroom: Another 162 allegations were administratively closed. So 148 didn't meet the standard, 162 were administratively closed, so about 310 out of the 378 or so leaves you with the 69 that got investigated. That's… I mean, I'm just working the way through the chain. Go ahead.

340
00:56:40.190 --> 00:56:42.870
Boardroom: I'm… I'm not sure…

341
00:56:44.230 --> 00:56:51.790
Boardroom: Those are comparable numbers, because the first numbers are what came in, but the 69 is what was decided.

342
00:56:52.070 --> 00:57:11.079
Boardroom: Got it. In 2025. So that's a mix of cases that could have been filed in 2024, and disinvestigated into finality. Got it. So it's not… but there's… there are… but there's, like, the prima facie hurdle, and then there's an administratively closed hurdle, and then there's a… the stuff that actually gets real…

343
00:57:11.260 --> 00:57:13.729
Boardroom: Right. Follow through.

344
00:57:13.880 --> 00:57:27.260
Boardroom: Any sense of, like, you know, how much staff time is being dedicated to the big number that don't proceed versus the ones that really… My whole point here is I just want to make sure that the resources you do have

345
00:57:27.400 --> 00:57:45.669
Boardroom: are being targeted on the things that are impactful, and that you're able to kind of… upstream, if things are dropping out, that you're

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doing that as quickly as you can, and spend… do you feel like… I think so, because, that threshold question of whether the

346
00:57:45.960 --> 00:57:55.809
Boardroom: the misconduct alleged, you know, is that actually a policy violation? Tends to be fairly easy to figure out, and does not

347
00:57:56.030 --> 00:57:58.759
Boardroom: require a lot of time. Okay.

348
00:57:59.210 --> 00:58:11.009
Boardroom: You observed that there were some staffing constraints that affected administrative closures. That was actually the biggest factor. Do you feel like that forced you to prioritize

349
00:58:11.490 --> 00:58:16.500
Boardroom: Credible cases, or do you think that some of the cases that were closed were actually credible, you just didn't have time?

350
00:58:17.610 --> 00:58:27.579
Boardroom: Or is it just a prioritization? Okay, I wasn't the person doing that, so… but I… my sense is that there was a prioritization of…

351
00:58:29.280 --> 00:58:34.590
Boardroom: Cases that were credible and more serious. I mean, I think there were cases that were closed that…

352
00:58:35.570 --> 00:58:42.030
Boardroom: Could have made credible allegations. Okay. And just, sort of, some decisions had to be made about…

353
00:58:42.190 --> 00:58:52.049
Boardroom: the importance. Okay. But moving forward with Councilmember Artego's questions, I feel like, at this point, we've got the investigator, at this point, things are kind of…

354
00:58:52.980 --> 00:59:04.759
Boardroom: stable on track? Fairly stable. Yeah. It's a lot. As I had pointed out, we were originally budgeted for two investigators. Right. You know,

355
00:59:04.880 --> 00:59:11.979

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Boardroom: the police department's Internal Affairs Bureau has two sergeants working investigation, so… Okay.

356
00:59:12.590 --> 00:59:25.890
Boardroom: On the agreement rates, and again, if I… I might… maybe I'll use some of the minutes that… okay, great. On the agreement rates, one of the things you observed was… I know there was no agreement on the sustained, but in those other categories.

357
00:59:26.050 --> 00:59:27.870
Boardroom: I'm wondering if the,

358
00:59:28.040 --> 00:59:42.199
Boardroom: Because, sort of, there's the not sustained, unfounded, and exonerated, which means it either didn't happen, you couldn't prove that it did happen, or it happened and there was nothing wrong about what happened, I think, generally. Yeah, that's correct.

359
00:59:42.220 --> 00:59:57.780
Boardroom: if you looked at that more broadly and just said, of those three categories, because I think what the chief might say is not sustained, you might say is unfounded, or what you might say is unfounded, someone else might say is exonerated, because sometimes the differences are very small. Right. My guess is, is it fair to say that the agreement

360
00:59:57.780 --> 01:00:03.590
Boardroom: Across those three categories, if you just looked at all those 3 categories together, the agreement rate's probably pretty high.

361
01:00:03.770 --> 01:00:05.650
Boardroom: That something fell into.

362
01:00:05.840 --> 01:00:07.170
Boardroom: One of those three.

363
01:00:07.830 --> 01:00:19.910
Boardroom: Right. I thought we had that number in there. You kind of… you looked at it by individual slice and said, did the chief say not sustained when I said not sustained? Or did the chief say unfounded when I said unfounded? My…

364
01:00:19.970 --> 01:00:32.230

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Boardroom: My hunch is, actually, and I kind of remember a little bit from this sometime in the past, sometimes you're splitting hairs about what exactly the dispensation is, but, like, you basically all… you agree that, hey, there's nothing to pursue here.

365
01:00:33.230 --> 01:00:39.199
Boardroom: If you look at page, 10 of the… of the report… Yep.

366
01:00:40.670 --> 01:00:44.620
Boardroom: And the top right… table.

367
01:00:49.820 --> 01:00:50.570
Boardroom: Okay.

368
01:00:55.170 --> 01:01:02.040
Boardroom: Yeah, I'm just saying that agreement rate is for each slice, so what I'm saying is if you combine not sustained and unfounded, exonerated together.

369
01:01:02.410 --> 01:01:10.750
Boardroom: Yes. Yes, that's a fairly high number. Okay. That might also be useful, because at some point, we're splitting hairs about things that…

370
01:01:11.700 --> 01:01:17.159
Boardroom: Anyway, what's most important is there's general agreement on the stuff that shouldn't proceed, I think.

371
01:01:17.370 --> 01:01:31.770
Boardroom: Anyway, we can… again, I'll leave that for a separate time, but that's just my observation on it. I see your point. Yeah. Because it would make that look a lot better, actually. My guess is, combined, that's probably 80 or 90%, you know, agreement across all of it.

372
01:01:32.180 --> 01:01:41.270
Boardroom: Couple last things. On the stop data, I really appreciate the deeper and broader analysis here, because I think looking at this with all the slices helps

373
01:01:41.440 --> 01:01:47.219
Boardroom: give us a lot more flavor. And I'll just observe that across the temporal data.

374

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01:01:47.530 --> 01:01:57.019
Boardroom: Because really what you'd expect to see on the temporal data is if there was bias, you'd expect in the daylight to see it show up, I think. Again, I'm not an expert, but…

375
01:01:57.030 --> 01:02:16.409
Boardroom: If, in the daylight, you would expect to see… that's when, if you were biased against a particular group, you would expect to see stops, because you can see folks in the daylight as opposed to at nighttime. So, I think we should be… we should feel good that there's actually very little variation, and there's nothing really that's moving in that direction.

376
01:02:16.570 --> 01:02:30.540
Boardroom: So that's one observed observation. And the other piece is on the search data, and again, you talked about it, Mr. Murillo, but the fact is, yes, like, there are different search rates for different groups, but the yield rate is remarkably stable.

377
01:02:30.570 --> 01:02:45.480
Boardroom: And so, like… Sorry, Wendy, can you give him just another minute, I think? Thank you, I'm almost done. Thank you. So I guess my sense is that on the issues around bias, to me, the temporal data and the search data are the ones that go most directly to bias.

378
01:02:45.550 --> 01:02:50.610
Boardroom: And there wasn't anything that was shouting out at me in those numbers that said.

379
01:02:50.800 --> 01:02:53.620
Boardroom: Here's evidence of at least systematic bias.

380
01:02:54.030 --> 01:02:55.969
Boardroom: And I just want your reaction to that.

381
01:03:04.360 --> 01:03:05.789
Boardroom: I think,

382
01:03:06.990 --> 01:03:20.009
Boardroom: Yes, that's a fair approach to the data, in terms of the test. One thing as I was drafting this report was that as we went through each test, that test brought out other questions as well about the factors that aren't reflected in the data.

383

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01:03:20.130 --> 01:03:25.239
Boardroom: Which is why we tried not to be conclusive with our analysis, apart from just being descriptive.

384
01:03:25.330 --> 01:03:42.440
Boardroom: And what was provided, and then… for this discussion to happen, essentially. But that was something that we observed within the data. Because I take your point on, in the summer, you suggest that, again, ongoing monitoring is necessary, and there are real disparities, like, we see the disparities. I think the question is.

385
01:03:42.720 --> 01:03:54.880
Boardroom: what's… what are the drivers of the disparities? And I think what we're seeing is, you know, yes, there are some groups that are being policed more than others. Those might be because of their location or their use of…

386
01:03:55.140 --> 01:04:07.750
Boardroom: cars or walking or whatever, whether they're unhoused or not, these are all factors. Absolutely socio… socioeconomic pressures, inequality, availability of housing, all these things are big drivers of what's happening here.

387
01:04:07.750 --> 01:04:18.239
Boardroom: And so I'm not saying they're unimportant, but at least the piece that the police department itself can control, which is how they're using their resources and how they're training their officers.

388
01:04:18.240 --> 01:04:21.619
Boardroom: systematically, at least I'm hopeful that…

389
01:04:21.750 --> 01:04:32.260
Boardroom: you know, some of those other factors absolutely exist, I just feel like they might be beyond what the police department has direct control over. Councilmember, do you have additional questions? One last question. Okay.

390
01:04:32.260 --> 01:04:49.740
Boardroom: Go ahead, but maybe you can keep your comments brief and save them for the comment period, if you could just focus on the questions. That would help us, yeah, just because I… Last thing on public outreach is, how do we broaden to a broader cross-section of residents? You talked about, I thought the LinkedIn pilot program was interesting.

391
01:04:49.780 --> 01:04:51.719

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Boardroom: What are you guys doing on LinkedIn?

392
01:04:52.820 --> 01:05:10.830
Boardroom: LinkedIn was really, it's the pilot program because it's really the first social media where we tried to be more active with it. In recent months, I will say that it fell off just because of bandwidth. For example, I'm one of the administrators, but I'm keeping LUTs on, you know, in terms of our administrative operations. But…

393
01:05:11.900 --> 01:05:19.830
Boardroom: We're in the age of social media. That's one of the areas that, in our discussions in our program with Source Sector Solutions was an area that we could brought in.

394
01:05:19.890 --> 01:05:29.190
Boardroom: We have areas where we talk about, just partnerships with schools in general, and reaching out to their parents and using this as an educational and potential partnership.

395
01:05:29.190 --> 01:05:46.969
Boardroom: of not just about learning about oversight, but learning about the different public safety, components of our community. I'm a strong believer that the more the community knows, the easier our job gets, because things get narrowed down. So, those are just some of the first initial steps, in terms of broadening, just general community education and

396
01:05:46.970 --> 01:05:57.070
Boardroom: being more present in different areas of the city, and not just, what's generally closer to us. Great. Yeah, I think, you know, anything that continues to make it as representative, so that as much of our

397
01:05:57.190 --> 01:06:10.109
Boardroom: residential base is participating in some way, shape, or form as possible, so that you're getting the most representative cross-section of the public involved is fantastic. So, thank you. Thank you for letting me take some extra time. Thank you. Councilmember O'Keefe.

398
01:06:10.110 --> 01:06:17.900
Boardroom: You have two and a half minutes. Okay, that was my first question. How much of my time did I give away? It's okay, I just have two, maybe three questions.

399
01:06:18.560 --> 01:06:24.900

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Boardroom: My first question is, when you… when your office is conducting its investigations, do you…

400
01:06:25.040 --> 01:06:26.740
Boardroom: Find that you have

401
01:06:27.070 --> 01:06:33.869
Boardroom: You or your investigators have access to the information that they need, or have there been any barriers, or can that process be improved?

402
01:06:34.800 --> 01:06:42.169
Boardroom: If you're talking about the access to records from the police department, well, I would say,

403
01:06:42.650 --> 01:06:51.539
Boardroom: they're actually very recently, maybe not very recently, but since the time I've been there, at least,

404
01:06:51.880 --> 01:06:55.299
Boardroom: Because of staffing issues in the police department.

405
01:06:55.810 --> 01:07:14.250
Boardroom: we are not getting records as quickly as we would like to. And I will say that that accounts for at least a couple of the time extensions that I've, consulted with the mayor and the chief on for our investigat… for our investigations. I…

406
01:07:14.490 --> 01:07:18.250
Boardroom: you know, I… it's not a question of…

407
01:07:18.570 --> 01:07:25.570
Boardroom: bad faith or incompetence. It's simply a capacity issue at the department.

408
01:07:26.060 --> 01:07:28.650
Boardroom: In getting records to us.

409
01:07:29.750 --> 01:07:45.159
Boardroom: And have the time extensions that have been granted, were they able to accommodate, or is it still a barrier to ultimately doing the investigation? The charter's kind of funny, or the regulations are… are kind of odd in the way they're worded, because it said… it says that the…

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410
01:07:45.780 --> 01:07:52.039
Boardroom: Director of Police Accountability may extend the time in consultation with

411
01:07:52.200 --> 01:07:55.339
Boardroom: So it doesn't really ask the director to

412
01:07:55.640 --> 01:08:03.159
Boardroom: ask the chief or the city manager to grant, but it just says that the director shall. So…

413
01:08:03.370 --> 01:08:14.999
Boardroom: basically, I… I send an email to Mr. Brudenhagen and Chief Lewis and say, in this case, here's what's going on, and here's why we're not going to make the 120.

414
01:08:15.300 --> 01:08:21.709
Boardroom: And… In every case, they say, thank you very much, that sounds fine to us.

415
01:08:22.040 --> 01:08:39.209
Boardroom: So that's… it's worked in that sense, and… and I think, at least since I've been here, we've hit the 195. That… that's the extended, timeline, so… Great, so it sounds like it's working, but maybe that particular issue could use a little clarity as to who's…

416
01:08:39.760 --> 01:08:46.099
Boardroom: who's a… who has to authorize the time extension? I don't know, that's not really important, but I'm just… I'm just noting that. I don't think it's that important.

417
01:08:46.100 --> 01:09:04.409
iPhone (94): If I may, Council? Yeah. So, I think I would be remiss if I did not raise the fact that the former director in 2025 sued the city in order to get records that we had requested, and the city decided to oppose that request, and so, you know, the board

418
01:09:05.370 --> 01:09:13.189
iPhone (94): decided that those records were necessary for it to resolve, the questions that were presented before it. And so, because we

419
01:09:13.390 --> 01:09:17.270

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iPhone (94): Didn't have those records, and we ultimately did not get those records.

420
01:09:18.180 --> 01:09:26.990
iPhone (94): we had to punt on some of the decisions and some of the findings. And so, there are certain times where, even if the department does

421
01:09:26.990 --> 01:09:46.559
iPhone (94): we do get an extension from the department, and we're given time extensions, we're not still given complete records from the departments and the records that we asked for, and later, we find out that there were responsive records that were not given to us, and that impairs our ability to make findings. So, it's not just about the timing, but about the completeness of the records that we're requesting.

422
01:09:48.709 --> 01:10:04.819
Boardroom: Interesting, so that answer, thank you very much for that. That answer seems to maybe not contradict, but doesn't… can you comment on what he said? Because you didn't mention the… Well, I was talking about timing, and the chair was talking about, actually, what is produced.

423
01:10:04.819 --> 01:10:12.339
Boardroom: Well, okay, so yeah, I guess that was actually my question, is like, do you… yeah, that was more… all of it, I'm just curious if you're getting what you need in any…

424
01:10:12.339 --> 01:10:14.779
Boardroom: Interpret that question any way you need to.

425
01:10:15.459 --> 01:10:24.459
Boardroom: It's, you know, that's hard to answer, because sometimes we don't know what we're not getting if we don't know that something exists. But I would say that…

426
01:10:24.709 --> 01:10:32.399
Boardroom: so far, I have been getting… we have been getting what we've been requesting. There might be an exception or two I can think of, but…

427
01:10:33.549 --> 01:10:53.479
Boardroom: Okay, well, thank you. And then… okay, good. My other question's also about, data, but it's about, I'm curious about, you know, I want to say, first of all, thank you. Thank you for everything. This is

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a lot of work, I appreciate it. And the, you know, I had took… looked at with great interest at the, stop data analysis that you did.

428
01:10:53.669 --> 01:11:10.649
Boardroom: And by the way, I checked your math, and it's correct, so you know. And I was able to do that because you could… anyone, including me, can download the dataset and just, you know, do this kind of, analysis yourself. And so, my question is, do you have any…

429
01:11:11.809 --> 01:11:22.909
Boardroom: like, feedback, or, like, a wish list for what should be on the Transparency Hub? What type of data that… you know, is it… I think it's already in a few of the answers to the questions tonight.

430
01:11:22.909 --> 01:11:32.559
Boardroom: You've mentioned, like, well, we don't really have that data, we don't really keep track of that. Is there… do you have, like, a wish list for things you wish… that were kept track of, so you could do a better analysis?

431
01:11:33.249 --> 01:11:43.539
Boardroom: There's comments that I'm blanking out on right now, but I guess I'll bring it back to the dilemma. Sometimes there's data that we wish was included.

432
01:11:43.539 --> 01:11:53.279
Boardroom: But it might create a lot of noise with the data that we actually need to report on. What I would say is that, generally speaking, like, for example, I think of the stop data.

433
01:11:53.289 --> 01:11:55.399
Boardroom: We know that's generally…

434
01:11:55.459 --> 01:12:10.309
Boardroom: set up on the standards set by the state's RIPA, requirements, so there's some context that sometimes we would like. I think, for example, I'm thinking of the earlier question about for, you know, for our enhanced populations, how many of those stops, what was the context of that stop?

435
01:12:10.349 --> 01:12:22.719
Boardroom: Would be good to know because we could categorize things a little bit better. How that's done in practice is always the challenge with, with our data analysis. But I'm happy to share some observations once I can compile them together.

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436
01:12:22.849 --> 01:12:24.439
Boardroom: I know…

437
01:12:24.859 --> 01:12:43.779
Boardroom: Updates to the Transparency Hub might be coming up soon, so that might also be a good time for us to share our comments and our feedback. I think Transparency Hub, as it currently is, it's a great tool. As you mentioned, anybody could download and check our numbers, which is always nice for our personal accountability on our policy and data team, so…

438
01:12:44.589 --> 01:12:49.019
Boardroom: Okay, Councilmember, did you want the chair to respond to that at all, just since he's here?

439
01:12:49.289 --> 01:12:53.329
Boardroom: Yes, yes. Chair Cayetano, would you also like to address that question?

440
01:12:54.170 --> 01:13:03.550
iPhone (94): I'm so sorry, I missed the question, and I don't think I have anything more to add to what he did, unless… is it about data? Because if it is about data, I don't have anything more to add to that question.

441
01:13:03.550 --> 01:13:09.689
Boardroom: It was about data, so thank you. And, I'll just say, and I'd love anyone's response to this,

442
01:13:10.390 --> 01:13:23.960
Boardroom: actually, this is for later, I guess, but, I am, in general interested in that question of, like, what data is… what data are we not collecting that you… your office, would find valuable? And I would say…

443
01:13:24.280 --> 01:13:27.280
Boardroom: Maybe don't worry about the…

444
01:13:27.800 --> 01:13:35.549
Boardroom: when answering the question, which I'd love a, you know, if you have an answer later, just, I'd love to, to hear it.

445
01:13:35.740 --> 01:13:53.419

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Boardroom: And don't worry about the logistical reality of collecting the data, like, that's, you know, it may be that we can't get it, but I would just… I'm curious, like, just don't let that stop you. I'm curious what information you wish you had, and just… it's good to know, and maybe there's a way. So, thank you, those are my questions. Yes.

446
01:13:53.530 --> 01:13:54.600
Boardroom: Thank you.

447
01:13:54.800 --> 01:13:57.009
Boardroom: Any other questions?

448
01:13:57.130 --> 01:14:01.329
Boardroom: I don't see any hands, but I'm not trusting our parliamentarian. Go ahead, Councilmember Lunapara.

449
01:14:01.940 --> 01:14:08.950
Boardroom: Thank you. Thank you, and thank you for the presentation and all of the work that has gone into this.

450
01:14:10.370 --> 01:14:14.140
Boardroom: I had a question about the training time.

451
01:14:16.770 --> 01:14:31.530
Boardroom: It describes the… the report describes that only 54.4% of BPD's training time is in post-certified, trainings. What… can you explain that a little more?

452
01:14:32.490 --> 01:14:50.870
Boardroom: what that means, and… Yeah, so, in terms of when we talked about posts for the Peace Officer Standards and Training Commission for the state, one of the things that we had implemented when we looked at training data from our two previous reports, was how many were done through, like, official post vendors. It's really…

453
01:14:51.020 --> 01:14:55.850
Boardroom: maybe that's not the correct way to say vendor, but sponsored by post, essentially.

454
01:14:56.090 --> 01:15:04.839
Boardroom: We don't conclude that whether one is superior than the other, we just highlight which one is part of, sort of, the state's curriculum, which is the point of that statistic.

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455
01:15:07.000 --> 01:15:13.900
Boardroom: Okay, but it's not insinuating that the rest of… the training…

456
01:15:14.270 --> 01:15:16.500
Boardroom: Is not compliant with the state.

457
01:15:16.760 --> 01:15:21.209
Boardroom: Correct, we… we're not insinuating that. Okay, thank you.

458
01:15:22.230 --> 01:15:25.910
Boardroom: And then, I had a question about the… the force.

459
01:15:26.490 --> 01:15:32.769
Boardroom: Incidents are… that there's a large percentage of the force incidents that…

460
01:15:33.110 --> 01:15:35.009
Boardroom: Do not lead an arrest.

461
01:15:35.610 --> 01:15:41.810
Boardroom: And do you think you could talk a little more about some examples or reasons why you think that is?

462
01:15:43.200 --> 01:15:44.440
Boardroom: Yeah, and…

463
01:15:44.680 --> 01:15:59.060
Boardroom: I guess back to the previous question of data that… or information that I would like to add, sometimes, knowing the context for those, would be important, just so we can justify it. One instance that I could think of was, for example.

464
01:15:59.240 --> 01:16:01.990
Boardroom: And perhaps it's not the best example, but…

465
01:16:02.080 --> 01:16:20.709
Boardroom: 5150 detentions is something that I used to see, in my previous line of work, where they need to, for their own safety, restrain somebody. That could be an instance where I could see that doesn't lead to an arrest, but where force has to be used, particularly with Level 1 uses of force that has… currently has a broad range of

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466
01:16:20.800 --> 01:16:22.610
Boardroom: What classifies under that level?

467
01:16:22.930 --> 01:16:27.669
Boardroom: And Councilmember, I think the Chief is on as well, if you want additional context.

468
01:16:29.070 --> 01:16:34.920
Boardroom: Thank you. I think… I think that… that helps to answer the question, but thank you, Chief. I…

469
01:16:35.680 --> 01:16:50.610
Boardroom: I think it would be helpful in this, data to separate out arrested, institutionalized and not arrested, because I'm interested in knowing how many of these use-of-force, incidents

470
01:16:51.340 --> 01:16:55.500
Boardroom: Don't result… aren't… I aren't because of anything…

471
01:16:55.770 --> 01:17:06.389
Boardroom: I'm just curious, I would like to see that data. I would want to know how many… what percent of this 37.8 of the non-arrested

472
01:17:06.930 --> 01:17:10.539
Boardroom: Section is because they were institutionalized in some other way.

473
01:17:12.000 --> 01:17:28.019
Boardroom: Those are all my questions. I have comments later, but thanks. Thank you, I agree with that. I think that would be great information to have. Okay, so I see no other questions, so we will go to public comment. I think there's anyone here for public comment?

474
01:17:28.430 --> 01:17:42.369
Boardroom: And just to reiterate, we are on item number 1, which is our only item for the special, Council Meeting 2025 Police Accountability Board and Office of the Director of Police Accountability, annual report.

475
01:17:45.590 --> 01:17:48.049
Boardroom: I think Carol is making her way up.

476
01:17:52.210 --> 01:17:58.200

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Boardroom: First, as far as encampments, it might be clear,

477
01:17:58.420 --> 01:18:03.629
Boardroom: The staff is act… I mean, rather, the police department is acting at staff's…

478
01:18:04.020 --> 01:18:14.419
Boardroom: choice as to clearing those encampments. And it might be better if the encampment residents had more certainty as to their clearing.

479
01:18:14.590 --> 01:18:24.719
Boardroom: And I'm going to give you an example. For example, the Amtrak was recently cleared where the residents are there. Actually, that was on June 2nd.

480
01:18:24.720 --> 01:18:47.569
Boardroom: And other people around the area were saying, well, they didn't receive any notice, so I checked with staff, and they did receive notice. But they received notice on April 29th for a June 2nd clearing. And when that happens with people, many of whom also have cognitive issues already, and have… certainly have a lot of uncertainty into their life.

481
01:18:47.570 --> 01:18:56.970
Boardroom: and they receive some notice, and that doesn't happen anytime soon, they think it's not going to happen. And so if it happens.

482
01:18:56.970 --> 01:19:11.550
Boardroom: 5 weeks later, there's some… that doesn't give them the kind of certainty that they need, and so staff has indicated in a dialogue that it would be,

483
01:19:12.140 --> 01:19:24.489
Boardroom: more difficult for staff to give them 72 hours notice. However, there must be something that can be worked out that there would be notice closer to the time, so they know within a certain period of time

484
01:19:24.490 --> 01:19:39.260
Boardroom: that that removal will be, occurring. Next, I want to speak, on the unhoused people being stopped more. Do we have any sense of why that is? Is it because of the community reporting them?

485

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01:19:39.260 --> 01:19:55.279
Boardroom: And, last, I want to say that I was told, contacted by the police department last August about having coffee so they could tell me that there was a part-time CIT coordinator coming on. Oh, okay, thank you.

486
01:19:55.450 --> 01:19:59.600
Boardroom: Thank you, Carol. I think there's one person online with their hand raised.

487
01:20:04.580 --> 01:20:05.870
Boardroom: Andrea Pritchett?

488
01:20:06.110 --> 01:20:09.059
Andrea Prichett: Hi there, thank you. I want to pick…

489
01:20:12.370 --> 01:20:15.730
Boardroom: Oh, Andrea, you cut out. No, she's good.

490
01:20:15.730 --> 01:20:16.590
Andrea Prichett: Jerry Star.

491
01:20:16.970 --> 01:20:17.900
Andrea Prichett: Can you hear me?

492
01:20:17.900 --> 01:20:21.980
Boardroom: Yeah, we're restarting your time. You got caught off for a second.

493
01:20:22.170 --> 01:20:22.879
Andrea Prichett: Thank you.

494
01:20:23.750 --> 01:20:37.490
Andrea Prichett: I want to talk about the CIT training. I'm interested on the schedule of trainings that BPD officers have received, since they're the only people responding to wellness checks and mental health calls.

495
01:20:37.640 --> 01:20:45.319
Andrea Prichett: I would expect that they would be broadening the amount of training, for CITs for crisis intervention.

496
01:20:45.430 --> 01:20:57.999

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Andrea Prichett: I'm also curious to hear about the early warning system. How is that working? What is it made of? What criteria are being included in order to, to alert

497
01:20:58.230 --> 01:21:09.589
Andrea Prichett: administration to potentially abusive officers. And I also want to, remind you that because you have this high proportion of

498
01:21:09.590 --> 01:21:20.380
Andrea Prichett: basically poor people, you know? If 20% of the stops are of unhoused people and so forth, they are the least likely to be able to bring a complaint to the PAB,

499
01:21:20.420 --> 01:21:30.329
Andrea Prichett: And I'm curious to hear what kind of accommodations are being made to… to support them, and to help them. Right now, it feels like you've got to be a lawyer

500
01:21:30.330 --> 01:21:41.020
Andrea Prichett: You know, I… I certainly tried. I had a very serious complaint that I brought to the PAB, and it was not… it was not heard, it was not sustained. I was hardly even informed about it.

501
01:21:41.170 --> 01:21:54.959
Andrea Prichett: So I think there's a lot that really needs to be dug into here. I appreciate where you've gone, but I think there's a long way to go, and I hope, council members, that you can ask some of these questions for those of us who can't.

502
01:21:55.600 --> 01:21:57.060
Andrea Prichett: So, thank you.

503
01:21:58.350 --> 01:21:59.629
Boardroom: Thank you, Andrea.

504
01:21:59.970 --> 01:22:01.910
Boardroom: Any other public comment on this item?

505
01:22:02.640 --> 01:22:10.420
Boardroom: No more hands raised. Okay, do we have any comments from council members? And again, I'm sorry, I think our parliamentarian isn't really working, so…

506

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01:22:11.160 --> 01:22:15.309
Boardroom: Maybe just raise your hand, if you… Yes, Councilmember Traco.

507
01:22:20.110 --> 01:22:29.950
Boardroom: Thank you so much. Again, I want to, just extend my deepest gratitude to,

508
01:22:30.190 --> 01:22:38.069
Boardroom: to you, Director Lee, to, Mr. Murillo, to,

509
01:22:38.350 --> 01:22:43.939
Boardroom: Chair Cayetano, and to, everyone on the…

510
01:22:44.530 --> 01:23:00.810
Boardroom: PAB and the OPDA side, who has been, hard at work and doing very important work, despite of all the churn that you have been undergoing.

511
01:23:01.210 --> 01:23:11.430
Boardroom: Just a few broad, strokes, Comments from me.

512
01:23:12.100 --> 01:23:13.579
Boardroom: I am…

513
01:23:14.270 --> 01:23:25.150
Boardroom: I'm interested in digging in more around, these policy complaint or resolution reports that, are…

514
01:23:25.870 --> 01:23:41.170
Boardroom: authored or produced as a result of policy complaints. While they're on the website, I'm inter… and I appreciate that they are… I would be interested in the possibility of communicating them to Council.

515
01:23:41.230 --> 01:23:56.419
Boardroom: In a more, externally forward way, whether it's via an informational report or a work session subject to, Council, resourcing and time availability.

516
01:23:57.330 --> 01:24:03.770
Boardroom: I would, also be interested in, better understanding,

517
01:24:03.870 --> 01:24:20.870

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Boardroom: the clearance rates of complaints year to year, relative to the complaints that, go into the system. I want to make sure that the number of complaints and resolutions are relatively balanced.

518
01:24:21.050 --> 01:24:29.810
Boardroom: Accounting for the fact that there would be some churn, probably at different times in the year.

519
01:24:29.930 --> 01:24:42.109
Boardroom: As, some of my colleagues have already mentioned, I too would appreciate, well, I appreciate the additional data you provided around,

520
01:24:42.110 --> 01:24:54.519
Boardroom: police stops, and agree that, it appears on the face, to pass the veil of darkness test around accounting for, bias.

521
01:24:54.700 --> 01:25:03.199
Boardroom: And I would like to dig into what's behind the data around police stops relative to unhoused individuals.

522
01:25:03.510 --> 01:25:17.170
Boardroom: Including how a stop is being characterized in this case, and better understand, other,

523
01:25:17.990 --> 01:25:34.379
Boardroom: methodologies, vis-a-vis, accounting for stops. For instance, there was a biracial identification, and I wasn't sure if that is something that, like, who reports that? Is it the…

524
01:25:34.380 --> 01:25:43.650
Boardroom: complainant, or… yeah, I mean, this is police stops, so, yeah, basically, how is that data generated?

525
01:25:44.160 --> 01:25:56.360
Boardroom: I'd like to better understand, in whatever venue may be most appropriate, what may be behind the disagreements between the PAB and PD, in the,

526
01:25:56.480 --> 01:26:08.680
Boardroom: allegation… in the sustained allegation category. I would also be interested in continuing to remain informed on the length of time it takes to receive record requests.

527

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01:26:08.890 --> 01:26:14.089
Boardroom: and ensuring that ODPA and PAB receive the documents they request.

528
01:26:14.170 --> 01:26:31.219
Boardroom: to the extent that they're fair game for receipt. From my own, experience in a previous career where I was involved in federal oversight, accessibility of data is foundational to sound oversight.

529
01:26:31.300 --> 01:26:46.269
Boardroom: Lastly, I would be interested in additional data as it pertains to the nexus between situations that may involve mental health challenges and use of force.

530
01:26:46.310 --> 01:27:03.210
Boardroom: And would echo Councilmember O'Keefe's point about, what other information would be useful to you, within the data, you might receive for you to be able to continue to do your best work. Thank you.

531
01:27:06.000 --> 01:27:08.719
Boardroom: Thank you very much, Councilmember Blackaby.

532
01:27:09.160 --> 01:27:25.850
Boardroom: Thanks, Madam Mayor. Since I had a lot of questions, my comments will be briefer. So I want to thank y'all for being here, and thanks for the report. A couple of just observations and comments for, future. I thought the data was really great, but, the ability to put it in some context.

533
01:27:25.850 --> 01:27:31.799
Boardroom: Trends over time, comparisons with relevant jurisdictions, all that would be really useful to the extent it's possible.

534
01:27:31.800 --> 01:27:49.600
Boardroom: Because then I think we actually have some comparables that we could say, you know, you could highlight the red flags where things are moving in the wrong direction, or we're out of sync, or highlight the green flags where things look like they're moving in the right direction, or that we're performing particularly well. So, that would be really helpful for me, because sometimes I find

535
01:27:49.600 --> 01:28:01.679
Boardroom: In reading through it, I can't tell, is that good or bad, it just is what it is. But with some of that context, I think it would help

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give us that flavor, so be a request. It'd be really even make this even more valuable, I think, next time.

536
01:28:01.800 --> 01:28:18.959
Boardroom: Appreciate, kind of, the conversation on the operational time limits. I would love to, again, at a separate time, figure that out if, on the two tracks of the items that are coming from the Council, the items that are coming from the department, and making sure that it's fitting in the timelines that you have to

537
01:28:18.960 --> 01:28:25.720
Boardroom: participate in those discussions, and just make sure that lines up. And if there's anything structurally that needs to be done.

538
01:28:25.720 --> 01:28:38.520
Boardroom: without further lengthening timelines, I would love to figure that out. I'm hoping that just the current agenda process, getting you that advance notice will help, but please let us know if that's not working.

539
01:28:38.520 --> 01:28:56.210
Boardroom: On the regulations, super excited and hopeful, knock on wood, that those will be done this year. I know that will be a huge time savings for you all, and, just, again, ability to focus your resources on the things that make a difference. So, again, we're interested in helping get that over the finish line as well.

540
01:28:56.350 --> 01:29:13.319
Boardroom: On the stop data, again, thank you for the conversation. My, again, my takeaway is we know there are disparities, there are racial disparities in the stop data. I am… and none of that is, is, is…

541
01:29:13.410 --> 01:29:19.489
Boardroom: None of us feel good about the disparities that we see, but a lot of those are driven, my sense is.

542
01:29:19.560 --> 01:29:31.590
Boardroom: by things that are outside of the control of the department specifically. But again, if there are things that show bias or things that show problems, we need to know about those. But at least based on my reading of the data.

543
01:29:31.640 --> 01:29:36.539
Boardroom: I'm heartened to see that we're not… we're not seeing Clear signs of bias.

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544
01:29:36.540 --> 01:29:58.929
Boardroom: If that's not the case and you have other data that shows that, you know, let us know. There are other things we need to work on as a community in terms of housing, in terms of economic development, in terms of, greater access to resources that will help, I think, some of these other numbers that we're seeing in the policing data, but that's separate than the conversation about, I think, how the department is doing its policing.

545
01:29:58.940 --> 01:30:02.430
Boardroom: And then lastly, I'm super encouraged by your,

546
01:30:02.680 --> 01:30:06.870
Boardroom: goal of doing more outreach, like I said, I think, to the extent that we can

547
01:30:06.870 --> 01:30:23.809
Boardroom: broaden the conversation, have an even more representative group of people who are participating in this process, representing the voices of everyone in the community, I think we'll all be better served by that. And you play an important function in providing a place where that conversation can happen. So, thank you. Thanks for being here.

548
01:30:25.170 --> 01:30:27.180
Boardroom: Thank you very much. Councilmember Lunapara?

549
01:30:27.690 --> 01:30:32.089
Boardroom: Thank you. I really want to acknowledge the amount of

550
01:30:32.310 --> 01:30:47.080
Boardroom: work that went into this, especially with the staffing concerns and the issues with, staffing the PAB, I am very thankful and impressed and really appreciate all of the work that I know went into this.

551
01:30:47.800 --> 01:30:49.250
Boardroom: I…

552
01:30:50.030 --> 01:31:05.490
Boardroom: I… the, disagreement between the PAB and the Chief, is pretty concerning to me. I want to figure out how we can get to the bottom of that. I hope that the regulations will help,

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553
01:31:05.700 --> 01:31:12.729
Boardroom: But I would really like to see more alignment on that in the future. And this is kind of…

554
01:31:13.360 --> 01:31:17.160
Boardroom: Just a general… statement.

555
01:31:18.490 --> 01:31:26.129
Boardroom: I really am excited about something really small included in the, in the, report around,

556
01:31:26.130 --> 01:31:41.989
Boardroom: collaborating with the UC Berkeley Social Sector Solutions Program, I think that's very exciting, and there's a lot of really amazing work coming out of the university, and I'm excited to see, whenever I see our city partners, work with the university. So, thank you for that.

557
01:31:42.310 --> 01:31:52.369
Boardroom: Oh, I did actually… I did want to ask about one of the… Allegations.

558
01:31:52.660 --> 01:32:03.679
Boardroom: Around the not wearing the body-worn camera, where the chief agreed with the PAB, but was not…

559
01:32:04.300 --> 01:32:12.499
Boardroom: the off… it says in the report there was no formal discipline. Can you talk a little more about that, or how that…

560
01:32:12.730 --> 01:32:19.649
Boardroom: if you're able to describe… I don't know how far we can go into these kind of conversations, but I'm curious if there's more information there.

561
01:32:20.270 --> 01:32:25.580
Boardroom: And this can also be sent to the chief, if that's… A better place for the…

562
01:32:32.090 --> 01:32:37.330
Boardroom: Sorry, I don't… Know enough about that to be able to answer.

563

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01:32:38.060 --> 01:32:39.069
Boardroom: You don't really…

564
01:32:39.460 --> 01:32:47.779
Boardroom: Okay, that's okay. Is it possible for the chief to answer? If not, I can come back to it, I'm just curious,

565
01:32:49.540 --> 01:32:50.929
Boardroom: About this piece.

566
01:32:51.870 --> 01:32:59.940
Boardroom: And I guess it's more of a, also, how discipline works once, An allegation is sustained.

567
01:33:02.820 --> 01:33:09.600
Boardroom: The Chief could speak to that more broadly, not with specifics about certain cases.

568
01:33:11.730 --> 01:33:19.409
Boardroom: Oh, and the Chief is there, so… Chief, I can turn it over to you to give more of a… sort of a broad overview of how you look at these things.

569
01:33:19.810 --> 01:33:43.090
Jen Louis: Yeah, thank you. It's absolutely correct that we can't dive too deeply into the specific facts of a personnel complaint, as that's a confidential personnel record, but I can share that for particular serious cases, there is space written within the Charter that allows the PAB and the DPA, as part of their findings, to make recommendations to the Office of the Chief.

570
01:33:43.090 --> 01:33:48.670
Jen Louis: On, what the, level of discipline, or appropriate level of discipline may be.

571
01:33:48.670 --> 01:33:57.639
Jen Louis: For the, for other offenses, discipline can be, there can be aggravating or mitigating factors, and really it's a case-by-case

572
01:33:57.640 --> 01:34:21.030
Jen Louis: basis as to what discipline an officer might receive, stemming from a letter of advice, a letter of reprimand, to more formally, days off or up to and including, termination, depending on the severity of the

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case. I'm not sure exactly what case you're referencing as far as, we agreed on findings. It would be unusual for us to even say in, publicly.

573
01:34:21.120 --> 01:34:37.340
Jen Louis: what discipline was, provided, for a case that didn't fall within those charter names cases. So I could do a little research and see what maybe that reference is, and maybe it just wasn't written clearly, or we can provide some more information on it. Happy to do that.

574
01:34:39.930 --> 01:34:45.109
Boardroom: Okay, thank you. Sorry I didn't ask that earlier, it got lost.

575
01:34:46.040 --> 01:34:50.710
Boardroom: Those are my comments. I'm, I'm… I'm appreciative of your work. Thanks.

576
01:34:52.440 --> 01:35:00.370
Boardroom: Thank you very much. Going to Councilmember Humbert. Thank you, Madam Mayor. I want to thank…

577
01:35:00.660 --> 01:35:06.909
Boardroom: Interim Director of Police Accountability, Ms. Lee. I want to thank Mr. Murillo.

578
01:35:08.850 --> 01:35:28.650
Boardroom: and the PAB for the work on this report, and I want to thank BPD for their collaboration and all their effort to carefully collect and track the data. These reports are indispensable in reviewing BPDs and the PAB's efforts and performance, and our progress on, you know, fair and just policing as we go along.

579
01:35:28.740 --> 01:35:47.899
Boardroom: I want to re-emphasize my gratitude to Director Lee for coming in, taking the reins, and helping us out in a pinch. We're very grateful. Although I clearly have some concerns about the report, I think many of the issues I identified are a hangover from past practices that Director Lee and our future director

580
01:35:47.900 --> 01:35:56.119
Boardroom: will have the task of sorting out. And as I pointed out in the past, I think that the stop data and recovery rates are extremely telling.

581
01:35:56.260 --> 01:36:10.429

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Boardroom: The fact of the matter is that these key tests have shown the same thing year after year. BPD, and this is happy news, does not appear to have a statistically significant systemic bias when it comes to whom may stop.

582
01:36:10.700 --> 01:36:22.950
Boardroom: And Councilmember Blackaby made reference to this, but recovery rates are actually slightly higher for stops of African American individuals than stops of African American,

583
01:36:23.760 --> 01:36:40.999
Boardroom: at night, and stops of African American individuals are actually slightly lower during the day, when individual features are more discernible. This may seem controversial, but if anything, these data may indicate that BPD officers are actively trying to avoid bias.

584
01:36:41.000 --> 01:36:44.850
Boardroom: As they think about, whom to stop.

585
01:36:44.950 --> 01:37:00.829
Boardroom: Now, there could… there are, for sure, and certainly could be, instances of individual bias, and we've got to continue to work to prevent them and ferret them out when they occur, but the data don't support a systemic issue here. And…

586
01:37:01.270 --> 01:37:09.649
Boardroom: In general, I'm very disappointed that we continue to see people fixate on the stop composition data, which are not by themselves sufficient.

587
01:37:09.720 --> 01:37:26.679
Boardroom: without the yield rates, et cetera, to create a narrative that is simply not supported by other better metrics. I think that the practice is emblematic of the locally unjustified adversarial approach we see some members of our community take toward police accountability.

588
01:37:26.800 --> 01:37:37.670
Boardroom: But it is clear from the data that there is no, again, no evidence of systemic bias. And when we talk, continue to talk about that.

589
01:37:37.810 --> 01:37:49.299
Boardroom: We're missing opportunities to work together to shore up areas where we could still see improvement, and even taking our chiefs and officers away from other important work they could be doing to serve our community.

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590
01:37:49.310 --> 01:38:08.459
Boardroom: As far as the report, despite its incredible wealth of data and usefulness, I think that any new permanent Director of Police Accountability needs to prioritize improving the presentation and consistency of the data in the report, and not bury, you know, certain issues that I think, at least, are very significant.

591
01:38:08.530 --> 01:38:20.870
Boardroom: I recognize that some of these issues may, may, you know, be carryover from prior years, but going forward, I'd like to see more attention to those sorts of issues.

592
01:38:22.300 --> 01:38:37.430
Boardroom: again, I'm disappointed by the report bearing the fact that we saw no PAB-sustained allegations against BPD for improper use of force, false arrest, or it would appear any of the more serious, severe misconduct categories, although

593
01:38:37.430 --> 01:38:53.159
Boardroom: Maybe Councilmember… Maybe Councilmember… Chair Caetano can, can educate me on… there may be one out there. And if I recall, recent years have seen similarly low or non-existent levels of more serious, sustained allegations.

594
01:38:54.540 --> 01:39:04.240
Boardroom: So, the fact that Figure 2 buries this in what amounts to a catch-all category is a footnote… in a footnote, that continues to bother me.

595
01:39:04.650 --> 01:39:11.819
Boardroom: This is, frankly, something we should be celebrating and looking at closely to understand what about our policies and systems are working.

596
01:39:12.010 --> 01:39:25.880
Boardroom: Beyond not giving the PAB and BPD credit where credit is due, doing a good job, it looks like. We fail to highlight these successes, and we deprive ourselves of the opportunity to identify and double down on what's working best.

597
01:39:25.990 --> 01:39:43.090
Boardroom: It also deprives other communities of the opportunity to look to and emulate what Berkeley is doing right. Quite honestly, we should be rubbing conservatives' noses in the fact that Hippie Dippy Berkeley has

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an excellent and effective police department with relatively high clearance rates.

598
01:39:43.090 --> 01:39:49.050
Boardroom: And policies and practices that have resulted in very low instances of serious police misconduct.

599
01:39:49.360 --> 01:40:00.539
Boardroom: So again, I want to thank Interim Director Lee, Mr. Murillo, the staff of, her office, members of the PAB, especially my longtime appointee, Randy Wells.

600
01:40:00.560 --> 01:40:10.910
Boardroom: Chief Lewis and Deputy Chief Tate, the City Manager's Office, and everybody who worked on this. Thank you. Thank you very much. Do any other council members have comments?

601
01:40:11.490 --> 01:40:15.030
Boardroom: Okay, I do wanna just, again… Yes.

602
01:40:15.260 --> 01:40:15.980
Boardroom: Yep.

603
01:40:16.330 --> 01:40:17.140
Boardroom: Go ahead.

604
01:40:18.070 --> 01:40:33.289
Boardroom: I just wanted to say that I do have concerns about separating the, the allegations between serious and unserious. I think there's varying levels of what can be defined as serious and unserious, and I don't think we should characterize them in two buckets like that. So I just wanted to say that.

605
01:40:35.150 --> 01:41:00.129
Boardroom: Thank you, Councilmember. I did just want to, again, say thank you very much to the both of you and your entire team for all of your work into this report. I think especially coming in, really after, to pick this up and to do the presentation, all of your work that went into it, I really want to thank you. And, also, Mr. Murillo, I know you've done so much work here, so thank you very much, and I really appreciate, also, just want to, comment on the fact

606
01:41:00.130 --> 01:41:22.849

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Boardroom: that you are also our temporary kind of person holding onto this, onto the role, so I do want to thank you again for your service to the city. And yeah, I'm just very happy that our Police Accountability Board will be, filled very soon. I know we worked really hard to make that happen, and just generally, I've been able to meet with the both of you many, many times.

607
01:41:22.850 --> 01:41:47.670
Boardroom: this year, and I think that I want to continue to do that with also the new person who's coming in to ensure that we continue to have strong communication as we're going through these processes. It's complex. These issues are complex, and of course, I do think, you know, to Councilmember Humbert's point, it is important to celebrate our successes in the areas in which, you know, we should be proud of as a city, and also to the points that others have made.

608
01:41:47.670 --> 01:42:07.460
Boardroom: I do think it's important for us to take a hard look at, you know, some of these numbers and things that have happened, and be able to see where we can improve. I think that both are important, so I just want to make that point. To Councilmember Blackaby's point about giving PAB sufficient time to review policy.

609
01:42:07.460 --> 01:42:32.219
Boardroom: I do want to thank you for making that point, Councilmember. I do think it's important to acknowledge that, you know, these PAB members are not salaried employees, and that they receive a small stipend per meeting, which is really limited, per month as well. And so, you know, the amount of work that we're having them do in terms of reviewing policies and getting back to us, and then there are changes, and they have to review those, I mean, it is a ton of work.

610
01:42:32.220 --> 01:42:37.680
Boardroom: And with these meetings between the policy changes and different,

611
01:42:37.680 --> 01:42:46.940
Boardroom: you know, of course, the investigation's the actual, you know, huge part of their role. It is quite a lot, and so I did just want to comment on that.

612
01:42:46.960 --> 01:43:09.010
Boardroom: And, oh, Councilmember Black, you made another point, which I agreed with, about getting trends and comparisons to other cities. I think that would be very helpful for us to understand, you know, how things have changed over time, if there are any trends we should be paying attention to, what it looks like in other cities, although I

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recognize that's a little challenging, given that different cities have different police accountability boards and structures, different from ours.

613
01:43:09.020 --> 01:43:15.469
Boardroom: I want to highlight a few other things. Was really happy to, of course, read about the progress.

614
01:43:15.470 --> 01:43:39.700
Boardroom: In our… with our meet and confer process and the permanent regulations for PAB, this is one of our big priorities that we've all, stated for the Police Accountability Board and the Director of Police Accountability, and so I am really glad that we've… I know we've just got one more issue to kind of work through, and so I want to thank you all for your work there, and to PAB and to our city staff for being very diligent in moving us forward, also to, our labor negotiator.

615
01:43:39.810 --> 01:43:59.219
Boardroom: And, really glad to see that community engagement was part of the report, want to see that continue. Definitely with this new Director of Police Accountability, I want to make sure that that's something that they're very focused on. I think it's so important that people understand the work that you all do, and ways that they can continue to interact with, you know, police accountability in the city.

616
01:43:59.300 --> 01:44:13.730
Boardroom: And I also want to give a plus one to Councilmember Lunapara's comment on UC Berkeley's Social Sector Solutions Program. That's so amazing that they did that work, and I'm really looking forward to reviewing their presentation. I know it's being sent over to us.

617
01:44:13.840 --> 01:44:38.440
Boardroom: And, just generally want to highlight just the importance of community engagement when it comes to police accountability. It's just… it's so important that people are aware of the work that you all are doing, and I also want to thank the chief for being on today, and, you know, for her support of this work. It is so important. It's a huge part of our public safety work in the city, is police accountability.

618
01:44:38.440 --> 01:44:51.199
Boardroom: us working together is essential. So, I want to thank you all. Thank you, everyone, and to my Councilmember colleagues. So, I think that that's it for the evening, for this special meeting, at least.

619
01:44:51.280 --> 01:44:55.449
Boardroom: Thank you all for being here and for the presentation again.

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620
01:44:56.130 --> 01:45:05.790
Boardroom: Okay, that was our final item, so I will see if there's a motion to adjourn. So moved. Second. Second. Can we take the roll on that, please?

621
01:45:06.050 --> 01:45:10.139
Boardroom: Okay, to adjourn, Councilmember Taplin.

622
01:45:10.530 --> 01:45:11.280
Terry Taplin: Yes.

623
01:45:11.760 --> 01:45:16.939
Boardroom: Draco? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara?

624
01:45:18.110 --> 01:45:26.959
Boardroom: Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay. We are adjourned. Sorry, we are adjourned. Thanks, everyone.

625
01:45:29.800 --> 01:45:31.750
Boardroom: Folks take their feet.

626
01:45:32.790 --> 01:45:51.160
Boardroom: Council members to the front. Calling to order the Berkeley City Council meeting. Today is Tuesday, July 14th, 2026. It is 6-11 p.m. Thank you all very much for your patience as we get started a little late. We had a special meeting right before this. Can we start us off with a roll?

627
01:45:52.540 --> 01:45:57.649
Boardroom: Okay, Councilmember Kastarwadi? Here. Kaplan?

628
01:45:58.370 --> 01:45:59.170
Terry Taplin: Presence.

629
01:45:59.170 --> 01:46:00.809
Boardroom: Bartlett, present.

630
01:46:00.810 --> 01:46:25.739
Boardroom: Drago? Present. O'Keefe? Here. Blackaby? Here. Lunapara? Here. Humbert? Present. And Mariucci? Here. Okay, Gorham is present. Alright, thank you very much. For our ceremonial matters this evening, I'm very

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excited that we are celebrating Disability Pride Month, and also BORP's 50th anniversary. And today, we have Emily, who's the Executive Director of BORP, who is going to be receiving the award.

631
01:46:25.740 --> 01:46:31.560
Boardroom: Feel free to come up here, there's a mic down here as well for you to receive. Thank you.

632
01:46:32.310 --> 01:46:34.520
Boardroom: Okay.

633
01:46:35.490 --> 01:47:00.489
Boardroom: Whereas Disability Pride Month is observed every July to commemorate the signing of the Americans with Disabilities Act on July 26, 1990, a landmark civil rights law that prohibits discrimination against people with disabilities in all areas of public life. And whereas Disability Pride Month highlights disability culture, history, and community pride, and challenges the harmful notion that people with disabilities must conform to societal norms to

634
01:47:00.490 --> 01:47:01.930
Boardroom: lead meaningful lives.

635
01:47:01.930 --> 01:47:06.760
Boardroom: Their lives are inherently full, valuable, and worthy of dignity and respect.

636
01:47:06.780 --> 01:47:21.230
Boardroom: Whereas the first Disability Pride Day was held in Boston in 1990, followed by the first Disability Pride Parade in Chicago in 2004. And today, celebrations take place across the country, empowering people with disabilities to take pride in who they are.

637
01:47:21.230 --> 01:47:46.169
Boardroom: And whereas the theme for the 2026 Disability Pride Month, The World Works Better With Us, affirms that when people with disabilities are included, respected, and supported, communities work better for everyone. And whereas BORP Adaptive Sports and Recreation, founded in Berkeley, California in 1976, has been a pioneering force in the field of adaptive sports and recreation, and whereas BORP is the only organization in the San Francisco Bay Area

638
01:47:46.170 --> 01:48:07.850
Boardroom: That provides a comprehensive menu of adaptive sports, fitness, and recreation programs for people with physical disabilities,

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and whereas participation in sports, recreation, and fitness empowers people with disabilities by improving health, fostering social connections, enhancing overall well-being, and increasing independence while promoting inclusion and equal opportunity in our community.

639
01:48:07.950 --> 01:48:32.150
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby proclaim July 2026 as Disability Pride Month in the City of Berkeley, and congratulate and recognize Borp Adaptive Sports and Recreation for its 50 years of extraordinary leadership and commitment to breaking barriers for people with disabilities to participate in sports, fitness, and recreation programs.

640
01:48:38.950 --> 01:48:54.820
Boardroom: Did you want to say a few words? Yeah, thank you so much, Mayor Ishii, and to the entire Council. I wanted to tell just a brief story, which is that in 1976, a student at UC Berkeley named Susan Siegel, who was a wheelchair user, tried to register for a swim class.

641
01:48:54.820 --> 01:49:10.620
Boardroom: at UC Berkeley. She was told that she could not take that swim class because she used a wheelchair, and so for a school project, she designed a program that would integrate people with disabilities and provide them recreation and sports opportunities that at that time were not available to them.

642
01:49:10.620 --> 01:49:34.549
Boardroom: Her professor was so moved by the hypothetical proposal that he suggested she go in front of this very council to get funding for what later became BORP Addaptive Sports and Recreation. So this council in 1976 made that happen. BORP was one of the very first organizations of its kind, a pioneer in the field, providing, sports and recreation opportunities for people of all ages.

643
01:49:34.550 --> 01:49:50.930
Boardroom: to participate in sports and to get outdoors. Today, Bohr provides over 20 weekly programs that serve over 1,400 individuals with disabilities every year, and much of it is possible because of the City of Berkeley's support. So, thank you all.

644
01:49:50.930 --> 01:50:11.179
Boardroom: We are having an event to commemorate our 50 years on October 15th, so I do invite everybody to join us at that event, 50 Years of Power Play in Progress, to celebrate 50 years of an organization by and for the community, providing these pioneering opportunities. So thank you so much, Mayorishi and the Council. Thank you so much.

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645
01:50:46.760 --> 01:50:48.030
Boardroom: Oops, not yet.

646
01:50:51.960 --> 01:50:52.730
Boardroom: Beautiful.

647
01:51:08.280 --> 01:51:21.470
Boardroom: Okay, so, I'm very excited for our next, ceremonial matter this evening. We are going to be recognizing Kai Wang. So, Kai, would you and your family like to stand?

648
01:51:22.460 --> 01:51:24.560
Boardroom: You can come up to the podium.

649
01:51:30.990 --> 01:51:54.230
Boardroom: Thank you so much for joining us this evening, Kai. I know that you and your family are here, and it's very exciting because Kai is a Berkeley student, a student in Berkeley Unified School District, who competed in the National Braille Competition in Los Angeles. There was an article about it in the Berkeley side, and my office was so thrilled that you were going to be in attendance,

650
01:51:54.230 --> 01:52:00.789
Boardroom: And then, very excitingly, you won first place in the charts and graphs category, so I really want to give you… yes.

651
01:52:06.650 --> 01:52:23.660
Boardroom: Yeah, Kai is a 7th grader at Longfellow Middle School, and the only California student to compete in this competition, so we are so incredibly proud of you, Kai, that we wanted to give you a certificate of recognition from my office. So, congratulations. Did you… did you want to say anything?

652
01:52:25.200 --> 01:52:25.870
Boardroom: Okay.

653
01:52:29.720 --> 01:52:36.360
Boardroom: I'd like to thank Mayor Ishii, first of all, for recognizing the importance of braille literacy.

654
01:52:36.550 --> 01:52:40.379
Boardroom: As well as my mom for always advocating for my access.

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655
01:52:40.820 --> 01:52:49.690
Boardroom: I'd also like to thank my teachers and educators, especially my teacher for the visually impaired, Mr. Dustin, and my music teacher, Mr. Houston, for always

656
01:52:49.800 --> 01:52:53.139
Boardroom: Making my access his responsibility.

657
01:52:53.420 --> 01:53:02.699
Boardroom: I'd also like to thank the blind community in Berkeley, including Borp, and my younger brother for keeping me sane throughout my studies. Thank you.

658
01:53:02.860 --> 01:53:04.480
Boardroom: Congratulations.

659
01:53:21.400 --> 01:53:22.110
Boardroom: You turn around.

660
01:53:28.290 --> 01:53:31.980
Boardroom: Don't see where you are.

661
01:53:41.030 --> 01:53:43.380
Boardroom: Thank you, thank you, congratulations.

662
01:53:58.420 --> 01:53:59.330
Boardroom: Okay.

663
01:53:59.580 --> 01:54:12.189
Boardroom: And, finally this evening, we have an adjournment and memory for Vanessa… Vanessa Lynn Sanchez, which was requested by Councilmember Kesarwani. So, I'll turn it over to you, Councilmember. Thank you very much, Madam Mayor.

664
01:54:12.190 --> 01:54:20.549
Boardroom: I would like to adjourn tonight's meeting in solemn memory of Vanessa Lynn Sanchez, a 37-year-old Berkeley resident.

665
01:54:20.550 --> 01:54:25.400
Boardroom: whose life was brutally and violently taken in her home on California Street.

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666
01:54:25.450 --> 01:54:34.270
Boardroom: Though I did not have the privilege of knowing Vanessa personally before learning of her death in the Berkeley Scanner, her tragic passing has left a profound…

667
01:54:36.300 --> 01:54:53.729
Boardroom: impact on our community. In a journey tonight, in Vanessa's memory, we must collectively honor her life while confronting the systemic epidemic of gender-based violence. Her death is a painful, urgent reminder that even in cities as progressive and peaceful as Berkeley, violence against women persists.

668
01:54:53.910 --> 01:55:04.450
Boardroom: We must reaffirm our unwavering responsibility to support survivors, strengthen local protections, and hold those who inflict harm fully accountable.

669
01:55:04.590 --> 01:55:22.179
Boardroom: Vanessa was a woman of exceptional warmth and resilience. Born in Hartford and raised in South Windsor, Connecticut, she earned her higher education at Eastern Connecticut State University and Sacred Heart University before establishing her home in Berkeley in 2018.

670
01:55:22.260 --> 01:55:32.270
Boardroom: For years, she dedicated herself to serving the wider Bay Area as a college admissions administrator at the Academy of Art University in San Francisco.

671
01:55:32.360 --> 01:55:51.590
Boardroom: Beyond her professional achievements, Vanessa defined what it means to be a fighter. Diagnosed with stage 4 breast cancer at just 34 years old, she publicly chronicled her journey with immense bravery and grace, inspiring countless others as she fought a fierce battle against the disease.

672
01:55:51.840 --> 01:56:11.140
Boardroom: Her family remembers her as a bright light who loved fiercely and wholeheartedly, possessing a rare gift for making everyone around her feel seen, valued, and deeply cared for. The sudden loss of Vanessa is an absolute tragedy for her neighbors, colleagues, loved ones, and the entire city of Berkeley.

673
01:56:11.140 --> 01:56:22.960
Boardroom: As we adjourn tonight, let us carry forward her spirit of determination, warmth, and courage. We extend our deepest, most heartfelt

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condolences to her family and to all who are grieving this devastating loss.

674
01:56:24.210 --> 01:56:25.910
Boardroom: Thank you, Councilmember.

675
01:56:26.510 --> 01:56:36.739
Boardroom: We are finished with our ceremonial matters for this evening. We will, of course, be adjourning in memory of Vanessa. And, we will move on to City Manager comments.

676
01:56:36.880 --> 01:56:43.999
Boardroom: No comments tonight. Madam Mayor, thank you. Thank you so much. I think our city auditor… oh, our city auditor is here and has some comments as well.

677
01:56:53.000 --> 01:57:05.089
Boardroom: All right, good evening, everyone. I wanted to make brief comments on the item on the public bank ballot measure. I think this is item number 3. It's an initiative petition.

678
01:57:06.380 --> 01:57:23.200
Boardroom: The intention behind a public bank is to create a publicly owned financial institution. Rather than having a private bank hold those investment dollars, money can be directly invested in, local issues of interest, such as affordable housing and infrastructure.

679
01:57:23.200 --> 01:57:29.890
Boardroom: I haven't evaluated the contents of this measure, but, I think this is something that could potentially benefit Berkeley.

680
01:57:30.650 --> 01:57:39.999
Boardroom: At the same time, I do want to state one specific concern I have with this measure. There's a provision in the measure requiring independent audits by the city auditor.

681
01:57:41.050 --> 01:57:45.959
Boardroom: However, the measure in no way provides funding for these audits.

682
01:57:46.070 --> 01:57:58.959
Boardroom: This is in contrast to the most recent Measure FF on Safe Streets and on the Council Bond Measure on infrastructure. Both measures include language on independent audits, as well as funding for oversight.

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683
01:57:59.330 --> 01:58:08.099
Boardroom: Imposing audit requirements without additional funding will curtail the scope of other audits we are able to execute.

684
01:58:08.190 --> 01:58:21.810
Boardroom: Other priority issues may be left unaddressed. This sets a really bad precedent. If this type of language continues to appear in future ballot measures, our audit plan could eventually be completely hamstrung.

685
01:58:21.920 --> 01:58:35.709
Boardroom: In fact, similar things have happened in other jurisdictions where a number of mandated audits exceeded the office's ability to conduct them, and they've had to ask for additional funding to add positions in order to do this work.

686
01:58:35.810 --> 01:58:55.369
Boardroom: As we all know, we can't afford to do that in Berkeley, given our deficit. Our audit agenda must continue to be set based on the need and in conjunction with our existing processes. I hope that future measures that require city auditor audits will also provide resources to conduct oversight.

687
01:58:55.400 --> 01:58:56.240
Boardroom: Thank you.

688
01:58:56.940 --> 01:59:03.850
Boardroom: Thank you so much, Auditor. That's a very important point, and I appreciate you bringing that to our attention.

689
01:59:05.030 --> 01:59:07.070
Boardroom: Okay Alright.

690
01:59:08.050 --> 01:59:11.050
Boardroom: Very well. Okay, so we are moving on.

691
01:59:12.690 --> 01:59:15.970
Boardroom: Okay, to public comment on non-agenda matters.

692
01:59:17.130 --> 01:59:27.529
Boardroom: Yes, okay, so this is public comments on items that are not on the published agenda. We'll select, up to 5 cards.

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693
01:59:27.700 --> 01:59:43.769
Boardroom: From in-person speakers, and then we will go to the first five hands raised on the Zoom, so if you'd like to provide comments on non-agenda items on the Zoom, now is the time to raise your hand.

694
01:59:44.110 --> 01:59:48.940
Boardroom: And we'll… Pick the cards for in-person speakers.

695
02:00:00.600 --> 02:00:01.530
Boardroom: Okay.

696
02:00:01.690 --> 02:00:15.370
Boardroom: So we have, for in-person speakers, We have Andrea Pritchett, John Mario Sevilla, Samantha Torres, and Glenn Turner.

697
02:00:16.110 --> 02:00:22.590
Boardroom: So come forward in any order, and, you can provide public comments. Each speaker will have one minute.

698
02:00:26.630 --> 02:00:31.940
Boardroom: Good afternoon, council members. I had the opportunity to listen to your previous meeting.

699
02:00:32.190 --> 02:00:35.589
Boardroom: And I have to confess that I was sort of shocked.

700
02:00:36.170 --> 02:00:38.200
Boardroom: To hear people say that.

701
02:00:38.640 --> 02:00:45.270
Boardroom: The racial disparities presented to you by the Police Accountability Board were not statistically significant.

702
02:00:46.080 --> 02:01:00.260
Boardroom: When 50% of the uses of force are against African Americans in a city where less than 8% of the people are African American, I don't know what measure you use to just dismiss that and say, it doesn't matter. Look behind you.

703
02:01:00.470 --> 02:01:02.679
Boardroom: Black Lives Matter, right?

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704
02:01:03.040 --> 02:01:11.299
Boardroom: So, the question is, what are you gonna do? If you guys are satisfied with that, you're like, yeah, well, okay, on to the next.

705
02:01:11.580 --> 02:01:16.060
Boardroom: Or you could look at that early warning system data.

706
02:01:16.280 --> 02:01:24.829
Boardroom: You could look, because I know from statistical analysis, that you have one lieuten here who, over a 5-year period.

707
02:01:25.370 --> 02:01:28.649
Boardroom: 75% of the people that he arrested were African American.

708
02:01:29.520 --> 02:01:36.770
Boardroom: You could dig in and find out, or you could walk away. Piggy. Thank you.

709
02:01:49.820 --> 02:01:55.399
Boardroom: My name's Glenn Turner, and I want to speak about, the…

710
02:01:55.610 --> 02:02:06.910
Boardroom: things that are not on the agenda. Public safety is very important, but what I see now is that, and we were talking about police things, but then, actually, we've had

711
02:02:07.060 --> 02:02:09.550
Boardroom: A cut, and so the,

712
02:02:09.810 --> 02:02:17.089
Boardroom: special crisis team that used to come out has been cut and is no longer in existence.

713
02:02:17.380 --> 02:02:36.130
Boardroom: the, wellness centers through the mental health committee, their, department, they closed that. So they're closing down safety nets, and I'm afraid that, you know, things are not gonna get better, they're gonna get worse, especially considering the,

714
02:02:36.310 --> 02:02:51.289

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Boardroom: you know, economic crash that's gonna be happening as this war proceeds, and I'd like to talk about, the future, and I especially like the way our auditor, talks about public banks.

715
02:02:51.420 --> 02:02:55.899
Boardroom: And things like that. Thank you. Thank you so much. More could be said, thank you.

716
02:03:00.640 --> 02:03:02.060
Boardroom: Alright, next speaker?

717
02:03:05.840 --> 02:03:08.660
Boardroom: Was there anyone else who… whose name was called?

718
02:03:09.500 --> 02:03:13.750
Boardroom: Samantha Torres and John Mario Sevilla. Yeah, go ahead.

719
02:03:14.930 --> 02:03:38.189
Boardroom: Alright, good evening, Mayor, Vice Mayor, and members of the City Council. My name's Samantha Torres. I'm speaking tonight as the Vice Chair of the Recreation and Parks Commission from the City of Richmond, and I'm representing one of the five member cities of the Joint Powers Agreement that created the Tom Bates Regional Sports Complex. In 2001, the Joint Powers Agreement was formed with the goal of building a regional sports facility that would serve all the communities.

720
02:03:38.190 --> 02:04:03.180
Boardroom: Since 2023, with the support of the Mayor and City Council, I've worked to help Richmond youth organizations access Tom Bates. We're having, what we're seeing as inconsistent, burdensome, and, lack of transparency in the allocation process. A regional facility cannot serve all communities of the policies governing access, push out one partner city while allowing others to expand their footprint and bring in teams from outside of the Joint Powers Agreement

721
02:04:03.180 --> 02:04:18.470
Boardroom: The need for Richmond youth sports access at Tom Bates is clear. Berkeley's population is only about 12% larger than Richmond, and Richmond has about 48% more residents under 18. I will follow up by email. I was expecting 2 minutes. Thank you.

722
02:04:21.430 --> 02:04:24.830
Boardroom: Just… John Mario Sevilla?

723

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02:04:26.450 --> 02:04:31.969
Boardroom: He's gonna speak, okay. So Mayor, that's just, 3 speakers, but we did have a

724
02:04:32.120 --> 02:04:38.289
Boardroom: somebody else who wanted to speak but did not fill out a card. So…

725
02:04:38.630 --> 02:04:41.409
Boardroom: I'm fine with taking them. Okay. Thank you.

726
02:04:45.010 --> 02:04:59.860
Boardroom: Hi, thank you. Hi, thank you for letting me speak. My name is Nori Clark, and I live in Berkeley at 1309 Bonita Avenue. I have heard that the, fire department is

727
02:04:59.860 --> 02:05:15.350
Boardroom: responsible for all the 911 calls and to respond to them, and that this has put a very big stress on their budget, and they're getting… and they're having fundraising to try and cover it, but that…

728
02:05:15.350 --> 02:05:23.450
Boardroom: We're gonna go deeper and deeper into a hole if we require that they respond to all 911, but do not give them

729
02:05:23.450 --> 02:05:30.249
Boardroom: the, money necessary to do this, and I'd really like you to take a look at this problem. Thank you.

730
02:05:30.820 --> 02:05:41.049
Boardroom: Thank you very much. Okay, going to the speakers online, currently have 4 hands raised. First, now five. First is, Eva.

731
02:05:44.390 --> 02:05:45.070
eva - yeah: Me?

732
02:05:45.800 --> 02:05:46.440
Boardroom: Yes.

733
02:05:46.690 --> 02:05:58.440
eva - yeah: Okay, good evening. My name is Iba. I would like to comment, something on the effect of a policy change from Texas Grip to local grant program.

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734
02:05:58.540 --> 02:06:06.639
eva - yeah: I was told in February that, there will still be a taxi… taxi split program in July, but,

735
02:06:06.760 --> 02:06:14.940
eva - yeah: to my surprise, that in June, I was told that that program is canceled. Instead, it's going to be GoGo brand.

736
02:06:15.060 --> 02:06:23.100
eva - yeah: And, the effect, I can see three aspects. Number one, it increased the financial burden to a lot of seniors.

737
02:06:23.330 --> 02:06:24.620
eva - yeah: Number 2.

738
02:06:24.950 --> 02:06:32.349
eva - yeah: It reduced their mobility and independence. They used to rely on this taxi strip to go about

739
02:06:32.410 --> 02:06:46.149
eva - yeah: But, now there's no more, so they just… they just don't go out. And for me, I am a disabled senior. I have a lot of medical appointments, and now I… I… I am in difficulty.

740
02:06:46.250 --> 02:06:49.709
eva - yeah: And, if I have to use a taxi, and, if…

741
02:06:49.710 --> 02:06:50.180
Boardroom: Thank you very much.

742
02:06:50.180 --> 02:06:50.860
eva - yeah: I love it.

743
02:06:50.860 --> 02:06:53.800
Boardroom: And I'm so sorry, but your time is up. Thank you.

744
02:06:54.400 --> 02:06:54.970
eva - yeah: Okay.

745
02:06:56.030 --> 02:06:58.679

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Boardroom: Next is Alana Auerbach.

746
02:07:08.750 --> 02:07:10.589
Boardroom: Alana, you should be… there you go.

747
02:07:10.800 --> 02:07:30.299
Elana Auerbach: Here I am. Okay. First, I'd like to give you all some kudos for a change! The new playground on Bonita and Hearst, Tot Playground, I took my grand girl there several times. It is fantastic for Tots. There's also a great play area for older children. Highly recommend it if you haven't been there and you've got kids.

748
02:07:30.530 --> 02:07:40.730
Elana Auerbach: There's graffiti on the UA theater downtown. That's a Berkeley landmark. Please enforce the anti-blight policies and insist that that building owner cleans it up.

749
02:07:40.920 --> 02:07:52.430
Elana Auerbach: the previous speaker, talked about the go-go car service. I have an elderly neighbor who also is very, upset about the change in,

750
02:07:52.660 --> 02:08:12.199
Elana Auerbach: what happened with the go-go grandma car service, and that not being available anymore. And I also want to say that the parking, the new parking program is very unfriendly to the people who own cars in Berkeley, and it's very unwelcoming to people who are going to be visiting Berkeley. Thank you.

751
02:08:12.200 --> 02:08:14.310
Boardroom: Okay, thank you.

752
02:08:14.600 --> 02:08:17.240
Boardroom: Next is Russell Bates.

753
02:08:23.530 --> 02:08:27.000
RussellBates: Hi, everybody, Russell Bates here.

754
02:08:28.250 --> 02:08:32.070
RussellBates: I'm a little bit irritated at a lot of things,

755
02:08:32.500 --> 02:08:43.910

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RussellBates: the ice in Berkeley. At the same time, a proposal for increased use of tear gas and pepper spray. Does somebody have inside information there?

756
02:08:44.010 --> 02:08:54.650
RussellBates: Something's going on. The same people that are calling for militarization, the police, are also the ones who support the genocide going on in Gaza.

757
02:08:54.750 --> 02:08:57.289
RussellBates: and Lebanon, and that area.

758
02:08:57.740 --> 02:08:59.550
RussellBates: You need to remember that

759
02:08:59.680 --> 02:09:18.829
RussellBates: As the empire crumbles, the middle class is going to be shrinking, the working class is pissed off, and the ruling class is going to become much more oppressive than it is already. Please do not be part of the ruling class. Be part of the working class. The tradition at Berkeley is working class.

760
02:09:19.020 --> 02:09:23.599
RussellBates: Make sure you stay working class. Thank you very much.

761
02:09:24.450 --> 02:09:26.160
Boardroom: Thanks, Russell.

762
02:09:30.950 --> 02:09:33.439
Boardroom: Next is Makai Freeman.

763
02:09:38.280 --> 02:09:40.229
Boardroom: Should be… there you go. Okay.

764
02:09:43.400 --> 02:09:45.030
Michai Freeman CIS She/Her: No matter and soup.

765
02:09:45.820 --> 02:09:47.290
Michai Freeman CIS She/Her: Council members.

766
02:09:48.300 --> 02:09:52.669
Michai Freeman CIS She/Her: I'm here tonight… As it does.

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767
02:09:53.390 --> 02:09:57.390
Michai Freeman CIS She/Her: I may have lost… Excuse me.

768
02:09:58.140 --> 02:09:59.580
Michai Freeman CIS She/Her: The talkhouse.

769
02:10:00.530 --> 02:10:06.999
Michai Freeman CIS She/Her: That's strictly… And that's suspect… And we'll second more.

770
02:10:08.080 --> 02:10:09.680
Michai Freeman CIS She/Her: Agent Streams.

771
02:10:10.520 --> 02:10:12.119
Michai Freeman CIS She/Her: Empressure disability.

772
02:10:13.120 --> 02:10:14.789
Michai Freeman CIS She/Her: So, after that evening.

773
02:10:15.600 --> 02:10:22.109
Michai Freeman CIS She/Her: I also want to… Express… Deep concern.

774
02:10:23.100 --> 02:10:27.290
Michai Freeman CIS She/Her: the news for, like… Naturalization.

775
02:10:28.270 --> 02:10:29.600
Michai Freeman CIS She/Her: I see.

776
02:10:30.820 --> 02:10:34.980
Michai Freeman CIS She/Her: I wasn't alive when… Dogs are sick.

777
02:10:38.210 --> 02:10:42.160
Michai Freeman CIS She/Her: People just… demonstrating aspect.

778
02:10:43.120 --> 02:10:44.920
Michai Freeman CIS She/Her: Conversation injustice.

779
02:10:45.610 --> 02:10:47.349
Michai Freeman CIS She/Her: They're really upsetting.

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780
02:10:47.930 --> 02:10:52.170
Michai Freeman CIS She/Her: Their courses are… Fair enough, freshman.

781
02:10:52.720 --> 02:10:54.440
Michai Freeman CIS She/Her: Right, CHD.

782
02:10:55.090 --> 02:10:56.790
Michai Freeman CIS She/Her: subjected to.

783
02:10:57.550 --> 02:11:01.609
Michai Freeman CIS She/Her: Dogs, and… chemical weapons.

784
02:11:02.440 --> 02:11:06.650
Michai Freeman CIS She/Her: And keep… Hearing enough.

785
02:11:07.270 --> 02:11:08.950
Michai Freeman CIS She/Her: Brooklyn values.

786
02:11:09.590 --> 02:11:13.730
Michai Freeman CIS She/Her: And to think that it is… being disgusting.

787
02:11:14.300 --> 02:11:16.000
Michai Freeman CIS She/Her: considered for this.

788
02:11:16.820 --> 02:11:18.519
Michai Freeman CIS She/Her: This is counting.

789
02:11:19.610 --> 02:11:23.549
Michai Freeman CIS She/Her: AIF, you don't… Go down this road.

790
02:11:25.130 --> 02:11:26.580
Michai Freeman CIS She/Her: We don't need it.

791
02:11:27.700 --> 02:11:28.660
Michai Freeman CIS She/Her: Thank you.

792
02:11:29.690 --> 02:11:31.230
Boardroom: Thank you. Thank you.

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793
02:11:34.910 --> 02:11:37.049
Boardroom: Next is Kelly Hammergren.

794
02:11:47.040 --> 02:11:52.010
Boardroom: Thank you. I hope you don't consider this cheating when there were only 4 hands.

795
02:11:52.900 --> 02:12:00.329
Boardroom: But I really appreciated the recognition of Disability Pride Month.

796
02:12:01.190 --> 02:12:17.760
Boardroom: And I'd like to ask that, does this mean tomorrow at fights, we will finally have a resolution to the Commission on Disability asking for contracts in the City of Berkeley?

797
02:12:17.890 --> 02:12:28.380
Boardroom: To abide by… the public by PROWAG, which stands for Public Right-of-Way Accessibility Guidelines.

798
02:12:28.570 --> 02:12:34.549
Boardroom: They've been waiting for over a year for results and resolution on this item.

799
02:12:35.200 --> 02:12:41.770
Boardroom: And I think it's important that we start considering disability rights if we're going to celebrate

800
02:12:42.110 --> 02:12:52.710
Boardroom: of disability months, and we also need to look at floating islands in the Burke Plan. Thanks, Kelly. Bike plan. Thank you.

801
02:12:55.690 --> 02:12:57.869
Boardroom: No, I only get one.

802
02:12:58.190 --> 02:13:00.779
Boardroom: That's it. There's no more hands raised.

803
02:13:00.910 --> 02:13:02.110
Boardroom: Thank you.

804

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02:13:03.710 --> 02:13:11.920
Boardroom: Alright. Thank you, everyone. Alright, we are now moving on to the consent calendar. I believe we need to vote to…

805
02:13:12.020 --> 02:13:16.920
Boardroom: approve the addition of the supplemental agenda material. Did you want to say anything about it, Councilmember?

806
02:13:18.960 --> 02:13:27.519
Boardroom: Sure, this is in relation to item number 20, relinquishment of Council Office Budget Funds,

807
02:13:27.710 --> 02:13:40.790
Boardroom: for the Raising the Next Generation of Student Advocates Arise program, and this just adds a resolution and, co-sponsors Mayor Adina Ishii and Councilmember Bartlett.

808
02:13:41.580 --> 02:13:48.749
Boardroom: Thank you very much. Is there a motion to add this to the agenda? I'll move. Second. Can we take the roll on that, please?

809
02:13:49.060 --> 02:13:55.960
Boardroom: Okay, to accept, Supplemental 3 material on item number 20, Councilmember Kessnerwani? Yes.

810
02:13:56.130 --> 02:13:56.920
Boardroom: Taplin?

811
02:13:56.920 --> 02:13:57.660
Terry Taplin: Yes.

812
02:13:57.860 --> 02:14:12.219
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay. Thank you very much. Are there any Councilmember comments for this…

813
02:14:12.390 --> 02:14:14.310
Boardroom: Consent calendar.

814
02:14:15.270 --> 02:14:18.629
Boardroom: Sorry, I know our parliamentarian's been on the fritz today, so…

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815
02:14:19.220 --> 02:14:21.290
Boardroom: Feel free to wave at me.

816
02:14:22.470 --> 02:14:27.059
Boardroom: Anyone have comments? Yeah, go ahead, Councilmember Lunapara.

817
02:14:27.260 --> 02:14:29.490
Boardroom: I…

818
02:14:29.640 --> 02:14:43.489
Boardroom: Wanted to thank the City Manager and his team, for the appointment of the Director of Public Works, and I'm excited to welcome, Jamie Parks to the City of Berkeley. Thank you so much for the process, and I'm really, really excited.

819
02:14:43.730 --> 02:14:54.520
Boardroom: I also would like to donate $200 for my discretionary, budget to items 18 and 20, and thank the authors for bringing them forward. Thanks.

820
02:14:57.720 --> 02:14:59.239
Boardroom: Okay, anyone else?

821
02:14:59.370 --> 02:15:01.060
Boardroom: Yes, Councilmember Bartlett.

822
02:15:01.610 --> 02:15:07.229
Boardroom: Thank you. I'd like to, donate $250 to, item 20, the RISE program.

823
02:15:07.370 --> 02:15:10.990
Boardroom: Thank you, Councilmember Trigobe. And,

824
02:15:11.530 --> 02:15:22.819
Boardroom: And the Birthday Brown Memorial Gathering and Hunger Program recognition is, a really special event. As you know, hunger is on the rise, in our area. People are now selling food on the streets.

825
02:15:23.070 --> 02:15:30.790
Boardroom: And the food shocks will be coming in greater and greater waves, very soon due to the shortage of fertilizer due to the war.

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826
02:15:30.900 --> 02:15:33.240
Boardroom: So, keep hunger on your mind. Thank you.

827
02:15:34.110 --> 02:15:39.940
Boardroom: Thank you very much. Councilmember Taplin, I see your hand raised, and then Councilmember Tracho.

828
02:15:41.800 --> 02:15:48.310
Terry Taplin: Thank you very much. On items 18 and 20, I'd like to relinquish $150 each. Thank you.

829
02:15:49.920 --> 02:15:52.180
Boardroom: Thank you very much. Councilmember Treykop?

830
02:15:54.420 --> 02:16:00.180
Boardroom: Thank you, Madam Mayor. I would like to,

831
02:16:00.520 --> 02:16:18.619
Boardroom: First of all, extend my sincere gratitude to our City Clerk and his team for all the work, they've done to facilitate the placement of, initiatives onto the ballot, and all of the appointments as well that they're helping to facilitate.

832
02:16:18.780 --> 02:16:23.349
Boardroom: I would like to welcome our new Director of Public Works, Jamie Parks.

833
02:16:23.410 --> 02:16:37.240
Boardroom: We heard many great things about him from our neighbors in Oakland, and are looking forward to working with him. And I want to take a moment to acknowledge and to express my profound gratitude

834
02:16:37.240 --> 02:16:51.799
Boardroom: our profound gratitude to Director Wahid Amiri for his extraordinary service to our community. Every time our constituents reach out to us with simple or complex requests, he's a trusted and impressively responsive

835
02:16:52.309 --> 02:17:06.929
Boardroom: colleague, Wahid and his team and my staff's experience are always looking for solutions, and this approach is just really refreshing and welcomed in this area, and in government in general.

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836
02:17:07.059 --> 02:17:16.480
Boardroom: And, even on tonight's agenda, we are approving many items that were brought to us by Director Amiri and his team, so thank you so much for your work.

837
02:17:16.620 --> 02:17:38.780
Boardroom: I would, like to contribute, $150, on item 18. Thank you, Councilmember Bartlett, for authoring this item. I would like to thank my colleagues for their contributions towards item, 20, the, Supporting the RISE program.

838
02:17:38.780 --> 02:17:44.840
Boardroom: I attended a Berkeley High School RISE graduation, this…

839
02:17:44.840 --> 02:17:52.410
Boardroom: I think last month, and it was… I was deeply moved by, that experience.

840
02:17:52.440 --> 02:18:00.260
Boardroom: And lastly, I… I want to thank my colleagues for considering

841
02:18:00.389 --> 02:18:10.280
Boardroom: Support for item 19, which would be to adopt a position of opposing ACA 22, which is the California two-thirds

842
02:18:10.680 --> 02:18:17.209
Boardroom: Two-thirds, vote requirement for special taxes.

843
02:18:17.530 --> 02:18:22.590
Boardroom: While we appreciate all the hard work that our state legislators

844
02:18:22.590 --> 02:18:47.569
Boardroom: put into repealing a much more extreme, Howard Jarvis, supported initiative, which would have retroactively voided local taxes and restricted charter city real estate transfer taxes from the upcoming ballot. ACA 22, if passed, will still have compounding negative impacts on the financial well-being of California cities, including ours.

845
02:18:48.280 --> 02:18:53.830
Boardroom: And so, we are,

846

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02:18:54.360 --> 02:19:13.850
Boardroom: We as the City of Berkeley, if we pass this tonight, would be one of the first local jurisdictions in the state to do so, and I think it is very important to send a clear and unambiguous message of our opposition for this draconian ballot matter. Thank you.

847
02:19:14.709 --> 02:19:22.029
Boardroom: Thank you very much, Councilmember. Councilmember Kesarwani, and then we'll go to Vice Mayor O'Keefe. And then Councilmember Humbert.

848
02:19:22.690 --> 02:19:35.350
Boardroom: Okay, thank you very much, Madam Mayor. I'd like to be recorded as donating $100 to item 18, the Bertha Brown Community Memorial Gathering, and $100 for the RISE program, item number 20. Thank you.

849
02:19:36.850 --> 02:19:39.799
Boardroom: Thank you. Okay, Councilman… oh, Vice Mayor O'Keefe?

850
02:19:40.360 --> 02:19:43.490
Boardroom: I totally forgot it was the Vice Mayor. Thank you for reminding me.

851
02:19:45.809 --> 02:20:05.670
Boardroom: Okay, I want to, donate $250 to the Bertha Brown, Community Memorial Gathering. Thank you very much, sounds like a great, great, program, and also $250 to the RISE program item. I've had many students involved in the RISE program, and I'm very happy to support it, so thank you for bringing that item.

852
02:20:05.680 --> 02:20:16.840
Boardroom: And then I just want to also just add, I think, Councilmember Trey Group said it really well, I just really want to add my gratitude. I want to first welcome Director Parks, and also,

853
02:20:17.140 --> 02:20:35.240
Boardroom: really just honor and thank, Acting Director Amiri for the amazing job he did. He really stepped into a huge position and really did a great job. It's an incredibly important position, and he really nailed it, so I just… so much gratitude to him. And once again, welcome, Director Parks.

854
02:20:35.850 --> 02:20:37.850
Boardroom: Thank you very much. Councilmember Humbert.

855

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02:20:38.240 --> 02:20:53.890
Boardroom: Thank you, Madam Mayor. And first, I want to associate myself and underline both the comments of, Councilmember Trigub and, Vice Mayor O'Keefe about our wonderful, incredibly knowledgeable, incredibly responsive.

856
02:20:53.890 --> 02:21:05.550
Boardroom: Interim Public Works Director Wahita Miri. He's just an amazing, amazing, public servant. I really appreciate the work that he is… has done and is doing.

857
02:21:07.190 --> 02:21:17.550
Boardroom: with respect to number 18, the Bertha Brown Community Memorial Gathering, I'd like to, contribute, $150 from our office account, and then…

858
02:21:17.660 --> 02:21:24.330
Boardroom: Item 20, which is the RISE program, $100 from our office account. Thank you.

859
02:21:25.630 --> 02:21:42.800
Boardroom: Thank you very much. Yes, Councilmember Blackaby. Thanks, Madam Mayor. A couple of quick things. I just want to thank you on item 6 for your appointment of the new member to the PAB, and actually, there's two items. There's the new member, and then also appointment of alternate member. I think this might be the first time

860
02:21:42.870 --> 02:21:58.880
Boardroom: The board's also had its required alternate member, so it's… not only are we going to be at a full complement, but if someone is out, we actually have an alternate member to step in. So, just appreciate the effort that everybody's made to kind of bring the board up to full strength.

861
02:21:58.890 --> 02:22:15.800
Boardroom: I want to echo everyone's comments, welcoming, Jamie Parks. Look forward to working with him as our new Director of Public Works, and thanking Mr. Amiri for all of his amazing work. Marin Avenue and so many other projects in District 6 have benefited from his expertise, and we look forward to his

862
02:22:15.800 --> 02:22:20.369
Boardroom: Continued work together here for the city, and thank him for his interim leadership.

863

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02:22:21.410 --> 02:22:38.889
Boardroom: On item 18, please mark our office down for $250 for the Bertha Brown Community Memorial Gathering, and also on item 20, $250 for, the RISE program. I also just wanted to comment very briefly on item 15, something that, we kind of

864
02:22:38.890 --> 02:22:41.410
Boardroom: Skim over often in kind of our…

865
02:22:41.410 --> 02:23:03.859
Boardroom: look at the consent calendar. This is a contract for after-hours answering services. Just a comment, and this is an issue that Councilmember O'Keefe and I and many others have been looking at, is as a city, how do we continue to look for opportunities to use technology in more effective ways, looking at pilots where we can try very targeted uses of AI to automate certain workflows, I think

866
02:23:03.960 --> 02:23:10.630
Boardroom: This area, after-hours call service. It's an outsourced service. It does not affect any city staff.

867
02:23:10.640 --> 02:23:35.589
Boardroom: It's fundamentally about routing calls that come in after hours to the right person. This feels like the perfect candidate for a place to try piloting some AI technology. I want to acknowledge that the city manager and I had a conversation. He was very open and willing to take a look at this. The contract is for 3 years, but it's structured in such a way that if we were to pilot something, we could exit the contract early, and so I'm just excited that this might be one place

868
02:23:35.830 --> 02:23:41.589
Boardroom: where we could start to try this. And as a city, I think from a cost-savings perspective.

869
02:23:41.620 --> 02:23:47.469
Boardroom: From an improvement of customer service perspective, we need to be looking at any and all of these sorts of possibilities.

870
02:23:47.470 --> 02:24:01.960
Boardroom: And I just want to thank the City Manager for being willing to have that conversation, being interested in taking a look at maybe this is something that we do, and any support that we could provide, obviously, as a body, to encourage, I think, the city to make some initial steps

871

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02:24:01.960 --> 02:24:11.259
Boardroom: And tests, and pilots, and investments, because this is certainly the way things are moving, and to sort of continue delivering effective service

872
02:24:11.260 --> 02:24:25.730
Boardroom: at a time where we are seeing more and more budget pressures, I think we're going to need to look for this kind of creative solution. And so, again, normally it's an item that would kind of… we would pass by, but I did just want to highlight it because I think it's an area where we can

873
02:24:25.730 --> 02:24:31.539
Boardroom: really do some interesting work and try some new things. So with that, that's it for now. Thank you.

874
02:24:31.920 --> 02:24:56.810
Boardroom: Thank you so much. I also wanted to welcome Director Parks, who will be our Public Works Director, and thank, of course, our Interim Director, Amiri, as well, for all of his work. I also wanted to acknowledge that there are three citizen-led initiatives on our consent calendar tonight, and I know folks worked really hard, to gather thousands of Berkeley signatures to qualify for these ballot measures. We have a parcel tax for the art institutions, a parcel tax supporting

875
02:24:56.810 --> 02:25:21.769
Boardroom: a public bank and a measure to add, 2 cents per ounce to sugar-sweetened beverages. And I also am really thrilled to be appointing Yasmina Vitesh Keech as my appointee to the Police Accountability Board. She's thoughtful, balanced, community-centered, and has experience with investigations. I'm eager for her to bring her perspective to the PAB's work, and I know that she will serve with an open mind

876
02:25:21.770 --> 02:25:24.379
Boardroom: And a commitment to institutional accountability.

877
02:25:24.380 --> 02:25:46.889
Boardroom: I'm also very happy to be bringing forward Pastor Duane Phillips as our alternate for the PAB, with the confirmation of these two people. We are one step closer to having a full Police Accountability Board. Councilmember Taplin's appointee will be coming forward to the Council at the next meeting to round out our outstanding vacancies. I also… I wasn't sure if it was, we were listed already, so $100 for item number 18 as well, Councilmember Bartlett.

878
02:25:46.890 --> 02:25:47.680

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Boardroom: Okay.

879
02:25:47.680 --> 02:25:54.520
Boardroom: Thank you very much. Do we have any comments on consent calendar or information items, or… I'm sorry, did you…

880
02:25:54.750 --> 02:25:56.570
Boardroom: Did you relinquish, or…

881
02:25:56.790 --> 02:26:09.299
Boardroom: Did you, did you mention… Sorry, $100 for 18. $200 for 18. $100, $100. $100 for each. Sorry, yes, we are now, after the budget cuts, doing $100 per, so…

882
02:26:09.400 --> 02:26:23.530
Boardroom: And I do have, just so you know, Mr. City Clerk, the comment I'm supposed to make before we vote, so… Okay. Okay, yes, so please come on up if you have any comments on consent calendar or information items only. Come on up, Kelly.

883
02:26:30.460 --> 02:26:48.669
Boardroom: Okay, so I wanted to comment on the order for the Turf Star Incorporated. These are the parking carts, and evidently we don't have enough charging at 125, 127 University.

884
02:26:48.680 --> 02:26:59.349
Boardroom: In order to get the battery-operated carts. I remember when this came around the last time for battery-operated carts, a number of years ago, before most of you were here.

885
02:26:59.450 --> 02:27:09.390
Boardroom: And I'm just wondering, is this the best we can do in Berkeley? Can't we find another place to charge these carts so that we don't have to do more gas carts?

886
02:27:09.490 --> 02:27:23.720
Boardroom: And we can keep our commitment to going electric. It just seems like we should be able to do better, and so I would ask that we take a hard look. Of course, most of us here in the city would be happy if we didn't have carts for a while.

887
02:27:24.230 --> 02:27:28.690
Boardroom: But, anyway, that's my request. Thank you. Thank you, Kelly.

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888
02:27:35.410 --> 02:27:49.210
Boardroom: Hi. Hello, my name is Adriana Betti, I am the Executive Director of RISE. I want to thank the Councilmember Igor, especially for putting this on the ballot and for attending our graduation, and I hope you got the article from the jacket.

889
02:27:49.490 --> 02:27:54.389
Boardroom: Thank you also for contributing, to our program.

890
02:27:54.390 --> 02:28:17.959
Boardroom: As you know, Berkeley High… I mean, RISE is housed on the Berkeley High campus. It was actually founded in 1976 by youth that were seeking educational equity. One of those students was Calvin Fong, who worked for the mayor's office, the late Calvin Fong, and so we do want to remember him in every piece of work that we do. So by supporting us, you are also having his efforts live on in our kids that are still trying to do the same thing.

891
02:28:17.960 --> 02:28:27.579
Boardroom: Every year, we have a graduation that's put on by donations and student fundraising, and just the food alone was $1,950. The food was cooked by a 2023 Berkeley High graduate.

892
02:28:27.580 --> 02:28:52.419
Boardroom: We had 20 great… 28 graduates this year, 3 of them went on to… well, one went to the University of Indiana, one went to the University… American University of Paris, and one to the University of San Francisco. Can I finish this deck? Sorry, can we get a minute for… yes, thank you. Go ahead. Thank you. 7 of them went on to UC Systems, 2 of them went on to state colleges, 15 of them went on to junior colleges, in other words, all 28 are going on.

893
02:28:52.470 --> 02:29:09.800
Boardroom: One went on to, Rising Suns Trade School. So, all 28 are engaged in post-secondary. Six of them received the High Hope Scholarships, 11 of them received the First Step Scholarships, and all of them at various, colleges either got a number of different scholarships or full rides.

894
02:29:09.810 --> 02:29:18.780
Boardroom: We do have a girl that was kicked out and homeless, at the end of the school year, and she got a full ride at,

895
02:29:18.950 --> 02:29:21.429
Boardroom: What… Northridge.

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896
02:29:21.720 --> 02:29:27.679
Boardroom: So, just wanted to say that. Just one other thing I'd like to say, I just attended a graduation in May.

897
02:29:27.730 --> 02:29:41.769
Boardroom: My student, who was homeless, getting abused, living on the street, just graduated and became a doctor, and is gonna be doing her residency at Marshalls University, in, West Virginia. So…

898
02:29:42.580 --> 02:29:45.220
Boardroom: Thank you for your help. Thank you.

899
02:29:45.490 --> 02:29:50.409
Boardroom: Thank you so much, Ms. Betty. Thank you for bringing that wonderful news to us.

900
02:29:50.570 --> 02:29:51.550
Boardroom: Yes.

901
02:29:55.050 --> 02:30:03.859
Boardroom: Good evening, Madam Mayor, members of the Council. My name is Sean Dugar. I am a Berkeley native whose family has been in the city since 1919.

902
02:30:04.180 --> 02:30:06.870
Boardroom: In that 100-plus year history.

903
02:30:06.870 --> 02:30:31.549
Boardroom: We have seen the city of Berkeley, the voters of Berkeley, continue to make history, continue to push forward a progressive agenda, and we have an opportunity to do that this November again, with setting up a fund that would create a public bank here in the East Bay. A public bank that would allow for us to be, to not be as dependent on Washington, D.C, not be as dependent on Wall Street to invest in our communities.

904
02:30:31.720 --> 02:30:52.360
Boardroom: but instead be able to invest in green energy and infrastructure, and affordable housing, and workforce housing, and to support small businesses. So I want to thank the members of this council who have been supportive of this entire body that has supported public banks here in the East Bay in the past, and onward to November. Thank you all.

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905
02:30:52.510 --> 02:30:54.029
Boardroom: Thank you, Sean.

906
02:30:58.490 --> 02:31:07.589
Boardroom: Good evening, my name's Tom Parrish, and I am a member of the Berkeley Arts Coalition and a resident of District 5.

907
02:31:07.670 --> 02:31:13.940
Boardroom: I'm here to speak about the 2026 Berkeley Arts and Creative Economy Rescue and Sustainability Measure.

908
02:31:13.970 --> 02:31:34.260
Boardroom: Berkeleyans understand that the arts are not a luxury, they are important civic infrastructure. Just as we invest in our schools, our libraries, and our parks because they strengthen our community, we must also invest in the artists and cultural organizations that define who we are, build community cohesion, and provide lifelong learning opportunities.

909
02:31:34.260 --> 02:31:46.450
Boardroom: Last summer, 93% of Berkeley voters polled agreed that arts and culture are a critical part of what makes Berkeley a special place to live, and this ballot measure gives those values meaningful action.

910
02:31:46.450 --> 02:32:03.499
Boardroom: This measure will generate more than $6 million annually to support nonprofit theaters, music and dance organizations, museums, community festivals, and individual artists, and expand arts education, free community events, and preserve cultural spaces. Thank you. Thank you. Thanks so much, Tom.

911
02:32:09.710 --> 02:32:23.690
Boardroom: Hello, good evening. My name is David Mayeri, I'm the founder and CEO of the UC Theater. I'm here also in support of the Save the Arts measure, and it's a… not only investing in the quality of life in Berkeley, but it's also

912
02:32:23.770 --> 02:32:39.060
Boardroom: Investing in something that also gives a return, not just a cultural return, but a financial return. Performing arts theaters and music venues are both primary and secondary revenue generators and primary and secondary job generators.

913
02:32:39.060 --> 02:32:45.689

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Boardroom: For example, every ticket that's sold at the UC Theater generates $14 to $16 in the community.

914
02:32:45.980 --> 02:33:02.119
Boardroom: So, for every 100,000 tickets sold, that's 1.4 to 1.6 million in surrounding businesses. And in addition to that, the jobs that we create are not only in our venue, but the secondary jobs in the businesses surrounding us.

915
02:33:02.120 --> 02:33:12.269
Boardroom: I think it's important to look at it from not only just a cultural standpoint, but also for economic. The City of Berkeley also did a creative economy study on the creative economy.

916
02:33:12.270 --> 02:33:16.150
Boardroom: in Berkeley, and that's where taking a look at, underscores that as well. Thank you.

917
02:33:20.530 --> 02:33:35.250
Boardroom: Good evening, Mayor, Councilmembers, and members of the community. My name is John Mario Sevilla, I'm the Director of Development and Operations at Luna Dancing Creativity. I'm here to express, also, my strong support for the, Berkeley Arts Measure.

918
02:33:35.250 --> 02:33:55.270
Boardroom: For 30 years, Luna has been, has brought creativity, equity, and community to children's lives through dance, so I'm speaking about the educational impact of this measure. Last year, we served 731 educators and artists, and reaching more than 50,000 children, 6,000 with disabilities and special needs.

919
02:33:55.270 --> 02:33:56.439
Boardroom: the arts…

920
02:33:56.570 --> 02:34:10.550
Boardroom: are essential to learning, belonging, and building vibrant communities. Berkeley's support has already established our ADA-accessible Community Dance Center, expanding opportunities for children and people of all abilities.

921
02:34:11.190 --> 02:34:23.529
Boardroom: At a time when federal and state arts funding is in sharp decline, this measure is an investment in our children, our local economy, and Berkeley's identity as a city where creativity and learning thrive. Thank you.

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922
02:34:24.200 --> 02:34:25.420
Boardroom: Thank you so much.

923
02:34:33.910 --> 02:34:51.249
Boardroom: My name's Glenn Turner. I ran on the Green Party ticket for State Treasurer, and one of my platforms was a public bank, and I've been, tabling for them 10 years ago at farmers markets, and I'm so excited that it got on the ballot. I had… I was…

924
02:34:51.250 --> 02:35:00.289
Boardroom: I was so disappointed at the turnout of number of signatures I thought it had not gotten on the ballot, but now I'm just thrilled that we will actually be the first

925
02:35:00.290 --> 02:35:08.429
Boardroom: public bank, East Bay Public Bank, in California, and it… it's a… it will be a…

926
02:35:08.710 --> 02:35:15.669
Boardroom: bonus to us. This is exciting. I just had to say how happy I am. Thank you. Thank you.

927
02:35:21.730 --> 02:35:25.079
Boardroom: I've been gifted with the possibility of a second minute.

928
02:35:25.340 --> 02:35:26.509
Boardroom: From Steve.

929
02:35:28.040 --> 02:35:31.229
Boardroom: Councilmembers, I wanna… Steve, sorry, Steve?

930
02:35:31.350 --> 02:35:34.079
Boardroom: Yeah, okay, just wanted to share. Okay.

931
02:35:35.450 --> 02:35:38.050
Boardroom: Councilmembers, I want to…

932
02:35:39.230 --> 02:35:51.959
Boardroom: express my excitement about the possibility of a full PAB. Excuse me. And hopefully my council member will also nominate someone from District 2 to serve.

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933
02:35:52.190 --> 02:35:58.500
Boardroom: But I guess what I heard in your previous meeting, I heard you express

934
02:35:58.650 --> 02:36:07.539
Boardroom: that some members of the community are just kind of anti-police, and are just oppositional in that way. And what I want to… I want to get under that.

935
02:36:08.330 --> 02:36:10.810
Boardroom: Because I don't hate any police.

936
02:36:11.210 --> 02:36:16.790
Boardroom: I am critical of policing in our city, the way that it is conducted.

937
02:36:17.290 --> 02:36:22.729
Boardroom: And this has been a long struggle that far precedes your presence on the Council, for some of you.

938
02:36:23.670 --> 02:36:27.769
Boardroom: But the idea is that it's called care, not cops.

939
02:36:27.950 --> 02:36:35.620
Boardroom: And it's, it's a whole philosophical difference that I hope the new members of the PAB will understand.

940
02:36:36.220 --> 02:36:46.099
Boardroom: It's not about hate, it's about deep love. It's about care. It's about offering people things like a place to sleep instead of a dog bite.

941
02:36:46.540 --> 02:37:02.050
Boardroom: It's really fundamental. I'm asking, where is our warming? Is it economically wise to eliminate warming centers from our budget and yet consider mass surveillance proposals?

942
02:37:02.340 --> 02:37:05.319
Boardroom: How much will you spend litigating these things?

943
02:37:05.900 --> 02:37:19.089

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Boardroom: How happy will it make us? It's about… this is our community. We love it, and we want you to care for it in a way that collaborates with what we're expressing to you.

944
02:37:19.320 --> 02:37:21.420
Boardroom: And it really is a heartbreaker.

945
02:37:21.580 --> 02:37:27.100
Boardroom: To see proposal after proposal in full retreat.

946
02:37:27.750 --> 02:37:31.610
Boardroom: From the high aspirations you've expressed a few years ago.

947
02:37:31.890 --> 02:37:36.310
Boardroom: And so we are saying we want to go back there. Thanks. Thanks, Andrea.

948
02:37:50.690 --> 02:38:02.399
Boardroom: That woman always floors me. She speaks the truth in such a bottom-line way, because, Mayor, you brought it up with the disability thing. It's like, respect, include, and support.

949
02:38:02.560 --> 02:38:07.500
Boardroom: It is a fundamental point of view that together we can.

950
02:38:08.210 --> 02:38:14.329
Boardroom: We need more interaction. We need, as a community, to know that we keep ourselves safe.

951
02:38:14.800 --> 02:38:20.289
Boardroom: And I'm definitely in support of the public bank, police accountability. I love the police.

952
02:38:20.570 --> 02:38:22.589
Boardroom: If they would do their job.

953
02:38:22.700 --> 02:38:24.119
Boardroom: With heart.

954
02:38:24.380 --> 02:38:32.539
Boardroom: and care, and if we would prevent harm, I just saw a man surrounded by 3 police cars. He didn't need that, he needed help.

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955
02:38:32.870 --> 02:38:43.370
Boardroom: He needed help, and we're not providing enough help. Okay. Elevators, please, I really support that, because elevators are falling apart, and people get hurt.

956
02:38:43.520 --> 02:38:54.419
Boardroom: And if you're going to buy new parking enforcement vehicles, please resell the old so that we can use them in the community. Thank you. Thanks, Maria.

957
02:39:00.030 --> 02:39:19.460
Boardroom: Carol Morasovic. First, I want to support the City Auditor's comments regarding public banks and her need for additional auditors to do that job. Second, I want to, support the comments that were made regarding Wahita Miri. He was great, he was professional, he was a great communicator, and he brought a lot of expertise.

958
02:39:19.460 --> 02:39:43.760
Boardroom: And he was just excellent. Third, I want to address the number 8, the capacity building. I was hoping there would be some relationship to Bendix and curing the racial disparities and gender disparities, and building that type of capacity. Last, I want to comment on the comments about AI that have been made.

959
02:39:43.790 --> 02:39:47.980
Boardroom: Which is, to state that,

960
02:39:47.980 --> 02:40:11.439
Boardroom: There also is a downside to AI. Just today, I received a couple different emails related to, negative aspects of AI. For example, the University of Chicago has… law schools banned tech. Thanks. Thank you. Carol, did you want a minute? Someone from the audience is giving you a minute. Thank you. I was hoping to read some of the comments, but suddenly my phone went down on that.

961
02:40:11.440 --> 02:40:36.210
Boardroom: from the, on AI, and that was… basically, to sum it up, it was talking about the human aspect, and that people want the human aspect. And this has been… I am so sorry this has just gone down on my phone, but… that you can't replace the human aspect, and we have to remember that AI may seem very efficient.

962
02:40:36.450 --> 02:40:54.319

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Boardroom: But it… it… there is that you… okay, here goes. One line from the strategy stood out. They write that many aspects of legal practice will remain the domain of humans, not merely because humans are good at them, but because clients, employers, judges, and society will want humans to perform them.

963
02:40:54.320 --> 02:41:08.139
Boardroom: That is a different argument, that AI can't do this yet. It's saying that even when AI can do something, people will still want a human doing that. Whether it is, and I'm gonna go to the next paragraph. What we still want humans to do

964
02:41:08.140 --> 02:41:13.610
Boardroom: And whether we are building the conditions, your time's up. Thank you.

965
02:41:13.620 --> 02:41:16.200
Boardroom: Thank you. Thanks so much, Carol.

966
02:41:17.830 --> 02:41:22.660
Boardroom: I have some comments online. Yes, first speaker is Ben Gerhardstein.

967
02:41:26.000 --> 02:41:30.070
Ben Gerhardstein: Good evening, Mayor and Council. Ben Gerhardstein with Walk Like Berkeley.

968
02:41:30.200 --> 02:41:39.940
Ben Gerhardstein: calling in this evening to, appreciate the hard work, that the City Manager's Office did, and that y'all did in recruiting and

969
02:41:40.050 --> 02:41:58.919
Ben Gerhardstein: Ideally hiring Jamie Parks for Public Works Director. Walk right Berkeley is thrilled with his appointment. Jamie has the background that the city needs right now, to really, advance our work to make our streets safe, accessible, and smooth, for all.

970
02:41:59.170 --> 02:42:04.810
Ben Gerhardstein: And we're excited to bring him on board and get to work with him. So,

971
02:42:04.920 --> 02:42:10.039
Ben Gerhardstein: Great to hear so much support across Council for this appointment, and onward.

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972
02:42:11.070 --> 02:42:12.140
Boardroom: Thank you, Ben.

973
02:42:15.320 --> 02:42:17.060
Boardroom: Next is Martin.

974
02:42:20.210 --> 02:42:25.780
Martin Bourque, Ecology Center (He/Him): Hello, Mayor and City Council, this is Martin Bork. I'm the Executive Director at the Ecology Center.

975
02:42:25.950 --> 02:42:30.060
Martin Bourque, Ecology Center (He/Him): of the many, community benefits that the Ecology Center brings.

976
02:42:30.280 --> 02:42:46.269
Martin Bourque, Ecology Center (He/Him): to Berkeley, we were the anchor organization for the 2014 Berkeley vs. Big Soda soda tax ballot measure, and we are excited to announce that we gathered over 5,000 signatures this,

977
02:42:51.400 --> 02:42:53.340
Boardroom: Oh, Martin, you cut out.

978
02:42:55.860 --> 02:42:56.780
Boardroom: Martin?

979
02:42:57.100 --> 02:42:58.449
Boardroom: We can't hear you.

980
02:43:06.850 --> 02:43:09.119
Boardroom: Alright. We'll go on to the next.

981
02:43:12.790 --> 02:43:14.879
Boardroom: Next is Jeff Lomax.

982
02:43:15.940 --> 02:43:32.749
Geoff Lomax: Good evening, Council. Regarding Item 3, I would encourage you to use your authority under this item to oppose the bank tax. Some of you have already stated opposition to the measure as written, and that is correct. It's 100% financed by the citizens of Berkeley.

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983
02:43:32.890 --> 02:43:57.560
Geoff Lomax: during a time when you're struggling with a $30 million deficit, with no guarantees that any of the parcel tax will be spent in Berkeley. Funds will go to Richmond, funds will go to Oakland, but there's zero guarantee any funds will be spent in Berkeley, and then there are unprecedented inflators on this, mandatory inflators. This is unprecedented. It takes away your authority.

984
02:43:57.660 --> 02:44:18.120
Geoff Lomax: to uphold your fiduciary responsibility to the citizens of Berkeley. Your own $50,000 study shows that the financial underpinnings of this proposal are quite shaky. Use your authority to oppose this measure until it is done in a responsible and fiduciary responsible way to your constituents. Thank you.

985
02:44:20.930 --> 02:44:23.460
Boardroom: Next is… Jill.

986
02:44:29.780 --> 02:44:43.750
Jill (she/her): Thank you. Hello and good evening, Mayor and Council Members. My name is Jill Randall. I'm a long-time South Berkeley resident and artist, currently the co-artistic director of 68-year-old Shawl Anderson Dance Center.

987
02:44:43.880 --> 02:45:05.309
Jill (she/her): During my time over the years on the Berkeley Cultural Trust, including two years chairing it, I worked with colleagues and council to help increase the civic arts budget. We've tried numerous strategies over the years, including the Airbnb tax, and the idea of a cannabis tax, and there were many years where we worked together to incrementally increase the budget.

988
02:45:05.340 --> 02:45:12.480
Jill (she/her): The arts measure about the parcel tax will literally be a life-changing opportunity for arts in Berkeley.

989
02:45:12.670 --> 02:45:26.009
Jill (she/her): Vital, uplifting, capacity building, sustainability, and longevity. Out of all of the ideas we have brainstormed over the last decade, dreamed and vetted, this is it.

990
02:45:26.200 --> 02:45:28.890
Jill (she/her): Thank you for putting it on the ballot this fall.

991

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02:45:30.420 --> 02:45:31.290
Boardroom: Thank you, Jill.

992
02:45:32.770 --> 02:45:37.510
Boardroom: Next is, is, former Councilmember Cheryl Davila.

993
02:45:40.250 --> 02:45:43.659
Former Councilmember Cheryl Davila: Can I get a minute or two from people in the audience?

994
02:45:45.400 --> 02:45:48.940
Boardroom: There's a minute over here. Oh, and someone in the back.

995
02:45:50.160 --> 02:45:51.749
Boardroom: You have 3 minutes.

996
02:45:52.810 --> 02:45:55.699
Former Councilmember Cheryl Davila: Thank you. Yeah, so…

997
02:45:58.000 --> 02:46:09.490
Former Councilmember Cheryl Davila: District 1 council member and all the other people that are on this item should be ashamed. We do not need to give air support, canines.

998
02:46:09.490 --> 02:46:13.880
Boardroom: Cheryl, we're actually on consent calendar and information items only.

999
02:46:14.800 --> 02:46:18.070
Boardroom: Okay, so we'll go to the next speaker.

1000
02:46:18.410 --> 02:46:24.730
Boardroom: Did you… did… did you have other comments that are on the consent calendar, or information items?

1001
02:46:25.160 --> 02:46:26.390
Former Councilmember Cheryl Davila: Yes, I do.

1002
02:46:26.980 --> 02:46:28.540
Former Councilmember Cheryl Davila: May I continue?

1003

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02:46:28.540 --> 02:46:29.530
Boardroom: Yes, go ahead.

1004
02:46:31.310 --> 02:46:39.760
Former Councilmember Cheryl Davila: I don't think any of these tax measures are gonna go through. People are tired of…

1005
02:46:40.230 --> 02:46:44.609
Former Councilmember Cheryl Davila: paying Berkeley for things, and

1006
02:46:45.800 --> 02:47:03.940
Former Councilmember Cheryl Davila: you know, they… what do they get out of it? There's… Curtis Street's not paved. I agree with the public banking and the sugar tax, yeah, but, you know, there's a lot of other things that, people are really disappointed in, and,

1007
02:47:04.610 --> 02:47:12.649
Former Councilmember Cheryl Davila: you know, I don't feel like… the people that I've talked to, which I've talked to a lot of people that live in Berkeley,

1008
02:47:12.760 --> 02:47:30.440
Former Councilmember Cheryl Davila: District 2 and beyond that aren't happy with how things are going in Berkeley. They don't want to pay any more money. They don't feel like when they do pay more money that the money gets used when… the way it's supposed to be used, and they are very disappointed.

1009
02:47:30.530 --> 02:47:41.589
Former Councilmember Cheryl Davila: So it's, you know, it's interesting, we'll see how that works out. And also, you know, a lot of these,

1010
02:47:41.780 --> 02:47:56.920
Former Councilmember Cheryl Davila: people that I talk to are really disappointed in how you're treating our unhoused people with, evictions and all that, all the stress that you're putting on them when you do these things.

1011
02:47:57.020 --> 02:47:58.890
Former Councilmember Cheryl Davila: And,

1012
02:47:59.740 --> 02:48:15.190
Former Councilmember Cheryl Davila: they are not happy, and it's not okay. They don't have… you're not giving alternatives, you're not talking

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to them, and trying to get to know them, and trying to help them with whatever issue that they have that keeps them from being housed.

1013
02:48:15.190 --> 02:48:26.950
Former Councilmember Cheryl Davila: You need to have a universal income to actually support folks to be housed that can't actually afford to be housed, or need a little extra boost.

1014
02:48:26.950 --> 02:48:38.760
Former Councilmember Cheryl Davila: You need to be doing more to help people, to help your constituents, and you need to listen to your constituents, and pay attention to your constituents.

1015
02:48:38.760 --> 02:48:45.980
Former Councilmember Cheryl Davila: And, I don't recall seeing any of you there for,

1016
02:48:46.170 --> 02:48:54.890
Former Councilmember Cheryl Davila: the honorable, wonderful man that passed away, Carl Anthony, which happened this…

1017
02:48:55.060 --> 02:49:17.529
Former Councilmember Cheryl Davila: past weekend, they had a memorial for him. And another person that passed away is Bailey. Bailey was a person in Berkeley that has been here for quite some time. He's an icon and a staple to the telegraph area, a musician. He worked at the Berkeley Square, and

1018
02:49:17.530 --> 02:49:27.679
Former Councilmember Cheryl Davila: you know, played at, Larry Blake's, and REST in Peace, REST in Power, Carl Anthony, Rest in Peace, Rest in Power, Bailey.

1019
02:49:27.890 --> 02:49:29.950
Former Councilmember Cheryl Davila: Pendergrass.

1020
02:49:31.820 --> 02:49:32.790
Boardroom: Thank you.

1021
02:49:37.060 --> 02:49:40.280
Boardroom: Next is Public Bank East Bay.

1022
02:49:43.180 --> 02:49:56.610

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Public Bank East Bay: Thank you. My name is Debbie Notkin. I chair the Friends of the Public Bank East Bay. I will try to be as quick as I can. I first of all want to say that we completely support

1023
02:49:56.710 --> 02:50:03.400
Public Bank East Bay: the city auditor's request for more resources, and I'm very glad that she spoke up about it.

1024
02:50:03.400 --> 02:50:19.410
Public Bank East Bay: Second, I want to say that the very clear intent of the measure is to pri… if the bulk of the funds come from Berkeley, the bank will prioritize Berkeley in every possible and legal way.

1025
02:50:19.420 --> 02:50:27.219
Public Bank East Bay: And thirdly, I just want to say that this is, as one of the gentlemen who spoke about the arts measure said, this is in…

1026
02:50:27.280 --> 02:50:45.469
Public Bank East Bay: the medium term, a way to bring success, not just success, but actual cash to the city. And it is for the benefit of Berkeley and the surrounding area, but Berkeley stepping up, we are incredibly grateful, and.

1027
02:50:45.590 --> 02:50:48.250
Boardroom: Thank you. Thanks so much for your comment.

1028
02:50:49.530 --> 02:51:08.079
Boardroom: I think that was our final comment online. So I did, just want to add one more thing that I'm supposed to say before we approve our consent calendar this evening, which is that pursuant to state law, we are verbally disclosing our action on public agency executive salaries. The Council will vote to adopt a resolution

1029
02:51:08.080 --> 02:51:26.319
Boardroom: Confirming the appointment of James Jamie Parks as the Director of Police Account… The Public… excuse me! Sorry, we were… we've been talking about police accountability all day. As the Director of Public Works to be effective August 17th, 2026, at an annual salary of $270,000.

1030
02:51:26.490 --> 02:51:30.759
Boardroom: Alright, is there a motion to approve the consent calendar?

1031
02:51:30.910 --> 02:51:31.610

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Boardroom: some blue.

1032
02:51:31.840 --> 02:51:39.939
Boardroom: Second. All right, can we take the roll on that, please? Okay, to approve the consent calendar, Councilmember Kesarwani? Yes. Taplin?

1033
02:51:39.940 --> 02:51:41.620
Terry Taplin: Yep. Yes.

1034
02:51:41.620 --> 02:51:47.190
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes.

1035
02:51:47.290 --> 02:51:54.850
Boardroom: Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Very good. Thank you all so much.

1036
02:51:54.870 --> 02:52:17.790
Boardroom: Okay, moving on to our action calendar. We are moving on to 20… Item 21, which is Lease Agreement, International Child Resource Institute, ICRI, for 125 to 127 University Avenue office space from our City Manager. Thank you, Madam Mayor. We don't have a presentation today, but if people have questions, we're available.

1037
02:52:18.000 --> 02:52:20.810
Boardroom: Thank you. Are there any questions on this item?

1038
02:52:22.650 --> 02:52:31.569
Boardroom: Okay, seeing none, is there any public comments on this item? This is for item number 21, lease agreement with the International Child Resource Institute.

1039
02:52:31.720 --> 02:52:38.830
Boardroom: Anybody online? Excuse me. No, no, no raised hands. We can close the public hearing, if you like. All right.

1040
02:52:39.570 --> 02:52:49.850
Boardroom: Okay. Is there a motion to close the public hearing? So moved. Second. Can we take the roll on that, please? Okay, to close the public hearing, Councilmember Kesarwani? Yes. Taplin?

1041
02:52:50.270 --> 02:52:51.260
Terry Taplin: Yes.

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1042
02:52:51.540 --> 02:53:05.849
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Marishi? Yes. Okay. All right. Is there a motion to approve the lease agreement, or any comments first, I should say?

1043
02:53:09.080 --> 02:53:20.879
Boardroom: Move to approve the lease. Thank you. Is there a second? Second. Can we take the roll on that, please? Okay, to, approve the lease agreement, Councilmember Kesarwani? Yes. Taplin?

1044
02:53:20.880 --> 02:53:21.810
Terry Taplin: Yes.

1045
02:53:21.810 --> 02:53:39.470
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Alright, very good. Moving on to item number 22, levy and Collection of Fiscal year 2027. Street Lighting Assessments, also from the City Manager.

1046
02:53:39.470 --> 02:53:42.900
Boardroom: Also no presentation this time, but available for questions.

1047
02:53:43.560 --> 02:53:48.370
Boardroom: Thank you very much. Are there, any questions?

1048
02:53:51.290 --> 02:53:56.949
Boardroom: Okay, seeing none, I would like to move forward to public comment.

1049
02:53:57.260 --> 02:53:59.089
Boardroom: I see one person in the room.

1050
02:53:59.270 --> 02:54:00.670
Boardroom: Coming up, Kelly.

1051
02:54:04.190 --> 02:54:05.969
Boardroom: Thank you.

1052
02:54:06.540 --> 02:54:13.000

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Boardroom: So, can we, as a city, start looking at the Dark Skies Initiative?

1053
02:54:13.290 --> 02:54:30.959
Boardroom: That is good for our environment, and insects, and birds, and nature. That when we do our street lighting, can we do our street lighting so we're not having big lights at 3 stories up above the tree canopy, that we bring them down?

1054
02:54:30.960 --> 02:54:46.879
Boardroom: And, again, follow Dark Skies Initiative and try to make Berkeley, the kind of city where we support nature. So I'm not, opposing the tax, I'm just asking that we spend it differently.

1055
02:54:47.130 --> 02:54:50.420
Boardroom: to help our environment. Thank you.

1056
02:54:50.590 --> 02:55:04.220
Boardroom: And you could take a trip out to, the Oakland airport and see how the lighting there on the driveway after dark is low. It's not way up in the sky.

1057
02:55:04.650 --> 02:55:07.750
Boardroom: So, I think we can do better with our lighting here.

1058
02:55:08.450 --> 02:55:10.820
Boardroom: Thank you. Thank you, Kelly.

1059
02:55:12.030 --> 02:55:13.330
Boardroom: Maria?

1060
02:55:21.070 --> 02:55:25.310
Boardroom: I still can't grow. All right.

1061
02:55:25.510 --> 02:55:32.239
Boardroom: With regard to street lighting, It's more, for me, the street crossings.

1062
02:55:33.640 --> 02:55:35.710
Boardroom: And low is good?

1063
02:55:36.030 --> 02:55:39.409

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Boardroom: LED is great, or solar.

1064
02:55:40.120 --> 02:55:44.009
Boardroom: Oh my god, I can't see people dressed in black.

1065
02:55:44.230 --> 02:55:54.960
Boardroom: Stepping out in front of my car because they can, expecting me to stop. Or bicycles, or scooters, or women with strollers.

1066
02:55:55.650 --> 02:56:10.000
Boardroom: street crossings, or in between parks, you know, where people are walking their dogs. This wouldn't and shouldn't be cost prohibitive if we don't have a… an exploitive…

1067
02:56:10.290 --> 02:56:11.770
Boardroom: You know…

1068
02:56:13.740 --> 02:56:24.379
Boardroom: charging too much money for this. This could be reasonable, and it could be ecological, and it certainly would keep me from getting more gray hairs, because I don't want to hurt anyone.

1069
02:56:24.500 --> 02:56:25.799
Boardroom: So, thank you.

1070
02:56:27.180 --> 02:56:28.540
Boardroom: Thanks, Maria.

1071
02:56:28.890 --> 02:56:40.089
Boardroom: Any public comment on this item online? There's, no hands raised online, no. Okay, thank you very much. Coming back here to our Councilmember colleagues, is… are there any comments?

1072
02:56:41.950 --> 02:56:44.219
Boardroom: Is there a motion to close the public hearing?

1073
02:56:44.540 --> 02:56:45.440
Boardroom: submoved.

1074
02:56:45.730 --> 02:56:53.880
Boardroom: Second. Can we take the roll on that, please? Okay, to close the public hearing on item 22, Councilmember Kesarwani? Yes. Taplin?

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1075
02:56:53.880 --> 02:56:54.710
Terry Taplin: Yes.

1076
02:56:54.710 --> 02:57:06.329
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay. Motion carries. Public hearing's closed.

1077
02:57:07.080 --> 02:57:10.350
Boardroom: Okay, thank you very much.

1078
02:57:10.790 --> 02:57:14.610
Boardroom: Any comment… any other comments? Just wanted to double check. Okay.

1079
02:57:14.890 --> 02:57:19.539
Boardroom: All right, is there a motion to approve? Move approval. All right, is there a second?

1080
02:57:19.750 --> 02:57:20.640
Boardroom: Second.

1081
02:57:20.770 --> 02:57:31.989
Boardroom: Okay, can we take the roll on that, please? Okay, to approve the levy and collection of fiscal year 2027 street lighting assessments, Councilmember Kesarwani? Yes. Taplin?

1082
02:57:31.990 --> 02:57:32.800
Terry Taplin: Yes.

1083
02:57:32.910 --> 02:57:43.190
Boardroom: Bartlett? Yes. Trega? Aye. O'Kee? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries.

1084
02:57:43.830 --> 02:57:44.960
Boardroom: Okay, very good.

1085
02:57:45.640 --> 02:57:57.080
Boardroom: All right, I just want to check in with my Council colleagues. Should we move on, or do folks want to take, like, a quick 10-minute

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stretch break? Yeah, let's take a quick 10-minute stretch break, and we'll come back. Thank you.

1086
02:57:57.470 --> 02:57:59.410
Boardroom: It's Council… Honestly?

1087
02:57:59.920 --> 02:58:01.500
Boardroom: Councilmember Kesarwani?

1088
02:58:20.900 --> 02:58:21.570
Boardroom: Thanks.

1089
02:58:22.310 --> 02:58:30.229
Boardroom: Okay, so just to, just to start us off, since I do want us to get started again, we are on item 23,

1090
02:58:30.230 --> 02:58:50.059
Boardroom: There… you will notice there is an A and a B. That is because the, Peace and Justice Commission submitted an item that was relevant to item 23A, so there's a B. And similarly, we have for item 24, there is an A and a B, and again, that B is the,

1091
02:58:50.060 --> 02:58:50.980
Boardroom: is a…

1092
02:58:51.730 --> 02:59:10.759
Boardroom: recommendation from the Peace and Justice Commission. And so these are our four remaining items this evening, but again, they have Parts A and Part B. And for both of these items, we have, BPD here to answer any questions that we have. And so, hopefully.

1093
02:59:10.760 --> 02:59:19.439
Boardroom: In a minute, we will have our council member come out and present item number 23. Perhaps in the meantime, do you want to just introduce yourselves?

1094
02:59:22.110 --> 02:59:23.860
Boardroom: Absolutely, good evening.

1095
02:59:26.060 --> 02:59:36.209
Boardroom: So, I'm joined this evening with, Deputy Chief Jen Tate and Captain Okies. So, Dec Tate oversees our policy and training division as part of her duties.

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1096
02:59:36.210 --> 02:59:43.510
Boardroom: Captain Okies is our operations captain, who oversees both our patrol responses, as well as our Special Response Team, or SRT.

1097
02:59:43.510 --> 02:59:57.380
Boardroom: So both of them have extensive experience in use of force policy, training, managing critical incidents, and they were our departmental leads on working with the council member on specific policy language, so they'll take the lead on answering questions tonight.

1098
02:59:58.480 --> 03:00:00.289
Boardroom: Thank you very much.

1099
03:00:00.400 --> 03:00:05.000
Boardroom: Okay, I'm gonna just run back there and see if I can… okay.

1100
03:00:07.340 --> 03:00:09.040
Boardroom: Why isn't the GA VA?

1101
03:00:17.490 --> 03:00:18.909
Boardroom: Are these more chairs?

1102
03:00:22.930 --> 03:00:25.429
Boardroom: Shouldn't the Police Accountability Board be up there, too?

1103
03:00:25.810 --> 03:00:30.869
Boardroom: Folks, just give us a minute while we, wait for our council members to return.

1104
03:00:31.930 --> 03:00:34.430
Boardroom: Because you're telling me to put the PAB up there.

1105
03:00:36.800 --> 03:00:39.910
Boardroom: Those are our representatives.

1106
03:00:49.160 --> 03:01:07.779
Boardroom: Okay, so we are moving on to item number 23A, which is Resolution Rescinding, resolution number 51 comma 408NS, restricting the use of air support and canine units, and updating mutual aid policies. And I will pass it over to Councilmember Kesarwani to present.

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1107
03:01:14.570 --> 03:01:19.810
Boardroom: Thank you very much, Madam Mayor. I want to thank, the police chief.

1108
03:01:19.930 --> 03:01:39.410
Boardroom: and, members of the public who were, able to provide input on this item at the Public Safety Policy Committee earlier this year. I want to thank, the council members who serve on that committee, Councilmember O'Keefe and Chair Blackaby. And, we're bringing this item forward tonight.

1109
03:01:39.450 --> 03:02:04.239
Boardroom: Because it modernizes a 1982 resolution that governs when Berkeley Police can request helicopter and canine support through mutual aid. The 44-year-old policy was written in a different era, and its restrictions no longer reflect current operational realities or best practices. Hey, excuse me! The existing approval process, which routes through the city manager before

1110
03:02:04.310 --> 03:02:21.470
Boardroom: a resource can be deployed, can consume 20 to 30 minutes in incidents where every minute matters, a child who is missing, a violent fleeing felon, a suspicious device that needs explosives detection.

1111
03:02:21.530 --> 03:02:33.349
Boardroom: In the years that this policy has been in place, the city manager, to our knowledge, has never denied a request from the chief. What we are doing here is replacing a procedural delay that

1112
03:02:33.450 --> 03:02:43.140
Boardroom: doesn't change outcomes with watch commander pre-approval and a robust post-deployment notification and reporting framework.

1113
03:02:43.140 --> 03:02:57.110
Boardroom: Preserving accountability while eliminating a bottleneck that compromises public and officer safety. We are also updating the list of authorized uses to reflect modern policing practice.

1114
03:02:57.150 --> 03:03:13.669
Boardroom: You can imagine a resolution from 1982 does not reflect that, while maintaining the explicit prohibition on canine use for crowd control, and adding new categorical prohibitions that didn't exist in 1982. Thank you very much.

1115

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03:03:14.750 --> 03:03:16.790
Boardroom: Thank you, Councilmember.

1116
03:03:17.380 --> 03:03:22.179
Boardroom: Are there any questions from my Councilmember colleagues on this item?

1117
03:03:24.890 --> 03:03:37.649
Boardroom: I'm happy to start. I think it would be helpful if you could clarify the difference between the original policy versus the updated policy. What are some of the changes… what are the changes that you've, suggested here?

1118
03:03:42.330 --> 03:03:55.039
Boardroom: So, as I noted, Madam Mayor, the new resolution provides the modern policies. Those are listed on page 6 of 14 of the item.

1119
03:03:55.110 --> 03:04:04.770
Boardroom: And also, the categorical prohibitions have been expanded, so that's paragraph C. So now canine teams shall not be deployed in connection with

1120
03:04:04.840 --> 03:04:19.069
Boardroom: And we have a list there. Infractions, misdemeanor offenses not involving a weapon likely to cause serious bodily injury, flight from an officer absent and independent justification under this section, thefts that escalate to robbery solely.

1121
03:04:19.070 --> 03:04:37.920
Boardroom: from a suspect's resistance to the victim's effort to stop the theft, absent use of a weapon or actions causing great bodily injury, stolen vehicle incidents involving a named suspect or that are civil in nature, or crowd control. That is… continues to be, prohibited, a prohibited use.

1122
03:04:38.010 --> 03:04:40.609
Boardroom: And could you speak to the authorized uses, please?

1123
03:04:40.780 --> 03:04:44.600
Boardroom: Because I actually feel that this is where a lot of people have concerns.

1124
03:04:45.230 --> 03:04:48.360
Boardroom: Okay, the authorized, deployments…

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1125
03:04:48.750 --> 03:05:07.759
Boardroom: So that's paragraphs A and B. I can read those out. Authorized deployments involving suspected… involving suspect apprehension. Canine teams may be deployed to locate or apprehend a suspect when any of the following is true. The suspect is wanted for a violent felony.

1126
03:05:07.760 --> 03:05:14.799
Boardroom: There is a reasonable belief that the suspect possesses a weapon likely to cause serious bodily injury.

1127
03:05:15.210 --> 03:05:19.420
Boardroom: The suspect is wanted in connection with a residential burglary.

1128
03:05:19.550 --> 03:05:38.060
Boardroom: Or the deployment supports service of a warrant on a subject who is wanted for a violent felony, has a documented history of violent offenses, has a documented history involving firearms, or has a documented history of felony evasion or physical assault against law enforcement.

1129
03:05:38.850 --> 03:05:48.450
Boardroom: Thank you, and Councilmember, can you speak to why it's residential burglary only, as opposed to commercial and residential burglary, or just burglary?

1130
03:05:52.470 --> 03:05:53.850
Boardroom: Oh,

1131
03:05:54.590 --> 03:06:01.890
Boardroom: Or perhaps, maybe, Chief Lewis would, or Dec Tate would like to… Yeah, I would appreciate that to the police department for that question.

1132
03:06:03.630 --> 03:06:28.549
Boardroom: So there, when we think about the residential aspect of it, that's someone's home. It's more than a business in the middle of the night where there are no occupants. This is something that could be a life safety incident in that moment. It also speaks to it, some of the canines are alert only, and this is more or less reflective of

1133
03:06:28.550 --> 03:06:31.870
Boardroom: Best practices in, regionally.

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1134
03:06:32.580 --> 03:06:48.080
Boardroom: So, just to understand, the expectation is that they would only be deployed at nighttime in residential areas, or this could be at any time of day, is that correct? No, I was speaking for the difference between the residential and commercial, in that,

1135
03:06:48.080 --> 03:07:05.969
Boardroom: One of the differences may be that in a residence, that's where you have your expectation of privacy, that is your home, you're calling, there's someone breaking in in that moment, as opposed to a commercial burglary in the middle of the night, just for comparison, where there may be no occupants.

1136
03:07:06.810 --> 03:07:31.800
Boardroom: I see what you mean, and I guess my thought is that, you know, for the commercial burglary, there could also be people, you know, on-site and also potentially customers, so I was just curious about that. And then also, I think… Maybe a point of clarification, too, so, typically in order for it to be a burglary in that sense, it's going to be a closed business, so commercial burglary is something that's closed and there's not people there. The idea being that if someone has broken into a home where there are possible people inside.

1137
03:07:31.800 --> 03:07:38.930
Boardroom: and then flees. That is somebody who has shown, a willingness to engage with people in the commission of their crime.

1138
03:07:38.930 --> 03:07:39.540
Boardroom: That's…

1139
03:07:39.560 --> 03:07:49.420
Boardroom: It makes it more serious, and so apprehending someone that would break into someone's home while they were in it is something that we are very serious about, trying to locate that person.

1140
03:07:50.120 --> 03:07:52.590
Boardroom: Thank you. And then also.

1141
03:07:52.650 --> 03:08:10.130
Boardroom: DC Tater, or any of you, if you could also just speak to how does using… how do canines actually apprehend someone who's burglarizing? Like, I think when we think of dogs, we're thinking of, you know, they're grabbing someone, pulling them to the ground, that kind of thing, but it would be helpful to understand that better.

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1142
03:08:10.820 --> 03:08:29.500
Boardroom: Okay, folks, please, just, if you could please, keep your comments to the comment period. I know you're very passionate about these issues, and I want to make sure that we can hear all the answers to our questions. So, thank you. Go ahead. So, there's a number of ways that, canines can be used. Under current practices, canines, are frequently used with a lead or under a leash.

1143
03:08:29.500 --> 03:08:39.599
Boardroom: And they're used, they have alert canines, so canines that are not trained to bite, but they're trained to alert, and so in a circumstance where they're doing a search of a residential residence.

1144
03:08:39.600 --> 03:08:53.100
Boardroom: looking for a burglary suspect. There are instances where a canine might be deployed with a handler, that would alert, hey, there, you know, alert the handler that there is, someone in a room, concealed in a room, which then

1145
03:08:53.100 --> 03:09:09.849
Boardroom: allows officers to safely, from a distance, call that person out, rather than entering the room in that residential burglary. And so, just to clarify, would, would that be the cases in which we would use it, or would there be instances in which the dog could also, you know, attack the person as well?

1146
03:09:10.490 --> 03:09:30.349
Boardroom: So it depends on the training, of the dog and the policies of the, of the department that's bringing the dog in, but typically for a residential burglary, it's, the anticipated use would be for, just to alert that there's, there's something there, absent the, the other, elements listed in the policy. Armed.

1147
03:09:30.350 --> 03:09:33.859
Boardroom: History of violence, those kinds of things that are specifically enumerated in the policy.

1148
03:09:34.370 --> 03:09:59.340
Boardroom: Thank you. And then, could you also speak to the implication of removing the requirement that the suspect is in a controlled… this is a quote, suspect is in a controlled, contained area, and there are no known occupants of the area other than the suspect? How… can you speak to how you would protect bystanders who could be in the area? Sure. So, again, practices around

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1149
03:09:59.340 --> 03:10:07.890
Boardroom: Canine use have changed substantially over the years, and what is more common now is that canines are placed on a lead or a leash.

1150
03:10:07.890 --> 03:10:15.569
Boardroom: And that the handler is controlling the canine. And so, unlike, in, in years past.

1151
03:10:15.570 --> 03:10:34.800
Boardroom: where they would release a canine without being on a lead all the time. Now they have options. They've trained the canine to work in different capacities, and one of those capacities is under the control of a leash. And so, therefore, that would mitigate the risk of, if there were other people potentially in an environment.

1152
03:10:34.800 --> 03:10:39.360
Boardroom: The canine would be on a leash and not necessarily be in contact with them.

1153
03:10:39.960 --> 03:10:44.130
Boardroom: I guess my concern there, though, is that if we've removed the part where

1154
03:10:44.200 --> 03:10:51.039
Boardroom: The requirement that the suspect is in a controlled contained area, and we're not specifically saying that

1155
03:10:51.100 --> 03:11:05.560
Boardroom: that we would release a dog only if they are in a controlled, contained area, then that would kind of take away that sort of protection. So I… maybe it was a policy decision to remove it, I'm not sure if… maybe I should ask the council member.

1156
03:11:09.440 --> 03:11:11.680
Boardroom: Are you able to address that, Councilmember?

1157
03:11:13.070 --> 03:11:21.949
Boardroom: I can also provide a little feedback on that. Sure. We talked through this a little bit, as well, at PSBC, and part of that is…

1158
03:11:21.950 --> 03:11:46.939
Boardroom: It's a limiting factor, and if you're thinking of an open area where you have a wanted suspect who has, committed, crime with a gun, or,

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you know, a dangerous felon in an open area, it would be basically disqualifying if we limit it to that. Whereas Captain Okies was discussing, if you have someone, a couple dog handlers.

1159
03:11:46.940 --> 03:11:58.220
Boardroom: to have a canine on a lead, then that would open that up for possibility for us to use a canine in that circumstance, rather than having officers go out and hand check the area.

1160
03:11:59.520 --> 03:12:09.700
Boardroom: Thank you, and Councilmember, did you want to address… I think that that's correct. Deputy Chief Tate, thank you. Yeah, the, as I'm looking at

1161
03:12:09.780 --> 03:12:20.850
Boardroom: the, the 1982 version of this, you know, that limited this to just use in a controlled and contained area, but to your point, in terms of a modern use and how we might expect

1162
03:12:20.910 --> 03:12:32.079
Boardroom: A suspect to move, that we did change that to make this more workable for the, you know, the modern policing strategy.

1163
03:12:32.600 --> 03:12:57.060
Boardroom: Yeah, and I guess someone who has 3 dogs that are very not-threatening looking, I mean, I know that also, there are many people, especially children, who can be very afraid when, you know, dogs are off-leash, especially if it's, like, a police dog, and so I think, you know, I have a lot of concerns about, about that. Not only, of course, the safety of others, I know we train, I'm sure the dogs are trained quite well, but also just.

1164
03:12:57.060 --> 03:13:09.710
Boardroom: you know, the fear that can come from feeling, you know, unsafe around that. And so, okay, I… I think those are my questions, for the moment to… yes, Councilmember Blackaby, questions?

1165
03:13:09.710 --> 03:13:11.229
Boardroom: Great, thank you.

1166
03:13:11.390 --> 03:13:12.790
Boardroom: I just wanted to confirm.

1167
03:13:13.100 --> 03:13:27.150

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Boardroom: current use, like, canine support and air support is currently available already. We, we currently use those sources. That's correct. We get them from external agencies that we partner with. Yes. So…

1168
03:13:27.200 --> 03:13:36.590
Boardroom: The question here is, we're not enabling new tools, we have these tools. It's a question of how we use them, how we approve them. That's basically what we're talking about. Yes. Okay.

1169
03:13:36.670 --> 03:13:52.989
Boardroom: Could you talk about, in a suspect apprehension scenario, how do you… what's the decision-making process about, hey, this might be an appropriate time to use canine support? What's the process? How do you think about that versus another tool? Could you maybe talk about that?

1170
03:13:52.990 --> 03:14:14.230
Boardroom: Sure. So, we're always looking at, our use of force policy and whether or not something is, a dangerous threat in the moment to, bystanders, to officers, and evaluating that. I think, you probably have more relevant,

1171
03:14:15.270 --> 03:14:22.179
Boardroom: recent? Sure. So typically, again, we look at the nature of the crime, and we look at the…

1172
03:14:22.180 --> 03:14:46.419
Boardroom: area in which, the suspect may be, you know, hiding, and evaluate if there are ways for officers to safely try and locate that suspect. And as a function of that, we evaluate what's the likelihood that the suspect is still in the area that we're looking, where that area is contained. Combined, again, with that, the nature of the crime.

1173
03:14:46.420 --> 03:14:54.130
Boardroom: And then, all those things, go into the decision-making process of should we bring a canine in to help assist us?

1174
03:14:54.130 --> 03:15:13.099
Boardroom: in apprehending the suspect. And if it's helpful, I can give you maybe a handful of the most recent examples of times when the captain has called me and asked to authorize a K9. It's situations where they had a robbery that just occurred, they had eyes on a person who went into a block.

1175
03:15:13.100 --> 03:15:36.700

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Boardroom: They knew that they got patrol units surrounding that almost immediately. And then, so they know that the person is contained in this general area, they've verified with the victim that there was a gun involved, right? And the alternative would be for officers to go yard by yard to check versus use a dog on a lead to go into a yard and alert if there's someone in there. So that's one kind of scenario. The other is a situation when they're doing a high-risk search warrant.

1176
03:15:36.700 --> 03:16:00.459
Boardroom: And they'll go, we'll, call phone numbers of the residents, do, loudspeaker, audible, to tell people to come outside, that we have a lawful warrant and ask them to come out. Maybe a couple people come out, we can't verify there's no one else in there. And so instead of sending officers in there, your tools become using an interior drone to go in there and fly, or have a dog on a lead go in room by room and be able to clear a room.

1177
03:16:00.460 --> 03:16:23.890
Boardroom: say that that room is clear, officers can go into that room and then move forward. So there's… it's not that a thing happens and then you immediately go to deploying a dog. There's things you do to ensure that there's a high likelihood that there's somebody in there, or that you need to clear an area safely. And if cannon support isn't available, like, what's the next step? I mean, my understanding, and correct me, part of this is also.

1178
03:16:23.930 --> 03:16:32.340
Boardroom: you're trying to always create more distance between suspects and officers. Part of this… there is a… there's a safety argument from the perspective of.

1179
03:16:32.360 --> 03:16:40.910
Boardroom: Not sending an officer into a situation they can't see, or exposing, then, a suspect to a situation where the officer feels bound to

1180
03:16:40.910 --> 03:16:56.940
Boardroom: him or herself in a situation, and things escalate, whereas this sort of support, again, creates one more sort of piece of distance. Is that, again, can you just help us… What I'm trying to think of is, if this is not available, what else do you go to, and does that introduce other kinds of risk when you don't have this kind of tool?

1181
03:16:57.100 --> 03:17:13.489
Boardroom: Yes, traditionally, when there's no… say we call for canine support and there is no K-9 available, then ultimately officers are left with the resources that they have available, which is generally going in room by room and… and…

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1182
03:17:13.490 --> 03:17:21.299
Boardroom: and officers potentially engaging with someone, rather than having a dog be able to alert that there's someone there.

1183
03:17:21.470 --> 03:17:35.399
Boardroom: I know in the report that… and again, we haven't talked about error support yet, but just, we're talking about both. There, you've… there… typically, we see 4 to 5 helicopter requests a year, 8 to 10 canine unit requests per year. Under this policy, do you anticipate

1184
03:17:35.400 --> 03:17:48.420
Boardroom: that's gonna stay similar, or what do you… I mean, increase, decrease, stay the same? I mean, is that the same level of frequency you'd anticipate? I'm not committing you to a specific number, but… I would say, generally, yes. Is there any reason that this…

1185
03:17:48.700 --> 03:17:58.350
Boardroom: part of what we're doing, we're reducing the time that it takes to get the approval, but we're not necessarily changing the sort of scenarios that you would use these kind of tools in. So I'm…

1186
03:17:58.460 --> 03:18:14.810
Boardroom: That's what I guess I'm asking. So, with the one exception, as we're talking about, being able to use them with pursuits, to the extent that they are… where CHP may already be, in the area, and…

1187
03:18:14.810 --> 03:18:21.130
Boardroom: engage individually on their own, and let us know that they see a vehicle fleeing,

1188
03:18:21.130 --> 03:18:24.600
Boardroom: That's not us making the request. However,

1189
03:18:24.660 --> 03:18:31.239
Boardroom: I would imagine that if we had a pursuit, that then that would give us an opportunity to, in a more timely manner.

1190
03:18:31.410 --> 03:18:34.850
Boardroom: Request air support, so we may see an increase there.

1191
03:18:37.120 --> 03:18:47.239

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Boardroom: The report also notes a 20 to 30 minute time to move approval up and down the chain of command. I think that's either for K-9 or air support, because it's the same process.

1192
03:18:47.240 --> 03:19:06.559
Boardroom: under the new policy, what do you expect that approval time to be reduced to, if it's just the watch commander, and then after action reporting? Sure. It would just depend on how quickly we could figure out which agency had the resources available, but generally a matter of minutes once the watch commander

1193
03:19:06.560 --> 03:19:13.390
Boardroom: determines that a resource would be appropriate, and then it would just be making the phone calls to determine where the asset is. Okay.

1194
03:19:13.560 --> 03:19:17.200
Boardroom: And then…

1195
03:19:17.980 --> 03:19:28.440
Boardroom: Remind us how the reporting works in terms of, how each case is reported to the City Manager, how each case goes to the PAB or to the Council. How does the reporting work on the back end, just to remind us.

1196
03:19:28.730 --> 03:19:46.949
Boardroom: So, currently, or what is proposed? What's proposed, currently, and then what would be under the proposed. So, currently, on-scene supervisor, so the sergeant is making the request to the watch commander, watch commander to the captain, captain to the chief, chief to the city manager, and then back down. Okay.

1197
03:19:46.950 --> 03:19:50.849
Boardroom: And then after action, how will it work in the new scenario?

1198
03:19:51.180 --> 03:19:55.700
Boardroom: So this would be, the after-action…

1199
03:19:55.750 --> 03:20:15.110
Boardroom: in the proposed scenario, would basically be the watch commander would notify the chief, as soon as possible, who would then make the notification, similar to other notifications that we do to the city manager. Okay. And then this shows up in the use of force reporting that is done on a regular basis, so this flows into the normal reporting process that we also get. Okay.

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1200
03:20:15.110 --> 03:20:18.719
Boardroom: I noted in the, the PAB letter

1201
03:20:18.720 --> 03:20:38.599
Boardroom: It said, they, they called this, there's a lack of demonstrated need because the BPD has presented no evidence about the undue burden on the department, which is certainly, you know, one consideration. But I guess, I think there are other considerations which are, you know, impacts on response times. This isn't just about the burden on the BPD, this is also about.

1202
03:20:38.840 --> 03:20:48.840
Boardroom: potential benefit to community in terms of response times. I just wonder what that means in sort of a crisis situation in terms of having the shorter…

1203
03:20:48.870 --> 03:20:53.789
Boardroom: the shorter approval window? So, in a crisis situation, every moment counts.

1204
03:20:53.790 --> 03:21:18.509
Boardroom: if you're the individual who is needing help on the other end where there's a suspect, or there's an armed suspect going towards, you know, an open area and we don't know where they are, every moment is going to matter, and being able to find either a path for the person, if it's a missing person, or any of those moments.

1205
03:21:18.510 --> 03:21:23.199
Boardroom: In the moments where they matter most, that's where we're closing the gap.

1206
03:21:23.690 --> 03:21:30.350
Boardroom: And we'll continue to be using these, mutual aid. Like, we're not anticipating creating our own

1207
03:21:30.660 --> 03:21:41.320
Boardroom: helicopter unit, or our own canine unit. This is about continuing to use resources from other partner jurisdictions. Correct. This would be continued mutual assistance that we already have access to regionally. Okay.

1208
03:21:41.430 --> 03:21:43.610
Boardroom: Thank you.

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1209
03:21:43.950 --> 03:21:55.509
Boardroom: Thank you. I have a follow-up question. Chief, you brought up drones. I'm just curious, how do we decide whether to request a drone to, you know, do a type of search versus a dog?

1210
03:21:56.180 --> 03:22:19.009
Boardroom: Or canine, sorry. Yeah, sometimes it's what units are available. Obviously, you know, understanding your concerns around the canine capability, we can get better intelligence sometimes from a drone, the use of a drone, than you can with a dog. However, the dogs have capabilities that the drones don't. Pile of clothing that somebody's under, dogs can smell that there's a human being and they're an alert, versus a drone can't see that.

1211
03:22:19.010 --> 03:22:30.980
Boardroom: So, you know, closet, same thing, where you can't access via that. So both tools have their, their, their, uses. There are some agencies that deploy out with a canine that won't

1212
03:22:30.980 --> 03:22:53.860
Boardroom: deploy their canine until first you run the drone through the house and see everything you can see, and then the next step is you send the canine in and do a clearance. And then the next step, which is the most dangerous step, is then the officers go in and have to hand check that. And I seem to recall that some drones have the ability to see, like, heat detection, though, is that correct? So they would be able to see,

1213
03:22:54.450 --> 03:23:12.110
Boardroom: behind, you know, clothing or something like that, is that right? There are some drones that have a heat sensitivity that can pick up a thermal imaging. Most of those are the larger drones. I don't think that the interior drones have that capability to that extent. That's good to know. Thank you. Appreciate it. Other questions, yes, Councilmember Traika.

1214
03:23:14.630 --> 03:23:23.469
Boardroom: Thank you, Madam Mayor, and, thank you, PD, for being here this evening.

1215
03:23:23.590 --> 03:23:35.930
Boardroom: I have several questions. I think my most basic question, this is what I'm still trying to wrap my head around, is…

1216
03:23:36.930 --> 03:23:48.209

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Boardroom: This is a proposed rescission of a 1982 resolution and replacement with a new resolution around, authorized uses.

1217
03:23:48.950 --> 03:23:59.570
Boardroom: How does this map on, or does it, to any, Relevant, Use of force.

1218
03:23:59.810 --> 03:24:03.410
Boardroom: Policies?

1219
03:24:03.630 --> 03:24:11.200
Boardroom: And or, how does this map onto existing, or… future MOUs.

1220
03:24:17.830 --> 03:24:38.179
Boardroom: So, with regards to, use of force, it… we would make our notification, and it would depend on the force that… that was used, whether or not there was force used, on an individual. And, as we're working with regional partners, they would be subject to their own use of force

1221
03:24:38.180 --> 03:24:51.930
Boardroom: Policy requirements, and… and what we would be doing is reporting on the use, and then obviously our criminal report, would document, what the result of the interaction with the canine would… would have been.

1222
03:24:53.380 --> 03:25:03.320
Boardroom: Thank you. So, I guess, and this is really, I guess, specific to mutual aid, assistance requests,

1223
03:25:03.550 --> 03:25:09.130
Boardroom: What guardrails currently exist, or would exist if

1224
03:25:09.290 --> 03:25:14.939
Boardroom: This item was adopted around,

1225
03:25:15.200 --> 03:25:29.839
Boardroom: you know, I imagine different agencies that we might receive a request from might have different levels of tolerance for how to use helicopters and how to use,

1226
03:25:30.230 --> 03:25:33.829
Boardroom: Police dogs, so how would,

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1227
03:25:34.860 --> 03:25:38.720
Boardroom: I guess, what guardrails would exist operationally.

1228
03:25:39.200 --> 03:25:40.220
Boardroom: So…

1229
03:25:40.400 --> 03:25:58.550
Boardroom: that we currently operate under our police officer standards for training in the state of California, and there are best practices for canine handlers and programs, that are established for that training. To my understanding, there are some changes that are also coming about.

1230
03:25:58.550 --> 03:26:16.219
Boardroom: Next year to sort of standardize those across the board. So the canine handlers are subject to their own policies, and, many of those are very similar to, what we're talking about in the proposal for how they're used and when they're used.

1231
03:26:16.340 --> 03:26:24.760
Boardroom: And we talked about this last week, also, when we were talking about could another agency's more, expansive policy

1232
03:26:24.760 --> 03:26:46.719
Boardroom: you know, allow for greater access, and the answer is no. So, they have to operate under what our allowed uses are, and the type of cases and situations that we are allowed to ask for an air support to come in and monitor something, or a canine to come in and do a find and alert, or find and locate, or a missing person, search.

1233
03:26:46.800 --> 03:26:57.289
Boardroom: So, irrespective of another agency's policies, and I will tell you that, as DC Tate shared, they have to also align with state best practices.

1234
03:26:57.290 --> 03:27:09.619
Boardroom: They can't come in and do some other use. Like, they can't come in and look for something like a misdemeanor with no weapon, because their policy allows it. They have to follow… they are only going to get asked to come to do a thing that is allowed pursuant to our policy.

1235
03:27:10.010 --> 03:27:23.490

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Boardroom: And would that be reciprocal if we got a request by another agency? Well, we don't have a helicopter or a dog, so we wouldn't be providing. Okay.

1236
03:27:23.530 --> 03:27:32.089
Boardroom: going to some other questions, I… and I think this might be, perhaps, for Councilmember Kesarvani,

1237
03:27:32.850 --> 03:27:41.290
Boardroom: I know it's probably hard, there's a typewritten 1982 resolution, and then there's this, but…

1238
03:27:41.420 --> 03:28:01.699
Boardroom: It would be helpful, I guess, in the absence of a matrix of what the specific changes are, if you might be able to just summarize. Like, I understand the, changing the… to an after-action report to the city manager, so that part I understand, but in terms of the…

1239
03:28:01.700 --> 03:28:06.110
Boardroom: Actual, specified, you know, permitted or,

1240
03:28:06.110 --> 03:28:15.240
Boardroom: prohibited uses, so it would be helpful for me to understand the changes. Sure, the… I do want to note, the 1982 resolution is in the item.

1241
03:28:15.240 --> 03:28:33.169
Boardroom: If folks are… would like to read that, it is typewritten, so it's a little harder to read, but it's page 9 of 13, and then just to summarize, in the report, we note that the 1982 Apprehension authority is really rarely usable in incident… in incidents.

1242
03:28:33.170 --> 03:28:49.790
Boardroom: for which canine support would be most appropriate, so it requires BPD to simultaneously confirm a threat to human life, that the suspect is armed, that the suspect is in a controlled and contained area, and that no one else is present, conditions that almost never align at the moment a request must be made.

1243
03:28:49.790 --> 03:29:10.899
Boardroom: A residential burglary with a barricaded subject, a high-risk warrant on a subject with documented firearms history, and pursuit of a violent fleeing felon each fail at least one of these elements. So, our goal here is to have a policy that is restrictive, and I believe it is, with those clear, expanded prohibitions.

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1244
03:29:10.900 --> 03:29:15.280
Boardroom: But can actually be used when residents of our city

1245
03:29:15.280 --> 03:29:32.830
Boardroom: are facing a life-threatening criminal situation. And I have to say, you know, I respect the view that a dog being used to identify a fleeing violent felon could be fearful for some people, but I also have to say that

1246
03:29:32.990 --> 03:29:44.439
Boardroom: a suspect at large who is suspected of a violent felony is also a very fearful situation for our community. So I think that we can balance

1247
03:29:44.660 --> 03:29:52.289
Boardroom: This policy, and ensure that our police department has the modern tools that… that other police departments have.

1248
03:29:52.570 --> 03:30:04.170
Boardroom: Thank you. Councilmember Bartlitch, please, folks. Sorry. Oh, sorry, you have more questions, I apologize, go ahead. No worries, no worries.

1249
03:30:08.720 --> 03:30:21.869
Boardroom: Okay. The next question I would like to ask is going to the PAB letter that we received, specific to relationship with proposed drone technology,

1250
03:30:21.960 --> 03:30:41.939
Boardroom: quote, while the PAB acknowledges that drones would not be capable of performing all functions that a helicopter can provide, some of the expanded uses contemplated for helicopters appear to overlap with operations described in the drone proposal. Could you please elaborate on that point?

1251
03:30:42.090 --> 03:30:53.579
Boardroom: If the two technologies were in use, simultaneously, how would they, compete or complement… compete with or complement each other?

1252
03:30:53.990 --> 03:31:14.740
Boardroom: Sure, so the drone technology, is something that's easier to deploy, and frequently will have a faster turnaround time, and is much

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less expensive than a helicopter program, and so there's greater access to drone technology and a faster deployment.

1253
03:31:14.740 --> 03:31:26.340
Boardroom: That being said, drone technology is limited by the amount of time that it can be in the air. Its battery is its limiting amount, whereas a helicopter has a much longer run time, and so for events

1254
03:31:26.340 --> 03:31:39.840
Boardroom: That are either long and protracted, or an event such as a fleeing, a fleeing, suspect in a vehicle. A helicopter is a, a better, option, and, provides a level of.

1255
03:31:39.920 --> 03:31:43.099
Boardroom: Coverage that, drones, are not… do not…

1256
03:31:43.950 --> 03:31:46.400
Boardroom: If I can add on that,

1257
03:31:46.400 --> 03:32:10.200
Boardroom: Drones also have a limitation as far as how far they can go, so a helicopter would also be able to follow someone on a freeway for a long period of time, and officers would be able to fall back and not necessarily, be engaged in that pursuit, in the ways that they might be if they were, in the city,

1258
03:32:10.470 --> 03:32:16.250
Boardroom: Anyway, that to say that helicopters can have a longer range than the drones.

1259
03:32:17.100 --> 03:32:22.890
Boardroom: Okay, thank you. And, last question, I think, for now,

1260
03:32:23.000 --> 03:32:28.830
Boardroom: Of the… of the requests that you've, you…

1261
03:32:29.550 --> 03:32:37.660
Boardroom: you receive now, or the City of Berkeley received for mutual aid, as it pertains to use of canine.

1262
03:32:37.700 --> 03:32:53.589

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Boardroom: Can you provide, an approximate breakdown of how many of them are for things like search and rescue, and, you know, God forbid, bomb sniffing operations, those kinds of things, versus,

1263
03:32:53.810 --> 03:32:59.210
Boardroom: You know, well, we don't have this now, but if… well…

1264
03:32:59.230 --> 03:33:23.649
Boardroom: Versus the 1982 policy around, you know, all three antecedents or criteria about, life being in danger and violence. Yeah, and that's exactly a limiting factor in being able to kind of compare that data. What I can tell you is that we use them regularly for missing at-risk people. They go, we have search and rescue dogs that we have access to through the county and some of our other mutual assistance jurisdictions.

1265
03:33:23.820 --> 03:33:32.960
Boardroom: We regularly use them for events, where we know a dignitary might be present, or some other event that has a risk for explosives or bombs, and we'll use it for that.

1266
03:33:32.960 --> 03:33:46.570
Boardroom: And so I would say that the most common is missing persons. The, current policy is restrictive on how often we can use them and how we can use them for crimes in progress where someone is in a block. So those numbers are lower.

1267
03:33:46.570 --> 03:33:58.640
Boardroom: But those are all situations that we see regularly, and I know in the course of the last maybe 2 or 3 years, very small handful of times when they've been part of a high-risk search warrant operation.

1268
03:33:58.940 --> 03:34:17.610
Boardroom: And if this policy were to be… if, I guess, if the restriction set were to be amended via this resolution, to what extent do you see or anticipate a change in, kind of, the type of, requests?

1269
03:34:17.910 --> 03:34:21.450
Boardroom: We might, green light.

1270
03:34:21.610 --> 03:34:39.179
Boardroom: So I don't expect to see a major change in any of those categories except the one that we have created space for, the violent felony with a, a felon with a gun, the residential burglary, the things that we, right now, are prohibited from really requesting that where we need them, because we can't by the old policy.

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1271
03:34:39.350 --> 03:34:50.240
Boardroom: So I… there will be an increase in those, as needed, based on the… the parameters of the use policy, if we… if we… if the Council's direction was to move forward on this tonight.

1272
03:34:50.610 --> 03:34:51.909
Boardroom: Okay, thank you.

1273
03:34:54.180 --> 03:34:56.430
Boardroom: Thank you. Questions from Councilmember Bartlett?

1274
03:34:58.090 --> 03:35:04.520
Boardroom: Thank you, thank you again. Thanks, Commissioner Wani, for bringing this forward, and thank you, Chief and team, for coming here, and

1275
03:35:04.990 --> 03:35:21.109
Boardroom: presenting to us. Very curious, you know, I went on a ride-along recently, as you may know, it was a lot of fun, really a good time. So I feel like I'm a veteran now of the Force. But it makes me just wonder, though, like, really, like, where this is coming from, honestly.

1276
03:35:21.110 --> 03:35:25.960
Boardroom: But, so, I'm wondering, like, do we have to rescind the resolution, or…

1277
03:35:26.030 --> 03:35:32.369
Boardroom: Could we just amend it to, permit explosive detection or June and urgent search and rescue deployments?

1278
03:35:34.550 --> 03:35:35.919
Boardroom: You know, that's for the author?

1279
03:35:37.590 --> 03:35:38.509
Boardroom: So,

1280
03:35:38.730 --> 03:35:47.780
Boardroom: Councilmember, your question is, do we need to rescind it instead of… Amending it for very specific use cases?

1281
03:35:47.890 --> 03:35:49.710

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Boardroom: Like, explosive detection?

1282
03:35:50.130 --> 03:35:53.109
Boardroom: Or generally urgent search and rescue.

1283
03:35:53.520 --> 03:36:00.769
Boardroom: So, you know, my proposal is to rescind it and replace it with what's here, so that we can…

1284
03:36:00.870 --> 03:36:08.509
Boardroom: have the uses that we believe are aligned with best practice. Okay. You know, one thing I… one thing I noticed in your resolution,

1285
03:36:08.800 --> 03:36:12.190
Boardroom: Is that it doesn't distinguish between, tracking dogs.

1286
03:36:12.290 --> 03:36:20.020
Boardroom: Explosive detection dogs, or bite-and-hold patrol dogs. Is there a reason for that?

1287
03:36:20.160 --> 03:36:27.849
Boardroom: Come on, folks. You know, I think given the, the, the comments from

1288
03:36:28.030 --> 03:36:45.469
Boardroom: the Chief and Deputy Chief Tate tonight, it's clear that we don't always, and correct me if I'm wrong, we don't always know exactly which K-9 may be available, and so, I think this provides the ability to, okay, come on. …to seek the resources that are available at the time, and…

1289
03:36:45.470 --> 03:36:58.280
Boardroom: Deputy Chief Tate, do you want to elaborate? Correct. So, if we were looking for a dog that was specific to bomb detection, then we would make that request specifically. And that dog would be trained in bomb detection.

1290
03:36:58.280 --> 03:37:08.020
Boardroom: So we would be asking for the specific canine or asset that meets the criteria for what it is that our mission is.

1291
03:37:08.980 --> 03:37:19.029

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Boardroom: Okay. And what is, the language you use is locate and apprehend. Apprehend… what do you mean by apprehend, exactly?

1292
03:37:23.930 --> 03:37:26.930
Boardroom: Happy to speak to that.

1293
03:37:28.200 --> 03:37:35.699
Boardroom: The definition of apprehend is to arrest a suspect for a crime. Well, for a non-human. A canine.

1294
03:37:36.000 --> 03:37:40.559
Boardroom: Okay, come on, Andrea, please. We'll let Deputy Chief Tate take it.

1295
03:37:40.970 --> 03:38:01.870
Boardroom: So, again, depending on what the specific mission is, if it's to locate a suspect, then it would be to locate and arrest that suspect, and that would be by using a canine as the asset to, locate the individual, as opposed to putting our officers in harm's way by having to go and physically look for the individual.

1296
03:38:02.460 --> 03:38:04.329
Boardroom: But it doesn't include biting them.

1297
03:38:05.600 --> 03:38:09.560
Boardroom: Again, it would depend on what the type of dog is that…

1298
03:38:10.490 --> 03:38:18.729
Boardroom: That we end up getting. Okay. And if you've observed or understand how canine units work, or canine dogs are deployed.

1299
03:38:18.820 --> 03:38:25.790
Boardroom: the… and all of the steps that we take as we… as we look to resolving a situation. Again, it's, can we contain the area?

1300
03:38:25.790 --> 03:38:49.379
Boardroom: Have we made announcements that we are entering the area, the dog… the handler will come up with the dog. I have a dog. I am going to release the dog. We know you're in the block. Please come out of the block. We have a dog. There's the repeated loud verbal commands. Sometimes it's via PA, sometimes it's an environment where they don't have to be on a PA, where they're announcing. It's… they don't show up, open the door, and send the dog out there. That's not the way that the best practice is for deploying.

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1301
03:38:49.380 --> 03:38:57.429
Boardroom: They now deploy on a lead, so that they control and pull back. Most of these dogs are alert dogs. There are times when we know an individual is in an area.

1302
03:38:57.660 --> 03:39:14.389
Boardroom: They are refusing commands to come out, and we are left with nothing else to do, except… and we have to apprehend that person, where there are dogs that will move to a bite phase. That's… that is… that is far down the continuum of how this tool is deployed to apprehend an individual.

1303
03:39:14.790 --> 03:39:17.229
Boardroom: Okay, and which,

1304
03:39:17.390 --> 03:39:25.530
Boardroom: which agencies do we expect to provide… I guess we're doing for… we did 8 or 9 a year, right, or so, right? So, which agencies are providing dogs for us?

1305
03:39:28.870 --> 03:39:40.010
Boardroom: So, we currently make the request to Emoryville, Alameda County Sheriff, East Bay Regional Parks, oakland?

1306
03:39:41.250 --> 03:39:46.809
Boardroom: Do we have, data on their bite rates, their, you know, straining standards?

1307
03:39:47.060 --> 03:39:54.959
Boardroom: etc. I can share that we've never had a bite in the last 10 years that I can think of in any of the deployments we've had with canines, if not farther back.

1308
03:39:58.010 --> 03:39:59.140
Boardroom: Okay, thank you.

1309
03:40:01.390 --> 03:40:03.440
Boardroom: Thank you, Councilmember Lenopara.

1310
03:40:05.050 --> 03:40:12.290
Boardroom: Thank you. I want to follow up on a question that Councilmember Bartlett had around,

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1311
03:40:12.820 --> 03:40:19.399
Boardroom: rescinding the previous resolution instead of, amending it, and I am curious why that was…

1312
03:40:19.800 --> 03:40:22.969
Boardroom: That was the choice that, you brought forward.

1313
03:40:24.210 --> 03:40:27.599
Boardroom: Yeah, I mean, as I said to Councilmember Bartlett, I… I…

1314
03:40:28.360 --> 03:40:40.550
Boardroom: Want to rescind it and replace it with the resolution, with all of the authorized deployments and categorical prohibitions that are newly listed here.

1315
03:40:40.670 --> 03:40:42.980
Boardroom: I understand. My question is, why?

1316
03:40:44.620 --> 03:40:50.530
Boardroom: Because that was the best way to effectuate the policies that I'm seeking to put forward.

1317
03:40:52.400 --> 03:41:02.460
Boardroom: Would it… I… I… I guess I'm… I'm trying to understand why the… why it could… the previous resolution…

1318
03:41:02.600 --> 03:41:11.779
Boardroom: couldn't be redlined. I just, I think that it had, some… some value, and,

1319
03:41:11.930 --> 03:41:15.799
Boardroom: I don't think it needed a full… I don't think it needs a full rescission.

1320
03:41:16.310 --> 03:41:30.150
Boardroom: I… also am… In the, policy, or in the, in the transmittal,

1321
03:41:30.770 --> 03:41:38.320
Boardroom: It says that canine teams may be deployed in any of the following circumstances,

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1322
03:41:39.110 --> 03:41:51.090
Boardroom: canine teams may also be deployed for purposes not involving the apprehensions of a suspect, including, but it's not… is it… is… it's not limited to? Was that purposeful?

1323
03:41:51.330 --> 03:41:56.120
Boardroom: Councilmember, what page are you reading from? Page 2 of 13.

1324
03:41:57.680 --> 03:42:01.300
Boardroom: Page 2. Okay, so that's the report.

1325
03:42:04.400 --> 03:42:10.419
Boardroom: I would refer you to the resolution for, you know, what would be the actual policy.

1326
03:42:19.270 --> 03:42:22.189
Boardroom: Okay, which does say only as follows, I see. Thanks.

1327
03:42:25.770 --> 03:42:37.980
Boardroom: I… a couple of my questions were already an… were already asked and answered. I do have a couple follow-ups, to Councilmember Bartlett was asking, for the police department.

1328
03:42:38.290 --> 03:42:46.129
Boardroom: In what situation would you look for a canine that is trained to chase or bite a suspect?

1329
03:42:50.320 --> 03:42:55.749
Boardroom: Anytime we make a request for a canine, it would be to,

1330
03:42:55.890 --> 03:43:10.069
Boardroom: apprehend a suspect if that's what the circumstance is, and we would ask for the resource to help us locate that individual. So, we wouldn't specifically call and ask for someone

1331
03:43:10.070 --> 03:43:16.769
Boardroom: that has a K9 that meets the criteria that you're sharing, it would be to ask for a K9 asset.

1332
03:43:19.230 --> 03:43:22.000
Boardroom: Okay,

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1333
03:43:22.710 --> 03:43:33.230
Boardroom: I guess I'm talking about what Councilmember Bartley was bringing up around the different breeds of dogs, and some are trained to…

1334
03:43:33.470 --> 03:43:39.469
Boardroom: Apprehend a suspect, and others are trained to, detect something.

1335
03:43:42.220 --> 03:43:49.639
Boardroom: What are the main differences in how dogs who are trained, or canines who are trained to apprehend a suspect.

1336
03:43:50.280 --> 03:43:53.659
Boardroom: What are the different trainings that go… that go into… into…

1337
03:43:53.850 --> 03:44:08.939
Boardroom: creating a dog like that? So, California Post sets the standards for canine training, and every law enforcement agency, has to follow the post guidelines for how canines are trained and deployed. So…

1338
03:44:09.310 --> 03:44:11.210
Boardroom: We… we would…

1339
03:44:11.370 --> 03:44:19.780
Boardroom: be asking for a canine, and depending on which agency we got, it would depend on how their program works.

1340
03:44:19.820 --> 03:44:36.849
Boardroom: So, it's not that we would call and ask for a specific thing other than, we need a bomb detection canine, or we're trying to locate a missing person, or we have a suspect who's fled, and then we would find out regionally who has an available canine, specifically for what our goal is.

1341
03:44:38.880 --> 03:44:48.039
Boardroom: Okay. Is there a situation in which the canine could be released or let go of the, of the leash?

1342
03:44:51.230 --> 03:45:00.730
Boardroom: Yeah, there are some… in some instances where, canines are doing searches, they are off-leash doing those searches. Other instances, they're on-leash.

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1343
03:45:02.010 --> 03:45:04.989
Boardroom: Okay, thank you, but not in, not in apprehension.

1344
03:45:06.730 --> 03:45:20.929
Boardroom: Not an apprehension. There are some instances where there are some instances where a canine with their handler is looking to see if there is a suspect in an area, and there are other instances with on-leash and sometimes off-leash.

1345
03:45:23.050 --> 03:45:32.009
Boardroom: Okay, just to clarify, there are situations in which the police department is trying to apprehend a suspect, and the canine is released.

1346
03:45:33.670 --> 03:45:41.100
Boardroom: When you… yes, the canine is under the control of the handler, but they are not on a leash.

1347
03:45:41.820 --> 03:45:42.720
Boardroom: Okay.

1348
03:45:43.050 --> 03:45:44.550
Boardroom: Thank you.

1349
03:45:44.790 --> 03:45:57.870
Boardroom: I recognize that the resolution has an explicit prohibition on using canines for crowd control. Is there any situation in which a canine can be used during a protest?

1350
03:46:01.460 --> 03:46:02.420
Boardroom: Nope.

1351
03:46:05.340 --> 03:46:10.679
Boardroom: So, so, crowd control… Clearly defines any…

1352
03:46:11.060 --> 03:46:27.809
Boardroom: protest activity. We would not use a dog for crowd control. If we had a missing child that wandered away from a, slow stroll, and we conducted a check of the thing and couldn't find them, would we ask search and rescue to come out with a fine dog?

1353
03:46:28.090 --> 03:46:29.050

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Boardroom: Potentially.

1354
03:46:29.960 --> 03:46:32.270
Boardroom: Okay, thank you. Is there,

1355
03:46:34.270 --> 03:46:39.669
Boardroom: For example, if there is a violent person within a large protest crowd.

1356
03:46:39.940 --> 03:46:43.530
Boardroom: No. Okay. Absolutely not. Thank you. Those are my questions.

1357
03:46:45.650 --> 03:46:57.090
Boardroom: Thank you. Yes, Councilmember Blackaby. One other set of quick questions, and I just note in the staff report, there's a lot of discussion about 1982 versus now, and I just point us also to the background, in the staff report.

1358
03:46:57.100 --> 03:47:13.980
Boardroom: When we talk about 82, the original resolution was enacted in response to concerns about the use of specialized law enforcement resources from outside agencies. The values that motivate its adoption, local oversight, narrow tailoring of authorized uses, and explicit prohibition of canine deployment and crowd control are preserved in this proposal.

1359
03:47:13.980 --> 03:47:38.959
Boardroom: What's different are all of the other mechanisms that we also have in place in 2026, which include Lexipola-aligned policy manuals, all of our officers wear body-worn cameras, the Police Accountability Board is in place to review complaints, the City's Surveillance Technology Use and Community Safety Ordinance, which require annual reports to Council of all the uses of these tools. So what's different, and what did not exist in 1982,

1360
03:47:38.960 --> 03:47:56.650
Boardroom: for all these additional things. So what I am balancing and considering in what, Councilmember Cassarwani is proposing is, yes, there are some expansions to meet the moment in terms of what modern policing is… the expectations that we have in place, but we also have

1361
03:47:56.650 --> 03:47:59.050
Boardroom: More accountability tools, more…

1362

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03:47:59.220 --> 03:48:13.839
Boardroom: camera coverage, more report back, and I basically just want you to comment on that, how that balances, and basically, you know, how that also weighs as a check in terms of how you would use this on the back end.

1363
03:48:16.600 --> 03:48:18.559
Boardroom: Thank you for that, yes,

1364
03:48:19.030 --> 03:48:29.270
Boardroom: Everything, that we do is governed by our policy, and there is strict oversight, and anytime there is a use of force.

1365
03:48:29.370 --> 03:48:48.199
Boardroom: There is a layered approach to supervisor oversight and reviewing everything that happened. With this, it would be no different. There would be a report to the chief of police, onto the city manager, and would be something that is included in the annual report. So there's,

1366
03:48:48.200 --> 03:48:53.260
Boardroom: By way of doing this, it does, modernize

1367
03:48:53.260 --> 03:49:11.769
Boardroom: The, the policy to enable us to use the tool, again, to close the time-distance gap in getting the asset available and reducing, potential dangers to the community officers and the suspect, and also maintaining all of the oversight that exists.

1368
03:49:11.970 --> 03:49:12.740
Boardroom: Thank you.

1369
03:49:16.810 --> 03:49:23.419
Boardroom: Thank you. Other questions from my Councilmember colleagues? Okay. We will take public comment then.

1370
03:49:25.250 --> 03:49:44.830
Boardroom: If you have public comment on item number 23A, which is the resolution rescinding resolution number 51,408NS, restricting the use of air support and canine units and updating mutual aid policies, please line up, and also raise your hand if you are online and would like to speak.

1371
03:49:47.220 --> 03:49:58.780

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Boardroom: Yes, actually, I am just realizing that probably it would have been good for us to also hear the peace and justice resolution after.

1372
03:49:58.780 --> 03:50:08.139
Boardroom: Mr. City Clerk, could you advise, would it be… would it make more sense for us to take public comment on both now, and have… have our Peace and Justice Commissioner present?

1373
03:50:08.900 --> 03:50:26.119
Boardroom: Well, yeah, yeah, they're, they're agendized as A and B items. There's only one public comment period, for both, for both items. So it would be helpful to hear from our Peace and Justice Commissioner, then? He is first, so… would you just come up, please, and please introduce

1374
03:50:26.170 --> 03:50:37.730
Boardroom: The 23B. Sure. How long do I have? I don't know. Maybe, like, 5 minutes? How's that? That'd be great.

1375
03:50:37.930 --> 03:50:39.239
Boardroom: I have it to…

1376
03:50:40.730 --> 03:51:01.319
Boardroom: I have it divided into the two different items, but I… Can you just… yeah, if you could just focus on the one that's relevant to this current item, that would be great. And we can have you present the second part of it, at the second item, for item number 24. Thank you. Okay, so, George Lipman, I'm representing the Peace and Justice Commission, as directed by the chair.

1377
03:51:01.320 --> 03:51:03.450
Boardroom: Who regrets not being able to be here.

1378
03:51:03.490 --> 03:51:07.700
Boardroom: Sorry.

1379
03:51:08.350 --> 03:51:14.409
Boardroom: So, the Commission recommends, as an alternative to this motion,

1380
03:51:14.620 --> 03:51:20.900
Boardroom: Retaining the existing, 1982 ban on police dogs and helicopters.

1381

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03:51:21.210 --> 03:51:30.460
Boardroom: And that the Council requests the City Manager to engage in academic institutions such as UC Berkeley, UCSF, or Stanford to study the health impacts

1382
03:51:30.640 --> 03:51:38.679
Boardroom: Of both the tear gas and other chemical weapons and canine support, potential short-term and long-term impacts on vulnerable

1383
03:51:38.800 --> 03:51:43.169
Boardroom: Populations and possible alternatives to the use of these,

1384
03:51:44.600 --> 03:51:50.510
Boardroom: Tools and weapons that provide officer safety, suspect safety, and safety to the general public.

1385
03:51:55.160 --> 03:52:01.370
Boardroom: the, the commission share… I am also…

1386
03:52:02.360 --> 03:52:11.359
Boardroom: concerned that you don't have the DPA or the PAB up here to represent, so… but I will speak a little to,

1387
03:52:11.610 --> 03:52:17.149
Boardroom: to their comments, as well, the Peace and Justice supported,

1388
03:52:17.500 --> 03:52:28.220
Boardroom: They said the previously permissible uses of helicopter assistance were limited to clearly defined humanitarian and emergency purposes, including disaster response.

1389
03:52:28.330 --> 03:52:33.440
Boardroom: Rescue efforts, excluding hostage situations and locating missing persons.

1390
03:52:33.960 --> 03:52:39.139
Boardroom: This proposal introduces new explicitly enforcement-oriented justifications.

1391
03:52:39.290 --> 03:52:53.780
Boardroom: including felony suspect pursuits, vehicle chases, and deployments intended to reduce risk to officers that go beyond the scope

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of the earlier permissions. Taken together, the proposed resolution reflects a shift in emphasis from primarily enforcement assistance

1392
03:52:54.280 --> 03:53:02.819
Boardroom: toward authorizing helicopter use as a tactical law enforcement tool, should it be adopted? And that's of… that was of concern to our commission.

1393
03:53:04.950 --> 03:53:22.089
Boardroom: Police helicopters, to get more specifically into it, provoke concern in a number of communities for unhealthy noise pollution, inefficient spending, and instances of bias by over-policing certain neighborhoods. Officers in the LAPD often

1394
03:53:22.590 --> 03:53:32.200
Boardroom: disgracefully goes so far as to call the helicopters ghetto birds, as sociologist Sarah Brain wrote in her book, Predict and Surveil.

1395
03:53:32.910 --> 03:53:38.949
Boardroom: Berkeley restricted use of police dogs in the aftermath of their brutal use, particularly

1396
03:53:39.060 --> 03:53:42.619
Boardroom: Particularly in the South, but across the country as well.

1397
03:53:43.520 --> 03:53:46.200
Boardroom: In the last two decades, at least two lawsuits

1398
03:53:46.670 --> 03:54:01.769
Boardroom: were settled by Hayward, one for $1.5 million. One dog is said to have bitten about 30 people, two or three of them uninvolved bystanders, one an 89-year-old wound… oh, sorry, one an 89-year-old who died of his wounds.

1399
03:54:02.350 --> 03:54:10.139
Boardroom: The Commission reminds the Council of the precautionary principle that it adopted in 2006.

1400
03:54:10.630 --> 03:54:19.479
Boardroom: The principle is an approach to decision-making that prioritizes preventing harm to human health and the environment. The principle shifts the burden of proof.

1401

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03:54:20.090 --> 03:54:25.439
Boardroom: Requiring actions to be proven safe, rather than waiting for proof of damage.

1402
03:54:25.580 --> 03:54:29.559
Boardroom: to restrict them. We recommend that lacking proof of safety

1403
03:54:30.030 --> 03:54:33.440
Boardroom: All of these tools and weapons should not be approved.

1404
03:54:36.320 --> 03:54:38.560
Boardroom: The Commission is also concerned

1405
03:54:39.780 --> 03:54:48.479
Boardroom: about the removal of required pre-approval by the city manager for both dog and helicopter deployment. When taken as a pattern.

1406
03:54:48.700 --> 03:54:53.510
Boardroom: The removal of this check, combined with the… Refu… the…

1407
03:54:53.910 --> 03:55:05.200
Boardroom: issues that we've seen over the last couple years, the difficulty in getting the police chief to fully cooperate with the PAB's city charter mandated requests for departmental records.

1408
03:55:05.720 --> 03:55:09.369
Boardroom: the chronic overtime under-appointing of the PAB,

1409
03:55:09.520 --> 03:55:21.490
Boardroom: Hopefully that's in the past, but it's been a very problematic issue for years. And the vacant position of the Director of Police Accountability, the city risks a public perception that it no longer values

1410
03:55:21.700 --> 03:55:23.259
Boardroom: civilian oversight.

1411
03:55:23.360 --> 03:55:27.710
Boardroom: I think that's it for this one. If I can come back later… Thanks, George.

1412
03:55:35.550 --> 03:55:42.539

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Boardroom: Council members, I've been gifted with 2 extra minutes, and if I need a third, I might just go ahead and take that one, too.

1413
03:55:42.720 --> 03:55:44.510
Boardroom: I have a lot to say here.

1414
03:55:46.220 --> 03:55:49.099
Boardroom: What I'd like to begin with is a little bit of history.

1415
03:55:49.240 --> 03:56:00.340
Boardroom: Because in 1982, when local giants like Gus Newport was mayor, Maudel Sherrick was on this council.

1416
03:56:00.500 --> 03:56:05.659
Boardroom: Those regulations from 1982 were to balance

1417
03:56:05.820 --> 03:56:13.409
Boardroom: The safety, what I have not heard any discussion about is the safety of our community as it relates to dogs that mall.

1418
03:56:13.690 --> 03:56:17.460
Boardroom: Dogs that tear the flesh off your body.

1419
03:56:17.780 --> 03:56:22.630
Boardroom: And if you… if you understand that, if you're willing to speak plainly.

1420
03:56:23.280 --> 03:56:38.690
Boardroom: You understand why Gus Newport and Model Sherrick in 1982 worked so hard with that council to enact these prohibitions. This issue was revisited in 2004, and again, a council with folks like Max Anderson, who understood

1421
03:56:38.690 --> 03:56:43.540
Boardroom: How these kinds of dogs violate, if nothing else, the community trust.

1422
03:56:44.330 --> 03:56:47.320
Boardroom: One mauling in Berkeley, you will lose it.

1423
03:56:49.240 --> 03:56:55.190

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Boardroom: Since some council members don't think that racial disparities are statistically significant in our city.

1424
03:56:55.380 --> 03:57:00.280
Boardroom: We know that increased use of these dogs will fall disproportionately.

1425
03:57:00.520 --> 03:57:09.280
Boardroom: on the African American community, on people with mental health, behavioral health issues, people with drug issues, and so forth.

1426
03:57:10.210 --> 03:57:22.400
Boardroom: If you want, if you care to read the ACLU report about maulings of onlookers, about times when dogs were deployed, yes, they're taken off the leads, they say, go get them!

1427
03:57:23.480 --> 03:57:32.190
Boardroom: And then sometimes the handlers have a hard time getting the dog to release the arm, and so the person has permanent damage. Yes.

1428
03:57:32.320 --> 03:57:44.850
Boardroom: It's insane to me that you would consider residential burglaries. All somebody has to do is go into a house, steal packages, whatever they do, come out, and they are eligible for mauling.

1429
03:57:44.970 --> 03:57:47.089
Boardroom: According to the way that this

1430
03:57:47.330 --> 03:57:49.820
Boardroom: Proposal is being offered to you.

1431
03:57:50.270 --> 03:57:53.820
Boardroom: Apprehend? It means tear the flesh.

1432
03:57:54.980 --> 03:57:57.909
Boardroom: I also want to… to say this, that…

1433
03:57:58.350 --> 03:58:09.920
Boardroom: None of us here in this room have any opposition to search and rescue. Locate missing persons. You know, identify… absolutely. Sniff… if you want to sniff for explosives, that's not a problem.

1434

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03:58:10.070 --> 03:58:17.590
Boardroom: The problem is that Every day, this police department abandons

1435
03:58:18.060 --> 03:58:35.459
Boardroom: pretense of trying to work with the community. Instead of a dog, you know what to do? Ask the community. Hey, where did they go? Hey, ask the community. Are they in your back? What's going on? If we had good relations with the community, this dog question would not be up. But they have… they don't care.

1436
03:58:35.680 --> 03:58:38.540
Boardroom: That's the issue. That's… that's an issue.

1437
03:58:38.660 --> 03:58:52.400
Boardroom: So, yes, I like… I like… Ben, I like your proposal. Let's amend this thing. And… and make attack dogs… ban attack dogs. We have no problem with that. Thanks, Andrea. Let me see if I'm done.

1438
03:58:57.420 --> 03:58:58.640
Boardroom: I didn't have the beginning.

1439
03:59:01.010 --> 03:59:16.290
Boardroom: Good evening, Madam Mayor, esteemed council members. I'm a resident of District 1. My name is Daria Ruble. I'm also a candidate for District 1 City Council. I want to thank, several council members for your thoughtful questions and critical thinking on this issue.

1440
03:59:16.290 --> 03:59:30.839
Boardroom: I would like to, state that I do not find the reasons for this resolution compelling. I think the standing 1982, resolution is working for us, and as, our hardworking

1441
03:59:31.060 --> 03:59:46.820
Boardroom: staff members, with the police have already stated, this does not give us new resources. We still have those resources, we just have additional checks and balances now that do not need to be removed. Thank you very much.

1442
03:59:47.220 --> 03:59:48.709
Boardroom: Thank you, Daria.

1443
03:59:52.220 --> 03:59:57.430
Boardroom: Hello, my name is Ellen Evangelisti, and I am a resident and taxpayer of the City of Berkeley.

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1444
03:59:57.960 --> 04:00:17.130
Boardroom: I oppose the use of helicopters and police canine units, and I would like to note that I oppose vehemently the flock cameras that are tracking my every move as I move around the city of Berkeley, and I do not condone the expansion of the police state in the United States of America. Thank you.

1445
04:00:18.570 --> 04:00:19.599
Boardroom: Thank you.

1446
04:00:25.090 --> 04:00:36.780
Boardroom: Good evening, Council and Madam Mayor. My name is Jason Martins. I'm here to speak in opposition to unleashing police dogs on our populace.

1447
04:00:36.830 --> 04:00:49.099
Boardroom: The scenario that they described, where there was, like, a block that they surrounded, and then they could unleashed the dog into that block to go and find a suspect, like, what's to prevent my kids?

1448
04:00:49.100 --> 04:00:57.060
Boardroom: from being outside in that same block where the dog is now gonna be unleashed. How is that dog gonna know that my kids are not a threat?

1449
04:00:57.080 --> 04:01:14.260
Boardroom: And it's something else that's a threat. That just is a horrifying situation to me. And if the Berkeley Police Department wants to build community trust and talk about community safety, like, I think really this comes down to a simple thing, is that they're asking for permission

1450
04:01:14.290 --> 04:01:22.360
Boardroom: to attack people in Berkeley with dogs. That's really what this comes down to. Thank you. Thank you.

1451
04:01:23.980 --> 04:01:24.920
Boardroom: P-A-D.

1452
04:01:29.050 --> 04:01:39.859
Boardroom: Hello, my name is N. I am a Berkeley resident of District 3, a UC Berkeley Public Health graduate student and the aunt of young black children growing up in Berkeley Unified School District.

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1453
04:01:39.860 --> 04:01:53.890
Boardroom: I am speaking out against this resolution to further militarize the Berkeley Police. It truly scares me that some of you would choose to endanger your constituents like this, especially at a time of extremely heightened repression and violation of human rights in this country.

1454
04:01:53.890 --> 04:02:12.460
Boardroom: This is not safety, this will only add to more people being brutalized by state-sanctioned violence, and black and brown communities are the ones to suffer the most. I don't want black and brown children of Berkeley to grow up in a city that surveils and polices them. I want them to grow up in a city that prioritizes evidence-backed, community-rooted approaches to safety. Policing and surveillance do not keep us safe.

1455
04:02:12.500 --> 04:02:14.430
Boardroom: Thank you.

1456
04:02:15.190 --> 04:02:16.440
Boardroom: Thank you.

1457
04:02:18.520 --> 04:02:20.859
Boardroom: Can I get an extra minute from someone?

1458
04:02:21.410 --> 04:02:22.410
Boardroom: Thank you.

1459
04:02:23.050 --> 04:02:28.629
Boardroom: Hello, my name's Dan Brownson, I work at Berkeley High School.

1460
04:02:29.990 --> 04:02:42.830
Boardroom: I don't understand the reason for this. Crime in Berkeley has been dropping for years. There was an uptick after, during, and a little bit after COVID, but that was largely an aberration from

1461
04:02:42.950 --> 04:02:54.669
Boardroom: you know, downward trends that we've been seeing for many years. So with the existing restrictions on the use of dogs and helicopters.

1462
04:02:54.930 --> 04:03:12.650

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Boardroom: Helicopters are not cheap machines, so I'm wondering who is paying for this. Someone has to be, because, you know, helicopters require a lot of maintenance, extremely specialized, training to fly. Helicopter pilots do not come cheap,

1463
04:03:12.650 --> 04:03:17.650
Boardroom: So someone is footing the bill for this, and in a time when Berkeley is…

1464
04:03:17.740 --> 04:03:25.740
Boardroom: In a little bit of financial difficulties, it doesn't seem wise to be making it easier to,

1465
04:03:26.510 --> 04:03:29.219
Boardroom: Call in these expensive assets.

1466
04:03:29.480 --> 04:03:35.290
Boardroom: So I think… getting city manager approval is probably a good thing.

1467
04:03:35.770 --> 04:03:54.749
Boardroom: Furthermore, as to the use of dogs, the reason so many people do not trust the Berkeley Police Department, is because many people have experiences like mine, where, while the, police department will sit up here, you know, saying, oh, how much restraint they use, and whatever.

1468
04:03:54.760 --> 04:04:05.520
Boardroom: My experience has been the opposite. Berkeley police officers, well, a sergeant had several police officers violently throw me to the ground.

1469
04:04:05.620 --> 04:04:17.469
Boardroom: Just for arguing with him. I didn't raise my hand to him, I didn't have any weapon on me, I posed no physical threat so whatever, I was still brutally thrown to the ground and arrested.

1470
04:04:17.470 --> 04:04:26.269
Boardroom: And for resisting arrest. That's why I don't trust them to have restraint when it comes to using mauling dogs. Thank you.

1471
04:04:34.910 --> 04:04:47.219
Boardroom: Hi, my name is Nori Clark, and I'm a long-time resident of Berkeley. And we keep talking about these new modern assets. I want to meet one of these modern dogs.

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1472
04:04:47.380 --> 04:04:52.870
Boardroom: You know, I mean, modern dogs, really. Are they robots?

1473
04:04:53.240 --> 04:05:00.540
Boardroom: Anyway, it has been well demonstrated and…

1474
04:05:00.890 --> 04:05:07.430
Boardroom: And known that dogs often bite the wrong person.

1475
04:05:07.570 --> 04:05:16.119
Boardroom: And to have an unleashed dog running around in the neighborhood is not a safety issue.

1476
04:05:17.150 --> 04:05:27.690
Boardroom: And this… and the use… and I agree with the previous speaker that the use of helicopters… we… can we really afford this?

1477
04:05:28.740 --> 04:05:37.729
Boardroom: You know, it's one thing if they're going down the highway, but they're not… they're not being a danger to somebody in their house. Thank you. Thank you.

1478
04:05:43.310 --> 04:05:47.839
Boardroom: Hi, my name is Maria Enoughi, and I'm also a long-time resident of Berkeley.

1479
04:05:48.260 --> 04:05:56.200
Boardroom: And I also don't understand the why of it. It just… doesn't seem to make any sense when we are hearing in the news that

1480
04:05:56.400 --> 04:06:00.339
Boardroom: Crime is actually reduced. Violent crime is greatly reduced.

1481
04:06:00.540 --> 04:06:08.860
Boardroom: And the provisions of the 1982, mandate seem to say

1482
04:06:09.350 --> 04:06:17.990
Boardroom: It has the built-in protections we need. You don't really need any more. It seems like that would just be excess, and sort of inciting a violent outcome.

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1483
04:06:18.510 --> 04:06:21.920
Boardroom: Somehow. So…

1484
04:06:23.110 --> 04:06:34.240
Boardroom: It's really upsetting to see the city even thinking about these kind of draconian measures. And as someone who was once very proud of living here, this is the exact kind of thing that makes me want to leave.

1485
04:06:37.490 --> 04:06:39.290
Boardroom: Thank you.

1486
04:06:42.190 --> 04:06:57.160
Boardroom: Hello, my name is Roberto Rodriguez. I am a recent resident of Berkeley, and that's actually very relevant for today. People here only know about four things about me. One of them is that I'm originally from Alabama.

1487
04:06:57.220 --> 04:07:02.409
Boardroom: I lived a short period of time in Birmingham. I studied there for electrical engineering.

1488
04:07:02.750 --> 04:07:11.559
Boardroom: There's a lot that I do remember about that city, and there's a lot of recent memories that have come about because of this resolution. One of them…

1489
04:07:11.700 --> 04:07:12.759
Boardroom: Have a prop here.

1490
04:07:13.790 --> 04:07:19.209
Boardroom: There is… a specific… Piece of art.

1491
04:07:19.710 --> 04:07:24.330
Boardroom: that I saw. It's on Fifth Avenue. I lived on 3rd Avenue.

1492
04:07:24.630 --> 04:07:29.850
Boardroom: You notice, you know, with the history of… Birmingham.

1493
04:07:30.060 --> 04:07:33.539
Boardroom: You do see a lot of depictions of police violence.

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1494
04:07:33.770 --> 04:07:47.910
Boardroom: The other thing that you do see, are dogs. It's not handcuffs, it's not batons, dogs. I don't know how you can policy this image away. Thank you.

1495
04:07:51.300 --> 04:08:07.259
Boardroom: Hi, I'm here to ask you to not expand use of dogs as a former vet tech who performed vet care on police drug-siffing canines, and from my life experience with a friend's German Shepherd named Arlo, dog bred and intended to be a police dog before my buddy kind of scooped him out of that life.

1496
04:08:07.260 --> 04:08:14.359
Boardroom: He's a great dog, I knew him from a pup, but we all knew, never leave him alone with people he doesn't know, children, or animals.

1497
04:08:14.550 --> 04:08:21.019
Boardroom: The breed is anxious and fiercely loyal. If you are not in the pack, there's a chance they will attack regardless of training.

1498
04:08:21.090 --> 04:08:28.169
Boardroom: They're powerful dogs as well. I saw Arlo take down a fully grown white-tailed deer. Very bad dog at that point.

1499
04:08:28.170 --> 04:08:41.249
Boardroom: But we managed to pull him off before he killed it. I can imagine that as a person, an absolute physical punishment without any Sixth Amendment right given to that person. It drives me nuts.

1500
04:08:41.620 --> 04:08:50.630
Boardroom: I understand that we are intending only to use these dogs in certain situations, but how that determination is made is deeply concerning, as well as the potential for off-target attacks.

1501
04:08:50.900 --> 04:08:55.839
Boardroom: The real price of this authoritarian push. Thank you. Thank you for your time. Thanks.

1502
04:08:59.800 --> 04:09:02.680
Boardroom: Hello, good evening. I have an extra minute.

1503
04:09:03.860 --> 04:09:19.970

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Boardroom: Thank you. Okay. While our federal government wages war on our most vulnerable communities, including here in Berkeley, someone was kidnapped by ICE, Berkeley should be a sanctuary, not a city that hands more power to the cops.

1504
04:09:19.970 --> 04:09:30.559
Boardroom: We deserve courageous leadership focused on our community safety, and instead, we're getting regressive policy that the community never asked for.

1505
04:09:30.840 --> 04:09:54.330
Boardroom: What we did ask for, though, is police oversight. And all of you, at one point or another, I think, except maybe with the exception of one, has said that, yes, you support police oversight, you support the Police Accountability Board. Where are they? There is an empty chair there. Where are they? They have a recommendation letter. So I know that the chair is standing on line for a minute.

1506
04:09:54.360 --> 04:09:55.350
Boardroom: Please.

1507
04:09:55.540 --> 04:10:12.360
Boardroom: That's disrespectful, and that's… this is an opportunity to walk your talk and show your commitment to actual police accountability. So please, remedy this as soon as you can. Here's my questions. What if a suspect has disabilities? What if a suspect is deaf?

1508
04:10:12.360 --> 04:10:19.400
Boardroom: And so then you're gonna send in a mauling dog because the suspect can't hear the commands of the police?

1509
04:10:19.650 --> 04:10:22.279
Boardroom: This is not… in disability.

1510
04:10:22.380 --> 04:10:30.430
Boardroom: Celebration Month? This is all wrong. If someone entered my house and there was a thief there.

1511
04:10:30.430 --> 04:10:43.780
Boardroom: I do not… you can please do… 1636 Bonita Avenue, do not send in a dog. My dog would not be happy. What about if there were dogs there, as well? The whole thing is just inane.

1512
04:10:43.970 --> 04:11:02.079

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Boardroom: And, thus far, there's not a great track record of oversight of our Berkeley Police Department. This will eviscerate public trust in the limited trust that they keep saying they want to build with the community. This will do the opposite. Please say no.

1513
04:11:07.710 --> 04:11:12.760
Boardroom: I'm Chris Taft. I want to pull back from the details for a minute to look at the bigger picture.

1514
04:11:13.120 --> 04:11:22.199
Boardroom: I don't want us as a municipality and as a nation in the future to have to look back in anguish from a bleak totalitarian regime.

1515
04:11:22.520 --> 04:11:38.130
Boardroom: And ask, why did we sow the seeds for this? How did we not see that incrementally empowering the police with ever more tools designed for crowd control, force, and surveillance would be useful, in fact, requisite.

1516
04:11:38.530 --> 04:11:46.209
Boardroom: for the growth of anti-democratic Orwellian power. As Andrea Pritchett said, why are we going backwards on this?

1517
04:11:46.670 --> 04:11:56.330
Boardroom: The pro forma limitations on dogs, helicopters, and surveillance for crowd control are at police discretion, and we don't find the police trustworthy.

1518
04:11:56.880 --> 04:12:12.400
Boardroom: We're like frogs in a pot of water, looking down at the flame and saying, hmm, this is kind of reasonable, not too bad. Let's open our… let's open our eyes here. Our nature's future, we shape it today. Thank you.

1519
04:12:18.040 --> 04:12:26.150
Boardroom: Good evening. I'm a resident of District 8. I oppose the use of attack dogs in Berkeley, and removing oversight on their use, I believe, is the wrong move.

1520
04:12:26.500 --> 04:12:34.089
Boardroom: Once a canine is released, there's an immediate threat to any person in the vicinity who may or may not have committed any crimes.

1521
04:12:34.290 --> 04:12:45.820

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Boardroom: And the chain of accountability becomes more fuzzy with dog actions after release decision than any individual officer would otherwise be made to account for any individual action.

1522
04:12:46.040 --> 04:12:55.400
Boardroom: Situations develop moment by moment, but dogs do not de-escalate or discern potential perpetrators from victims, and have potential to cause significant injury.

1523
04:12:55.500 --> 04:13:08.690
Boardroom: If dogs are to be used, there must be careful consideration for when they are used, and approvals must be extremely deliberate. Removing obstacles from their use will mean more use, and this could lead to undue harm where it could otherwise be avoided. Thank you.

1524
04:13:09.890 --> 04:13:11.029
Boardroom: Thank you.

1525
04:13:15.160 --> 04:13:28.809
Boardroom: Hello, my name is Skip. I am a lifelong resident of Berkeley and a city worker. It is shameful that you would further militarize the police. I do not trust the police to hold a monopoly on violence and determine which crimes warrant brutality and mauling by attack dog.

1526
04:13:28.940 --> 04:13:44.439
Boardroom: You all keep talking about best practices. Who decides what best practices are? I don't think any police practice is best practice, and I certainly don't trust that these practices will keep my community safe. I do not trust the police with these tools. I do not trust anyone with these tools.

1527
04:13:44.590 --> 04:13:54.870
Boardroom: I cannot believe that I am up… that I am standing up here asking you not to allow the police to deploy attack dogs on Berkeley community members. It is disgusting that this is a consideration.

1528
04:14:03.390 --> 04:14:17.900
Boardroom: I reject Rashi's proposals entirely and fully support the Peace and Justice Commission's recommendations. With helicopters, I echo my friend Dan asking, what are the financial implications? Isn't this city under a $30 million deficit?

1529
04:14:17.900 --> 04:14:25.269
Boardroom: Berkeley Police Docs are… Berkeley Police does not need to use dogs that have been trained. This training is actually abuse.

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1530
04:14:25.270 --> 04:14:28.750
Boardroom: And then they go ahead and abuse people, they bite people to death.

1531
04:14:29.160 --> 04:14:30.859
Boardroom: Did you hear how…

1532
04:14:31.080 --> 04:14:53.799
Boardroom: the… with the Peace and Justice Commission, someone was almost 100 years old and then died of a dog bite. It's especially concerning that you are proposing this rollback of restrictions when we are seeing evidence every day of the Israeli occupation forces training and abusing dogs to then rape and conduct sexual assault on Palestinians. And wait, who trains the cops? Yeah, the Israeli occupation forces, the Zionists do.

1533
04:14:53.800 --> 04:14:56.439
Boardroom: How do we know that that also will not continue?

1534
04:14:56.440 --> 04:15:15.980
Boardroom: Also, dogs are not just an asset or a tool. Dogs are living, sentient animals. Did we forget the whole man's best friend thing? Using dogs is inherently cruel. Thank you. Don't forget that Berkeley is home to one of the largest animal rights communities. No one wants this, especially the dogs, especially the… Okay, this person's giving her time. Okay.

1535
04:15:16.240 --> 04:15:17.010
Boardroom: Okay.

1536
04:15:23.040 --> 04:15:33.249
Boardroom: Can we please give the baby some time? Does someone want to give… would you like some more time? Excuse me, Andrea, would you like additional time?

1537
04:15:33.550 --> 04:15:50.019
Boardroom: I would like to finish my comment. Do you know how long that might take? It's two paragraphs. Okay. Does someone want to give him some time, just in case? Okay. Alright, someone from the audience is giving you another minute. Chief doesn't like to give me time. And the chief's also giving you a minute. You're welcome to 3. There you go. Go ahead.

1538
04:15:50.250 --> 04:15:53.840

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Boardroom: Good evening, Madam Mayor, Honorable Council Members.

1539
04:15:54.100 --> 04:15:59.779
Boardroom: Police Accountability Board submitted an item, supplemental, Opposing item 23A.

1540
04:15:59.930 --> 04:16:12.419
Boardroom: I have raised this in the past, but I continue to be mystified why the Police Accountability Board is not invited to sit at the table to answer questions about policy that are clearly matters of public concern and public safety.

1541
04:16:12.960 --> 04:16:32.390
Boardroom: When this item was discussed, our board was frustrated because there is a clear pattern in Berkeley of treating oversight and accountability as a mere inconvenience and tossing out those accountability mechanisms when the department cites to a burden that they impose. The impact of that burden in this case, is illusory.

1542
04:16:32.510 --> 04:16:43.170
Boardroom: We asked BPD, and they provided exactly zero instances where prior approval negatively impacted BPD's ability to achieve their objectives, which is ultimately what matters.

1543
04:16:43.460 --> 04:16:48.399
Boardroom: Accountability is not an inconvenience, it is essential to public safety. Thank you.

1544
04:16:55.520 --> 04:17:13.110
Boardroom: I'm asking for 3 minutes, and I have 1, 2, 3… Paul. Is it a total of 4 maximum? Paul's giving you… Paul's giving you his minute. Paul's giving me 1, and then I have two in the back, and 3 over there. And is it a 4-minute maximum? Yeah, 4-minute maximum. Thank you, Mayor.

1545
04:17:13.110 --> 04:17:18.969
Boardroom: Madam Mayor, Council, community members, my heart is heavy. My name is Moni Law, I'm a student of…

1546
04:17:19.040 --> 04:17:29.140
Boardroom: life, joy, freedom, justice, and a Cal Grad, class of 82 Govairs, and a city employee. I'm here in my personal capacity as a resident.

1547
04:17:29.300 --> 04:17:34.560

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Boardroom: I have 6 exhibits, Your Honor, that I have… 7, actually, I'd like to submit to the court.

1548
04:17:34.690 --> 04:17:36.200
Boardroom: The first would be…

1549
04:17:36.350 --> 04:17:47.299
Boardroom: This headline, U.S. police dogs originated from slavery and Must Be Abolished. You do know that the original police were known as slave patrols, and they used dogs to

1550
04:17:47.610 --> 04:17:48.690
Boardroom: control.

1551
04:17:48.860 --> 04:17:59.700
Boardroom: The people, having been born in Alabama, and if any of you know black people that are older, a lot of them are afraid of dogs for this very reason, because they were attacked by dogs as they grew up as kids.

1552
04:17:59.830 --> 04:18:05.769
Boardroom: As their parents were being bitten by dogs, as Bull Connor and others were out with the dogs.

1553
04:18:06.060 --> 04:18:11.379
Boardroom: Not protecting them, but harming them. So that's Exhibit 1, and it's…

1554
04:18:11.380 --> 04:18:28.289
Boardroom: A point of fact, police dogs are not aligned for best practices. Harm outweighs the benefits, so if we're looking at a cost-benefit analysis, this does not fit the test. Noah helicopters, traumatizing feel of a war zone, and tear gas, which is banned in the international warfare

1555
04:18:28.290 --> 04:18:53.200
Boardroom: Under 1925's Geneva Protocol. And furthermore, it's not a modern policing tool. It's kind of ironic to call, using dogs that were used during slavery as a modern policing tool. Exhibit 2, Opinion. It would serve Berkeley well to implement best practices for our police by Moniti Law, April 9th, 2018. This is a Berkeley, article, and it was talking about

1556
04:18:53.200 --> 04:19:03.130

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Boardroom: transparency, and the point was, 277 people have been killed by police nationwide that year. There were the protests that were in the streets here of Berkeley. We were peaceful.

1557
04:19:03.160 --> 04:19:07.859
Boardroom: But we got gassed, we got baton whipped, we got…

1558
04:19:08.380 --> 04:19:10.700
Boardroom: Flash bangs at our feet, we got…

1559
04:19:10.900 --> 04:19:12.909
Boardroom: All the things of mutual aid.

1560
04:19:13.430 --> 04:19:16.499
Boardroom: That harmed a number of people in a federal court case was

1561
04:19:16.500 --> 04:19:40.720
Boardroom: filed, Moni Law v. City of Berkeley. Settlement in the end was to have use-of-force policies that now are supposed to be in place, like the gentleman prior to me spoke to. That is not happening. After all the work, please implement those changes. The next exhibit, number 3, police, California police attack dogs cause permanent injuries, disfigurement, and disability.

1562
04:19:40.720 --> 04:19:47.979
Boardroom: This is an opinion from the Physicians for Human Rights, evidence, exhibit Number 3. Exhibit number 4.

1563
04:19:48.120 --> 04:20:01.049
Boardroom: There have been reactions from the class action settlement. Berkeley was making a good move forward. I was on the Fair and Impartial policing work group. The mayor, Jesse Erging, now our senator, also placed me on the

1564
04:20:01.340 --> 04:20:21.280
Boardroom: committee that built the policies to try to work for change, reimagining public safety. I'm not reimagining public safety right now, I'm imagining a nightmare. I'm imagining my son being bitten by a dog. I'm imagining my son, who's been pulled over as a 12-year-old by Seattle police.

1565
04:20:21.380 --> 04:20:35.850

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Boardroom: assumed to be guilty, but walking down the street. So when it's black people that are involved in the scene, they're also more likely than not the victims of the dog bite. For example, Exhibit 5.

1566
04:20:36.080 --> 04:20:51.870
Boardroom: The medical opinion has shown, actually through the ACLU report that was referenced earlier, Exhibit 6, ACLU reports police attack dogs severely, permanently injured hundreds of Californians, and very significant numbers

1567
04:20:52.010 --> 04:20:56.010
Boardroom: 50… and City of Richmond, police attack dogs involved.

1568
04:20:56.110 --> 04:21:17.339
Boardroom: in 60% of use-of-force cases, which resulted in great bodily injury or death over a 5-year period. In Fairfield, in the same time period, over 61% of people bitten by police dogs were black. And in a city whose population is only 16%. Similarly, in Bakersfield, in 2020, 89% of police dogs resulted in severe… Thanks, Moni. I'm sorry, your time's up.

1569
04:21:17.340 --> 04:21:19.780
Boardroom: Existing? Tony, Moni, Moni.

1570
04:21:19.780 --> 04:21:21.940
Boardroom: Thank you. Okay, thanks.

1571
04:21:34.690 --> 04:21:54.529
Boardroom: Well, that's a hard act to follow. But, you know, I was looking at somebody mentioning, like, these helicopters and dog rentals, they must be rented. Is this cheap? Is this free? Is there any dollar sign on this? I see no indication that anybody's thought about funding this. And also.

1572
04:21:54.920 --> 04:22:03.159
Boardroom: the helicopters were used 4 to 5 times, and the canines were 8 to 10 times. I mean, these are not, like, big…

1573
04:22:03.280 --> 04:22:06.810
Boardroom: Thing, so it seems to me like…

1574
04:22:06.900 --> 04:22:29.970
Boardroom: What I'm seeing, though, is a creeping, militarization of our police that feel like they get all the goodies and care not cops. It's

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all cops and no care. Where's the care about this? Where are the crisis intervention trainings for the people who are mentally ill that are left homeless on the street? Where is any of that?

1575
04:22:29.970 --> 04:22:38.500
Boardroom: So this is an expense that's… it's not free, and all of this is a license to be, thank you. Thanks for your comment.

1576
04:22:45.260 --> 04:22:47.190
Boardroom: Alright.

1577
04:22:48.190 --> 04:23:07.940
Boardroom: Hello, my name's Allison, I live in District 4, and I'm also echoing the other people who have spoken that oppose any expansion of, helicopter use or the ability to remove safeguards to enable attack dogs to continue terrorizing citizens of Berkeley. I also wanted to…

1578
04:23:07.940 --> 04:23:22.459
Boardroom: To go off of the funding element, considering that the funding for the mobile crisis unit was also just slashed, this feels especially egregious, that, these tools suddenly exist, both in terms of expanding flock contracts and

1579
04:23:22.460 --> 04:23:34.499
Boardroom: giving the police more tools to use, feels like a complete step backwards. Also, especially, the issue of, like, people who are homeless often have dogs for protection.

1580
04:23:34.500 --> 04:23:45.230
Boardroom: And so, I can only imagine just the instigating effect this could have of one of the attack dogs creating an incident in which people have… are using one of the only tools they have to keep themselves safe.

1581
04:23:45.230 --> 04:23:50.740
Boardroom: while being attacked constantly by BPD, ending up hurt as an effect. Thank you.

1582
04:23:55.570 --> 04:23:56.389
Boardroom: Come on up!

1583
04:23:56.840 --> 04:23:57.510
Boardroom: Come?

1584

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04:24:01.600 --> 04:24:14.020
Boardroom: Do I just ask for another minute from somebody? I don't know who to ask. Yes, there's someone who would give her a minute. Someone in the back here is giving you a minute. Okay, go ahead.

1585
04:24:14.320 --> 04:24:17.700
Boardroom: Okay, excuse me.

1586
04:24:18.160 --> 04:24:27.419
Boardroom: I'm Laura X, and I don't know why my voice is like this, suddenly. I've been here since 1963.

1587
04:24:27.520 --> 04:24:38.819
Boardroom: And I did speak at the committee meeting, and I did bring up Birmingham. And I suggested that the police be trained

1588
04:24:38.920 --> 04:24:50.329
Boardroom: in what that meant. So I was so thrilled by this person who just brought that up. So I'm wondering, did any of you get trained? Am I allowed to speak to them?

1589
04:24:51.620 --> 04:25:01.860
Boardroom: in what police dogs mean in this country. You can, you can address the council as a whole, but they won't respond to your question. Okay, go ahead.

1590
04:25:01.860 --> 04:25:17.110
Boardroom: you can ask them, or whatever. I made that suggestion at your committee meeting. And because I really felt that the messaging of fear, and that Berkeley is about to lose its

1591
04:25:17.670 --> 04:25:37.529
Boardroom: Ever-loving mind, nationally, and be part of this terrible militarization of every aspect of this country, is really more important than anything in this resolution, may or may not solve. I also…

1592
04:25:37.550 --> 04:25:49.979
Boardroom: wanted to ask… to say that I was part of the just regular civilian population, walking around in front of the university. I was a student.

1593
04:25:50.310 --> 04:25:57.880
Boardroom: In 1970, when we were guest, tear-assed, by…

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1594
04:25:57.890 --> 04:26:09.430
Boardroom: people in a helicopter. So that combination is still with me, and, that was the… they were sent by the governor.

1595
04:26:09.430 --> 04:26:21.500
Boardroom: And so, this was, of course, as I said, in 1970. So, all of that still hangs over people my age. Thank you. Thank you so much. Which is almost 86. Appreciate it. Thank you.

1596
04:26:28.160 --> 04:26:34.000
Boardroom: Good evening, Council. Before I start my minute here, may I ask for 2 or 3 minutes?

1597
04:26:34.370 --> 04:26:39.150
Boardroom: Someone a seat, please. One… can I get two more people?

1598
04:26:39.980 --> 04:26:50.859
Boardroom: I, I see only two hands raised for you. Okay. So, thank you. So, Tasha, it's Baptiste. I rank, standing here in stark opposition to this proposed item.

1599
04:26:52.750 --> 04:27:00.369
Boardroom: I'm a lifelong Berkeley resident, have worked as an EMT before, and so I understand from a clinical level what these tools can do to human bodies.

1600
04:27:01.340 --> 04:27:03.309
Boardroom: The second…

1601
04:27:03.650 --> 04:27:16.910
Boardroom: reason why is fiscal and operational. This Council is being asked to spend Berkeley's money, liability exposure, and political capital, expanding force, and surveillance capacity, when the single investment that would most improve the performance of officers in the field

1602
04:27:17.430 --> 04:27:21.689
Boardroom: Fully staffing the Emergency Communication Center remains unmade.

1603
04:27:22.220 --> 04:27:33.909
Boardroom: These tools create patience, not safety. CS gas and OC spray are indiscriminate. They do not distinguish a person posing a threat from

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the asthmatic bystander, the child, the elder, or the unhoused resident sheltering half a block away.

1604
04:27:34.100 --> 04:27:42.840
Boardroom: Clinically, exposure means chemical conjunctivitis and corneal injury, bronchospasm, and in patients with asthma or COPD, genuine risk of respiratory failure.

1605
04:27:44.220 --> 04:27:58.940
Boardroom: CS residue contaminates skin, clothing, and enclosed spaces for hours, extending exposure to everyone downstream, including the EMS crews who treat and transport contaminated patients. A chemical agent deployment is a mass casualty incident that the police hand to the EMS system.

1606
04:27:59.460 --> 04:28:06.899
Boardroom: Police canines inflict mauling injuries, deep tissue avulsions, neurovascular damage, wounds requiring surgical repair.

1607
04:28:07.760 --> 04:28:15.430
Boardroom: National data consistently show canine deployments fall disproportionately on black and brown residents, as been referenced by previous speakers.

1608
04:28:15.730 --> 04:28:25.270
Boardroom: Berkeley has run this experiment. In December 2014, BPD and mutual aid agencies deployed CS Gas against a demonstration. The Police Review Commission's independent investigation

1609
04:28:25.510 --> 04:28:33.730
Boardroom: found the response inadequately planned and excessive, harming peaceful demonstrators, journalists, and residents. The city paid to settle the resulting litigation.

1610
04:28:34.170 --> 04:28:44.960
Boardroom: The 2020 ban and the 1982 City Manager approval requirement are not red tape. They are Berkeley's institutional memory written down so we would not have to relearn these lessons in settlement dollars and emergency department visits.

1611
04:28:46.380 --> 04:28:52.170
Boardroom: Every dollar in this direction is a dollar taken from the investment that actually improves field policing. Dispatch.

1612

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04:28:53.060 --> 04:29:06.079
Boardroom: Consider what this policy direction actually costs. The surveillance expansion moving in parallel would roughly triple the city's annual commitment to a single vendor. Mutual aid, helicopter, and canine deployments carry per incident costs, and, as a Berkeley Police

1613
04:29:06.230 --> 04:29:19.719
Boardroom: Berkeley Accountability Board warned, chemical agents and canines carry significant litigation exposure, a warning Berkeley's own 2014-2017 experience validates. None of this buys a single additional trained professional answering a 911 call.

1614
04:29:20.270 --> 04:29:36.520
Boardroom: Meanwhile, the City's own 2022 Federal Engineering Needs Assessment documented chronic understaffing at the Emergency Communication Center. That shortage is not an abstraction. It is a structural bottleneck of Berkeley's entire public safety system, and it degrades the performance of every officer in the field, every shift.

1615
04:29:37.740 --> 04:29:43.550
Boardroom: That means slower call answering and call processing delays every response. Police, fire, and EMS.

1616
04:29:43.950 --> 04:29:49.770
Boardroom: Before a single unit turns a wheel. No weapon in this package recovers those seconds, only staff consoles do. Thank you.

1617
04:29:53.700 --> 04:29:55.780
Boardroom: Carol Morasovic.

1618
04:29:55.780 --> 04:30:20.540
Boardroom: When I first heard about proposals about canines, I thought these were the happy, soothing dogs that some police departments across the country used to de-escalate people in mental health crisis, that I learned about at CIT International. Instead, these appear to be the vicious mauling dogs that have been used by ICE and other police forces elsewhere, sometime mauling people.

1619
04:30:20.540 --> 04:30:25.049
Boardroom: Who are later proven to be wrongfully arrested.

1620
04:30:25.060 --> 04:30:26.980
Boardroom: and injured.

1621

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04:30:27.180 --> 04:30:49.220
Boardroom: And died, in some cases. Vulnerable people, such as autistic people, people with intellectual disabilities and mental disabilities, become agitated by intimidating presences, such as a vicious dog. That agitation, then, can be mistaken for a guilty suspect.

1622
04:30:49.220 --> 04:31:02.499
Boardroom: It can lead to injury, it can lead to death, it can lead to liability for the city, and BPD seems to have a recent history of success of arresting people. Why do we need dogs now? Thank you.

1623
04:31:08.810 --> 04:31:15.869
Boardroom: 1982. Was anyone ever on call in 1982? Do you remember what that was like?

1624
04:31:16.240 --> 04:31:24.240
Boardroom: In 1982, I was a nurse. I used to be on call. You'd have to carry a pager. If you were out, you'd have to look for a payphone.

1625
04:31:24.810 --> 04:31:29.679
Boardroom: This is, 2026, I think, isn't it?

1626
04:31:29.850 --> 04:31:49.539
Boardroom: And we all carry phones, or most of us carry phones, and what is the problem with pre-authorization when we have phones and we don't have to carry a pager and run around looking for a payphone to respond to that page? We really need to have…

1627
04:31:49.540 --> 04:31:53.810
Boardroom: Why should we take away pre-authorization? That doesn't make any sense.

1628
04:31:53.990 --> 04:32:13.610
Boardroom: What I've heard here tonight in your questionings, which was really quite excellent, thank you very much, is a lot of contradictions. And, I'm very concerned about the direction this is going when you get a good question, and then a kind of a different answer. Thank you.

1629
04:32:23.700 --> 04:32:24.620
Boardroom: Oh…

1630
04:32:25.620 --> 04:32:43.320
Boardroom: I have two extra minutes, one from Paul and one from Steve. Paul already… Paul already gave his minute. No, that Paul. Oh, the other

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Paul. Another Paul? Okay, alright. Thank you. I'm sorry if I messed up your name. No, no. Alright. I misunderstood which Paul you were referring to.

1631
04:32:43.480 --> 04:32:50.830
Boardroom: Well, and that's kind of the point. I wish all was well. And that's our choice.

1632
04:32:51.220 --> 04:32:53.259
Boardroom: What are we investing in?

1633
04:32:56.980 --> 04:33:03.330
Boardroom: A lot of people wouldn't burglarize if they had sufficient resources.

1634
04:33:04.410 --> 04:33:08.209
Boardroom: People wouldn't be appearing to be threatening.

1635
04:33:08.400 --> 04:33:11.810
Boardroom: If they had more mental health, Care.

1636
04:33:12.380 --> 04:33:21.470
Boardroom: If we had a community that invested in supporting each other, Concretely, literally.

1637
04:33:22.300 --> 04:33:31.440
Boardroom: We could reimagine the world so that we wouldn't be where we are now, all around the world, where every conceivable threat

1638
04:33:31.610 --> 04:33:34.050
Boardroom: Just needs to get annihilated.

1639
04:33:34.380 --> 04:33:38.370
Boardroom: Let's just eliminate all potential threat.

1640
04:33:38.580 --> 04:33:45.199
Boardroom: So while we're at it, should we get nuclear bombs in Berkeley? I'm not being facetious.

1641
04:33:45.660 --> 04:33:54.080
Boardroom: Because we end up… Where we are in the world now, slaughtering people, That are just different.

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1642
04:33:55.180 --> 04:33:58.099
Boardroom: Or… Whatever, unique.

1643
04:33:59.470 --> 04:34:03.790
Boardroom: And or we don't like them, and we prefer something else, it's inappropriate.

1644
04:34:04.520 --> 04:34:06.429
Boardroom: And again, back to you, Mayor.

1645
04:34:09.410 --> 04:34:10.990
Boardroom: Inclusivity.

1646
04:34:11.210 --> 04:34:13.680
Boardroom: Respect and support.

1647
04:34:14.330 --> 04:34:16.990
Boardroom: That might be a new tattoo for me.

1648
04:34:17.240 --> 04:34:24.169
Boardroom: Right? Because it's simple. And if Berkeley can't do it, who the heck on this planet is?

1649
04:34:24.360 --> 04:34:31.279
Boardroom: I say we can. So, in terms of disability, I consider us to be very able.

1650
04:34:31.849 --> 04:34:43.860
Boardroom: So I am recalling the empowerment of our hearts, and I understand the police, have… A direction of intention.

1651
04:34:45.640 --> 04:34:48.270
Boardroom: I'm not disparaging them.

1652
04:34:48.570 --> 04:34:51.779
Boardroom: I am just saying that shooting first.

1653
04:34:51.880 --> 04:35:09.969
Boardroom: is not always the best solution. And I'm also into loving animals. I consider using dogs this way. Animal cruelty, actually.

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They're meant to be companions. They're meant to be sniffers. Bouviers don't bite, they just stand over you.

1654
04:35:10.000 --> 04:35:16.069
Boardroom: And in an emergency, we need them. However, Not this way. And…

1655
04:35:16.200 --> 04:35:18.380
Boardroom: I'm just reminded of Rush Limbaugh.

1656
04:35:18.650 --> 04:35:23.859
Boardroom: Because he said it was easier to ask for forgiveness than permission.

1657
04:35:24.259 --> 04:35:29.299
Boardroom: I do not want to ask for forgiveness on my dying day.

1658
04:35:29.860 --> 04:35:35.019
Boardroom: For not standing for how we can care for each other, support each other.

1659
04:35:36.230 --> 04:35:38.749
Boardroom: Create a better world. Thank you.

1660
04:35:39.430 --> 04:35:40.960
Boardroom: Thank you.

1661
04:35:45.750 --> 04:35:49.600
Boardroom: Greetings, council members. I have 2 minutes, I believe.

1662
04:35:52.349 --> 04:35:53.390
Boardroom: Thank you.

1663
04:35:54.300 --> 04:35:58.749
Boardroom: Abolition means avoiding carceral solutions.

1664
04:35:58.980 --> 04:36:20.210
Boardroom: It means preventing more harm from occurring. This issue is all too deep for me. I was one of the people who was defending People's Park. I remember rifles pointed at me, screams in the night, fully prepared for tear gas and attack dogs, and whatever the riot police of UC Berkeley and all its institutions would throw at us for protecting community.

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1665
04:36:20.220 --> 04:36:29.350
Boardroom: I couldn't understand why this would happen to us for serving free food, for having simply a basketball court. Was it because we were black?

1666
04:36:29.890 --> 04:36:32.050
Boardroom: Was it because we were poor?

1667
04:36:32.980 --> 04:36:41.810
Boardroom: I don't understand how anyone, including anyone representing District 7, can vote to build on People's Park, knowing the history.

1668
04:36:42.200 --> 04:36:59.280
Boardroom: Respectfully, the council member that authored this item argues that the current approval process causes delay. But the city, overall, must prove necessity. What documented incident shows that this existing policy caused preventable harm?

1669
04:36:59.470 --> 04:37:07.249
Boardroom: If the city manager hasn't denied a request, why remove the safeguard instead of improving approval process?

1670
04:37:07.779 --> 04:37:24.470
Boardroom: Ultimately, the Council needs to compare alternatives. This means faster civilian authorization, non-violent curtailment, improved ground coordination, and strict limits on the mutual aid from other counties and institutions.

1671
04:37:25.759 --> 04:37:35.120
Boardroom: Berkeley should not import more aggressive practices from outside agencies and the historical history of this country.

1672
04:37:35.300 --> 04:37:42.929
Boardroom: UC Berkeley should not have the precedent to use attack dogs now if the city chooses to open this item.

1673
04:37:43.090 --> 04:37:49.280
Boardroom: I don't understand how any of our students can see this and think that it won't be affecting them.

1674
04:37:50.220 --> 04:37:55.500
Boardroom: High-risk tools, including animals.

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1675
04:37:56.980 --> 04:38:14.169
Boardroom: They need a higher public standard to be in operation before any change occurs. Prove, and tonight, prove the necessity for this. Prove that no alternative is capable to be, evaluated.

1676
04:38:14.360 --> 04:38:27.420
Boardroom: You heard tonight from people who talked about health impacts, from people who talked about their own history of police brutality, who show the precedent of these items and these tools of war, really.

1677
04:38:27.540 --> 04:38:39.299
Boardroom: to be used against civilians. And why? Because a mental health crisis? Why? Because someone is doing something wrong when they can be talked out, when they can have sanctuary.

1678
04:38:40.390 --> 04:38:51.069
Boardroom: The City Council needs to determine what type of future it wants to go in. I'm against carceral logic, I'm against penalizing people, I'm against using animals to cause harm.

1679
04:38:51.290 --> 04:38:52.480
Boardroom: Please choose.

1680
04:38:52.710 --> 04:38:53.919
Boardroom: Thank you.

1681
04:38:56.060 --> 04:38:59.229
Boardroom: Any other in-person public comment?

1682
04:38:59.419 --> 04:39:04.770
Boardroom: I do want to take a brief break before we go on to the virtual, because I think we've been…

1683
04:39:05.140 --> 04:39:06.559
Boardroom: Sitting for…

1684
04:39:06.830 --> 04:39:13.390
Boardroom: I don't remember how long now, but it's been a while. So, we're gonna take a quick break, and then a stretch break, and come back. Thank you.

1685

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04:39:14.610 --> 04:39:16.229
Boardroom: Excuse me!

1686
04:39:16.390 --> 04:39:26.659
Boardroom: Thank you. We're gonna get started. Okay, we are moving on to our online comment. Again, we are on… excuse me, folks, please?

1687
04:39:26.960 --> 04:39:41.129
Boardroom: We're on item 23, resolution rescinding resolution number 51480408NS, restricting the use of air support and canine units and updating mutual aid policies.

1688
04:39:41.130 --> 04:39:49.410
Boardroom: And we are moving to online comments, so if you have any, comment on this item, or 23B, please feel free to…

1689
04:39:49.470 --> 04:39:51.479
Boardroom: Raise your hand.

1690
04:39:52.120 --> 04:39:55.990
Boardroom: Okay, the first speaker is Mickey Duxbury.

1691
04:39:57.650 --> 04:39:58.740
Boardroom: Oh.

1692
04:40:00.460 --> 04:40:25.450
micky duxbury: It's… hi, my name is Mickey Duxbury, I'm a 40-year resident of the city, I'm in District 4. It's quite disturbing to me that in this political climate we're facing in the country, with understandable protests against authoritarian rule, that Berkeley would choose now to rescind important limits to militarized policing. There's been several references by the police to the need for more modernized policing, but modernized policing across the U.S, as most

1693
04:40:25.450 --> 04:40:36.119
micky duxbury: It actually meant billions more dollars to law enforcement instead of to the programs that we know that significantly decrease criminality, which we all agree needs to be decreased.

1694
04:40:36.120 --> 04:40:51.909
micky duxbury: I thought the city was moving in a different direction. Aren't we supposed to be looking at policing through a social justice lens? You're incre… these… these… rescinding these increases access to tools that invite escalation instead of encouraging de-escalation.

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1695
04:40:52.920 --> 04:41:04.520
micky duxbury: Berkeley PD has used force on Black people to rate 6 times higher in white, and let's not kid ourselves, canines and helicopters will be used at that same degree of risk. Thank you.

1696
04:41:05.170 --> 04:41:07.970
Boardroom: Thanks, Mickey. Next is Audrey.

1697
04:41:12.390 --> 04:41:28.790
Audrey Kramer: Good evening, Mayor and City Council. My name is Audrey Kramer. I live in D6, I'm a Cal student and a Cal Berkeley Democrat. I am urging you to vote no on this measure. As we know, policing in this city and this country disproportionately affect the minorities that you as a city say that you're trying to protect.

1698
04:41:28.850 --> 04:41:33.650
Audrey Kramer: Loosening police limitations only expands the surveillance state that we are devolving into.

1699
04:41:33.660 --> 04:41:41.090
Audrey Kramer: I'm also confused about the fiscal implications of this item. While the implications of this measure are quote-unquote fiscally insignificant.

1700
04:41:41.090 --> 04:41:54.640
Audrey Kramer: I know that every department in this city was cut significantly by the budget in the last couple weeks, and this money will come from some magical rearrangement, I don't know. I am wondering if there's any other way to rearrange this money to any other department besides this one.

1701
04:41:54.640 --> 04:41:57.850
Audrey Kramer: Thank you for your time. Have a good evening.

1702
04:41:58.090 --> 04:41:59.260
Boardroom: Thank you, Audrey.

1703
04:41:59.690 --> 04:42:04.559
Boardroom: Next is, former Councilmember Cheryl Davila.

1704
04:42:16.980 --> 04:42:19.009
Boardroom: Should be able to unmute.

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1705
04:42:20.480 --> 04:42:27.490
Former Councilmember Cheryl Davila: Okay, thanks, I wasn't at my… and my husband, can you stop the clock? Because I have an extra minute from my husband.

1706
04:42:29.460 --> 04:42:30.770
Former Councilmember Cheryl Davila: He's on there.

1707
04:42:31.720 --> 04:42:33.209
Former Councilmember Cheryl Davila: He's on the Zoom.

1708
04:42:33.210 --> 04:42:34.729
Boardroom: Yep, you've got it, go ahead. Okay.

1709
04:42:35.380 --> 04:42:37.099
Former Councilmember Cheryl Davila: Can you start the clock again, please?

1710
04:42:37.100 --> 04:42:39.309
Boardroom: It's already at 156. Go ahead.

1711
04:42:39.680 --> 04:42:41.910
Former Councilmember Cheryl Davila: I have 4 sections, I'll take it.

1712
04:42:43.970 --> 04:42:45.010
Former Councilmember Cheryl Davila: Anyway…

1713
04:42:45.010 --> 04:42:46.359
Boardroom: The clock is running, go ahead.

1714
04:42:47.040 --> 04:42:48.830
Former Councilmember Cheryl Davila: So,

1715
04:42:49.300 --> 04:43:08.799
Former Councilmember Cheryl Davila: Yeah, you need to vote no on this. I can remember as a child watching TV during the Civil Rights, watching dogs, hoses, all kinds of things on black and brown people, children, and what does the It's Not Real do, aka IS…

1716
04:43:08.800 --> 04:43:11.699

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Former Councilmember Cheryl Davila: R-E-A-L, I don't want to say their name.

1717
04:43:11.700 --> 04:43:25.590
Former Councilmember Cheryl Davila: What do they do? They use dogs to… Attack… Chase… Rape, hurt.

1718
04:43:26.480 --> 04:43:34.170
Former Councilmember Cheryl Davila: people, Palestinians, and, we already know the track record that,

1719
04:43:34.870 --> 04:43:51.540
Former Councilmember Cheryl Davila: BPD has, it's not good. And the dogs are used… were used in slave patrols, slave catching, that's what they did with those dogs. And, these tools are used

1720
04:43:51.540 --> 04:43:57.589
Former Councilmember Cheryl Davila: by the Zionists. So don't follow the Zionist ideology, and…

1721
04:43:57.600 --> 04:44:14.570
Former Councilmember Cheryl Davila: Also, tear gas, yeah, it was banned for a reason. It doesn't belong in our police department. It will hurt people. It will… it exacerbates, lung diseases. You can't control where the…

1722
04:44:14.590 --> 04:44:22.990
Former Councilmember Cheryl Davila: where it's gonna go, because it's… once you deploy it, everybody can get, hurt by it. And also.

1723
04:44:24.100 --> 04:44:32.660
Former Councilmember Cheryl Davila: pre-authorization is mandatory. We can't trust them. We know they lie. We know that they've racially profiled.

1724
04:44:32.660 --> 04:44:45.800
Former Councilmember Cheryl Davila: And they've done all kinds of things. You remember Kayla Moore? Remember the guy that they shot in the face? There's a few things. So, you know, say no. No, no, no. Be bold.

1725
04:44:45.800 --> 04:44:46.980
Former Councilmember Cheryl Davila: B, have courage.

1726

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04:44:46.980 --> 04:44:48.039
Boardroom: Thanks for your comment.

1727
04:44:50.660 --> 04:44:52.380
Boardroom: Next is Jordan.

1728
04:44:52.590 --> 04:44:54.160
Boardroom: Jordan Harger.

1729
04:44:56.850 --> 04:45:13.940
Jordan Harger: Alright. So, according to the Calcrum jury instructions, to be found guilty of burglary, you don't need to be armed, nobody needs to be home. I'm not trying to undermine or belittle those who've been harmed by burglary, but it is to say that burglars is not an inherently violent crime.

1730
04:45:14.060 --> 04:45:20.739
Jordan Harger: And we can't let a generalized fear of crime stop us from being specific with our language and meticulous with our policies.

1731
04:45:21.570 --> 04:45:31.149
Jordan Harger: Regardless of the crime at issue, giving the police department the ability to unleash police dogs upon people simply because they are suspected of a crime is abhorrent.

1732
04:45:32.110 --> 04:45:46.930
Jordan Harger: It brings to mind photographs of the Civil Rights Movement, and this proposed policy, in combination with efforts to increase video surveillance, reinstate tear gas, and a general kowtowing to the police department, is plainly indicative of a rightward swing of Berkeley's government.

1733
04:45:46.930 --> 04:45:53.970
Jordan Harger: We've clearly forgotten the promises of reimagining public safety process that the city enacted in the wake of George Floyd's murder.

1734
04:45:54.530 --> 04:46:02.269
Jordan Harger: We have data showing wildly disproportionate use of force against Black people in this city, as much as some of these council people…

1735
04:46:02.270 --> 04:46:04.320
Boardroom: Your time's up, thank you.

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1736
04:46:05.510 --> 04:46:07.860
Boardroom: Next is Veronica Fuchsen.

1737
04:46:14.160 --> 04:46:26.879
Veronika Fukson: Hello, my name is Veteranika Fuchsen. I sat on the City Council in 1982 that voted for that resolution that you were asked considering.

1738
04:46:27.330 --> 04:46:43.009
Veronika Fukson: I worked very closely with Gus Newport and Wadel Shirik on all of the measures that we passed and were very proud of. I want to raise a couple issues, and please, if you could give me the courtesy of a couple minutes, I would appreciate it.

1739
04:46:43.520 --> 04:46:48.010
Veronika Fukson: I have seen dogs turn on their handlers.

1740
04:46:48.850 --> 04:46:57.029
Veronika Fukson: I have seen a police dog be told to sit in a car, and it jumped out the window and attacked its handler.

1741
04:46:57.380 --> 04:46:59.050
Veronika Fukson: That's number one.

1742
04:46:59.200 --> 04:47:10.230
Veronika Fukson: Number two, a question that I have is, are any of the members of the police department dog handlers themselves? Do they have their own dogs that they would like to use?

1743
04:47:10.330 --> 04:47:17.709
Veronika Fukson: That was something that was raised with us when we formed, that policy that you're thinking of rescinding.

1744
04:47:18.250 --> 04:47:37.710
Veronika Fukson: Another point I want to make is surely there must be mechanical creatures that can be little robot-like creatures that can be put into buildings. It doesn't have to be a dog. I don't like the fact that they refer to it as canine. I think it's much better to call it what it is, which is a dog.

1745
04:47:38.170 --> 04:47:44.889

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Veronika Fukson: And the last thing I'd like to say is there are going to be a number of financial issues on the ballot.

1746
04:47:45.230 --> 04:47:52.799
Veronika Fukson: And every single one of them is going to have people thinking about it. Every time the city spends money.

1747
04:47:53.130 --> 04:48:07.190
Veronika Fukson: expenses, expensive programs, expensive issues, like helicopters and, trained animals from other jurisdictions, all of that mounts up, and

1748
04:48:07.660 --> 04:48:14.489
Veronika Fukson: I, if I were in your place, would be thinking about the implications when you want people to vote

1749
04:48:14.790 --> 04:48:18.100
Veronika Fukson: Put some money into governmental pockets that…

1750
04:48:18.100 --> 04:48:18.910
Boardroom: Phew.

1751
04:48:18.910 --> 04:48:20.440
Veronika Fukson: don't have right now.

1752
04:48:20.440 --> 04:48:24.899
Boardroom: Thanks, Veronica. We gave you an extra minute, but your time is up. Thank you.

1753
04:48:25.130 --> 04:48:29.419
Boardroom: next is… Rocky Chow.

1754
04:48:33.140 --> 04:48:56.430
Rocky Chau (he/him): My name is Rocky Chao with the Berkeley Animal Rights Center. I am vehemently opposed to Resolution 23A and in support of the Berkeley Peace and Justice Commission's 23B resolution. As a longtime animal rights activist, I understand the intersection of police exploitation of animals to implement state-sanctioned violence against vulnerable community members, especially black and brown folks. According to the Marshall Project, dogs trained by police

1755
04:48:56.430 --> 04:49:01.020

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Rocky Chau (he/him): Have been known to harm bystanders, with bites that inflict severe trauma or even death.

1756
04:49:01.020 --> 04:49:12.070
Rocky Chau (he/him): And of course, that makes sense. The police forcefully bred canines to harm others indiscriminately. Dogs are sentient beings who did not consent to being used as another one of police officers' toys.

1757
04:49:12.070 --> 04:49:18.779
Rocky Chau (he/him): If cops want to chase someone down or gain compliance, they should just try doing that themselves, as they're paid exorbitant amounts to do.

1758
04:49:18.780 --> 04:49:32.390
Rocky Chau (he/him): Using canines as weapons or tools are not modernization. It is straight-up animal cruelty, and a waste of our tax dollars. Animals do not deserve to be exploited. I urge the City Council to unanimously vote against using dogs. Also, Free Palestine.

1759
04:49:35.220 --> 04:49:36.440
Boardroom: Thank you.

1760
04:49:37.000 --> 04:49:39.009
Boardroom: Next is Michael Lyon.

1761
04:49:50.290 --> 04:49:52.259
Boardroom: Michael, you should be able to unmute.

1762
04:49:56.150 --> 04:49:57.000
Michael Lyon (he/him): Sorry.

1763
04:49:57.830 --> 04:50:03.890
Michael Lyon (he/him): I want to know what's on your mind when you're proposing all these police and surveillance measures against us.

1764
04:50:04.060 --> 04:50:10.569
Michael Lyon (he/him): Do you think your guns and tear gas and dogs are gonna stop us from demonstrating for what we deserve?

1765
04:50:11.140 --> 04:50:15.789
Michael Lyon (he/him): They had guns, gas, and dogs in the South, but people kept demonstrating.

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1766
04:50:15.920 --> 04:50:29.160
Michael Lyon (he/him): They had guns, gas, and dogs in 2020, but millions marched against police murders of George Floyd and Breonna Taylor. What makes you think that you can stop future class struggle?

1767
04:50:29.400 --> 04:50:37.970
Michael Lyon (he/him): The more you pass laws like this, the more people will realize that the whole capitalist system has to be overthrown. Thank you.

1768
04:50:40.250 --> 04:50:41.440
Boardroom: Thank you.

1769
04:50:43.000 --> 04:50:47.379
Boardroom: Next is, Berkeley Neighborhoods.

1770
04:50:50.810 --> 04:50:51.520
Boardroom: Hmm.

1771
04:50:52.870 --> 04:51:08.149
Berkeley Neighborhoods: Oh, that's me, Christopher Kroll. I'm actually speaking for myself. I hope the council today is reading the room. I think it's very clear that we need to maintain civilian control over police activity, and as Kelly Hammergren pointed out.

1772
04:51:08.350 --> 04:51:14.499
Berkeley Neighborhoods: the city manager's never far away. This is not 1982 anymore, as one of the council members

1773
04:51:14.900 --> 04:51:16.360
Berkeley Neighborhoods: pointed out.

1774
04:51:16.650 --> 04:51:25.660
Berkeley Neighborhoods: Secondly, this is animal abuse. We have a horrible history in this country of using animals, dogs, against people,

1775
04:51:26.070 --> 04:51:30.030
Berkeley Neighborhoods: it is animal abuse. I was in a Richmond vet

1776
04:51:30.150 --> 04:51:48.130

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Berkeley Neighborhoods: veterinary office, where a former police dog was brought in. They had to get everybody out of the office. The dog had been so traumatized. I don't know if it was shot or whatever. These animals don't choose to do this. Police officers, the people in front of you wearing police uniforms, they chose to do this. These dogs do not choose to do this.

1777
04:51:48.130 --> 04:51:55.180
Berkeley Neighborhoods: So please do not approve this retrograde request. We need to maintain the current.

1778
04:51:55.180 --> 04:51:56.879
Boardroom: Thank you. Thanks for your comment.

1779
04:51:58.260 --> 04:51:59.890
Boardroom: Next is Mina.

1780
04:52:03.420 --> 04:52:16.789
Mena K.: Hi. I want to share from the ACLU and the Physicians for Human Rights report from 2024, which found a lack of transparency and accountability regarding canine units across California.

1781
04:52:16.800 --> 04:52:23.510
Mena K.: Where no agency reported that it disciplined any officer for any use of force involving canines.

1782
04:52:23.770 --> 04:52:30.800
Mena K.: The ACLU also found that two-thirds of Californians severely injured by police dogs are people of color.

1783
04:52:31.070 --> 04:52:40.359
Mena K.: My god, black Californians are 2.6 times more likely to be seriously injured by police dog… police attack dogs than white people.

1784
04:52:40.480 --> 04:52:49.689
Mena K.: That can't be true, everyone. Are you serious? The police, weapon, or tool being disproportionately used on people of color? Wow.

1785
04:52:49.840 --> 04:53:02.429
Mena K.: That's how all of you sound. By not standing up and adamantly admonishing and condemning something so badwards. Why now? After 50 years, consider this. Why?

1786

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04:53:03.050 --> 04:53:04.449
Mena K.: That's it. Thank you.

1787
04:53:04.860 --> 04:53:05.509
Boardroom: Thank you.

1788
04:53:08.200 --> 04:53:09.310
Boardroom: Maryland?

1789
04:53:14.710 --> 04:53:15.840
Marilyn C: Thank you.

1790
04:53:16.400 --> 04:53:34.209
Marilyn C: Madam Mayor, members of the City Council, I'm a resident of District 4 and a member of the Berkeley Society of Friends and its Racial Justice Action Team. The Berkeley Society of Friends supports the recommendations of the Berkeley Peace and Justice Commission. The Commission recommends as an alternative to the co…

1791
04:53:34.240 --> 04:53:49.189
Marilyn C: Khazarwani, proposals to lift restrictions on these weapons and tools, to retain the existing 2020 bans on chemical weapons, CS and OC, and the 1982 bans on police dogs and helicopters.

1792
04:53:49.540 --> 04:54:02.489
Marilyn C: Two, to request the city manager engage in academic institutions such as UC Berkeley, UCSF, or Stanford to study the health impacts of tear gas and other chemical weapons and canine support.

1793
04:54:02.490 --> 04:54:15.730
Marilyn C: Potential short-term and long-term impacts on vulnerable populations, and possible alternatives to the use of chemical weapons that provide officer safety, suspect safety, and safety to the general public.

1794
04:54:16.100 --> 04:54:19.070
Marilyn C: I speak in opposition to the police department.

1795
04:54:19.070 --> 04:54:21.140
Boardroom: Comment, I'm sorry, but your time is up.

1796
04:54:22.980 --> 04:54:24.789
Boardroom: It is virtual meetings.

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1797
04:54:34.220 --> 04:54:35.669
Boardroom: You should be able to unmute.

1798
04:54:39.480 --> 04:54:54.550
Virtual Meetings: My name is Wendy Alfsson from District 4 Long-Term Resident, also with a Berkeley Friends meeting. Just want to point out, in opposition to rescinding the current resolution, that the

1799
04:54:54.990 --> 04:54:59.300
Virtual Meetings: What is being requested of you is that

1800
04:54:59.570 --> 04:55:12.240
Virtual Meetings: The police can use it, dogs, for a person who is not a threat to human life, who is not a suspect reasonably believed to be armed with a deadly weapon.

1801
04:55:12.510 --> 04:55:18.369
Virtual Meetings: And where does… Not in a controlled, contained area.

1802
04:55:18.600 --> 04:55:21.130
Virtual Meetings: Where there are no known occupants.

1803
04:55:21.900 --> 04:55:24.659
Virtual Meetings: So you're gonna expand that to…

1804
04:55:25.270 --> 04:55:28.760
Virtual Meetings: Some suspect who's wanted for a violent

1805
04:55:29.260 --> 04:55:32.499
Virtual Meetings: Felony, that's not a threat to human life.

1806
04:55:33.610 --> 04:55:40.370
Virtual Meetings: Where they possess a weapon likely to cause serious bodily injury that's not a deadly weapon.

1807
04:55:40.570 --> 04:55:42.880
Virtual Meetings: And… etc.

1808
04:55:42.880 --> 04:55:44.630
Boardroom: Thanks, Wendy.

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1809
04:55:45.880 --> 04:55:48.870
Boardroom: Next is… Jacob?

1810
04:55:52.420 --> 04:56:00.400
Jacob Dadmun: Hello, everyone. My name is Jacob Dadman. I live in D3, and although I serve on a city commission, I'm just here as an individual.

1811
04:56:00.400 --> 04:56:17.480
Jacob Dadmun: I'm not gonna be able to separately comment on the tear gas item, so consider this comment on that item as well. I'm here expressing my disappointment that the city is spending its time creating more avenues for policing that's based on fear, intimidation, and pain.

1812
04:56:17.500 --> 04:56:29.219
Jacob Dadmun: The tools being discussed today have a shameful past of being used to repress and attack innocent people, and police canines and air support in particular have a particularly racialized history.

1813
04:56:29.380 --> 04:56:49.169
Jacob Dadmun: Public safety is a huge issue for Berkeley residents, but this doesn't make people feel safer. Given that we are seeing a historic downward trend in crime across the board, I support Councilmember Bartlett's resolution to update the existing resolution to include new policing situations. Thank you very much.

1814
04:56:51.080 --> 04:56:51.720
Boardroom: Thank you.

1815
04:56:51.720 --> 04:56:52.290
Jacob Dadmun: Yep.

1816
04:56:54.280 --> 04:56:56.890
Boardroom: Next is, Cindy.

1817
04:57:03.030 --> 04:57:12.730
Cindy Shamban: Yeah, hi. My name is Cindy Shamban, and I live in District 4, and I,

1818
04:57:12.960 --> 04:57:20.139
Cindy Shamban: really support a lot of what is being said, and I just want to,

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1819
04:57:20.360 --> 04:57:28.090
Cindy Shamban: put my name in support, rather than kind of repeating everything. But,

1820
04:57:28.090 --> 04:57:41.089
Cindy Shamban: two things come to mind, and one is, the chief mentioned that there were… or, Deputy Chief, that there were,

1821
04:57:41.890 --> 04:57:52.909
Cindy Shamban: Several different kinds of dogs, and that they never knew which one they were gonna get, and that seems,

1822
04:57:53.450 --> 04:57:56.660
Cindy Shamban: To put everybody in more harm.

1823
04:57:56.950 --> 04:58:06.549
Cindy Shamban: The other thing is that with helicopters, if they're being used to, go after people…

1824
04:58:06.550 --> 04:58:07.590
Boardroom: comment, your time.

1825
04:58:07.590 --> 04:58:08.370
Cindy Shamban: diving?

1826
04:58:09.400 --> 04:58:10.929
Boardroom: Next is Joel.

1827
04:58:17.610 --> 04:58:27.789
Joel Gerwein: Hi there, my name's Joel Gerwine, I'm a resident of District 2. I'm speaking against this measure,

1828
04:58:27.940 --> 04:58:42.959
Joel Gerwein: I just want to echo the sentiments. Public safety, you know, crime has been on a downward trend. This is not the time to authorize these kinds of expanded violent measures by police.

1829
04:58:43.060 --> 04:58:59.059
Joel Gerwein: It's a time to invest our resources in our communities as a way to keep improving public safety in a much more constructive fashion. So please vote no on this matter. Thank you.

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1830
04:58:59.930 --> 04:59:00.879
Boardroom: Thank you.

1831
04:59:02.980 --> 04:59:04.690
Boardroom: Next is Russell.

1832
04:59:09.330 --> 04:59:17.110
RussellBates: Well, I've found that, when I know what I'm feeling, I can deal with it a little bit better. And lately.

1833
04:59:17.420 --> 04:59:30.639
RussellBates: A word came to my mind as I've been listening to this tonight, dread, the second definition. It's an intransitive verb, it says to anticipate with alarm, distaste, or reluctance.

1834
04:59:30.730 --> 04:59:45.280
RussellBates: Now, I'm reminded quite a bit of… that was the feeling that I had when we went overseas in 1968. I was alarmed, distasteful, and reluctant to go, but I went anyways.

1835
04:59:45.390 --> 04:59:53.160
RussellBates: The robot dogs… That somebody suggested we get. The Army and the Marines have been…

1836
04:59:53.340 --> 05:00:06.929
RussellBates: implementing robot dogs for a while to carry their baggage, but now, as I understand it, they've enabled the dogs to be able to fire, quite accurately rifles and or machine guns.

1837
05:00:07.000 --> 05:00:13.600
RussellBates: So what we see today may not be what we see tomorrow. Thank you very much.

1838
05:00:14.610 --> 05:00:15.750
Boardroom: Thanks, Russell.

1839
05:00:18.060 --> 05:00:19.670
Boardroom: Next is Julie.

1840
05:00:23.370 --> 05:00:32.599
juli dickey: I think… I think I can still speak. Yeah, my name is Julie Dickey, I'm District 4, and I'm speaking against this.

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1841
05:00:33.490 --> 05:00:39.120
juli dickey: We've been reminded over and over about the city's fiscal deficit.

1842
05:00:39.320 --> 05:00:51.450
juli dickey: So, forgive us if we are particularly sensitive to increased spending for programs that we don't see as helpful, while ones that have proven their worth are being cut.

1843
05:00:52.140 --> 05:01:09.880
juli dickey: The fact is, fear is the current ocean we are all swimming in. It's a very well-honed strategy from the top of this regime, and the purpose is to have us all turn against each other and be afraid of each other.

1844
05:01:10.240 --> 05:01:16.440
juli dickey: Maybe we in Berkeley could just pause and show the rest of the world

1845
05:01:16.580 --> 05:01:24.109
juli dickey: Berkeley, this one place, refuses to live under this contagion of fear. Thank you.

1846
05:01:25.680 --> 05:01:27.239
Boardroom: Thank you.

1847
05:01:29.530 --> 05:01:31.150
Boardroom: Next is Mimi.

1848
05:01:35.710 --> 05:01:43.820
Mimi Main: Hi, my name is Mimi, and I live in District 8. I joined the Commission call earlier this year on these proposals.

1849
05:01:44.070 --> 05:01:52.829
Mimi Main: Around 100 Berkeleyans spoke passionately and eloquently from a diversity of backgrounds and experiences against these proposals.

1850
05:01:53.330 --> 05:01:58.279
Mimi Main: Not one person spoke in support, just like what's happening here tonight.

1851

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05:01:58.950 --> 05:02:02.490
Mimi Main: Each person was respectfully thanked for their comment.

1852
05:02:02.820 --> 05:02:05.409
Mimi Main: And then the Commission moved the items forward.

1853
05:02:07.010 --> 05:02:15.829
Mimi Main: That is the M.O. of this Council. Listen condescendingly to outraged, fearful, passionate, and unanimous public comment.

1854
05:02:16.050 --> 05:02:19.129
Mimi Main: And then support the opposite. I am…

1855
05:02:19.330 --> 05:02:25.810
Mimi Main: Disgusted, embarrassed, and appalled by the council members who support these measures and the flock expansion. Thank you.

1856
05:02:30.800 --> 05:02:33.799
Boardroom: Next is, CeCe.

1857
05:02:47.450 --> 05:02:51.489
Ceci: Hi. Can you hear me? I'm,

1858
05:02:51.950 --> 05:03:02.819
Ceci: Just another Berkeley resident echoing the comments from the many folks who already spoken that attacks dogs… attack dogs are a terrible idea.

1859
05:03:03.650 --> 05:03:08.329
Ceci: Especially if we've not that long ago been sued over them.

1860
05:03:08.750 --> 05:03:15.220
Ceci: So, it's a shocking… To me, as to many people that

1861
05:03:15.580 --> 05:03:21.590
Ceci: It's a possibility that you might… Vote to make this okay.

1862
05:03:21.750 --> 05:03:29.790
Ceci: Also against using a weapon against citizens that have been… that's been banned from use in wars.

1863

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05:03:31.580 --> 05:03:34.300
Ceci: Again, that's just…

1864
05:03:34.780 --> 05:03:47.509
Ceci: Hits a person in the gut, and then, against the use of police helicopters, which are intimidating, and would give our town the feeling of a police state.

1865
05:03:47.900 --> 05:03:50.840
Ceci: I hope you vote no on all of these.

1866
05:03:50.840 --> 05:03:51.810
Boardroom: Thank you.

1867
05:03:53.680 --> 05:03:55.580
Boardroom: Next is Jonathan.

1868
05:04:02.120 --> 05:04:03.569
Jonathan: Can you hear me?

1869
05:04:03.780 --> 05:04:04.610
Jonathan: Yes.

1870
05:04:05.940 --> 05:04:10.309
Jonathan: I've only… I've lived in Berkeley for a few years, you might have to turn yours down.

1871
05:04:14.060 --> 05:04:20.420
Jonathan: And I've only seen crowds associated with Anti-Trump protests?

1872
05:04:20.700 --> 05:04:23.760
Jonathan: Anti-ICE protests, pro-Palestine protests.

1873
05:04:24.300 --> 05:04:29.249
Jonathan: And I have to wonder why we need such serious crowd control.

1874
05:04:29.540 --> 05:04:31.840
Jonathan: Utilities.

1875
05:04:32.190 --> 05:04:35.050
Jonathan: I mean, is this what we need to control?

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1876
05:04:35.420 --> 05:04:39.190
Jonathan: Why does Berkeley need this stuff? It just seems so strange.

1877
05:04:39.480 --> 05:04:44.820
Jonathan: So that's all I wanted to say. I mean, do… is that what we want to control?

1878
05:04:45.800 --> 05:04:50.250
Jonathan: Crowds associated with pro-Palestine, anti-Trump, or anti-ICE.

1879
05:04:52.630 --> 05:04:53.530
Jonathan: I'm done.

1880
05:04:54.060 --> 05:04:55.440
Boardroom: Thank you.

1881
05:04:56.310 --> 05:04:58.589
Boardroom: Next is Paola La Verde.

1882
05:05:03.170 --> 05:05:21.319
Paola Laverde: Yes, good evening, Councilmembers and Madam Mayor, Paola De Five. I am asking you to please support the Police Accountability Board and the Peace and Justice Commission's, recommendation. Vote no on Councilmember Kasarani's proposal.

1883
05:05:21.320 --> 05:05:37.149
Paola Laverde: This past March, the Berkeley Police Department talked about how crime is down in Berkeley by 11% overall, thefts fall 16%, burglaries fall 9%, robberies fall by 20%, although aggravated assaults went up by 16%, and

1884
05:05:37.150 --> 05:05:44.430
Paola Laverde: sexual assaults by 13%. I also want to mention that the Los Angeles Police Department last week

1885
05:05:44.440 --> 05:05:46.630
Paola Laverde: Counsel their,

1886
05:05:46.730 --> 05:06:05.229
Paola Laverde: flaw contract, and it came out today, or this week, in Wired Magazine about how, drones being used in San Francisco, the video

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was being, you know, distributed all over the internet. So vote no, we don't need more authoritarian rule. This is not what Berkeley's about. Thank you.

1887
05:06:05.230 --> 05:06:06.530
Boardroom: Thank you.

1888
05:06:09.500 --> 05:06:11.430
Boardroom: That's it, that's the last speaker.

1889
05:06:12.580 --> 05:06:18.479
Boardroom: Okay, thank you. Are there Councilmember comments on this item?

1890
05:06:20.660 --> 05:06:23.460
Boardroom: On either item, actually. 23A or B.

1891
05:06:26.770 --> 05:06:34.690
Boardroom: Yes. Go ahead, Councilmember Lenopara. I have a question that I thought about in the meantime.

1892
05:06:35.750 --> 05:06:38.860
Boardroom: Is there any scenario where a…

1893
05:06:39.240 --> 05:06:43.390
Boardroom: A canine would be used on… during an encampment sweep.

1894
05:06:48.750 --> 05:06:52.899
Boardroom: So, during an encampment sweep, that… that wouldn't…

1895
05:06:53.450 --> 05:07:05.090
Boardroom: hit any of the criteria unless there was something we knew about, an individual who was wanted in connection with a serious felony, or that met any of the thresholds in here, so the general answer would be no.

1896
05:07:05.880 --> 05:07:09.690
Boardroom: Okay, thank you. I have more comments later, but I just wanted to ask that.

1897
05:07:12.610 --> 05:07:26.780

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Boardroom: Actually, I have an additional question as well. I know there were some folks who brought up cost, and I think it would be helpful to understand what the cost associated with this item looks like. I think it would be helpful to give folks an idea.

1898
05:07:28.540 --> 05:07:31.830
Boardroom: So there are no additional costs associated with it.

1899
05:07:32.310 --> 05:07:42.920
Boardroom: I understand that, but what is the current cost that we, you know, expend, in using police and helicopter, police helicopters and canines?

1900
05:07:43.100 --> 05:07:56.249
Boardroom: Like, do we incur any costs? It's mutual assistance, so it would be, like, an officer from another city asking for an officer to come over and cover them on a car stop. So there's no additional charge? No.

1901
05:07:56.470 --> 05:08:01.560
Boardroom: Okay, so… Thank you, thank you.

1902
05:08:01.940 --> 05:08:07.619
Boardroom: Could you, could you speak to the, reimbursement aspect of that, please?

1903
05:08:09.540 --> 05:08:15.200
Boardroom: The only thing I can think of is any reference to mutual aid, so if…

1904
05:08:15.200 --> 05:08:35.319
Boardroom: you know, city comes and provides mutual aid, which is a process through the county, where, whatever our response is has exceeded the capabilities of the jurisdiction, for things like natural disasters, unplanned events, there is a process where that agency can seek reimbursement. That is not the case for mutual assistance that we get for the use of these types of tools.

1905
05:08:35.360 --> 05:08:46.780
Boardroom: Thank you, I appreciate you clarifying that. And then, I think that was my only other question. I will go to Councilmember Humbert for comments. Thank you, Madam Mayor.

1906
05:08:47.330 --> 05:09:04.129

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Boardroom: I want to thank Councilmember Kasarwani for bringing this item forward, Chief Lewis and Arlo for their work on it, Deputy Chief Tate, as well as the City Council Public Safety Subcommittee, the PAB, and the Peace and Justice Commission for its presentation.

1907
05:09:04.390 --> 05:09:18.819
Boardroom: Candidly, I think that Councilmember Kesarwani's approach simply makes sense. I think that we should, as we are doing, establish use policies and limitations, and the ones in this item are very limited and restricted.

1908
05:09:18.920 --> 05:09:35.820
Boardroom: and trust in our council-appointed police chief to carry out those policies. In the event that a police chief abrogates those policies, our police accountability board, city manager, and council have the ability and necessary tools to address policy violations.

1909
05:09:36.280 --> 05:09:52.840
Boardroom: The current approach, our current approach, which requires, prior approval, seems to rest on a fundamental assumption of disagreement and distrust between the police chief and the city manager and the city council. And I don't believe we currently suffer from that level of distrust.

1910
05:09:53.010 --> 05:10:01.399
Boardroom: We have an excellent police chief and deputy chief, who I believe work very hard to carry out the policies established by this council.

1911
05:10:01.530 --> 05:10:17.569
Boardroom: When lives and public safety are on the line, that is not the moment to be teeing up a required choke point and potential conflict between the city manager and the police chief or watch commander. In that moment, the police chief and or watch commander will have ready access to information

1912
05:10:17.570 --> 05:10:28.070
Boardroom: the city manager may not, and which the city manager cannot reasonably absorb or critically evaluate in a reasonable amount of time. And of course, I'm dealing primarily here with the change in process.

1913
05:10:28.390 --> 05:10:47.429
Boardroom: The heat of the moment is not the time to be adjudicating the finer points of our use policies. And again, if heaven forbid we were to have a police chief engaging in more egregious violations of these policies, that would point to a bigger problem that requires a different

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approach than, you know, instance-by-instance approvals from the city manager.

1914
05:10:47.560 --> 05:11:01.559
Boardroom: Similar to some of the comments I gave earlier on the ODPA report, I think our current policy focuses on the wrong things. I think we made a mistake in adopting policies that compel the city manager to routinely make split-second decisions

1915
05:11:01.720 --> 05:11:15.309
Boardroom: potentially second-guessing the helicopter and canine unit use decisions of the police chief or the watch commander. I don't think this is an effective mechanism for ensuring public safety or protecting the civil rights of Berkeley residents.

1916
05:11:15.600 --> 05:11:21.069
Boardroom: I therefore will be supporting this item, and I move its adoption. Second.

1917
05:11:23.910 --> 05:11:32.159
Boardroom: I'd actually like to make a friendly amendment. I think now would probably be an appropriate time, so that way council members can comment, on it.

1918
05:11:32.540 --> 05:11:34.979
Boardroom: He'll give me a moment, I will pull it up.

1919
05:11:44.160 --> 05:11:48.790
Boardroom: This is just… Councilmember Kessarwani's item.

1920
05:11:49.890 --> 05:11:54.390
Boardroom: Yes, that's correct. Yes, that's correct. Thank you, Mr. Clerk.

1921
05:11:56.070 --> 05:11:58.570
Boardroom: Thank you. So…

1922
05:12:00.080 --> 05:12:18.939
Boardroom: The proposed friendly amendment would be to add back this section about, provided that the suspect is in a controlled, contained area, and there are no known occupants of the area other than the suspect, focusing instead of… on a deadly weapon, as opposed to… I think the wording is…

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1923
05:12:19.610 --> 05:12:23.810
Boardroom: Not sure if… Sorry, I don't have…

1924
05:12:27.170 --> 05:12:28.520
Boardroom: Give me a moment.

1925
05:12:28.720 --> 05:12:39.759
Boardroom: So instead of, there's a reasonable belief that the suspect possesses a weapon likely to cause serious bodily injury, my suggestion is a deadly weapon, specifically.

1926
05:12:39.760 --> 05:12:57.420
Boardroom: And then, and then some changes here that would tie back to that, and then also specifically listing homeless camp and abatements as a categorical prohibition, because although, you know, you didn't say that that was included as a possibility, I think it's good to lay things out clearly.

1927
05:12:58.770 --> 05:13:01.150
Boardroom: That would be the friendly amendment.

1928
05:13:02.390 --> 05:13:11.600
Boardroom: Thank you for that. I'm just processing… I think I'm… some of this, may be okay. I did want to…

1929
05:13:11.850 --> 05:13:19.780
Boardroom: ask the Chief to opine, you know, we just had a discussion about how the prior resolution was very limiting.

1930
05:13:19.900 --> 05:13:26.230
Boardroom: In only allowing use of the canine in a controlled, contained area, So…

1931
05:13:26.650 --> 05:13:45.820
Boardroom: this seems problematic for me to accept that, but I just want to get your opinion, Chief. Yeah, I would be concerned about that language as being over-limiting to our ability to use it in a condition under which, trained canines could be deployed safely, even in such an environment. This would, reduce all those opportunities by doing that.

1932
05:13:46.760 --> 05:14:04.399

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Boardroom: So, I don't think I can accept that. I, I do want to ask about this insertion of deadly weapon, because I, I believe previously we just said, possesses a weapon likely to cause serious bodily injury. Is there…

1933
05:14:04.750 --> 05:14:05.859
Boardroom: when we use…

1934
05:14:05.920 --> 05:14:22.639
Boardroom: the adverb deadly, I mean, does that have a… is that, like, a term of art that's different from just saying a weapon likely to cause serious bodily injury? Yeah, I think we could work with that language, but how I would interpret that language would be a deadly weapon would be a…

1935
05:14:22.700 --> 05:14:26.680
Boardroom: weapon that could likely cause serious bodily injury. So I guess I would…

1936
05:14:26.680 --> 05:14:51.639
Boardroom: want to hear more about what was expected by that word, deadly. Okay. Yeah, it's just, it would return it to the word that existed previously. I think that my concern is that there are a lot of things that could be used to cause deadly bodily injury, like a sharp stick could even char- char- you know, cause bodily injury, so I think this just makes it more specific towards something like a gun, or a knife, or something like that. Yeah, I guess my only concern would be

1937
05:14:51.640 --> 05:14:53.839
Boardroom: If the individual had…

1938
05:14:53.840 --> 05:15:08.699
Boardroom: been engaged in some activity with whatever that item was, that is not traditionally a deadly weapon, but is by their behavior before they went into an area that we needed to apprehend them in. But they had exhibited something that made that item, whatever it was.

1939
05:15:08.770 --> 05:15:29.069
Boardroom: being used as a deadly weapon, would that… would it be precluded from a canine deployment based on the word deadly having been added? Well, and I think what you just said is that if the person had previously used whatever it was, that object, as a deadly weapon, then that would be a deadly weapon. Let me give you an example, and, you know… Yeah, that would be helpful. A rake.

1940
05:15:29.170 --> 05:15:46.419

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Boardroom: you know, is a rake considered a deadly weapon? Not traditionally or typically, but if that person was doing something, swinging it, people had just attacked somebody with it and then fled somewhere, would it… you know, my interpretation would be that that language would then allow us to deploy the canine based on that, and I just want to make sure…

1941
05:15:46.420 --> 05:15:50.039
Boardroom: that that's what you mean by the word deadly? I think if someone had…

1942
05:15:50.650 --> 05:16:11.399
Boardroom: killed somebody with a rake, I would consider… I would be very surprised, and I would also be surprised if a rake was being used… excuse me… if a rake was being used in… can you say more about… I guess what… so, the qualifier deadly weapon does not necessitate that that actual weapon at that time by that person caused death before we…

1943
05:16:11.500 --> 05:16:20.190
Boardroom: it's the fact that they have something, they've shown an indication by their use of it. So, typically, somebody having a garden tool is not

1944
05:16:20.440 --> 05:16:29.160
Boardroom: you wouldn't think of that as a deadly weapon. But if they were doing things with garnish ears, or a rake, or whatever, before they… we lost sight of them as part of the crime that they had.

1945
05:16:29.160 --> 05:16:53.940
Boardroom: then for me, that would be a deadly weapon. That's a thing that they have showing the propensity for causing great seriously bodily injury with. What I'm hearing, Chief, is you're saying that there's not much of a difference between the two verb… verbages, so that that would be… As long as an issue for you to… Right, as long as I'm understanding that that would fall within the definition of what you're suggesting by deadly. I mean, as long as that aligns with our previous definition, then that would

1946
05:16:53.940 --> 05:16:55.030
Boardroom: fall within it.

1947
05:16:56.370 --> 05:16:57.480
Boardroom: Bye.

1948
05:16:58.430 --> 05:16:59.650

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Boardroom: I would say so.

1949
05:17:00.920 --> 05:17:17.059
Boardroom: Okay, so then the other change, you scrolled beyond it, if you want to go up a bit, is to remove the suspect is wanted in connection with a residential burglary. I'd be concerned about taking that away. Chief, do you want to opine?

1950
05:17:17.540 --> 05:17:40.419
Boardroom: Yeah, I mean, I think we provided the instances why it's importantly, concerning to us, that type of particular crime. Obviously, whatever Council's direction is, we will follow in adopting the policy, but that's my primary concern with that. Councilmember, I think it might be best, since you're the one who has to accept the friendly amendments or not, if you could just state your opinion on these different.

1951
05:17:40.630 --> 05:17:57.740
Boardroom: changes, because otherwise it's hard for us to know what you would be okay with accepting. Okay, well, you know, given that you're just presenting this now, and I haven't had the Chief's input, I feel that that's also important. I am prepared to give you an opinion, but I want to hear hers as well.

1952
05:17:57.970 --> 05:17:59.860
Boardroom: So, we can go on.

1953
05:18:00.850 --> 05:18:07.749
Boardroom: So, in terms of deadly in the other paragraph, it seems like that doesn't change

1954
05:18:08.880 --> 05:18:22.920
Boardroom: what we've already said, which is causing great bodily injury. It seems like it's just an extra word, so I don't have a problem with that, and I don't have a problem with homeless encampment abatements as a prohibited category, since it's clear that

1955
05:18:24.350 --> 05:18:31.279
Boardroom: that action just… it doesn't qualify as an authorized use, so I'm happy to clarify that in the prohibitions.

1956
05:18:31.670 --> 05:18:49.149
Boardroom: Did you have anything further below? No, that's it. So, just to clarify, this is… I can go over it again, what I will accept and what I won't accept. So, I won't accept, provided the suspect is in a

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controlled, contained area, and there are known… no known occupants of the area.

1957
05:18:49.860 --> 05:18:52.409
Boardroom: I will accept Deadly Weapon.

1958
05:18:53.190 --> 05:18:56.490
Boardroom: And 0.2, and I won't accept 0.3.

1959
05:18:57.370 --> 05:18:58.860
Boardroom: being removed.

1960
05:18:59.810 --> 05:19:01.940
Boardroom: and then I can accept those other…

1961
05:19:02.150 --> 05:19:11.929
Boardroom: three red words in paragraph C. And you're a seconder? Yes, I could accept the same things that Councilmember Casawani could accept. Okay, thank you.

1962
05:19:12.250 --> 05:19:19.649
Boardroom: Okay, so, additional comments from Council Members. Next is Councilmember Humbert.

1963
05:19:21.680 --> 05:19:22.920
Boardroom: Oh, I'm sorry.

1964
05:19:23.600 --> 05:19:26.529
Boardroom: Oh, yes. Councilmember Bartlett.

1965
05:19:27.120 --> 05:19:29.630
Boardroom: Thank you. I'm curious,

1966
05:19:29.750 --> 05:19:33.970
Boardroom: Yes, operationally, with the 30-minute delay.

1967
05:19:34.110 --> 05:19:37.999
Boardroom: And that's at issue here. I'm curious, what is the…

1968
05:19:38.380 --> 05:19:40.069
Boardroom: What happens in those 30 minutes?

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1969
05:19:42.050 --> 05:20:00.730
Boardroom: Officers are sitting in a containment position, potentially with an armed subject who's dangerous. Their positions could be compromised where they are. Someone who is a dangerous individual could be fleeing, and… and not accessible to us.

1970
05:20:00.780 --> 05:20:16.159
Boardroom: And ultimately, if the individual is, doing something that is creating a threat to public safety in that moment, they can potentially continue that until we have the assets available or resources available to get there.

1971
05:20:16.160 --> 05:20:34.730
Boardroom: Also, for the, for the example of a helicopter, that delay means that likely we, we no longer have, identified, have that suspect located. Well, no, I mean the, just the, like, what is the… the process delay, exactly? Like, are you probably, like, is the chief, are you, you're called the, the cops calling the chief?

1972
05:20:34.730 --> 05:20:58.840
Boardroom: She's calling city manager. The on-scene supervisor is asking a watch commander. It's going to the captain, who's calling me. It just happens to be usually about 3 in the morning. I then am asking pertinent questions. I contact the city manager, I get him on the phone. There are sometimes an additional question that he might ask that I didn't think to ask, that I might have to call back to the captain to get

1973
05:20:58.840 --> 05:21:00.580
Boardroom: Feedback from…

1974
05:21:00.580 --> 05:21:07.240
Boardroom: Before I call back the city manager, and then it's got to go all the way back down to get that resource going. Then we have to contact the resource and get the resource on its way.

1975
05:21:07.420 --> 05:21:24.879
Boardroom: What if you had a group text? It's a conversation around me asking questions about how long has this been, what was the weapon, did people actually see the gun, what was the crime, have you contacted witnesses, all those questions that I know the city manager is gonna also be asking me, so that I can do that.

1976
05:21:25.140 --> 05:21:28.499
Boardroom: But what if he could have live eyes on those questions?

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1977
05:21:29.220 --> 05:21:39.579
Boardroom: And then could respond to the questions real time. Every minute that we are not either containing or getting a helicopter coming so they can begin the pursuit of the vehicle means we've either lost the pursuit.

1978
05:21:39.770 --> 05:21:43.820
Boardroom: Or that we are putting in the community and the officers at risk. Okay.

1979
05:21:46.230 --> 05:21:49.690
Boardroom: Did you have any other comments, or just those questions?

1980
05:21:51.800 --> 05:21:56.270
Boardroom: Councilmember, did you have… No, no, no. No, okay. Alright, Councilmember Treyko.

1981
05:21:58.720 --> 05:22:13.210
Boardroom: Thank you. A couple of questions. I am… I'm trying to wrap my head around, 2A3, the suspect is wanted in connection with a residential burglary.

1982
05:22:13.580 --> 05:22:28.320
Boardroom: Could you define or elucidate on the difference between a burglary and something like a robbery in progress? Can you specify what the needs analysis would be?

1983
05:22:28.560 --> 05:22:29.490
Boardroom: Forever.

1984
05:22:30.620 --> 05:22:38.440
Boardroom: burglary, and then lastly on this, wanted in connection with… I mean, I…

1985
05:22:38.630 --> 05:22:49.210
Boardroom: I have absolute faith in, the professionalism of PD. I've said that many… our PD, I've said that many times from the dais.

1986
05:22:49.620 --> 05:22:53.820
Boardroom: Humans can make mistakes.

1987

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05:22:53.990 --> 05:22:59.339
Boardroom: What if this is someone who may be wanted, but,

1988
05:22:59.670 --> 05:23:06.590
Boardroom: You know, turns out it's, you know, someone else is,

1989
05:23:06.840 --> 05:23:13.890
Boardroom: The culprit, what are the safeguards that would be in place at that point?

1990
05:23:14.320 --> 05:23:17.160
Boardroom: Yeah, a couple things, just to quickly comment on the diff…

1991
05:23:18.200 --> 05:23:25.200
Boardroom: Robbery and a burglary. What we're talking about with a residential burglary is, either a suspect is known to be in a house.

1992
05:23:25.390 --> 05:23:31.289
Boardroom: And, like we said, this is the safe space. This is the place where someone is most at risk.

1993
05:23:31.290 --> 05:23:56.239
Boardroom: If, you know, and flees and is in a contained area that has fled from that kind of crime, that's a very egregious crime, or is potentially in that residence still, and we're trying to locate that person knowing that they're inside. The difference between that and a street robbery or a robbery is that, you don't have that same, contained environment where the person… but if the robber that was an armed robber fled into a

1994
05:23:56.240 --> 05:24:07.699
Boardroom: block and was then in a contained block, then it would fall underneath the category of an armed and violent felon who has the weapon. As far as, sorry, what was the second question? It was about,

1995
05:24:08.260 --> 05:24:26.620
Boardroom: Well, mistakes of identity. Oh, mistakes of identity. And what I shared earlier about the process that you go through before you deploy a dog, and the mistaken identity and things like that, that is why, exactly why you have leads, that's why you then make announcements, that's why you do all those steps first, before you

1996
05:24:26.740 --> 05:24:35.769

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Boardroom: deploy a dog to apprehend in a way, other than, find in by bark, you know, to locate, to do search, to do, to do announcements and call-outs.

1997
05:24:36.520 --> 05:24:52.069
Boardroom: And so, you mentioned contained space, or enclosed space, and it sounds like that is an element of when, like, a decision analysis around, deployment,

1998
05:24:52.860 --> 05:24:58.230
Boardroom: So then, it was also mentioned that,

1999
05:24:58.440 --> 05:25:05.090
Boardroom: It, it, it is your, judgment that,

2000
05:25:05.950 --> 05:25:11.119
Boardroom: Using the terms of our… using… just including…

2001
05:25:12.070 --> 05:25:16.740
Boardroom: The limitation of a contained, space.

2002
05:25:17.000 --> 05:25:27.540
Boardroom: is… I think you used the word over-limiting, so I… I'm just trying to grapple with that, and could… can you explain what the, like.

2003
05:25:28.130 --> 05:25:30.690
Boardroom: How those two contentions…

2004
05:25:30.690 --> 05:25:53.199
Boardroom: are resolvable. That's a great question. What I'm referring to when I say contained space, it's an area where we believe, we reasonably believe the person is in. I know there's a lot of concerns that we will just go down the street with a dog and have a dog running around looking for somebody. And so when I say contained space, what I'm meaning is there is a area that we were able to contain, which is a law enforcement term for how we believe the suspect is in this area.

2005
05:25:53.200 --> 05:26:09.769
Boardroom: And that's different than there is a contained space where there is… we can guarantee without any… I mean, think about it, if a block is contained, and people are inside… and people are in their houses inside the block, they're not at risk of that dog, but it is not an area where there are no other people around.

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2006
05:26:09.870 --> 05:26:33.990
Boardroom: And so what you normally would see is there's a yard, the yard is secure, we would make announcements, we are entering this yard, there's a police canine, come out, or the police canine will come in here and search this yard. That allows residents there, you know, we've done notices and knock-on talks on doors often and said, shelter in place, and things like that, to keep that. That area is… may not be, you know, guaranteed to contain, because you've got a part of it is the house where people are inside of.

2007
05:26:33.990 --> 05:26:47.849
Boardroom: And so those are the kind of differences between a contained and nobody else is in, and contained meaning, we know we have this sort of general area held, and we have a contained environment that we can remove every single individual from before we deploy them.

2008
05:26:49.730 --> 05:26:58.460
Boardroom: Okay, so, if I understand, contained in this context.

2009
05:26:58.790 --> 05:27:10.419
Boardroom: it may not necessarily be a room where there's reasonable probability of just a suspect being in that room. It could be just any kind of

2010
05:27:11.590 --> 05:27:23.089
Boardroom: Maybe not perimeter, but, like, a yard, including a yard that could potentially have multiple, units, multiple residents, multiple pets.

2011
05:27:23.410 --> 05:27:27.790
Boardroom: In that same… Or, living…

2012
05:27:28.290 --> 05:27:33.089
Boardroom: In proximity to that yard, within this… the…

2013
05:27:33.200 --> 05:27:44.360
Boardroom: Same parcel. So the way that it's gonna be deployed is in consideration of those factors. Can the dog be safely deployed off-leash, which is less common?

2014
05:27:44.370 --> 05:27:55.229
Boardroom: Or is it more safe to be deployed on a leash, because we can't guarantee that that… that's why you do warnings beforehand, that's why

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they use leash control now, is in order to protect against those things and to mitigate those risks.

2015
05:27:55.520 --> 05:28:02.699
Boardroom: Okay. Thank you. So… I'll make my comments now. I,

2016
05:28:03.340 --> 05:28:12.389
Boardroom: I, I understand and, respect, the, the cont… you know, the desire,

2017
05:28:12.690 --> 05:28:25.649
Boardroom: to, want access to additional tools, and I understand that this is driven by the desire to reduce harm to police, staff, and our residents.

2018
05:28:27.870 --> 05:28:36.440
Boardroom: In terms of the things that I feel are reasonable, and I could get behind, I'm going to…

2019
05:28:36.680 --> 05:28:43.470
Boardroom: I think we're just talking about canines right now. So,

2020
05:28:43.920 --> 05:28:51.389
Boardroom: The item includes both, canines and helicopters, just to be clear. So, you can… I would like to sever that.

2021
05:28:51.960 --> 05:28:59.359
Boardroom: You're making a motion to sever the helicopters and the dogs? Yes, for discussion purposes.

2022
05:28:59.600 --> 05:29:02.060
Boardroom: Okay. Alright, thank you.

2023
05:29:02.720 --> 05:29:03.460
Boardroom: Yeah.

2024
05:29:04.250 --> 05:29:14.280
Boardroom: So for canines, we, you know, we'll get to helicopters later,

2025
05:29:14.580 --> 05:29:23.819
Boardroom: Echoing the PAB's assessment regarding the absence of a demonstrated needs analysis, and given the information provided tonight.

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2026
05:29:23.980 --> 05:29:31.620
Boardroom: that, you know, I have some questions. I have confidence about the professionalism of RPD, but…

2027
05:29:31.680 --> 05:29:39.880
Boardroom: Absent the needs analysis, and kind of a lack of information about what type of training,

2028
05:29:39.900 --> 05:29:58.439
Boardroom: the unit has received, and this is not even necessarily our unit. It would be, you know, allowing other, PDs, using mutual aid to come in. So I'm not comfortable at this time

2029
05:29:58.440 --> 05:30:02.420
Boardroom: Approving canine deployments beyond dose.

2030
05:30:02.470 --> 05:30:11.020
Boardroom: Authorized to locate crime scenes or physical evidence, missing persons, Explosives,

2031
05:30:11.220 --> 05:30:19.140
Boardroom: You know, special events, kind of bomb threat task force operations.

2032
05:30:19.140 --> 05:30:33.630
Boardroom: So those uses seem appropriate and justified to me at this time. I don't have enough information, to feel comfortable approving other, canine uses. Thank you.

2033
05:30:36.500 --> 05:30:40.739
Boardroom: Thank you. Going to… going to Vice Mayor O'Keefe.

2034
05:30:45.050 --> 05:30:46.439
Boardroom: Are y'all gonna boo me?

2035
05:30:47.500 --> 05:30:59.359
Boardroom: Alright, let's find out, please, come on. Alright. Council, Vice Mayor, I don't… I don't know if that was the most helpful comment, to be honest. I agree, I agree, I'm sorry.

2036
05:30:59.360 --> 05:31:12.360

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Boardroom: I just wanted to get that out of the way. Okay, folks, please. Let her finish her comments. I'm just gonna make my comments, they're not that long. Actually, I want to appreciate Councilmember Humbert. I want to associate myself with his comments that he made eloquently earlier tonight.

2037
05:31:12.360 --> 05:31:27.380
Boardroom: Because there's a logic that he expressed that I'm just gonna, echo here, which is what we're discussing tonight is actually what the rules should be. That's the only thing that we're really talking about. And reading these proposed rules.

2038
05:31:27.470 --> 05:31:34.569
Boardroom: I think they are reasonable and justified, and I understand, my colleagues may disagree, and that's fine, but I find these to be reasonable.

2039
05:31:34.790 --> 05:31:48.279
Boardroom: I do understand that there are a lot of people tonight who, who don't believe, and I'm not… I don't know what you believe, but I think there are probably some people here who believe that the police cannot be trusted to follow their own rules.

2040
05:31:48.290 --> 05:31:55.189
Boardroom: And I understand that. I under… I respect that belief, honestly. A lot of people believe that. But from where I sit, up here.

2041
05:31:56.560 --> 05:32:10.880
Boardroom: as someone who's been entrusted by the people to help oversee the city's government, I have to believe that the police will follow their own rules. And if I didn't believe that, if I did not believe that they were capable of doing that, I would…

2042
05:32:11.060 --> 05:32:23.610
Boardroom: I wouldn't be up here debating this. I would be calling for the chief's resignation, because that would be a much bigger problem than the minutiae of some rule. But I'm not doing that, and no one up here is doing that, because our police…

2043
05:32:23.850 --> 05:32:33.999
Boardroom: leadership and the force itself has proven time and time again that they can follow their own rules, they do respect the rules, they have earned our trust. And so, because

2044
05:32:34.670 --> 05:32:37.990

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Boardroom: Because that situation is fine.

2045
05:32:38.160 --> 05:32:51.410
Boardroom: I am going to look at this item as, are these rules reasonable? I'm going to assume they will be followed. If somehow they are not, we will have a discussion. There's a lot of accountability built into this item, and of course.

2046
05:32:51.500 --> 05:33:09.969
Boardroom: our general system with the police. And so, looking at it through that lens, I am fine with this, and I actually completely agree with Councilmember Kessarwani's choices about which of those proposed amendments to accept and which ones not to. I think that was exactly right. I think, you know, some of those things are worthy of clarification.

2047
05:33:09.970 --> 05:33:19.999
Boardroom: And some of them are a little too limiting. And so I support the motion. I don't need to say any more, but I just wanted to explain my logic, the way I'm looking at it, and I understand that many people here disagree, and that's…

2048
05:33:20.330 --> 05:33:23.429
Boardroom: That's how it is. I hope you understand why I'm voting the way I am.

2049
05:33:23.930 --> 05:33:31.910
Boardroom: Can't control the dogs. Excuse me, folks! Alright, that's enough. Stop.

2050
05:33:32.190 --> 05:33:33.840
Boardroom: Alana, stop.

2051
05:33:34.470 --> 05:33:42.949
Boardroom: Councilmember Blackaby. Thanks. I actually wanted to come back quickly to the question about the residential burglary, real quick. Could you pull that back up?

2052
05:33:43.260 --> 05:33:47.530
Boardroom: One, whoever had it, one thing I just wanted to ask the chief,

2053
05:33:48.000 --> 05:33:53.910
Boardroom: I'm just trying to find a way, forward here. Is… do you… is there a difference between an active

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2054
05:33:54.430 --> 05:33:56.430
Boardroom: burglary in progress.

2055
05:33:57.110 --> 05:34:16.749
Boardroom: Versus the investigation of something two weeks later, for example. Absolutely. So my proposal would be to be something, and maybe this is a way that we could work this, is to be something like, the suspect is wanted in connection with an active residential… In progress? Burglary in progress, something like… whatever the language is that would… because to me, that's the…

2056
05:34:16.790 --> 05:34:28.779
Boardroom: That's the moment that the urgency around this would demand. If you're… if it's in connection with a burglary and there's an investigation two weeks later, that feels a little broader and not as necessary. Yeah.

2057
05:34:29.200 --> 05:34:41.430
Boardroom: Okay, so, yeah, and I did want to find a way to incorporate as much from the mayor as I can. So, if we say the suspect is wanted in connection with a residential burglary in progress.

2058
05:34:41.870 --> 05:34:46.309
Boardroom: It sounds like that would allow us to use this

2059
05:34:46.540 --> 05:34:56.940
Boardroom: the canine tool, you know, with the belief that the person is still in the house, potentially, or nearby… Correct. …having just…

2060
05:34:56.990 --> 05:35:08.109
Boardroom: just, committed the, the burglary. Okay. So, so with that, I can accept that. I still… so, so, yeah, so, so everything else still stands.

2061
05:35:08.210 --> 05:35:12.910
Boardroom: So that yellow portion remains the only… only portion I…

2062
05:35:12.910 --> 05:35:29.459
Boardroom: Can't accept. Thank you. I appreciate that. And I'll also accept it as the second… Oh, sorry, thank you. No, I appreciate that, because I think that gets to the spirit of it, and again, I… that makes me, I think, more comfortable as well, that it's… these are all about things that… where there's urgency, and time is of the essence, and…

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2063
05:35:29.460 --> 05:35:35.909
Boardroom: We're in the moment where the response at that time is really important, because a lot of what this measure speaks to is the…

2064
05:35:35.960 --> 05:35:46.369
Boardroom: is the response, that 20 to 30 minutes at a critical time in the middle of an incident. And so I think that's what all those things do have in common, so I, you know, I support that. And I, again, I do want to emphasize that

2065
05:35:46.370 --> 05:35:58.750
Boardroom: you know, we are currently using these tools. We're using canine tools and air support in limited and targeted ways, 4-5 helicopter support, tactics a year, 8 to 10 K-9 units.

2066
05:35:58.750 --> 05:36:19.360
Boardroom: It's my belief and expectation this will continue to be very rare. We will monitor this. We will have an eye on it in terms of the report back that we get. And we have very clear direction in terms of the circumstances when it is allowable and the circumstances when it is not. It is explicitly prohibited for crowd control in all, in all scenarios.

2067
05:36:19.360 --> 05:36:28.199
Boardroom: is explicitly now prohibited for encampment sweeps. So I feel comfortable in terms of the clarity of the… of the limits.

2068
05:36:28.210 --> 05:36:34.850
Boardroom: And also, the, the look back and the reporting mechanism that we have to ensure compliance on the back end.

2069
05:36:34.900 --> 05:36:50.619
Boardroom: I do think that improving the department's ability to apprehend suspects in these very targeted ways and reduce the 20 to 30 minute response time is important. And that is important to my constituents who… who would be calling the police department and expecting a response, so…

2070
05:36:50.620 --> 05:36:55.039
Boardroom: with those changes that we've talked about, I'm comfortable supporting. Thank you.

2071
05:36:57.290 --> 05:37:04.409

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Boardroom: Thank you, apologies, I'm just… trying to make sure… timing of things. Okay.

2072
05:37:06.970 --> 05:37:08.709
Boardroom: Yes, Councilmember Taplin.

2073
05:37:11.300 --> 05:37:28.750
Terry Taplin: Thank you very much, Madam Mayor, and thanks, everyone. I appreciate all the speakers. I would like to associate myself with the remarks of the Vice Mayor and Councilmembers Casserwani, Blackaby, and Humbert. I appreciate the limited scope of uses, the targeted

2074
05:37:29.320 --> 05:37:32.170
Terry Taplin: Span of scenarios…

2075
05:37:32.820 --> 05:37:40.939
Terry Taplin: I… I understand that people are concerned about this being potentially used during crowd,

2076
05:37:41.160 --> 05:37:46.100
Terry Taplin: crowd events, and I appreciate that being declaredly…

2077
05:37:46.360 --> 05:37:52.000
Terry Taplin: prohibited, along with, encampment sweeps, so I'll be supporting the motion, thank you.

2078
05:37:53.060 --> 05:37:55.310
Boardroom: Thank you. Other comments?

2079
05:37:55.790 --> 05:38:07.560
Boardroom: Yes. Councilmember Bartlett. Thank you. And, I want to thank everyone. It's been a really lively debate here, learned a lot, and I want to thank BPD for the work you do. As always, I support you, and I want you to have the tools.

2080
05:38:07.720 --> 05:38:20.289
Boardroom: you need to keep us safe and keep yourself safe. But here, I'm just not persuaded that the record establishes an emergency requiring this policy change. We're being asked to expand the circumstances in which outside police dogs

2081
05:38:20.290 --> 05:38:28.379

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Boardroom: may be deployed in Berkeley, at the same time reducing civilian oversight, or replacing city manager approval with approval inside the police unit command.

2082
05:38:28.520 --> 05:38:30.790
Boardroom: And that is a substantial policy shift.

2083
05:38:31.130 --> 05:38:50.989
Boardroom: And the item cites approximately 8 to 10 K-9 requests a year, but it does not provide incident-level evidence showing how many requests were delayed, how many were denied, what harm resulted from these denials, if they were there, or the process, or why narrower amendments would be insufficient. In frequency, it does not establish urgency.

2084
05:38:51.550 --> 05:38:55.749
Boardroom: And general statements about operational flexibility are not a substitute for evidence.

2085
05:38:55.940 --> 05:39:04.770
Boardroom: I can support a narrowly tailored amendment addressing clear, non-force emergencies, such as locating a missing child or detecting explosives.

2086
05:39:04.880 --> 05:39:09.689
Boardroom: But the city has not established a sufficient basis to authorize broader apprehension deployments.

2087
05:39:10.240 --> 05:39:18.390
Boardroom: Potentially severe force, which is already traumatizing just thinking about it, for many of us, should not be expanded on a speculative record.

2088
05:39:18.730 --> 05:39:33.449
Boardroom: And crime is declining, these deployments are infrequent, the city has not identified a pattern of failed outcomes under the current policy. And in this declining crime environment, it is not the time to adopt broader use of force authority based on hypothetical scenarios.

2089
05:39:34.190 --> 05:39:53.389
Boardroom: The proportional response is to preserve the existing safeguards, gather the necessary data, and consider narrowly tailored exceptions for genuine emergencies such as missing children or explosive detection. The burden is on us to demonstrate that expansion is necessary. It is not the public's burden to prove that police dogs are dangerous.

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2090
05:39:53.860 --> 05:39:57.799
Boardroom: On the record before us, that burden has not been met. I will not be supporting it.

2091
05:40:06.530 --> 05:40:26.430
Boardroom: Thank you, I want to appreciate everyone for coming this evening and sharing your thoughts, and thank you so much to BPD for answering all of our questions and for, you know, working to help us understand different aspects of policing. I want to make sure it's really clear, I do understand the need for reducing the time that it takes to request services, especially if there's

2092
05:40:26.430 --> 05:40:50.380
Boardroom: you know, a missing child, and we're trying to find them, or there's a chase, a helicopter that is needed to follow somebody. I understand that. Reduced time, and so I don't have a problem with that. I'm really more concerned about, you know, having dogs and canines and using them for purposes in which people could get hurt. And so that, for me, at the end of the day, is really, you know, the issue that I have with it.

2093
05:40:50.380 --> 05:41:05.279
Boardroom: I also want to say, you know, police safety is very important, and it is… I understand what you're saying, Chief, you know, about wanting to make sure that, you know, an area is clear of harm before sending our officers in, and also I'm very hopeful that we

2094
05:41:05.510 --> 05:41:18.520
Boardroom: have tools that, you know, are able to do that inside, you know, in a safe way that doesn't hurt an animal or a dog, potentially, or a person. And then, you know, the other thing I just wanted to comment on

2095
05:41:18.580 --> 05:41:43.560
Boardroom: is the trust piece here that we're talking about a lot this evening. And I think what's really hard is that, you know, I do trust our police department, and I've had many good, you know, conversations, interactions with our officers. They've been very professional, and I've seen many instances in where our police officers have done really amazing work, so I do want to make sure it's clear. I think it's important that we separate our trust for the police department, and just whether or not we want to

2096
05:41:43.560 --> 05:42:08.490
Boardroom: have these tools be available in our city. And the other thing about trust that I wanted to bring up is that I think it's really

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unfortunate that in bringing this item, I think that it did impact the trust of the people, and that feeling that now, to bring these items during a time where we're seeing our federal government misuse them and abuse them, not only the federal government, but other police departments across the country, I just think the timing is

2097
05:42:08.490 --> 05:42:19.320
Boardroom: is really hard to be having these conversations. So, you know, with this item and with the next one, that for me is a big issue. So, I will also be voting no on this item.

2098
05:42:24.800 --> 05:42:43.170
Boardroom: So, what we do, we did sever it, so just to be clear, I know we're very focused on the canines portion, but yes, Mark, do you want to give us a sense of where we're at, please, procedurally? Well, my understanding was Councilmember Tregoof severed the discussion, not the vote. The resolution contains both

2099
05:42:43.170 --> 05:43:07.320
Boardroom: pieces around canines and helicopters. My understanding was that he severed the motion, for discussion… to allow us to discuss it separately, but… Yeah, if there's a clean way to vote right now on the part of the motion that includes a reference to canine use, but not helicopter, and then we can get to the helicopter right after.

2100
05:43:07.320 --> 05:43:20.589
Boardroom: That would be my preference. Okay, so you're… you have made a motion to sever the votes… Sorry, yes, go ahead. Make a request to sever… Make a request to sever… There's one resolution, so…

2101
05:43:20.900 --> 05:43:24.660
Boardroom: You know, we would have…

2102
05:43:26.550 --> 05:43:35.060
Boardroom: Yeah, there's two separate components to the resolution, so… We could vote on…

2103
05:43:35.440 --> 05:43:50.850
Boardroom: the policy in, I guess, number… Two is canines, and… 3 is… Helicopter… to deploy helicopters.

2104
05:43:55.090 --> 05:44:09.179
Boardroom: But I'm not sure if… Yeah, and then point 4 mentions both. I guess the assumption is, if it's severed, then… Would it be easier if I sever out part 3 right now, and that's what we return to for discussion?

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2105
05:44:09.200 --> 05:44:23.649
Boardroom: Well, .4 mentions helicopter support and canine deployments. Sorry, could you… And so does point one. You can discuss them separately and take one… one vote on the motion to approve

2106
05:44:23.940 --> 05:44:34.770
Boardroom: the resolution. I'm sorry, I can't quite hear you. Mark, can you speak up a bit? Well, you can discuss the two topics separately. The question is if the council member's asking to vote on

2107
05:44:35.280 --> 05:44:42.050
Boardroom: The use of helicop… the number 3 regarding helicopters, vote on that separately from

2108
05:44:42.440 --> 05:44:46.540
Boardroom: Number two, the deployment of canine teams, or…

2109
05:44:46.740 --> 05:45:06.130
Boardroom: just wants to discuss them separately. I think he's saying he wants to… Sorry, I think he's saying he wants to vote on them separately, is that correct? That's correct, but if it's to… So, let me just pause you really quickly. So, can you explain to us how we would do this? Because I see what you're saying about…

2110
05:45:06.130 --> 05:45:09.910
Boardroom: number one, including both.

2111
05:45:10.940 --> 05:45:17.400
Boardroom: But I don't see that as… Number 4 includes both as well, and number 5 covers approvals for both.

2112
05:45:17.600 --> 05:45:23.099
Boardroom: But, I mean, but that's fine. But I think it can be separated still. Yeah. So I think,

2113
05:45:23.370 --> 05:45:29.710
Boardroom: Mayor, if you want to put… since you have this sort of Google Sheet version, if you want to mark up

2114
05:45:29.910 --> 05:45:32.869
Boardroom: So if you just voted on canines first.

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2115
05:45:33.830 --> 05:45:43.880
Boardroom: Or it sounds like… I'm presuming how you want to vote, Councilmember Trigger, but if you want to just vote on the helicopter first, you could strike anything related to canine, so it's…

2116
05:45:44.020 --> 05:45:51.390
Boardroom: So it's striking number 2 in full, and it's striking mention of police canine units in number 1, and…

2117
05:45:51.580 --> 05:46:00.810
Boardroom: striking… canine deployments at number 4, and then I think you have a resolution just related to helicopter

2118
05:46:01.010 --> 05:46:03.219
Boardroom: support. I mean, if they both…

2119
05:46:03.540 --> 05:46:08.400
Boardroom: It's not an issue, but it is… Good to…

2120
05:46:08.510 --> 05:46:13.980
Boardroom: In the severed… the motion that's… the two motions on the severed portions is that

2121
05:46:14.330 --> 05:46:16.070
Boardroom: You know, we'd be voting on…

2122
05:46:16.270 --> 05:46:27.640
Boardroom: The policy in number 2 regarding canines and, you know, if that fails, then references to canine deployment throughout would be edited.

2123
05:46:27.660 --> 05:46:42.099
Boardroom: And same with helicopters. Okay, if you want to do, like, do it in a different color, Madam Mayor… Just like a strikethrough, or… Well, it's not a strikethrough, because it's… it's still there, it's just he wants to vote on it separately, so you could put it in a…

2124
05:46:42.390 --> 05:47:01.750
Boardroom: Yellow. Yellow will be hard to read. Why don't you do, like, purple? Oh, you're highlighting. Yeah, yeah, that's fine. Okay. Okay, alright. You just incorporated the edits we accepted before… I don't see those anymore. I have not done that, but I can add that on there. The deadly and the encampments. I'm wondering this…

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2125
05:47:01.750 --> 05:47:11.470
Boardroom: I don't want to make this… I think we can figure it out. I think you should just hold tight. One second. Alright, just wait a second. Okay, sorry. And then should I…

2126
05:47:11.470 --> 05:47:20.010
Boardroom: Should I extend time for 15 minutes, just so we can make sure we get this done? So I'd like to move to extend time to 11.15. Second.

2127
05:47:20.850 --> 05:47:22.480
Boardroom: Second. Oops.

2128
05:47:23.610 --> 05:47:31.369
Boardroom: Okay, can we take the roll on that, please? Okay, to extend the meeting to 1115, Councilmember Kesarwani? Yes. Taplin?

2129
05:47:31.370 --> 05:47:32.180
Terry Taplin: Yes.

2130
05:47:32.440 --> 05:47:45.829
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay. Motion carries.

2131
05:47:47.410 --> 05:47:48.250
Boardroom: Okay.

2132
05:47:50.300 --> 05:48:12.740
Boardroom: just looking… I mean, you don't have to highlight each mention, because, I mean, depending on what the action passes, you know, my office can edit the resolution accordingly. Yeah, I just sort of wanted to make it clear what everyone was voting on, so that it was… that part was clear. And then, Madam Mayor, I just want to make sure you still have the edits that we are accepting from before? Yes.

2133
05:48:12.740 --> 05:48:20.199
Boardroom: I will… But just to… Be clear, this part does…

2134
05:48:20.460 --> 05:48:25.959
Boardroom: Talks just about the canine, so I will highlight that, and then I will… Yeah, you can just do it all. And then I can, do a…

2135

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05:48:27.280 --> 05:48:31.440
Boardroom: suggestion here for the other changes. Oh, okay.

2136
05:48:31.560 --> 05:48:36.100
Boardroom: Give me a second… Okay.

2137
05:48:36.540 --> 05:48:42.500
Boardroom: Alright, I can work on that, though. I think that as long as everyone understands that…

2138
05:48:42.990 --> 05:48:55.350
Boardroom: we're voting on just the helicop… helicopter piece first? Does it matter? Yeah. Helicopter… helicopter piece first, and then… Meetings are all in the canine section anyway, so you can get those in, and we can…

2139
05:48:55.580 --> 05:48:57.049
Boardroom: Yep, thank you.

2140
05:48:57.820 --> 05:48:58.710
Boardroom: Okay.

2141
05:49:02.620 --> 05:49:05.969
Boardroom: So, are we ready to vote? Yeah. Okay. I think we're ready to vote.

2142
05:49:08.310 --> 05:49:17.920
Boardroom: So which portion… So for the helicopter support version of the resolution first, Okay, so on the…

2143
05:49:18.760 --> 05:49:23.879
Boardroom: Which is, which is striking these yellow highlighted sections related to canines.

2144
05:49:28.000 --> 05:49:31.040
Boardroom: So we're voting whether to include

2145
05:49:31.370 --> 05:49:44.969
Boardroom: number 3 regarding helicopters in the resolution and, associated references to helicopters. Whether or not to keep

2146
05:49:45.090 --> 05:50:00.760

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Boardroom: helicopters in the resolution. Yeah. That's the first severed portion that we're voting on. Yes. So a yes vote would keep helicopters in the resolution, a no vote would mean it would not be included. Yeah.

2147
05:50:01.090 --> 05:50:06.339
Boardroom: Okay. On the severed portion of the motion, Councilmember Kesarwani? Yes.

2148
05:50:06.680 --> 05:50:07.600
Boardroom: Taplin.

2149
05:50:07.600 --> 05:50:08.410
Terry Taplin: Yes.

2150
05:50:08.830 --> 05:50:10.470
Boardroom: Bartlett? Yes.

2151
05:50:10.700 --> 05:50:11.730
Boardroom: Dragub.

2152
05:50:12.960 --> 05:50:20.299
Boardroom: On the severed portion, no. This is the helicopter section, just to clarify.

2153
05:50:21.430 --> 05:50:22.680
Boardroom: Yeah. Oh.

2154
05:50:24.960 --> 05:50:32.879
Boardroom: I had comments about that, but, I am going to… I'm going to pass.

2155
05:50:34.350 --> 05:50:40.239
Boardroom: Councilmember O'Keefe? Vice Mayor, yes. Yes, sorry. Blackaby? Yes.

2156
05:50:40.500 --> 05:50:42.120
Boardroom: Luna Parra? No.

2157
05:50:42.560 --> 05:50:43.980
Boardroom: Humbert? Yes.

2158

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05:50:44.230 --> 05:50:46.409
Boardroom: Mayor Ishii? Yes.

2159
05:50:46.710 --> 05:50:49.129
Boardroom: And, Councilmember Tregob?

2160
05:50:51.540 --> 05:50:52.650
Boardroom: abstain.

2161
05:50:53.780 --> 05:50:54.770
Boardroom: Okay.

2162
05:50:54.880 --> 05:51:05.430
Boardroom: And then… On the severed portion regarding, canine… Deployment in number 2,

2163
05:51:05.480 --> 05:51:11.910
Boardroom: and other associated references to K-9 deployment. So, Mr. City Clerk, does it just become…

2164
05:51:11.950 --> 05:51:20.739
Boardroom: now that we are including helicopter support, we're just voting on the entire resolution now? Yeah, so if this severed port… if this severed portion,

2165
05:51:20.740 --> 05:51:39.079
Boardroom: passes to include canine references, then that effectively adopts the original, full original resolution with the amendments. And the mayor is just adding the amendments? Correct. Okay. That we already agreed to. Yes, these two severed portions constitute the full adoption of the RESO.

2166
05:51:39.080 --> 05:51:40.559
Boardroom: Okay.

2167
05:51:40.560 --> 05:52:04.289
Boardroom: Okay, on, severed portion number 2 regarding K-9 deployment, yes vote to, adopt the references to K-9 deployment. Of course, a no vote would mean to not include it in the resolution. Okay, I just want to be clear, because it doesn't look like the mayor has added those amendments I agreed to yet, so is everyone clear on what those were? Oh, okay, here they are. So they're here now. Okay, great.

2168

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05:52:04.840 --> 05:52:09.110
Boardroom: So, we can take out the yellow, because it doesn't matter anymore.

2169
05:52:09.520 --> 05:52:11.570
Boardroom: And… oops.

2170
05:52:13.130 --> 05:52:14.300
Boardroom: Alright.

2171
05:52:17.530 --> 05:52:18.380
Boardroom: Okay.

2172
05:52:19.810 --> 05:52:25.960
Boardroom: Alright… Right, there's homeless encampment, so… In progress is there.

2173
05:52:26.070 --> 05:52:39.349
Boardroom: Okay, that looks like what we agreed to. Thank you, Madam Mayor. Okay, I think we can vote on this section now. Okay. So this is, regard… the severed portion regarding canine deployment. Councilmember Kesarwani. Yes.

2174
05:52:39.470 --> 05:52:49.190
Boardroom: Taplin? Yes. Bartlett? No. Trega? No. O'Keefe? Yes. Blackaby? Yes. Unapara? No.

2175
05:52:49.440 --> 05:52:52.739
Boardroom: Humbert? Yes. And Mayor Ishii? No.

2176
05:52:52.840 --> 05:53:12.249
Boardroom: Okay, a motion carries. Resolution's adopted with the, the, amendment. Okay, folks, that's enough. All right. Okay, folks. Folks, Andrea, please. Andrea.

2177
05:53:12.270 --> 05:53:21.260
Boardroom: That's enough. Folks, we have, we have other items to discuss, so please.

2178
05:53:21.500 --> 05:53:26.209
Boardroom: Alright, so… So, excuse me…

2179

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05:53:26.850 --> 05:53:34.300
Boardroom: Alright, Mark, just to be clear, what happened with 23B? Can you just make sure that folks understand?

2180
05:53:34.880 --> 05:53:39.210
Boardroom: Well, maybe we should do a separate motion on that. I was…

2181
05:53:39.400 --> 05:53:48.739
Boardroom: Before we got into the severing portions, I was gonna say that we should have included something in that original motion to dispose of 23B, but,

2182
05:53:49.430 --> 05:53:54.669
Boardroom: there could be a simple motion. Now, I mean, the action on 23A would seemingly preclude

2183
05:53:55.370 --> 05:54:05.969
Boardroom: 23B, but… Sorry, you're… I can't quite understand what you're saying, but I… I hear what… I think what you're saying is that, since we did not address 23B, we need to have a separate motion.

2184
05:54:06.170 --> 05:54:08.780
Boardroom: So just to not adopt.

2185
05:54:09.460 --> 05:54:15.920
Boardroom: take no action for any portion of the action. Does someone want to make a separate motion to accept no action?

2186
05:54:17.240 --> 05:54:23.590
Boardroom: Yes, I, I, I move to, take no action on item 23B. And I second that.

2187
05:54:24.750 --> 05:54:31.499
Boardroom: Can we take a roll on that, please? Okay. Councilmember Kisnerwani? Yes. Taplin?

2188
05:54:31.500 --> 05:54:32.290
Terry Taplin: Yes.

2189
05:54:32.440 --> 05:54:34.220
Boardroom: Bartlett.

2190

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05:54:40.410 --> 05:54:43.730
Boardroom: Pass. Dragub? Aye.

2191
05:54:43.900 --> 05:54:48.059
Boardroom: O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes.

2192
05:54:48.180 --> 05:54:49.120
Boardroom: Humbert.

2193
05:54:50.810 --> 05:54:53.409
Boardroom: Yes. Mary Ishii.

2194
05:54:53.610 --> 05:55:00.890
Boardroom: Yes. And Councilmember Bartlett? Yes. Okay. 23B is, that action disposes of that item.

2195
05:55:01.020 --> 05:55:18.920
Boardroom: Okay, so, thank you very much. So, since we still have another item on the agenda, and it is almost 11 o'clock, I would like us to… do we need to make a… remind me, sorry, do we need to make a motion to move it to agenda and rolls to find another time in which to discuss this item?

2196
05:55:19.280 --> 05:55:32.009
Boardroom: If I wanted to do that, then do I need to make a motion? Yes, yeah, to… yes. So I'd like to make a… Can I, can I propose a special meeting next Tuesday, July 21st, to hear the tear gas item?

2197
05:55:32.160 --> 05:55:34.459
Boardroom: Can I make that a motion?

2198
05:55:35.400 --> 05:55:37.330
Boardroom: Yes,

2199
05:55:38.410 --> 05:55:50.179
Boardroom: The mayor or a quorum of the city council can schedule a special meeting, so if there was a motion to schedule a special meeting and that passed with 5 votes, that would

2200
05:55:50.290 --> 05:55:53.000
Boardroom: Constitute a quorum calling the special meeting.

2201

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05:55:53.330 --> 05:56:05.890
Boardroom: Okay, I'm gonna try that. So, I… yeah. So, go ahead and… go ahead and make your motion. I'd like to make a motion to schedule a special meeting for July 21st, to hear items 24A and B.

2202
05:56:07.370 --> 05:56:08.989
Boardroom: I'll second the motion.

2203
05:56:10.650 --> 05:56:23.589
Boardroom: Okay. I'd like to speak to that and just say that I'm very strongly opposed to us having a special meeting next Tuesday. I'm very concerned about having this conversation. Honestly,

2204
05:56:23.660 --> 05:56:47.480
Boardroom: you know, I did not expect that last item to go so long, but if we had gotten to this item, I would have been asking anyway for us to move this item until after we discussed use of force, because use of force policy is one of the main policies within here, and we're actually discussing actively some of the changes that are going to be made to that policy. Both the PAB and the police department are in the middle of doing so.

2205
05:56:47.540 --> 05:56:49.930
Boardroom: And so, you know, I don't think it's…

2206
05:56:50.190 --> 05:57:01.099
Boardroom: I think it's preemptive to discuss this item without, especially given that there are many changes that are being discussed for our use of force policy. And,

2207
05:57:01.470 --> 05:57:07.619
Boardroom: Given that we know we had this meeting tonight, and we've got, a very contentious meeting at the last

2208
05:57:07.860 --> 05:57:17.829
Boardroom: night of our council before recess, I'm very strongly opposed to us doing that. So I want to state that for the record and make sure that council members understand that.

2209
05:57:18.120 --> 05:57:27.640
Boardroom: Okay, I mean… Can I state for the record that I introduced this item last fall? It was heard by the Public Safety Policy Committee in February.

2210

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05:57:27.710 --> 05:57:40.789
Boardroom: And, so there has been all this time now, and we worked to schedule this meeting tonight. These items tonight, the Agenda and Rules Committee scheduled it for tonight. I understand things took a lot longer.

2211
05:57:40.930 --> 05:57:45.189
Boardroom: So… so I just think we need to deal with this

2212
05:57:45.360 --> 05:57:52.250
Boardroom: And, you know, I could have brought these items forward a month after the Public Safety Policy Committee.

2213
05:57:52.480 --> 05:58:07.809
Boardroom: And and we decided to wait, and this use of force discussion, you know, we can certainly have that. I don't see why that would preclude us from taking action on this item. So, I respectfully ask us to complete the business.

2214
05:58:07.920 --> 05:58:19.979
Boardroom: that is agendized here next Tuesday. So, Councilmember Lunopara, you've got your… Excuse me. Folks, please. Thank you,

2215
05:58:20.080 --> 05:58:22.949
Boardroom: I did… I wanted to mention this,

2216
05:58:23.310 --> 05:58:33.860
Boardroom: That this is an issue that is very, very important, to students, and it is not…

2217
05:58:34.750 --> 05:58:46.239
Boardroom: that they… and students are out of session right now, and I do think that it is really, really important to make sure that they are part of this conversation, given that they are the most politically active part of

2218
05:58:46.410 --> 05:58:53.139
Boardroom: the city, and I feel really strongly, as well, that

2219
05:58:53.430 --> 05:58:59.460
Boardroom: that we need to bring this back at an opportunity when they are in Berkeley.

2220

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05:59:00.340 --> 05:59:09.229
Boardroom: I… I also, I guess, I… I don't… this item could have been brought back right after the Public Safety Committee took their vote and wasn't.

2221
05:59:09.490 --> 05:59:12.489
Boardroom: So it's not like it has been delayed.

2222
05:59:13.470 --> 05:59:15.020
Boardroom: Like, by the council.

2223
05:59:17.620 --> 05:59:21.609
Boardroom: Thank you, Councilmember. I want to see if there are any other comments that folks have.

2224
05:59:25.760 --> 05:59:28.749
Boardroom: One question's, do we know the availability of the room on the 21st?

2225
05:59:29.620 --> 05:59:30.470
Boardroom: Yes.

2226
05:59:30.610 --> 05:59:32.400
Boardroom: It's available. Okay, thank you.

2227
05:59:35.530 --> 05:59:41.079
Boardroom: Yes, I think that that was set aside as a potential special meeting previously.

2228
05:59:41.760 --> 05:59:42.850
Boardroom: So…

2229
05:59:44.900 --> 06:00:04.860
Boardroom: So, Madam Mayor, you know, I want to be sensitive to people's schedules, because I know they weren't expecting me to make that motion. When are you proposing to hear this item? So, my proposal is to send it to Agenda and Rules so that we can see when the use of force is coming in September, I believe. Do we have a date for the September use of force approximate?

2230
06:00:04.890 --> 06:00:06.710
Boardroom: Approximately the 19th.

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2231
06:00:07.030 --> 06:00:22.390
Boardroom: So, it would be after that is… it would be my hope, but again, it would go to agenda and rules, so Agenda and Rules would decide. Okay, you know, I just don't want this to get punted, you know, too far into the fall. Sure, I understand that. If you're willing to make

2232
06:00:22.580 --> 06:00:42.289
Boardroom: you know, I really want to push us to, like, pick a date in September, like, and maybe have the vote tonight be for that date in September. And just to clarify, we are hoping to bring that other item that has separate discussions around 300 in September. We just had a discussion with the chair of the PAB that…

2233
06:00:42.290 --> 06:01:07.170
Boardroom: they've got some additional data requests that may take us a while to compile, so it's not date certain that we will be back in September for that portion of 300. I would agree with the Councilmember that the discussion around tear gas and smoke in OC does not implicate the work that's underway with 300. Yeah, and Chief, just to make sure it's clear, I'm not saying that it precludes us from discussing one before the other.

2234
06:01:07.170 --> 06:01:32.079
Boardroom: What I'm saying is, I think it makes sense that we discuss the broader policy before going into the more detailed aspects of the tear gas piece. So, I'm not saying that it has to be one before the other, I'm just saying that I think that it makes sense to do it that way, and that would be my preference. And so just to be clear, the reason why I think it should go to agenda and Rules is because I also don't want us to put it on a night where we could end up having multiple controversial things, so sending it to Agenda and Rules just gives us the opportunity

2235
06:01:32.080 --> 06:01:51.010
Boardroom: to pick a night that's gonna make sense with everything else that's going on. And so I just also want to say that my intention is not to just, like, keep pushing this off forever. I do think it makes sense to address it, I just think that I'd like to send it to agenda Rules so we can have a little bit more time to figure out what the whole mix of things is gonna be.

2236
06:01:51.440 --> 06:02:03.140
Boardroom: So, yeah, Councilmember Blackbee. My only question was, you know, we did… it did go through agenda rules and was agendized for tonight, so, I mean, my plan and my assumption was we were going to complete consideration tonight, so I guess that's my question, is what's…

2237

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06:02:03.330 --> 06:02:23.529
Boardroom: what's changed? What's changed? Yeah, that's a great question. And so, and I think that, you know, we did have this come to agenda in roles, and I think since then, I've gotten updates on where we're at with our use of force policy. It's true it was gonna come later, but I think thinking about it more, I realized that it made more sense for it to come after. So, it's just… it's just a matter of, like.

2238
06:02:23.530 --> 06:02:32.449
Boardroom: you know, information and changing, you know, where I think it should go in terms of movements. So even if we'd finished the first item in 2 hours, you still were gonna plan on pushing it? Yes.

2239
06:02:32.450 --> 06:02:33.140
Boardroom: Yeah.

2240
06:02:35.090 --> 06:02:37.529
Boardroom: So, okay, other…

2241
06:02:37.670 --> 06:02:46.680
Boardroom: Other comments before we take a vote? So, I'd like to amend my motion. I want to schedule this item to be heard September 15th.

2242
06:02:47.010 --> 06:02:49.809
Boardroom: At the regular council meeting on that date.

2243
06:02:50.330 --> 06:02:56.440
Boardroom: I'd like to ask our city manager what is gonna be scheduled for that… day.

2244
06:02:57.170 --> 06:03:08.700
Boardroom: We're still developing the calendar of the items for that, so we've only got about 6 that are known. I'm just concerned, because usually what happens is after recess, we have a lot of things to catch up on.

2245
06:03:09.080 --> 06:03:13.020
Boardroom: And so typically the meeting right after recess is quite full.

2246
06:03:13.600 --> 06:03:22.270
Boardroom: You know, I would argue that this should be a priority for the first meeting after recess. So, you know, that's my motion. I don't know if anyone's willing to second it.

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2247
06:03:24.310 --> 06:03:25.560
Boardroom: I'll second it.

2248
06:03:27.470 --> 06:03:34.299
Boardroom: It's also my birthday, but that's okay. Alright, so any other comments before we take a vote on that?

2249
06:03:36.190 --> 06:03:48.650
Boardroom: Okay. Go ahead, Mark. You can take the roll. Okay, so the motion is to schedule items 24A and 24B for the September 15th meeting. Councilmember Kesarwani. Yes.

2250
06:03:48.830 --> 06:03:50.180
Boardroom: Councilmember Taplin.

2251
06:03:51.900 --> 06:03:53.739
Boardroom: We couldn't hear you, Councilmember.

2252
06:03:56.270 --> 06:03:56.860
Terry Taplin: Yes.

2253
06:03:57.300 --> 06:03:59.250
Boardroom: Okay. Bartlett?

2254
06:03:59.880 --> 06:04:00.900
Boardroom: Yes.

2255
06:04:01.190 --> 06:04:02.150
Boardroom: Trey Gob?

2256
06:04:02.670 --> 06:04:09.889
Boardroom: Pass. O'Keefe? Yes. Yes? Yes. Blackaby? Yes. Lunapara? Yes.

2257
06:04:10.120 --> 06:04:17.750
Boardroom: Humbert… Sorry, just to clarify, this is voting on Councilmember Kezarwani's motion to schedule this for September 15th.

2258
06:04:19.140 --> 06:04:19.525
Boardroom: Really?

2259

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06:04:23.080 --> 06:04:30.650
Boardroom: Could I call to reconsider the vote? Well, we haven't finished the roll call. You can… we haven't gone to… you can change your vote if you like.

2260
06:04:35.630 --> 06:04:40.720
Boardroom: You can finish the roll, and then someone can call to reconsider. Councilmember Humbert?

2261
06:04:40.940 --> 06:04:41.780
Boardroom: Yes.

2262
06:04:41.890 --> 06:04:44.019
Boardroom: Mayor Ishii? No.

2263
06:04:44.350 --> 06:04:46.780
Boardroom: Councilmember Trey Gob? No.

2264
06:04:47.150 --> 06:04:53.449
Boardroom: Okay, motion carries, 7 yes, 2 no. I move to reconsider the vote.

2265
06:04:53.770 --> 06:04:57.590
Boardroom: Okay, Councilmember Luna Para is moving to reconsider.

2266
06:04:57.820 --> 06:04:59.680
Boardroom: I'll second.

2267
06:05:00.910 --> 06:05:06.209
Boardroom: There, Ishii seconding, so to reconsider the previous vote.

2268
06:05:06.890 --> 06:05:11.139
Boardroom: to schedule the items for September 15th.

2269
06:05:11.480 --> 06:05:34.349
Boardroom: So, Mark, sorry, can you just clarify? So, we're all voting whether or not we want to reconsider the vote, and then we would vote again… Right. If the motion to reconsider passes, then we would vote again on the motion to schedule for the 15th. Oh, just to re- We will re-vote if it passes. We will re-vote again. Yeah. Yes. Okay. Okay. Councilmember Kesarwani? No.

2270

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06:05:34.860 --> 06:05:36.400
Boardroom: Taplin…

2271
06:05:36.920 --> 06:05:37.560
Terry Taplin: No.

2272
06:05:38.300 --> 06:05:39.940
Boardroom: Bartlett? Yes.

2273
06:05:40.310 --> 06:05:41.780
Boardroom: Drago? Aye.

2274
06:05:41.890 --> 06:05:44.600
Boardroom: O'Keefe? Just to reconsider? Yes.

2275
06:05:44.940 --> 06:05:46.980
Boardroom: Blackaby. To reconsider, yes.

2276
06:05:47.230 --> 06:05:48.980
Boardroom: Unapara? Yes.

2277
06:05:49.420 --> 06:05:51.089
Boardroom: Humbert? No.

2278
06:05:51.540 --> 06:05:53.160
Boardroom: Mayor Ishii? Yes.

2279
06:05:53.530 --> 06:06:00.130
Boardroom: Okay, motion carries. So then, on the… New motion.

2280
06:06:00.570 --> 06:06:03.070
Boardroom: to,

2281
06:06:03.650 --> 06:06:13.440
Boardroom: Well, we're reconsidering the same motion, so same maker, and same seconder, and this is to schedule…

2282
06:06:13.780 --> 06:06:27.759
Boardroom: 24a and 24B. I just wanna… can I wanna clarify that use of force is gonna come aft… gonna come back to Council after this date? Yes. Right now, it's proposed to come September 19th.

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2283
06:06:27.880 --> 06:06:46.259
Boardroom: Use of force. But if this is September 15th, that's what Chief just said. I think she meant they would be done with the policy at that point, but there is no council meeting on the 19th. It's the 29th. Yeah, it's the 29th. Okay, so point is, though, use of force is planned to come after the 15th.

2284
06:06:46.510 --> 06:06:56.460
Boardroom: Okay, so on the motion to schedule items 24A and B for September 15th, on that motion, Councilmember Kesarwani. Yes. Taplin.

2285
06:06:58.740 --> 06:06:59.980
Terry Taplin: Yes.

2286
06:07:00.550 --> 06:07:02.190
Boardroom: Bartlett? No.

2287
06:07:02.360 --> 06:07:05.470
Boardroom: Tragum? No. O'Keefe? Yes.

2288
06:07:05.700 --> 06:07:07.090
Boardroom: Blackaby? Yes.

2289
06:07:07.270 --> 06:07:08.760
Boardroom: Junipara? No.

2290
06:07:09.450 --> 06:07:14.480
Boardroom: Councilmember Humbert? Yes. And Mayor Ishii? No. Okay, motion carries.

2291
06:07:18.760 --> 06:07:23.229
Boardroom: Okay, so… we are… we have…

2292
06:07:24.130 --> 06:07:30.659
Boardroom: We have moved to… move 24A and B to the September 15th meeting.

2293
06:07:30.960 --> 06:07:34.889
Boardroom: We will now take any public comment on items not listed on the agenda.

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2294
06:07:42.790 --> 06:07:44.159
Boardroom: So just to review…

2295
06:07:45.200 --> 06:08:00.979
Boardroom: Wait, before you guys go, before I… Officer, Chief, before you go, we have sat for months and months and endured proposals to talk about how we're gonna get gassed, now we're gonna get mauled by dogs, to talk about

2296
06:08:01.020 --> 06:08:16.959
Boardroom: how we're gonna get surveyed, to talk about how there's gonna be less reporting, how the police department is not gonna let us even know what you're doing in a moment. We've been kicked off the public channels, access, and I'm just trying to think…

2297
06:08:18.750 --> 06:08:23.540
Boardroom: What are you… what… what are you doing to… Build trust.

2298
06:08:24.050 --> 06:08:26.829
Boardroom: What are you doing that assures us?

2299
06:08:27.270 --> 06:08:32.170
Boardroom: What are you doing to preserve the idea of checks and balances in our city?

2300
06:08:32.310 --> 06:08:35.000
Boardroom: What are… how are you accountable?

2301
06:08:35.220 --> 06:08:46.819
Boardroom: Because if the city manager is abdicating, or being taken out of it… You can address your comments to us. If the city manager is being taken out, if you can have a minute, please? I got another minute.

2302
06:08:47.620 --> 06:08:56.329
Boardroom: I'm trying to feel the safety part. You know, I have a council member who says she's gonna do whatever the police chief says.

2303
06:08:56.820 --> 06:09:13.950
Boardroom: You just trust… Has a body, as a body. Addresses. Certain council members say they trust the chief no matter what. That's what we hear out here. We don't hear any criticism. We don't see any hand being extended to us. There's no olive branch.

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2304
06:09:14.690 --> 06:09:20.870
Boardroom: So, so, and then you… we get characterized as being kind of hysterically anti-cop.

2305
06:09:21.440 --> 06:09:28.159
Boardroom: There is palpable, real fear out there. I just don't get why when you… it used to be that there were four

2306
06:09:28.990 --> 06:09:33.099
Boardroom: Requirements before you could unleash a dog on us.

2307
06:09:33.370 --> 06:09:40.069
Boardroom: And now, a simple accusation of a burglary could lead to a mauling.

2308
06:09:40.550 --> 06:09:49.670
Boardroom: And there's no regard to people with disabilities, people with behavioral health. That used to matter in this town. Thank you for your comment.

2309
06:09:50.340 --> 06:09:53.159
Boardroom: Thank you for those of you who had a spine.

2310
06:09:59.750 --> 06:10:24.429
Boardroom: Thank you all. I just wanted to comment on Policy 300, which is the use of force policy to explain what the mayor was trying to allude to, which is the intersection between the two. There are three very relevant changes, to Policy 300 that have been proposed by the police department. The first one of them is when the department is allowed to use force at all. That proposal is being wide… the level of force when

2311
06:10:24.430 --> 06:10:48.180
Boardroom: when the department can use force, they're proposing to expand the discretion, expand the instances in which they can use force. They're also proposing changes to the de-escalation policy. When they're required to de-escalate, how they're required to de-escalate, that also comes into play. And third, they're also requesting to change the use of deadly force standard, and so all three of those things come into play and will impact this

2312
06:10:48.180 --> 06:11:13.079
Boardroom: body's decision-making when it comes to, the intersection between Policy 300 and the use of force policy. And as the Chief was suggesting, we will not be able to present this Council with our final

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recommendations by September 15th, because… Thank you. Did someone want to… okay, a minute from over there. Because, as the Chief alluded to, we've recently requested records from them after we've recently found out about certain information about uses of

2313
06:11:13.080 --> 06:11:13.950
Boardroom: forces.

2314
06:11:13.950 --> 06:11:38.330
Boardroom: that were deemed excessive and unreasonable by the department themselves. We requested those records, and they are providing them to us, but they need to go through the proper procedures in order for them to give that to us. And so, in order for us to evaluate the policy, we have to evaluate those past instances, and in order for us to get access to those past instances, they have to provide it to us, but they have to go through the proper procedures. And so, all of these things are being… are happening.

2315
06:11:38.330 --> 06:11:41.219
Boardroom: In the interim, we're not just sitting on our hands here. Thank you.

2316
06:11:47.070 --> 06:11:54.439
Boardroom: Thanks to those of you who had enough courage to, stand up against police overreach.

2317
06:11:54.540 --> 06:11:57.559
Boardroom: Wish there had been more of you.

2318
06:11:58.460 --> 06:12:10.880
Boardroom: Yeah, there is a lack of trust, because, you know, I have, like, every privilege imaginable in terms, except for economic, you know, I'm white, I'm cisgendered, I'm het,

2319
06:12:11.880 --> 06:12:18.460
Boardroom: And my only experience with the police… with the BPD is still one of violence.

2320
06:12:18.580 --> 06:12:27.460
Boardroom: towards me for doing nothing more than, you know, speaking up to a police officer when I disagreed with him.

2321
06:12:28.150 --> 06:12:39.469

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Boardroom: So, of course, there's a lack of trust. There's a reason people call them pigs. There's a reason there ain't no song called Fuck the Fire Department. Also, even the famously corrupt

2322
06:12:39.570 --> 06:12:55.199
Boardroom: and racist police department, LAPD, who that song was written about, has now terminated their contract with Flock. It's time for Berkeley to do the same. And as always, free Palestine.

2323
06:12:55.740 --> 06:12:59.779
Boardroom: Okay, Steven Tupper in the plaid shirt is giving me a minute.

2324
06:12:59.960 --> 06:13:24.210
Boardroom: Okay, thank you. So, at the last council meeting, you heard from Amber Whitson, who's been living in an RV and has been homeless for the last 29 years, since she was 16 years old, and she told you about the difficulties with the housing system and not finding… identifying the subsidies she needs for this apartment. So, the Thursday after that meeting, I met with the housing… well.

2325
06:13:24.210 --> 06:13:42.860
Boardroom: Amber and I together met with a housing navigator at Inside Housing, and she is now properly in the system, but it's still not going to allow her to get this great fit of an apartment where she can have her 5 yapping dogs. But he said it'll take a year to two years to find something for her.

2326
06:13:42.860 --> 06:13:52.090
Boardroom: So, that's… that's the status of it, but somebody is working on it. Again, she was assessed back in October 2022, almost 4 years ago.

2327
06:13:52.270 --> 06:13:59.180
Boardroom: A second, I… we are now finally getting a CIT coordinator after…

2328
06:13:59.430 --> 06:14:22.639
Boardroom: 10 years that we haven't had one with the police department, part-time, and she's going to the CIT International Conference this August. I'll be glad to see her there. This'll be my 10th CIT conference since 2012 that I've gone to out of pocket. I want to say that I have heard police departments

2329
06:14:22.640 --> 06:14:46.570
Boardroom: put… well-intended ones put… have workshops there, as well as a family member of a son who had been shot, who was in mental health

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crisis. And these… they come to these workshops saying they made a mistake, and they're learning from their mistakes through someone having been injured or being die… or having died. And these are well-intentioned police officers

2330
06:14:46.570 --> 06:15:03.249
Boardroom: But they make mistakes. The police can make mistakes, and that's why we have to have CIT, to… to de-escalate situations. Thank you. Mark, sorry, we've… was that our third public speaker in person? I lost track.

2331
06:15:03.570 --> 06:15:07.689
Boardroom: No, this is… Okay, I'm just… Hold on a minute. Okay. Just until…

2332
06:15:08.170 --> 06:15:14.759
Boardroom: I wanted to thank you, Mayor and Councilmembers, for really doing your job and representing

2333
06:15:14.980 --> 06:15:33.229
Boardroom: the constituents. Your constituents. You represent the community. You don't work for the police, although someone… it seemed like she was working for the police, because she kept asking the chief to answer her questions. It's really clear, the push, why there's the,

2334
06:15:33.230 --> 06:15:41.559
Boardroom: Pedal to the metal on all these police desires, and, and asks, because…

2335
06:15:41.710 --> 06:16:05.540
Boardroom: of the election in November. And so whatever we can do, the… let the people speak. We are going to elect new council members, certainly because Kesarwani's not running again. Wait for all this. Don't push it through in this time of expanding fascism and ICE coming into our city and abducting people. Pause. Let the community speak.

2336
06:16:05.560 --> 06:16:09.430
Boardroom: with our vote in November. Thank you.

2337
06:16:15.230 --> 06:16:18.690
Boardroom: Councilmembers, I have a minute for my friend Nakailah back here.

2338
06:16:19.780 --> 06:16:29.109

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Boardroom: Councilmembers, I want to thank you for allowing me to speak today. My name is Derek Rodriguez. I'm here on behalf of Cal Berkeley Democrats, and as a candidate for the Berkeley Rent Board.

2339
06:16:29.470 --> 06:16:38.669
Boardroom: I would first like to recognize a community gathered here today, and remotely, a community whose trust in its institutions will either be strengthened or fractured by decisions in the near future.

2340
06:16:39.380 --> 06:16:52.880
Boardroom: As someone who served in the military, I understand that public safety is not a responsibility taken lightly. I understand dangerous situations, difficult decisions, and the obligation to protect the lives of both the public and those called to serve them.

2341
06:16:53.450 --> 06:16:58.780
Boardroom: But I also learned that restraint is not weakness. Restraint is discipline.

2342
06:16:59.180 --> 06:17:05.279
Boardroom: And power, without discipline, becomes a danger to the very people it claims to protect.

2343
06:17:05.970 --> 06:17:16.589
Boardroom: If Berkeley allows offensive weaponry, what begins as an exception for extraordinary circumstances may become another ordinary instrument of force.

2344
06:17:17.370 --> 06:17:23.599
Boardroom: And before you think, I don't know what I'm talking about, I've been gassed before with CS Gas.

2345
06:17:24.440 --> 06:17:27.260
Boardroom: The intense burning is etched into my brain.

2346
06:17:27.380 --> 06:17:32.289
Boardroom: I remember being OC sprayed, the effects of which lasts days on end.

2347
06:17:32.740 --> 06:17:41.310
Boardroom: And in the Army, we weren't given tear gas, an offensive weapon, and if I, as a soldier, maintain more restraint overseas.

2348

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06:17:41.690 --> 06:17:43.820
Boardroom: then how is this acceptable in America?

2349
06:17:46.310 --> 06:17:48.619
Boardroom: We are all citizens of the world.

2350
06:17:48.960 --> 06:17:52.809
Boardroom: And we should all be equal under the law, not tormented by it.

2351
06:17:55.730 --> 06:18:11.640
Boardroom: This was all born from the recognition that an indiscriminate chemical weapon, a dog used to inflict damage, once introduced into a civilian community, can injure the innocent, silence lawful dissent, and fracture public trust that effective policing depends on.

2352
06:18:11.730 --> 06:18:18.000
Boardroom: I urge you to preserve our dignity. Public safety must never require us to abandon public trust. Thank you. Thank you.

2353
06:18:27.690 --> 06:18:38.949
Boardroom: this is a time of war. I don't know if you've watched as much about the Iran war and the Ukraine war, and this is a war world, and…

2354
06:18:39.170 --> 06:18:45.900
Boardroom: The problem is, it feels like the police are coming and bringing the war to our town.

2355
06:18:45.940 --> 06:19:02.780
Boardroom: with more weapons, with more, people, not listening to the community, is this some sort of buyout? You know, is it… there's… ICE showed up in Berkeley recently. You know, we have a whole…

2356
06:19:02.820 --> 06:19:14.500
Boardroom: surveillance problem. We have a whole, you know, every time I turn around, it's the police wanting more and more and more. And you know what? November is coming

2357
06:19:14.500 --> 06:19:28.530
Boardroom: up really soon after September, and people are going to be paying attention, especially when the economy goes down. And, you know, what your votes are going to be very much noted, and who's for what.

2358
06:19:28.590 --> 06:19:29.730

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Boardroom: Thank you.

2359
06:19:38.430 --> 06:19:40.140
Boardroom: Am I allowed to have another?

2360
06:19:40.270 --> 06:19:41.720
Boardroom: Extra minute.

2361
06:19:42.080 --> 06:19:47.049
Boardroom: Yeah, go ahead, you were… Thank you. You have… oh, I see what you're saying. Yeah.

2362
06:19:47.410 --> 06:19:49.429
Boardroom: I wanted to say that I…

2363
06:19:49.700 --> 06:19:56.359
Boardroom: and I'm very upset that they left. I had, when I had a home.

2364
06:19:57.640 --> 06:20:04.969
Boardroom: for 63 years in Berkeley. All positive experiences with the police.

2365
06:20:05.480 --> 06:20:08.599
Boardroom: I lived near the Rose Garden.

2366
06:20:09.410 --> 06:20:18.619
Boardroom: And I wanted to say that while they were there. However, I was swindled out of my home by a very famous perpetrator.

2367
06:20:18.820 --> 06:20:22.629
Boardroom: That Trump let out of prison, and

2368
06:20:22.880 --> 06:20:27.380
Boardroom: The one that bribed the Catholic priest, you may have read that in the paper recently.

2369
06:20:27.690 --> 06:20:32.100
Boardroom: And so I live at the YMCA.

2370
06:20:32.240 --> 06:20:34.120
Boardroom: Right across from City Hall.

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2371
06:20:34.700 --> 06:20:45.419
Boardroom: And I'm really very happy there with the community and all of what I've learned. But suddenly, I had a terrible experience with a police officer.

2372
06:20:45.540 --> 06:20:50.350
Boardroom: Who yelled at the medical transport driver, and at me.

2373
06:20:51.630 --> 06:20:56.660
Boardroom: When I was getting into the… to the vehicle.

2374
06:20:56.940 --> 06:21:07.899
Boardroom: And I, I'm also a victim of the go-go situation. I've been using them for 3 years.

2375
06:21:08.010 --> 06:21:12.700
Boardroom: And I… I'm very upset about having those cuts.

2376
06:21:13.110 --> 06:21:15.929
Boardroom: So, I really, really want

2377
06:21:16.520 --> 06:21:23.290
Boardroom: I'm so upset by the vote that just happened, I'm not being coherent. But,

2378
06:21:24.520 --> 06:21:29.949
Boardroom: I really don't want any tear gas, and I don't want any more…

2379
06:21:31.080 --> 06:21:39.889
Boardroom: I don't even know what to say. Non-Berkeley things in my image of Berkeley and why I came here in 1963.

2380
06:21:40.160 --> 06:21:50.949
Boardroom: So, I'm hoping you all will remedy what just happened tonight somehow, and think about it more… Thank you. …over the summer. Thank you.

2381
06:22:01.860 --> 06:22:17.380
Boardroom: It's late, everyone, so thank you very much. This is why democracy takes a while, and why dictatorship sometimes is preferable is because it's speedy, and I know people like to rely on rules and regs, and so they figure everything is settled. But guess what? It's not.

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2382
06:22:17.690 --> 06:22:23.490
Boardroom: We've got to evolve, we've got to care, there's a lot of unknown, and we can create

2383
06:22:23.740 --> 06:22:35.610
Boardroom: Rather than just settle on the easy thing, which is destruction. Takes a long time to grow a tree, but oh, boom, I'm so strong, I can chop it down. Well…

2384
06:22:36.500 --> 06:22:42.429
Boardroom: That's really painful. And the fact that the police did leave, of course they're tired, too.

2385
06:22:42.720 --> 06:22:50.589
Boardroom: But that did not exude courtesy or respect for us. We're here, I'm old, it's late.

2386
06:22:50.890 --> 06:23:05.310
Boardroom: Anyway, you make a rule, and then you can break it. Even if your intention is good, I've made many mistakes, so I would prefer to be very careful, and thank you for wanting to be careful. Thank you. Thank you.

2387
06:23:07.880 --> 06:23:17.109
Boardroom: So we did extend to 11.15, but, Mark was saying that we need to stay for 15 additional minutes to hear public comment, so please go ahead and come.

2388
06:23:19.380 --> 06:23:24.260
Boardroom: Hi, I'm not… You can move the mic, mic up so that… Oh, yeah. Oh yeah, good idea.

2389
06:23:24.860 --> 06:23:33.550
Boardroom: So, I'm not positive, correct me if I'm wrong, but as far as I can tell, those Berkeley City Police that did the racist texts that got caught.

2390
06:23:33.730 --> 06:23:39.529
Boardroom: As far as I can tell, some of them still work in the Berkeley City Police Department. You talk about trusting the Berkeley Police.

2391
06:23:39.710 --> 06:23:46.299

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Boardroom: And also, you've heard of the Brady's List as a list of police, who abuse power to bad ethics.

2392
06:23:46.470 --> 06:23:55.730
Boardroom: As far as I can tell, I mean, look into this, maybe I'm wrong, but it's… it's hard to get a list of the police officers, that's the problem there, too, but as far as I can tell, there's…

2393
06:23:55.960 --> 06:23:58.989
Boardroom: Berkeley City Police Officers on the Brady's List.

2394
06:24:00.620 --> 06:24:09.439
Boardroom: I don't trust the police, I'm kind of scared to say anything about it, honestly, because I live here in Berkeley, and I want to stay living in Berkeley.

2395
06:24:11.730 --> 06:24:12.930
Boardroom: Thank you.

2396
06:24:13.150 --> 06:24:18.410
Boardroom: Is, I… Oh, okay. Alright, we have some comments online.

2397
06:24:20.160 --> 06:24:22.890
Boardroom: First up, online.

2398
06:24:23.560 --> 06:24:26.539
Boardroom: Is Cheryl Davil a former council member?

2399
06:24:29.990 --> 06:24:46.699
Cheryl Davila, Former Councilmember, Founder CEMTF: So, you know, when I was young, in, I think 6th grade, we had a police dog. We had a police dog that bit every freaking person that came by the dog, except for us.

2400
06:24:46.790 --> 06:24:50.790
Cheryl Davila, Former Councilmember, Founder CEMTF: And the dog was on a leash, and we would warn people not to bite him.

2401
06:24:50.980 --> 06:24:53.100
Cheryl Davila, Former Councilmember, Founder CEMTF: I mean, not to… to pet him.

2402
06:24:53.290 --> 06:24:57.949

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Cheryl Davila, Former Councilmember, Founder CEMTF: And they would come by, and every time, the dog would bite.

2403
06:24:58.430 --> 06:25:03.650
Cheryl Davila, Former Councilmember, Founder CEMTF: After a while, the dog stopped biting, but it was years and years and years.

2404
06:25:04.010 --> 06:25:11.029
Cheryl Davila, Former Councilmember, Founder CEMTF: Police dogs are meant to be vicious, meant to control and dominate.

2405
06:25:11.710 --> 06:25:19.150
Cheryl Davila, Former Councilmember, Founder CEMTF: as well as, you know, the police. So, we don't need either one of them, really, but,

2406
06:25:19.620 --> 06:25:30.120
Cheryl Davila, Former Councilmember, Founder CEMTF: We definitely don't need canines, and we definitely don't need tear gas, because that is really terrible, and it's not meant for humans.

2407
06:25:30.340 --> 06:25:35.309
Cheryl Davila, Former Councilmember, Founder CEMTF: He, that guy previously said he was in war, and they did not use it.

2408
06:25:35.610 --> 06:25:37.099
Cheryl Davila, Former Councilmember, Founder CEMTF: You should be ashamed.

2409
06:25:37.100 --> 06:25:38.660
Boardroom: Thank you, your time's up.

2410
06:25:38.660 --> 06:25:39.530
Cheryl Davila, Former Councilmember, Founder CEMTF: It's gone.

2411
06:25:40.390 --> 06:25:43.070
Boardroom: Next up is Audrey Kramer.

2412
06:25:44.470 --> 06:25:56.309
Audrey Kramer: Hi, good evening, Councilmembers and Mayor, this is Audrey from District 6, Cal student, and as a Cal Berkeley Democrat, I would like to reiterate and emphasize Councilmember Luna Parra's comment to think of the students.

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2413
06:25:56.310 --> 06:26:20.000
Audrey Kramer: You held the flock meetings over spring break and finals week, and now this, and it is summer. You know, Derek and I are the only Cal Berkeley Democrats in this time zone right now. The CAL student body is doing amazing Berkeley things in DC, China, Europe, everywhere. Students have always and will always be a voice for this city, and I am pleading you to think of them in your calendar. Thank you so much for staying up this evening, I really appreciate your time.

2414
06:26:20.650 --> 06:26:24.609
Boardroom: Thank you, Audrey. Next is, Mina?

2415
06:26:27.690 --> 06:26:31.209
Mena K.: Hi, I just wanted to thank…

2416
06:26:31.400 --> 06:26:36.620
Mena K.: The council members that voted against the dogs being implemented.

2417
06:26:36.740 --> 06:26:55.120
Mena K.: And to the council members that ignored an entire room, an entire Zoom meeting, without one person in support of those dogs, I ask you to really deeply, like, look at who are your constituents? Who are you representing?

2418
06:26:55.130 --> 06:26:57.879
Mena K.: Because to me, it seems like you guys have…

2419
06:26:57.960 --> 06:27:00.880
Mena K.: Someone's lining your pockets by the way y'all vote.

2420
06:27:01.220 --> 06:27:05.259
Mena K.: And that's it. We see it. Can't wait for November. Bye.

2421
06:27:09.300 --> 06:27:11.500
Boardroom: Alright, Jordan…

2422
06:27:14.600 --> 06:27:39.490
Jordan Harger: Yeah, I just want to speak to this kind of abiding belief that the City Council, or at least some members of the City Council, seem to have, that we need to just blindly trust this police department. And I know that there are a lot of people who are new to this movement, and so I think it's important that we know our history, so I'm going to do as

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quick as I can, starting in the early 1900s with the birth of the progressive policing movement, founded by August Vollmer, a noted eugenicist who is still

2423
06:27:39.490 --> 06:27:42.380
Jordan Harger: claimed as the father of the Berkeley Police Department.

2424
06:27:42.630 --> 06:28:05.700
Jordan Harger: Then we move into the 1970s, right? The violence against people at People's Park. Then we can go into the anti-apartheid movement, the violence there. Then we can talk about Kayla Moore, who was smothered to death by the Berkeley Police Department and never got justice. We can talk about Vincent Bryant, who was shot in the face during a mental health crisis, and we can talk about the racist text messages that got leaked that our city did nothing about.

2425
06:28:06.210 --> 06:28:13.929
Jordan Harger: So, that's the police department that we're supposed to trust with attack dogs and tear gas? Absolutely not.

2426
06:28:18.300 --> 06:28:21.549
Boardroom: Alright… Jesse?

2427
06:28:24.130 --> 06:28:26.469
Jesse Gerwein: Hello, thank you guys for your time.

2428
06:28:27.890 --> 06:28:46.850
Jesse Gerwein: I really appreciate, that you guys are taking into consideration public comment, and the views of your constituents. I will say, I am disappointed in the way that, the need for speed in considering tear gas was expressed.

2429
06:28:46.960 --> 06:28:56.789
Jesse Gerwein: I, at least to my knowledge, it's not something that's used very often in Berkeley, and I don't understand why it needs to be talked about before use of force.

2430
06:28:56.860 --> 06:29:16.680
Jesse Gerwein: And I really would love and appreciate if you guys take into consideration, careful consideration, the safety of the people of this city, from the police, as well as being protected by the police. There are many reasons that have been iterated that we have some trust in police, but we also may be wary of them.

2431

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06:29:16.860 --> 06:29:23.849
Jesse Gerwein: And I would appreciate if you guys also take that into consideration. Thank you. Have a great night.

2432
06:29:25.440 --> 06:29:27.900
Boardroom: Okay, Russell Bates.

2433
06:29:30.890 --> 06:29:37.779
RussellBates: All right, everybody, thank you all for staying there. I am… I live in District 7. I'm honored to have

2434
06:29:38.090 --> 06:29:47.510
RussellBates: Cecilia Monopaya as a council member. I think we need to recognize also that the Senate tonight

2435
06:29:47.680 --> 06:30:04.079
RussellBates: defeated a resolution that would have enabled the Israeli military and U.S. military to combine together. The boat was 53 to 47, 53 honest people, 47 traitors. I remember,

2436
06:30:04.790 --> 06:30:06.979
RussellBates: USS Liberty, when it was attacked.

2437
06:30:07.090 --> 06:30:10.579
RussellBates: by the Zionist entity in 1967.

2438
06:30:11.000 --> 06:30:20.130
RussellBates: I was a young person in the military then. I went through boot camp, and like the gentleman who was in the Army, we got

2439
06:30:20.590 --> 06:30:24.429
RussellBates: totaled by clear gas. It was a rite of passage for

2440
06:30:24.770 --> 06:30:34.539
RussellBates: Navy sailors in boot camp. It's an awful thing. It's a terrible thing. It fucks you up, it mentally screws you up, it does you no good whatsoever.

2441
06:30:34.540 --> 06:30:36.270
Boardroom: Ms. Russell, your time's up.

2442
06:30:37.990 --> 06:30:40.830

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Boardroom: Okay, last is Aiden Hill.

2443
06:30:44.250 --> 06:30:58.750
Aidan Hill: Greetings, council members, city staff, and the people of Berkeley. My name is Aiden Hill, I'm a candidate for Berkeley City Council District Number 7 this November election, and again, I urge you to reconsider this policy.

2444
06:30:58.970 --> 06:31:16.199
Aidan Hill: Remember that government is supposed to protect and defend, but also government has a responsibility to protect people from ourselves. And when we enhance any use of force, when we enhance any possibility of external uprest.

2445
06:31:16.200 --> 06:31:29.979
Aidan Hill: or, violence, we have to take that seriously. We don't know the conditions exactly in which this will be used, but we do know the after-effects of the… of this policy. Lack of civilian trust.

2446
06:31:29.980 --> 06:31:47.870
Aidan Hill: Lack of true, proper oversight. Lack of the ability for people to voice their concerns properly to the police in these situations. So again, think about your constituents. Think about the people who need your support the most. They do not want this policy in place. Please respect them. Thank you.

2447
06:31:50.490 --> 06:32:02.890
Boardroom: Alright, that's it. Okay. Sorry? No more speakers. Okay, thank you. Is there a motion to adjourn? So moved. Meeting is already adjourned. Oh, that's right, because it is past the time. Got it. We are adjourned, then. Thank you, everyone.

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